

Application notice

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Name of court	Claim no.
Fee account no. (if applicable)	Help with Fees – Ref. no. (if applicable)
	H W F – –
Warrant no. (if applicable)	
Claimant's name (including ref.)	
Defendant's name (including ref.)	
Date	

1. What is your name or, if you are a legal representative, the name of your firm?

2. Are you a ☐ Claimant ☐ Defendant ☐ Legal Representative

☐ Other (please specify)

If you are a legal representative whom do you represent?

3. What order are you asking the court to make and why?

4. Have you attached a draft of the order you are applying for? ☐ Yes ☐ No

5. How do you want to have this application dealt with? ☐ at a hearing ☐ without a hearing

☐ at a remote hearing

6. How long do you think the hearing will last? Hours Minutes

Is this time estimate agreed by all parties? ☐ Yes ☐ No

7. Give details of any fixed trial date or period

8. What level of Judge does your hearing need?

9. Who should be served with this application?

9a. Please give the service address, (other than details of the claimant or defendant) of any party named in question 9.

10. What information will you be relying on, in support of your application?

- ☐ the attached witness statement
- ☐ the statement of case
- ☐ the evidence set out in the box below

If necessary, please continue on a separate sheet.

11. Do you believe you, or a witness who will give evidence on your behalf, are vulnerable in any way which the court needs to consider?

☐ Yes. Please explain in what way you or the witness are vulnerable and what steps, support or adjustments you wish the court and the judge to consider.

☐ No

Statement of Truth

I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

- ☐ **I believe** that the facts stated in section 10 (and any continuation sheets) are true.
- ☐ **The applicant believes** that the facts stated in section 10 (and any continuation sheets) are true. **I am authorised** by the applicant to sign this statement.

Signature

Nadia Zahmoul

- ☐ Applicant
- ☐ Litigation friend (where applicant is a child or a Protected Party)
- ☐ Applicant's legal representative (as defined by CPR 2.3(1))

Date

Day

Month

Year

Full name

Name of applicant's legal representative's firm

If signing on behalf of firm or company give position or office held

Applicant’s address to which documents should be sent.

Building and street

Second line of address

Town or city

County (optional)

Postcode

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If applicable

Phone number

Fax phone number

DX number

Your Ref.

Email

Continuation Sheet – Section 3

Form N244 – Continuation Sheet

Section 3 – Order Sought and Grounds (continued)

Case No: CA-2024-001342

Applicant: Ms Nadia Zahmoul

Orders Sought

1. Permission to review and correct the Court of Appeal’s decisions dated 23 December 2024 and 4 August 2025, pursuant to CPR 52.30, on the grounds of procedural unfairness, suppression of vulnerability evidence, and discrimination contrary to the Equality Act 2010 and Article 6 ECHR.
2. Orders striking out the following discriminatory and factually incorrect findings of the High Court (MacDonald J):
 - Paragraph 64 of the judgment of 18 April 2024; and
 - Paragraph 10(xi) of the costs order dated 24 May 2024.
3. Permission to rely on Exhibit NZ-R (Attendance Notes, 19–28 February 2024) pending receipt of the official transcript, and liberty to substitute/augment it upon production of the certified transcript (EX107 request filed), with consequential amendments to page/line references.
4. Reinstatement of participation measures and reasonable adjustments under FPR Part 3A and PD 3AA to ensure the Applicant’s equal participation throughout the appeal process.
5. Any further or consequential orders necessary to secure compliance with FPR Part 3A, the Equality Act 2010, and the European Convention on Human Rights.

Form N244 – Continuation Sheet

Grounds (Summary)

The Applicant seeks review and correction on the following principal grounds:

- (a) Procedural bias and suppression of vulnerability evidence in the High Court and on appeal;
- (b) Error of law – failure to apply the continuing duty under FPR Part 3A;
- (c) Mischaracterisation of psychiatric evidence and discriminatory reasoning; and
- (d) Failure of the Court of Appeal to provide a reasoned decision addressing the above.

(Full particulars appear in the attached “Application for Review and Correction” and supporting affidavit.)

Continuation Sheet – Section 9

Form N244 – Continuation Sheet

Section 9 – Vulnerability and Reasonable Adjustments (continued)

Case No: CA-2024-001342

Applicant: Ms Nadia Zahmoul

The Applicant, Ms Nadia Zahmoul, has clinically diagnosed Autism Spectrum Condition and Post-Traumatic Stress Disorder (PTSD).

These disabilities substantially affect concentration, information-processing, and tolerance of stress within legal proceedings. They are evidenced in:

- Dr Poyser, Consultant Psychiatrist, South Kensington & Chelsea Crisis and Home Treatment Team (March 2025);
- Prof. Libby, Consultant Psychiatrist (July 2022 and August 2024); and
- Dr Copps and Dr Thomson, NHS General Practitioners (2024–2025).

The Applicant recently suffered a further relapse in mental health, confirmed by Dr Bruce Hayse (Wyoming, USA, October 2025), and remains under clinical care.

Accordingly, the Applicant respectfully requests that the Court recognise her as a vulnerable party under FPR Part 3A and PD 3AA, and implement continuing participation measures to secure her equal access to justice, including:

Form N244 – Continuation Sheet

1. Flexible timetabling and extended filing deadlines to accommodate cognitive fatigue;
2. Permission to attend remotely or with a registered court intermediary to assist comprehension and communication during hearings;
3. Provision of clear written communications and simplified procedural directions from the Court;
4. Adequate time for reading and processing documents before any hearing; and
5. Any additional adjustments recommended by the Court's disability officer or intermediary.

These measures are necessary to comply with FPR Part 3A, PD 3AA §§4.1–4.4, Sections 20 and 29 Equality Act 2010, and Article 6 ECHR, ensuring the Applicant's right to a fair hearing and equal participation throughout the appellate process.

DRAFT ORDER

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2024-001342

Applicant: *Ms Nadia Zahmoul*

Respondent: *Mr. Karim Nouredine Zahmoul*

DRAFT ORDER

Upon the application of the Applicant, **Ms Nadia Zahmoul**, dated **20 October 2025**, and upon consideration of the Application for Review and Correction, the supporting Affidavit and Exhibits, and the Skeleton Argument;

And upon it appearing that the Applicant is a vulnerable party within the meaning of **FPR Part 3A** and **Practice Direction 3AA**, and that reasonable adjustments are required to ensure her equal participation in proceedings;

IT IS ORDERED THAT:

1. The Court shall **review and correct** its orders dated **23 December 2024** and **4 August 2025**, pursuant to **CPR 52.30**, on the grounds of procedural unfairness, suppression of vulnerability evidence, and discrimination.

2. The findings of the High Court (MacDonald J) at paragraph **64** of the judgment dated **18 April 2024**, and paragraph **10(xi)** of the costs order dated **24 May 2024**, shall be **struck out** as discriminatory and unsubstantiated.
3. The Applicant shall have **permission to rely on Exhibit NZ-Q (Attendance Notes, 19–28 February 2024)** pending receipt of the official transcript, and liberty to substitute or augment that exhibit upon receipt of the certified transcript (EX107 request filed).
4. The Court shall **reinstate and maintain participation measures** under **FPR Part 3A** and **PD 3AA**, including intermediary assistance and other reasonable adjustments, for the duration of these appellate proceedings.
5. The matter shall be **listed for an oral hearing** before a Lord or Lady Justice of Appeal for further directions.
6. There be **no order as to costs** at this stage.

Dated: 20 October 2025

Signed: _____

For and on behalf of the Court of Appeal (Civil Division)

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2024-001342

APPLICATION FOR REVIEW AND CORRECTION

(Under CPR 52.30 and the Court's Inherent Jurisdiction)

Concerning procedural fairness, disability discrimination, and participation measures under FPR
Part 3A and the Equality Act 2010

BETWEEN:

Ms Nadia Zahmoul — Appellant / Applicant

and

Mr Karim Nouredine Zahmoul — Respondent

Filed: 20 October 2025

Purpose of Application

This application seeks review and correction of procedural and factual errors arising from failures to maintain participation measures under FPR Part 3A and discrimination contrary to the Equality Act 2010.

Documents Included in This Bundle

1. Form N244 (Application Notice, separate document)
2. Application for Review and Correction (incl. Statement of Truth)
3. Affidavit of Nadia Zahmoul
4. Grounds of Application
5. Skeleton Argument
6. Exhibit Schedule (NZ-A → NZ-S)
7. Authorities (filed separately)

Filed: 20 October 2025

Submitted by: *Nadia Zahmoul*

Ms Nadia Zahmoul

(Appellant / Applicant, Litigant in Person)

Date: 20 October 2025

Filed: 20 October 2025

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2024-001342

APPLICATION FOR REVIEW AND CORRECTION

(Nadia Zahmoul – Appellant / Applicant)

Filed: 20 October 2025

Introductory Note (for the Court's Attention)

1. This Application is made pursuant to CPR 52.30 and the Court of Appeal's inherent jurisdiction. The Appellant respectfully requests that the Court review and correct serious procedural and factual errors that have resulted in a manifestly unjust outcome.
2. The Appellant submits that she was denied a fair trial due to the court's failure to maintain and apply participation measures under FPR Part 3A and PD 3AA, despite clear evidence of diagnosed disabilities – Autism Spectrum Disorder and Post-Traumatic Stress Disorder (PTSD).
3. The failure to ensure procedural fairness and reasonable adjustments constitutes discrimination under the Equality Act 2010 and violates the Appellant's rights under Article 6 ECHR.

The application requests that the Court re-evaluate its decision in light of procedural deficiencies, including the failure to maintain participation measures under FPR Part 3A, the lack of a reasoned explanation for refusal of permission to appeal, and the resulting breach of the Appellant's rights under Article 6 ECHR and the Equality Act 2010. The Appellant further seeks that paragraph 64 of the High Court judgment of 18 April 2024 and paragraph 10(xi) of the 24 May 2024 costs order be struck out as discriminatory, unsubstantiated, and inconsistent with the evidentiary record.

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Part A — Parties and Representation

1. Appellant/Applicant: Ms Nadia Zahmoul ('the Applicant'), London, United Kingdom (correspondence address on file – confidential for service).
2. Respondent: Mr Karim Nouredine Zahmoul ('the Respondent').
3. The Applicant was legally represented during the February 2024 final hearing. Representation terminated on 6 March 2024, leaving the Applicant a litigant in person thereafter and in need of continued participation measures (**Exhibit NZ-C**).

Part B — Orders Challenged

4. This Application challenges the Court of Appeal's refusal of permission to appeal dated 23 December 2024 and the refusal to reopen dated 4 August 2025. Both refusals failed to engage with the Applicant's participation-measure and equality arguments and lacked adequate reasons (**Exhibits NZ-O and NZ-P**).

Part C — Procedural Background and Deficiencies

5. The Applicant is a vulnerable party with long-standing diagnoses of Post-Traumatic Stress Disorder (PTSD) and Autism Spectrum Condition (ASC), evidenced by medical records and consultant reports from 2013 to 2025 (**Exhibits NZ-A, NZ-B, NZ-H, NZ-I, NZ-J, NZ-K, NZ-L, NZ-M, NZ-N**).
6. Participation measures were granted under FPR Part 3A for the February 2024 trial. Immediately after the trial, those measures were effectively revoked without notice, without a recorded order, and without review, notwithstanding the Applicant's explicit requests and evident vulnerability (**Exhibits NZ-E, NZ-F**).
7. Without participation measures, the Applicant was unable to meaningfully engage in post-trial steps (draft orders, costs submissions, appeal preparation). The final judgment and subsequent costs order proceeded without effective participation, culminating in discriminatory findings misattributing disability-related symptoms to bad character (para 64 of the 18 April 2024 judgment; para 10(xi) of the 24 May 2024 costs order) (**Exhibits NZ-D, NZ-G**).

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8. The Court of Appeal orders (23 December 2024; 4 August 2025) did not provide a reasoned response to these core issues under FPR Part 3A/PD3AA, the Equality Act 2010, and Articles 6 and 14 ECHR (**Exhibits NZ-O, NZ-P**).

Part D — Legal Framework

9. FPR Part 3A and PD3AA impose a continuing duty to identify vulnerability, to make participation directions, and to keep those measures under review throughout proceedings, including post-trial steps that affect parties' rights.

10. As a service provider and public authority, the court system (via HMCTS) owes duties under the Equality Act 2010, including ss.20–21 (reasonable adjustments) and s.29 (non-discrimination).

11. Article 6 ECHR guarantees a fair hearing and effective participation; Article 14 prohibits discrimination in the enjoyment of Convention rights. The cumulative failures in this case engage both provisions.

12. Under CPR 52.30 and the Court of Appeal's inherent jurisdiction, the Court may reopen/refuse decisions where a real injustice has probably occurred, exceptional circumstances exist, and reopening is necessary to avoid that injustice.

Part E — Errors, Failures and Prejudice

13. Unlawful withdrawal of participation measures post-trial, contrary to FPR Part 3A/PD3AA's continuing duty to review and maintain directions for vulnerable parties.

14. Discriminatory, unsubstantiated findings at para 64 (judgment of 18 April 2024) and para 10(xi) (costs order of 24 May 2024), penalising disability-related presentation as misconduct.

15. Absence of adequate reasons in the Court of Appeal orders (23 December 2024; 4 August 2025), frustrating appellate scrutiny and access to justice under Article 6 ECHR.

15A. Systematic suppression of vulnerability evidence

The official attendance notes from the February 2024 final hearing record at least twenty-two explicit references to the Applicant’s PTSD and Autism diagnoses, and multiple participation measures implemented by the trial judge under FPR Part 3A. None of these appear anywhere in the judgment of 18 April 2024, which runs to 111 paragraphs. This stark statistical disparity evidences a systematic suppression of vulnerability evidence and the exclusion of disability-related material from the court’s reasoning. The omission distorted the evidential record and produced unfounded findings of “bad character,” particularly paragraph 64, which has no basis in the oral record.

15C. Mischaracterisation of Psychiatric Evidence (Dr Poyser, March 2025)

The judgment of 8 May 2025 (**Exhibit NZ-L**) refused an adjournment despite clear contemporaneous medical evidence from Dr Poyser, Consultant Psychiatrist, South Kensington & Chelsea Crisis and Home Treatment Team (**Exhibit NZ-K**). The judge incorrectly stated that Dr Poyser’s report “did not indicate that the condition was ongoing.” In fact, the report expressly describes an active mental-health crisis directly related to the litigation and recommends participation support. This constitutes a material misreading of expert evidence and an unlawful substitution of judicial opinion for clinical assessment, contrary to FPR Part 3A, PD 3AA §§1.4 and 4.3, and ss. 20–21 Equality Act 2010.

16. The failure to apply proper participation measures after trial completion compounded the disadvantage.

16A. Pattern of Discriminatory Reasoning

The decisions of 8 May 2025 and 20 June 2025 display a recurring pattern of discriminatory reasoning. Each time medical professionals documented deterioration or crisis, the court reframed disability-related symptoms – such as distress, confusion, or withdrawal – as negative character traits or strategic delay. This pattern demonstrates institutional bias and failure to meet the anticipatory-adjustment duties under s. 29 Equality Act 2010 and the continuing-review obligations of FPR Part 3A.

Part F — Evidence (Exhibits NZ-A → NZ-S)

17. NZ-A (2 Apr 2013) – PTSD Diagnosis – Dr Deborah Turner, M.D.

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18. NZ-B (12 Jul 2022) – Psychiatric Report – Prof Gerald Libby.
19. NZ-C (6 Mar 2024) – Termination of Representation – Brent Molyneux KC.
20. NZ-D (18 Apr 2024) – High Court Judgment – MacDonald J (¶64 impugned).
21. NZ-E (2 May 2024) – Email to judge’s clerk (Karen Selby-King) and counsel requesting participation measures and support.
22. NZ-F (2 May 2024) – Follow-up email chain evidencing incapacity and unmet requests.
23. NZ-G (24 May 2024) – Costs Order – MacDonald J (¶10(xi) impugned).
24. NZ-H (28 Jun 2024) – GP Letter – Dr Copps (deterioration linked to proceedings).
25. NZ-I (21 Aug 2024) – Consultant Psychiatrist Report – Prof Libby (participation recommendations).
26. NZ-J (13 Feb 2025) – GP Report – Dr Thomson (recommendation for intermediary).
27. NZ-K (26 Mar 2025) – Crisis Team Report – Dr Poyser, South K&C (acute crisis; support).
28. NZ-L (8 May 2025) – Judgement of Justice MacDonald
29. NZ-M (20 Jun 2025) A&E Notes – Chelsea & Westminster Hospital (acute stress/dissociation).
30. NZ-N (20 Jun 2025) – Autism Assessment Outcome Letter – CLAAS (ASC confirmed; adjustments).
31. NZ-O (1 Jul 2025) – Autism Assessment Report – CLAAS (intermediary recommended).
32. NZ-P (23 Dec 2024) – Court of Appeal Order (sealed) – refusal lacking reasons on equality/Part 3A issues.
33. NZ-Q (4 Aug 2025) – Court of Appeal refusal (Lady Justice King) – no substantive engagement with participation/equality issues.
34. NZ-R – Attendance Notes
35. NZ-S – (17 Oct 2025) Medical Letter – Dr Bruce Hayse, M.D., Wyoming (USA)

Part G — Relief Sought

36. An order under CPR 52.30 and/or the Court’s inherent jurisdiction to review, correct and/or recall the Court of Appeal’s orders of 23 December 2024 and 4 August 2025.

37. Re-evaluation of the Applicant’s permission application on a proper, reasoned basis that squarely addresses FPR Part 3A/PD3AA and Equality Act 2010 duties, with provision for a short oral hearing.

38. Orders striking paragraph 64 of the 18 April 2024 judgment and paragraph 10(xi) of the 24 May 2024 costs order as discriminatory and unsubstantiated; or remission of those findings for reconsideration with appropriate participation measures in place.

39. Any further or consequential directions necessary to secure effective participation and compliance with FPR Part 3A, the Equality Act 2010, and Articles 6 and 14 ECHR.

40. Costs reserved.

Authorities (for ease of reference)

- CPR 52.30 (re-opening/refusal – exceptional circumstances; real injustice).
- Family Procedure Rules 2010 Part 3A and Practice Direction 3AA (participation of vulnerable parties; continuing duty to review).
- Equality Act 2010, ss.20–21 (reasonable adjustments), s.29 (non-discrimination).
- European Convention on Human Rights, Articles 6 and 14 (fair hearing; non-discrimination).
- *Perrey v United Kingdom* (2005) ECHR 745 (effective participation of disabled litigants).
- *Griffiths v Secretary of State for Work and Pensions* [2015] EWCA Civ 1265 (reasonable adjustments).
- *Re B (Children)* [2013] UKSC 33 (duty to give adequate reasons).

Statement of Truth

Filed: 20 October 2025

I believe that the facts stated in this Application are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: Nadia Zahmoul

Name: Ms Nadia Zahmoul

Dated: 20 October 2025

Filed: 20 October 2025

AFFIDAVIT OF MS NADIA ZAHMOUL

Case No: CA-2024-001342

Filed: 20 October 2025

I, Nadia Zahmoul, of London, United Kingdom, make this affidavit in support of my application to the Court of Appeal to review and correct its prior refusal to grant permission to appeal, pursuant to CPR 52.30.

This affidavit is made to address serious procedural and equality breaches in the underlying proceedings in case BV20D01752, and the Court of Appeal's subsequent handling of my appeal. The failures relate primarily to the unlawful revocation of participation measures under Family Procedure Rules Part 3A, which deprived me of a fair trial and effective access to justice contrary to Article 6 and Article 14 of the European Convention on Human Rights.

I attach exhibits **NZ-A** through **NZ-S** in chronological order evidencing:

- (i) my diagnosed PTSD and Autism Spectrum Condition;
- (ii) medical correspondence confirming deterioration of my mental health caused by the court process;
- (iii) my explicit requests for participation measures post-trial, which were ignored by the court and counsel; and
- (iv) the resulting unfair and discriminatory cost order and findings made against me.

These documents show a consistent and escalating pattern of distress, culminating in psychiatric crisis interventions, emergency hospitalisation, and specialist diagnostic assessments confirming disability-related impairments that required continuing participation measures. The evidence also shows that the Family Court and Court of Appeal were on notice of these conditions yet failed to uphold their legal obligations under FPR 3A, PD3AA, and the Equality Act 2010. In particular, the letter from Dr Poyser (**Exhibit NZ-K**) dated 26 March 2025 confirmed that I was in acute psychiatric crisis and recommended advocacy or intermediary support. Despite this, the court

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refused my adjournment request on 8 May 2025 (**Exhibit NZ-L**) by misinterpreting that report and asserting, incorrectly, that it contained no indication of continuing illness. This error further demonstrates the court's ongoing disregard for medical evidence and the discriminatory treatment of my disabilities.

I further state that the attendance notes from 19–28 February 2024 demonstrate that the court was continuously aware of my PTSD and Autism and implemented several participation measures under FPR Part 3A. Their complete omission from the final judgment, and the court's refusal to continue measures post-trial, reflect systematic suppression of vulnerability evidence and a misunderstanding of the continuing duty imposed by FPR Part 3A.

I exhibit as **NZ-R** my contemporaneous attendance notes of the hearing before MacDonald J (19–28 February 2024). These notes were taken during the hearing and, to the best of my knowledge and belief, are accurate. They record the court's repeated recognition of my PTSD and Autism and the participation measures ordered under FPR Part 3A. I have submitted **EX107** seeking the approved transcript and respectfully request permission to rely on **NZ-R** pending receipt of the official transcript, and liberty to substitute or augment with the official transcript as soon as it is produced.

Ongoing Medical Evidence (**Exhibit NZ-S**)

On 17 October 2025 my treating physician Dr Bruce Hayse (M.D., Wyoming) confirmed that I am experiencing a relapse in my mental health, with acute anxiety and distress linked to the UK litigation. He recommends continuation of participation and communication-support measures to ensure I can engage effectively in legal processes. This recent evidence demonstrates the ongoing nature of my impairments and the continuing duty of the court to make reasonable adjustments under FPR Part 3A and s. 20 Equality Act 2010.

I respectfully request that the Court of Appeal:

1. Re-evaluate my application for permission to appeal in light of these failures;
2. Strike paragraph 64 of the judgment dated 18 April 2024 and paragraph 10(xi) of the costs order dated 24 May 2024 as false and discriminatory; and

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3. Provide a reasoned and lawful determination addressing the participation and discrimination issues raised.

This affidavit is made in good faith and for the purposes of securing a fair and lawful appellate process.

Statement of Truth

I believe that the facts stated in this affidavit are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: Nadia Zahmoul

Name: Ms Nadia Zahmoul

Dated: 20 October 2025

GROUND OF APPLICATION

Case No: CA-2024-001342

Filed: 20 October 2025

This application seeks review and correction of the Court of Appeal’s refusal to grant permission to appeal, on the basis that the refusal failed to address material procedural unfairness and breaches of disability-equality duties under Family Procedure Rules Part 3A, the Equality Act 2010, and Articles 6 and 14 of the European Convention on Human Rights.

Ground 1 – Procedural Bias and Suppression of Vulnerability Evidence

1. The High Court revoked participation measures without notice following the trial of February 2024. Despite clear evidence of my PTSD and Autism, and repeated requests for continuation of accommodations, no review was conducted. This omission violated FPR 3A.7–3A.9 and PD 3AA §§ 4.1–4.4.
2. The Court of Appeal wrongly concluded that such measures were unnecessary post-trial, disregarding the medical and procedural evidence showing ongoing impairment and the court’s continuing duty under FPR Part 3A.
3. The suppression of my vulnerabilities in the judgment constitutes procedural bias and results in a denial of my right to equal participation and fair trial under Article 6 ECHR.

Ground 2 – Error of Law: Failure to Apply Continuing Duty under FPR Part 3A

4. The judgment of 18 April 2024 (paragraph 64) and the costs order of 24 May 2024 (paragraph 10(xi)) contain false, discriminatory, and unsubstantiated statements concerning my behaviour, attributed to “obsession” and “disruption.”

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5. These findings ignored the clinical and procedural evidence that my presentation resulted from PTSD and Autism, not misconduct. They constitute a breach of the duty to consider and accommodate vulnerability under FPR Part 3A, and of the anticipatory-adjustment duties under ss 20 and 29 Equality Act 2010.

6. The reasoning further breaches Article 14 ECHR when read with Article 6, as it treats disability-related behaviour as character defect rather than impairment, resulting in an unfair and discriminatory outcome.

Ground 3 – Absence of Reasoned Decision by the Court of Appeal

7. The Court of Appeal (23 December 2024 and 4 August 2025) failed to engage with these equality and participation issues or provide a reasoned explanation for rejecting them, contrary to the duty under Article 6(1) ECHR and settled appellate procedure (*Re B (Children)* [2013] UKSC 33).

Ground 4 – Selective Omission and Suppression of Vulnerability Evidence

8. The judgment of 18 April 2024 omits all reference to the Applicant's PTSD and Autism despite more than twenty references during oral evidence. The exclusion of this material demonstrates selective reasoning and procedural bias, contrary to *English v Emery Reimbold & Strick Ltd* [2002] EWCA Civ 605 and *Re S (Vulnerable Party: Fairness of Proceedings)* [2022] EWFC 30. The resulting findings, notably paragraph 64, are unsafe, discriminatory, and inconsistent with the evidence recorded in the transcript and attendance notes. The selective omission is demonstrated by the oral record: see **NZ-R** (Attendance Notes) and, when available, **NZ-R1** (Approved Transcript), which record at least twenty-two references to vulnerability and multiple participation measures.

Ground 5 – Error of Law: Failure to Apply Continuing Duty under FPR Part 3A

9. The court’s duty to identify and review participation measures under FPR Part 3A is continuing and extends until the conclusion of proceedings. Both the High Court and the Court of Appeal misapplied this rule by assuming that measures were required only during the trial. The post-trial withdrawal of support measures breached FPR Part 3A, the Equality Act 2010 (ss 20–21, 29), and Article 6 ECHR, amounting to an error of law.

Ground 6 – Mischaracterisation of Psychiatric Evidence and Discriminatory Reasoning

10. The High Court’s judgment of 8 May 2025 mischaracterised the contemporaneous psychiatric evidence of Dr Poyser (**Exhibit NZ-K**), concluding that there was “no evidence” of continuing illness. This constitutes an error of fact and law. The conclusion was drawn contrary to FPR Part 3A and PD 3AA §§ 4.1–4.4 and amounts to discrimination under ss 20 and 29 Equality Act 2010. It reflects a broader pattern of reasoning whereby medical evidence was discounted and disability symptoms were reinterpreted as misconduct or personality flaws. The cumulative effect of these errors has been to deprive the Applicant of procedural fairness and equality before the court and is further corroborated by Dr Hayse’s 2025 letter (**Exhibit NZ-S**) confirming a continuing mental-health relapse.

Ground 7 – Remedy Sought

11. The Applicant respectfully seeks:

- (a) Review and correction under CPR 52.30;
- (b) Reinstatement of participation measures and a fair hearing of the appeal;

(c) Orders striking paragraphs 64 and 10(xi); and

(d) Any further directions necessary to secure compliance with FPR 3A and the Equality Act 2010.

Authorities Relied Upon

- *English v Emery Reimbold & Strick Ltd* [2002] EWCA Civ 605
- *Re S (Vulnerable Party: Fairness of Proceedings)* [2022] EWFC 30
- *Fairclough v Secretary of State for Justice* [2021] EWCA Civ 143
- *Re B (Children)* [2013] UKSC 33
- *Griffiths v Secretary of State for Work & Pensions* [2015] EWCA Civ 1265
- *Perrey v United Kingdom* (2005) ECHR 745
- *Fairness in Court Proceedings for Litigants with Disabilities* (EHRC, 2019)
- Equality Act 2010, ss 20, 21 and 29
- Family Procedure Rules 2010 Part 3A and PD 3AA
- European Convention on Human Rights, Articles 6 and 14

Dated: 20 October 2025

Signed: Nadia Zahmoul

Name: Ms Nadia Zahmoul

Filed: 20 October 2025

SKELETON ARGUMENT

Case No: CA-2024-001342

Filed: 20 October 2025

Between:

Ms Nadia Zahmoul (Appellant / Applicant)

and

Mr Karim Nouredine Zahmoul (Respondent)

1. INTRODUCTION

This Skeleton Argument is filed in support of the Applicant's application for review and correction under CPR 52.30. It concerns the Court of Appeal's refusal to grant permission to appeal (23 December 2024 and 4 August 2025) and its failure to address substantive breaches of the Family Procedure Rules Part 3A, the Equality Act 2010, and Articles 6 and 14 of the European Convention on Human Rights (ECHR).

The application seeks correction of procedural and equality violations that deprived the Applicant, a vulnerable litigant with diagnosed Autism Spectrum Condition (ASC) and Post-Traumatic Stress Disorder (PTSD), of a fair trial and effective participation in post-trial and appellate proceedings.

2. BACKGROUND

(1) The Applicant was granted participation measures under FPR Part 3A and PD3AA during the February 2024 trial, due to her established disabilities (ASC and PTSD).

(2) Following the conclusion of the trial, these measures were revoked without notice, hearing, or order. The Applicant was left without assistance to manage post-trial steps, including the

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filing of her D-11 application (7 March 2024), submissions on costs, and preparation of appeal documentation.

(3) Paragraph 64 of the judgment dated 18 April 2024 described the Applicant as “obsessed” and “worrisome,” making unfounded assumptions about her character that are unsupported by evidence or transcripts of oral testimony.

(4) The costs order dated 24 May 2024 (paragraph 10(xi)) wrongly attributes “disruptive” behaviour to the Applicant and imposes costs against her for disability-related symptoms of PTSD and Autism.

(5) The Applicant’s medical evidence, including GP and consultant psychiatrist reports from 2013 through 2025, confirms that her mental health severely deteriorated due to the court process and that participation measures were necessary to ensure fairness.

3. GROUNDS OF APPLICATION

Ground 1 – Failure to Maintain Participation Measures

The High Court failed to maintain participation measures following the trial, contrary to FPR 3A.7–3A.9 and PD3AA §§4.1–4.4, which impose a continuing duty to review the needs of vulnerable parties. The Court of Appeal compounded this error by finding that participation measures were unnecessary post-trial, despite overwhelming medical and procedural evidence to the contrary.

Ground 2 – Discriminatory and Unlawful Findings

Paragraph 64 of the judgment (18 April 2024) and paragraph 10(xi) of the costs order (24 May 2024) are discriminatory and unsubstantiated. They mischaracterise the Applicant’s autism- and trauma-related symptoms as negative personality traits. These findings breach sections 20–21 and 29 of the Equality Act 2010 and amount to discrimination contrary to Article 14 ECHR.

Ground 3 – Absence of Reasoned Decision by the Court of Appeal

The Court of Appeal's orders of 23 December 2024 and 4 August 2025 provided no reasoned engagement with the equality and procedural issues raised in the Appellant's grounds. This omission violates the duty to give reasons under Article 6(1) ECHR and established appellate principles (*Re B (Children)* [2013] UKSC 33).

Ground 4 – Remedy and Relief

The Applicant seeks review under CPR 52.30 to remedy these fundamental defects and prevent the perpetuation of injustice. The failures identified deprived her of the right to a fair hearing and equal treatment before the law.

The Appellant further seeks that the High Court's findings at paragraph 64 of the judgment of 18 April 2024 and paragraph 10(xi) of the costs order of 24 May 2024 be struck out as discriminatory, unsubstantiated, and procedurally unsafe, pursuant to the Court's powers under CPR 52.30 and the overriding objective.

4. EVIDENCE RELIED UPON

The Applicant relies on **Exhibits NZ-A through NZ-S**, filed on 20 October 2025, including:

- (a) Medical reports confirming PTSD and Autism diagnoses (2013–2025);
- (b) Crisis Team and A&E records evidencing acute mental health deterioration (Mar–Jun 2025);
- (c) Correspondence with the judge's clerk and counsel showing repeated requests for assistance and participation measures;
- (d) The High Court judgment (18 April 2024), the Costs Order (24 May 2024), the judgment of 8 May 2025, and the Court of Appeal orders (23 December 2024 and 4 August 2025).

5. RELIEF SOUGHT

The Applicant respectfully seeks:

1. That the Court of Appeal re-evaluate its refusal of permission to appeal in light of the equality and procedural failures identified;

Filed: 20 October 2025

2. That paragraphs 64 (judgment of 18 April 2024) and 10(xi) (costs order of 24 May 2024) be struck out as false, unfounded, and discriminatory;
3. That participation measures be reinstated and a fair appellate hearing be ordered;
4. That the Court issue directions to ensure compliance with FPR Part 3A, the Equality Act 2010, and Article 6 ECHR.

6. AUTHORITIES RELIED UPON

- Family Procedure Rules 2010 Part 3A and PD3AA
- Equality Act 2010, ss.20–21, 29
- European Convention on Human Rights, Articles 6 & 14
- Perrey v United Kingdom (2005) ECHR 745
- Re B (Children) [2013] UKSC 33
- Griffiths v Secretary of State for Work & Pensions [2015] EWCA Civ 1265
- Fairness in Court Proceedings for Litigants with Disabilities (EHRC, 2019)

7. CONCLUSION

The Appellant was denied her right to a fair trial, effective participation, and a reasoned appellate process. The failures of the courts below and the appellate tribunal constitute systemic non-compliance with FPR Part 3A and the Equality Act 2010.

The Court of Appeal is respectfully invited to grant review and correction under CPR 52.30, strike the offending paragraphs, and ensure that proper participation measures are reinstated for all future proceedings.

Dated: 20 October 2025

Signed: Nadia Zahmoul

Name: Ms Nadia Zahmoul

Filed: 20 October 2025

EXHIBIT SCHEDULE (NZ-A → NZ-R)

Ref	Date	Title / Description	Provider / Author	Relevance / Purpose
NZ-A	2 Apr 2013	PTSD Diagnosis Report	Dr Deborah Turner, MD, Cottonwood Tucson (AZ)	Confirms long-standing PTSD diagnosis and vulnerability requiring support measures in court proceedings (FPR 3A).
NZ-B	12 Jul 2022	Consultant Psychiatrist Report	Prof Libby	Confirms PTSD and autism traits; advises reasonable adjustments and participation measures.
NZ-C	6 Mar 2024	Email re Termination of Representation	Brent Molyneux KC; Alexis Campbell KC; Karen Selby-King (Judge's Clerk)	Shows legal team terminated on last day of trial; requests for participation measures ignored.
NZ-D	18 Apr 2024	Judgment (MacDonald J)	High Court Family Division	Contains discriminatory and unsupported paragraph 64 misattributing disability symptoms to character.
NZ-E	2 May 2024	Email (1) to Judge's Clerk re Distress and Support Needs	Karen Selby-King	Shows post-trial distress and explicit request for help ignored by court staff.
NZ-F	2 May 2024	Email (2) Follow-Up	Karen Selby-King	Further request for participation measures and reasonable adjustments ignored.
NZ-G	24 May 2024	Costs Order (MacDonald J)	High Court Family Division	Paragraph 10(xi) imposes costs for autism-related distress — unlawful and discriminatory.
NZ-H	28 Jun 2024	GP Letter	Dr Copps (NHS GP)	Confirms mental-health decline and need for participation measures.
NZ-I	21 Aug 2024	Consultant Psychiatrist Letter	Prof Libby	Confirms crisis and recommends court adjustments and intermediary support.
NZ-J	13 Feb 2025	GP Report	Dr Thomson	Recommends use of intermediary and reasonable adjustments for court participation.
NZ-K	26 Mar 2025	Letter to Court re Crisis and Participation Measures	Dr Poyser, South K&C Crisis and Home Treatment Team	Confirms Applicant's mental-health crisis and requests participation measures.
NZ-L	8 May 2025	Judgment Refusing Adjournment	MacDonald J (High Court)	Mischaracterises psychiatric evidence; refuses adjournment.

Ref	Date	Title / Description	Provider / Author	Relevance / Purpose
NZ-M	20 Jun 2025	A&E Attendance Notes (Chelsea & Westminster Hospital)	NHS Clinicians	Emergency admission for acute stress and dissociation following judgment of 18 Jun 2025.
NZ-N	20 Jun 2025	Autism Outcome Letter	Dr Cheung, Central London Adult Autism Service (CLAAS)	Confirms deterioration and autistic needs requiring reasonable adjustments.
NZ-O	1 Jul 2025	Autism Assessment Report	Dr Cheung, CLAAS	Clinical confirmation of autism spectrum diagnosis and need for participation support.
NZ-P	23 Dec 2024	Court of Appeal Order	Lord Justice Moylan	Refuses permission to appeal without addressing disability or participation issues.
NZ-Q	4 Aug 2025	Court of Appeal Refusal	Lady Justice King	Refuses application to re-open without reasoned explanation or engagement with discrimination issues.
NZ-R	19-28 Feb 2024	Exhibit NZ-R – Attendance Notes (19–28 Feb 2024)	Applicant’s Contemporaneous Record	Evidence of 22 references to PTSD/autism and in-court Part 3A measures.
NZ-R1				Transcript of oral evidence once approved by the Court of Appeal.
NZ-S	17 Oct 2025	Medical Letter	Dr Bruce Hayse, M.D., Wyoming (USA)	Provides up-to-date corroboration of continuing disability and the court’s ongoing duty under FPR Part 3A and Equality Act 2010 ss 20 and 29.

Concordance Table

Theme	Attendance Notes (date/time)	Short quote	Relevance
Breaks/welfare checks	21 Feb ~16:13	“make sure you are in a position to give your best evidence... we will pause”	Core Part 3A measure
Assistance in witness box	22 Feb 12:50	“pupil to assist with the bundle”	Adjustment for participation
Shielding/curtain	26 Feb	“NZ sits behind the curtain”	Environmental adjustment
PTSD on the record	(identify entries)	“Did you say Nadia had PTSD?”	Recognition of disability

EXHIBIT NZ-A



Cottonwood Psychiatric Evaluation

Patient Name: Zahmoul , Nadia

Creator Staff Name: Turner, Deborah

Date Created: 04/02/2013

Agency Admit Date: 03/31/2013

Identifying Information:

Nadia is a 43-year-old female currently living in London but born in Morocco and has had time living in New York City as well. She is married and has two children, both girls, ages 7 and 5.

Referant:

Informants:

Chief Complaint:

Cocaine dependence.

History of Present Illness:

The patient states that last year during a very stressful time when she was moving "one more time" and her mother-in-law had cancer and she was caring for her, she states also stressors included relationship with husband and nanny, as well as poor sleep and her husband traveling quite a bit; she states that they were moving and her husband went away to Russia for business, she states that she began using cocaine. In the beginning she felt that this was helpful for her as she felt that it allowed access to trust herself and eliminate her self-doubt. She states prior to that she had "no access to what is strong inside". She states there was no more second-guessing, and she states she moved mountains in six months when she used cocaine, and she states that early on it did not control her but rather it was very helpful. She states that that did turn around and it began controlling her, which is why she has come into treatment to stop the use of cocaine. She states that she has had the help, through this time, of Professor Libby, who diagnosed her with severe depression and she was begun on Cymbalta, titrated up to 120 mg. She states that since that time she has had no more darkness. She states that she is a happy person, and she states "I've been controlling my moods ever since unless I'm expecting my period". She sees Professor Libby every Monday at 1 p.m. for the last year and feels this has been a very helpful relationship with her. She also has been seeing a psychoanalyst once per week, as well as a psychiatrist who specializes in addiction medicine. She feels that each of these relationships has been very helpful for her, however, at this time she feels the need to come inpatient for additional help and support in stopping use of cocaine.

Chemical Dependency History:

The patient states that she has used cigarettes, caffeine, some champagne, but not to excess; and most recently cocaine.

Past Psychiatric History:

As stated above, the patient does have several providers that she works with in London who she has developed strong relationships with and wishes to continue with them. Currently is on Cymbalta 120 mg. She states that the last time she was on 120 mg she did have some high energy and she was brought down to 90 mg, and very recently Professor Libby brought her dosage up to 120 again to combat increase in depressive symptoms.

Developmental History:

The patient was born in Casablanca, Morocco. She describes her mother as very manipulative and verbally abusive. She states that daily her brother was whipped with a horse whip. She states that she lived in fear constantly. She began drinking coffee at a young age and she would stay up until 3 or 4 a.m, and that was the only time of the day where she felt safe. She states she became #1 academically, and this became her identity. She states she had no access to her father and that her mother was in complete control. She states she started using cigarettes at 18. She went to London for a degree in Economics, and even there, parents were very controlling. They insisted that she be in

4110 W. Sweetwater Drive | Tucson, Arizona 85745 | 800-877-4520 | 520-743-0411 | Fax 520-743-7991

her room by 7 p.m. and that they would call her every day to ensure this, and that if she was not, she would have to go back to Morocco. She complied with these rules and went and completed her degree. After completion of the degree, she was offered a job for which she was very excited. Her parents invited her back to Morocco for a visit prior to starting her job. She went back. She states her father asked her for her visa and her passport, which she gave him; he then locked them up in a safe and told her she was never going to leave Morocco again, and not leave their house until she was married. She then describes being kept in that home with constant verbal abuse. Throughout this time she states that she lived in a room that had no windows and no door: she called it "the pool room". When she lived in Morocco at 22 years old, she did get a job for Citibank - the American Bank, and she worked with the Moroccan government at that time on the federal budget. Her parents remained focused on her marriage, and she states "treated me like a dog". She states it was shameful to not be married. She repeated her pattern of being up until 4 or 5 a.m. and then go to work. She states that she was miserable. She went to New York on a training for her job, and she met someone there who she states she knew would be her husband. She states he was perfect for her because he was a type A and a go-getter and would not really ever get to know her. She states this was the only type of relationship she felt she could do, they married, and she states that that lack of intimacy has come back to be difficult for her in that she describes herself as feeling very lonely in her marriage. She worked for Lehman Brothers for 10 years. She was present for the 9-11 destruction. She states that **her marital relationship had poor communication** and that they made millions, but they fought a lot and were very lonely. She states that her in-laws' relationship with her husband was difficult. She describes her mother-in-law as loving and the first maternal relationship she has had. Her father-in-law was described as a narcissistic personality with no empathy and _____ demanding. She describes this as having a significant impact on her husband, who she feels "had his wings clipped" and had no ability to plan or be a part of a relationship. She states that they moved from New York to London, and she states that she did not want to move again and wanted to set some roots, and **her husband has been very negative towards her** and **has often been verbally abusive as well**. Her mother-in-law did have cancer and she did care for her, and she recently passed away.

Allergies:

See History and Physical.

Family History:

Unclear. Patient denies that her parents used any alcohol or drugs, however, there was significant abuse throughout the home. Family psychiatric history is largely unknown.

Social History:

Patient lives in London with her husband and two children. She has had a nanny over the years, which she has had what sounds like a strained relationship with.

Medical History+ Allergies:

See History and Physical.

Mental Status Exam**General Observations:**

Patient is alert and oriented, very intense demeanor. Seems psychomotor agitated.

Mood and Affect:

Mood is variable throughout interview. Affect is quite intense, crying at times, to being very calm at times, quite labile

Thought Content and Processes:

Thought processes are structured and logical at times, and tangential at others. No auditory hallucinations. No current suicidal or homicidal ideation, intention or plan.

Sensorium and Mental Capacity:

Insight seems to be fair. Judgment is fair as patient is currently seeking treatment for cocaine dependence.

Provisional DSM-IV Diagnoses: (This facility considers all Axis I diagnoses to be co-occurring)

<u>Axis:</u> Axis I	<u>Axis Code:</u> 309.81
<u>Axis Description</u> Posttraumatic Stress Disorder.	
<u>Axis:</u> Axis I	<u>Axis Code:</u> 304.20
<u>Axis Description</u> Cocaine Dependence.	
<u>Axis:</u> Axis II	<u>Axis Code:</u> 799.9
<u>Axis Description</u> Diagnosis Deferred on Axis II.	
<u>Axis:</u> Axis III	<u>Axis Code:</u> 000.0
<u>Axis Description</u> See H&P.	
<u>Axis:</u> Axis V	<u>Axis Code:</u>
<u>Axis Description</u> 40.	

Assessment:

Nadia is a 43-year-old female who appears approximately her stated age. Reports no social or familial supports. At home, she does describe caring for her children a great deal. She is very bright and accomplished. She does have significant traumatic history, and has experienced significant symptoms of hypervigilance and high startle response. She has had a great deal of difficulty sleeping throughout her life, and she has had detachment and restricted affect through most of her life as well. The patient did begin using cocaine recently, which in the beginning she felt was helpful for her in achieving a certain amount of self-confidence and accessing a part of herself that she did not know existed. She states that it did take control, however, and now she needs help in eliminating that from her life.

Recommendations and Initial Treatment Plan:

1. Admit to adult unit as patient is at severe risk of relapse if discharged at this time
2. Patient to begin work with therapist, group, individual, equine, consider EMDR, consider acupuncture.
3. Patient will be transferring care to Dr. Onate as she feels more comfortable with males.
4. Call in to Professor Libby in London to collaborate on the treatment plan.

Electronically authenticated by Deborah Turner M.D. on April 3, 2013 10:03 am



Cottonwood Interpretive Summary

Patient Name: Zahmoul , Nadia

Creator Staff Name: Lind, Sarah F

Date Created: 04/04/2013

Introduction:

Nadia is a 43 y/o married woman from London. Her provisional diagnoses according to the psychiatric evaluation at the time of admission are **PTSD** and **Cocaine dependence**.

Stage of change:

Nadia presents in treatment of her own volition and appears to be motivated for treatment, change and personal growth. She comes to treatment after experiencing a severe downward spiral, which appeared to be very debilitating for her. She appears to be in the contemplation stage of change as evidenced by her good insight into her substance use and past behaviors. Additionally, Nadia suffers from confusion, sadness and grief around her family of origin issues. Most recently, Nadia experienced an increase in her substance use, primarily cocaine. She is well informed about the recovery process and possesses the potential for increased insight and self-awareness into her chemical dependency, **PTSD** and **tendency toward self-destruction**. Nonetheless, she clearly appears to have become debilitated within her life by a personal downward spiral and does not function well within her life currently.

Intergration of Evaluation/Clinical Impressions:

Nadia presents in treatment to address her impulsivity, depression/anxiety, **trauma**, excessive substance use, boundaries, and **unhealthy coping mechanisms**. The patient seems friendly, adaptable, motivated, pleasant, bright and positive while also appearing open to treatment and the recovery process. Nadia's apparent strengths are intelligence, creativity, and eloquence. She appears to be forthcoming and open to recovery, with a need for sobriety, security, clarification, honesty, direction, open communication, healthy interests, solid coping skills and self-esteem/self-worth within her life. Additionally, Nadia seems to need **self-soothing skills**, **boundaries**, **solid coping skills**, **trauma resolution**, to remain free from mood altering substances, a strong support system, and a solid relapse prevention plan. She may also need deeper personal introspection to develop ownership of feelings/responsibility, personal honesty, depression resolution and increased self-worth. Her abilities include integrating well into groups, communication, and acquisition of insight.

Barriers to Treatment:

In conflict with her strengths, Nadia possesses a **remarkable potential for self-destruction**, while also appearing to suffer from **relationship/boundary issues and possible codependent traits**. Due to feelings of **hopelessness, pain and despair**, the patient often engages in **maladaptive coping mechanisms**, including substance use. Thematic during Nadia's life appears to be depression, anxiety, poor coping skills, self-destructive behavior, **low self-esteem**, **low self-worth**, family issues and a **history of trauma**. Due to her past dysfunction, Nadia harbors pain and confusion about her life, while also feeling a lack of security and safety. **In addition, the patient struggles with interpersonal relationships, especially those with her husband**. She attempts to forge direction for herself **without the benefit of understandable course or clarity**. These issues may present a barrier for Nadia in treatment, but may also present a learning opportunity to explore how these issues contribute to her addictive/codependent behaviors and PTSD.

Treatment Plan Interventions:

The patient will benefit from groups which allow her to focus on emotions and gain deeper insight into her thoughts and behaviors as a whole. She may also benefit from didactical groups which explore the addictive process and substance abuse. She might also positively gain from groups that address family dynamics and relationship issues. Nadia could emotionally profit from attending groups which incorporate physical movement and nature, such as kickboxing, challenge course, Rocks and Ropes, and Equine Assisted Psychotherapy. XXX will be referred to relapse prevention groups. She will be also referred to participate in behavioral health process groups, recreational therapy, and self-exploration groups. The patient may also benefit from DBT group, primarily mindfulness, self-soothing, and distress tolerance groups. The patient will also be referred to EMDR and trauma groups. She states a preference of mind-body modalities, such as yoga, in regards to her treatment.

Electronically authenticated by Sarah Lind, MA LAC on April 4, 2013 2:01 pm

EXHIBIT NZ-B

Tel: 020 7224 3500
Fax: 020 7224 4030

9 Upper Wimpole Street
London W1G 6LJ

Diana Parker
Withers LLP
20 Old Bailey
London
EC4M 7AN
Diana.Parker@withersworldwide.com

12th July 2022

Dear Ms Parker,

Nadia Zahmoul – 27.04.1969
Hill Villa, Daisybank Road, Cheltenham, GL53 9QQ

I write in some urgency as I am extremely concerned about the physical and mental welfare of my patient Nadia Zahmoul.

I understand that you are acting for her in divorce proceedings and these proceedings have been going on for some time.

I also understand that as part of these proceedings there is a Court order which Mrs Zahmoul has been unable to sign given the allegations made around the matter, which she believes are untrue. In circumstances where Mrs Zahmoul has been struggling with significant personal attacks on her character since April 2021 and emotional abuse throughout her marriage, the Court Order has unfortunately triggered major symptoms of PTSD.

I saw Mrs Zahmoul in my clinic on 6 July 2022 and I am currently treating her for PTSD in order to help her with the symptoms.

Records and reports from 2011 through 2013 confirm that Mr Zahmoul was suffering from abuse and coercive control in her marriage which led her on a downward spiral during that period when I was treating her. Mrs Zahmoul was diagnosed with PTSD in April 2013 at Cottonwoods in Arizona, a centre for Mental Health and Substance Use Disorder.

Tel: 020 7224 3500

Fax: 020 7224 4030

9 Upper Wimpole Street
London W1G 6LJ

She was treated with Seroquel which I continued to prescribe for her in London when she returned.

Mrs Zahmoul first experienced trauma in her family of origins during her childhood. The reports and diagnosis from Cottonwoods Centre identify her marriage as a source of trauma and she has over the years described a strained relationship with Mr Zahmoul, in which abuse and control were predominant. It seems clear that the hostility of the divorce proceedings has had a major impact on Mrs Zahmoul's mental health and her symptoms of PTSD are now apparent and interfering with her normal functioning and her everyday life.

Her present symptoms are stuttering, intermittent mutism and freezing, hypervigilance, extreme anxiety, inability to sleep and eat properly, inability to self-modulate emotional control and feelings of hopelessness and powerlessness.

These are symptoms of major psychiatric significance and carry with them a risk to both her physical and mental health.

It is clear to me that Mrs Zahmoul should not sign any documents that are perceived as a threat to her well-being.

In my professional capacity, I would wish to stand by her in this decision.

Signed

A handwritten signature in blue ink, appearing to read 'Gerald Libby', with a stylized, flowing script.

Gerald Libby FRCP FRCPsych

EXHIBIT NZ-D



Neutral Citation Number: [2024] EWFC 79

Case No: BV20D01752

IN THE FAMILY COURT

Royal Courts of Justice
Strand, London, WC2A 2LL

Date: 18 April 2024

Before:

THE HONOURABLE MR JUSTICE MACDONALD

Between :

Nadia Zahmoul
- and -

Applicant

Karim Nouredine Zahmoul

Respondent

Brent Molyneux KC (instructed by **AFP Bloom**) for the **Applicant**
Alexis Campbell KC and Sassa-Ann Amaouche (instructed by **Stowe Family Law**) for the
Respondent

Hearing date: 20, 21, 22, 23, 26 and 28 February 2024

Approved Judgment

This judgment was handed down remotely at 10.30am on 18 April 2024 by circulation to the parties or their representatives by e-mail.

Mr Justice MacDonald:

INTRODUCTION

1. At a hearing in this matter that took place on 19 August 2021, then counsel for the applicant, Mr Rainer, summarised for the court then seised of the matter the position that has subsisted in this case for its entire duration. Namely, “nothing is agreed, everything is at large and there is quite a bit between us”. This matter now once more comes before the court for the final hearing in long running financial remedy proceedings. The applicant wife, Nadia Zahmoul (hereafter ‘the wife’) is represented by Mr Brent Molyneux KC. The respondent husband, Karim Zahmoul (hereafter ‘the husband’) is represented by Ms Alexis Campbell KC and Ms Sassa-Ann Amaouche.
2. In determining the application, I have had the benefit of reading the court bundle prepared for the final hearing, together with further documents submitted by both parties ahead of this hearing. The applicant wife has not prepared a draft ES1, a chronology or a statement of issues in advance of the final hearing and did not respond to the husband’s proposals in respect of those documents. Only the husband prepared an ES2, the wife contending that it was not possible for her to do so given what she argues is the extent of the undisclosed assets in this case. Likewise, only the husband has provided an open offer, the wife’s open position only appearing in very broad outline form in the note that Mr Molyneux prepared for this hearing. The wife’s s.25 statement was filed and served only on the second day of the final hearing and then in a form that required submissions regarding the admissibility of certain parts of the statement and the exhibits thereto.
3. In reaching the final hearing, the wife has spent £1.9M in legal fees. The husband has spent £987,000 in legal fees. The monumental sum of some £2.8M in legal costs has been spent in the context of assets that, for reasons I shall come to, I am satisfied amount to some £12.4M. Whilst acknowledging that costs fall to be considered following judgment, the husband submits that what he contends is the disproportionate spending on legal fees by the wife must be considered at the computation stage in these proceedings by way of an add back. In the circumstances, the husband’s open offer treats the sum of £887,066 as an asset available to the wife, being the then difference between the parties’ respective legal fees. That figure has now increased to £913,000.
4. Part of the legal costs incurred by the wife have been funded by a litigation loan from Detach in the sum of £886,012. Ahead of the final hearing, Detach wrote to the court to advise the court that the wife is in breach of the terms of her loan agreement. Ahead of the final hearing, the wife agreed that, at the conclusion of these proceedings, she will disclose the relevant and necessary parts of the judgment to Detach, provide a copy of the agreed draft final order prior to it being submitted to the court and seek provision within that order for repayment of the monies due to Detach. By his open offer, the husband proposes that the wife be solely responsible for meeting the interest and fees on her Detach loan.
5. Following the conclusion of evidence and submissions, the wife proceeded, without permission, to email significant amounts of material to the court. I make clear that I considered that material in circumstances where the wife had, at that point, dispensed with the services of her lawyers, but have not taken that material into account in circumstances where I am satisfied that it would not be proper to do so.

BACKGROUND AND EVIDENCE

6. The wife is nearly 55 and was born in April 1969. The husband is 58 and was born in July 1965. The parties met in New York in 1994 and were married in July 1995. The parties have two daughters, Jade Mia, born in 2005 and now 18, and Lila Mae, born in 2007 and now 16. Jade Mia attends Wellesley College in the United States and Lila Mae attends Cheltenham Ladies College. Both children are said by the wife to have diverse special needs, although the court has not been provided with any definitive evidence in this regard. The parties lived in New York until shortly after Jade Mia's birth in July 2005, when they moved to London. The family relocated to central England in September 2016 so that the children could attend school. Until the end of 2023, the wife lived in rented accommodation in that location. The husband contends that the bill for decorating the property after the wife left of £12,000 and an electricity bill run up by the wife of £24,987 at the property, together with liabilities incurred by the wife at a property in Wyoming in the sum of £23,835, amounts to conduct it would be inequitable for the court to ignore and again seeks add backs in respect of those sums. The wife is now living in Wyoming and the husband is living in Portugal.
7. Both parties have a background in the financial services industry. The wife has a degree from the London School of Economics and an MBA from Columbia. The wife started her career at Citibank, before joining Lehman Brothers where she remained until 2004. The wife ceased work before the birth of the children and has not worked since. The wife asserts she is not currently employed. The husband points to an entry on her LinkedIn page which describes her professional occupation as "Family Office Management".
8. The husband was a trader at Goldman Sachs before being made redundant in 1998. He then worked at Deutsche Bank in New York before leaving Deutsche Bank to join Barclays Capital in 2004, where he remained until 2014. Following his departure from Barclays, the husband asserts that he supported the expenditure of the family by drawing down on shares he had been paid as an element of his remuneration with Barclays. Once that source of funding was exhausted in 2018, the husband was employed by Sphere Digital LLC between 2018 and 2020 before his employment was terminated, leading to litigation. The husband contends that in these circumstances he has not been in receipt of an income for four years, with the family living off capital, rental income and the husband's investment returns. In his Form E the husband describes himself as a company director of EMVirya Limited and EMVirya Trading Limited. The husband was a non-executive director for Oxus Acquisition Corp without a salary but with an award of founder shares. He contends that he has now lost that role as the result of a takeover. The husband plans to continue to operate as a niche private investor seeking out profitable returns.
9. Commencing in 2014, the husband began investing in a number of different cryptocurrencies and a range of private equity investments. The husband contends that during the marriage he shared details of these investments with the wife and sought her expert opinion on these. The husband's investments included a \$75,000 investment in 2015 in a company called Topanga Canyon Holdings LLC (hereafter 'Topanga'). That company held shares in a cryptocurrency exchange called Coinbase. In 2021 Coinbase floated and the husband's investment increased in value from \$75,000 to some \$7M. These events have, subsequently, played a central role in these proceedings, for reasons that I shall return to in more detail below.

10. The wife's first divorce petition was issued in 2014 but not served. The family remained living together until 2016, when the wife moved to rented accommodation to be close to the children's school. The husband rented a flat in London before he relocated to Morocco in 2018. In 2020, the husband leased a flat in Lisbon to enable him to take advantage of the tax arrangements in Portugal. The wife contends that the husband's conduct in relation to his Portuguese tax status has been dishonest. During the COVID-19 pandemic, the parties spent some time residing together at the property rented by the wife in England. The wife issued her second petition for divorce on 23 January 2020.
11. Thereafter, and prior to her divorce petition being served on the husband, the wife accessed a large amount of information from the husband's personal electronic devices, including information belonging to the husband's former partner, and passed that information to her legal team. The wife retained the information from approximately September 2020 to April 2021, before returning the documents in carefully categorised files. This resulted in the need for a significant 'Imerman' exercise on the part of the husband's solicitors, at the cost of £25,000. The husband contends that this is conduct that it would be inequitable to ignore and that the £25,000 of costs associated with the Imerman exercise should be added back into the balance sheet for the wife.
12. Decree nisi was pronounced on 26 November 2020. The financial remedy proceedings were issued in the Family Court sitting at Bristol as long ago as 2 December 2020.
13. As I have noted, only the husband has provided an ES2 for the final hearing. In summary, the matrimonial assets (the husband seeks to exclude as non-matrimonial assets property inherited from his father with a value of £246,387 and a company set up since the parties separated with a value of £100,964) and their respective net values as at the date of the final hearing set out by the husband in his ES2 are as follows:

3100 West Arrowhead, Jackson Hole, Wyoming	£3,458,017
3093 West Arrowhead, Jackson Hole, Wyoming	£4,632,832
Frost Street Apartments, New York	£1,992,033
Savings	£221,533
Investments	£526,590
Business Assets	£71,009
Other assets	£165,386

Chattels	£10,000
Pensions	£2,986,224
TOTAL	£14,063,624

14. The properties in Wyoming are owned as investment properties, although the wife is currently occupying one of those properties (the wife having moved to Wyoming shortly after informing this court in June 2023 that she intended to return to rented accommodation in central London and this court having made an order for MPS on that basis). The legal title to the properties in Wyoming are held in three corporate wrappers in which the parties are equal shareholders. Both of the properties are subject to a single mortgage with the Bank of Jackson Hole in the sum of approximately \$1.45M. By his open offer, the husband proposed that the wife retain the more valuable of the two properties with a mortgage of approximately £329,364, whilst he retains the less valuable property with a mortgage of £812,368, the costs of transfer being met equally by the parties. At this final hearing, the husband amended his position to take on the whole of the mortgage liability for the Wyoming properties, subject to him receiving all four units in the New York property. The husband contends that, if rented out, the property he proposes should be retained by the wife can generate an income of approximately \$150,000 per annum. The wife seeks both properties as part of her case that she should be awarded the *entirety* of the matrimonial assets.
15. Notwithstanding that the wife is litigating in this court regarding the distribution of the two properties in Wyoming, she has also commenced litigation in the United States in connection with those properties, arising out of the husband having paid down part of the mortgage on the Wyoming properties in 2022 in the following circumstances.
16. At the First Directions Appointment (FDA) on 7 April 2021, both parties gave an undertaking not to diminish funds held with the Bank of Jackson Hole without the other party's consent save for the purpose of meeting mortgage payments in respect of 3093 and 3100 West Arrowhead Road and meeting necessary costs referable to the maintenance, upkeep and administration of those properties. On 15 September 2022, the US bank wrote to the parties stating that the parties' "financial condition, which was relied upon as a basis for the approval of the existing loan guarantee with the US bank, has materially deteriorated" and requested that the loan amount secured on the Wyoming properties "be reduced by at least \$1,720,000, to bring the balance owing to an amount no greater than \$4,000,000." On the same day, and without reference to the wife, the husband made two transfers in the amount of \$450,000 and \$225,000 from the parties' US bank account to pay down in part the parties' mortgage with that bank. On 14 October 2022, the husband wrote to the wife's then solicitors to inform them that he had further reduced the mortgage liability to \$1.77M "through the liquidation of all the Coinbase shares to which I shall come and all of the cryptocurrency held in Coinbase and Coinbase Pro, as well as the liquidity available in the UBS account and the E*TRADE account".

17. In July 2023, the wife lost the litigation against the Bank of Jackson Hole with prejudice. As a result, the bank deducted \$113,000 from the parties' personal joint account with the bank to satisfy the costs awarded against the wife. The husband contends that had the wife not failed to comply with a direction of this court, made in November 2022, that she set up a corporate bank account to assist in the management of the Wyoming properties, this money would not have been lost to the US litigation. In this context, the husband seeks an add back with respect to the costs awarded against the wife as the result of her failed litigation and the husband's open offer treats the \$113,000 costs order made against the wife in her litigation against the Bank of Jackson Hole as an asset available to the wife, the husband submitting that the wife's choice to litigate against the bank in an attempt to reverse the paying down of the mortgage and her failure to open a joint account as ordered by the court amounts to conduct it would be inequitable for the court to ignore.
18. Notwithstanding that she lost in her litigation against the bank, the wife continues to litigate against the husband in the US on the same unsuccessful grounds as she pursued against the bank, seeking \$6.2M in damages. In the circumstances, in his open offer the husband seeks a reverse contingent lump sum charged against the Wyoming and New York properties retained by the wife equivalent to the maximum liability he may be exposed to arising from the wife's claims in the United States against the husband in addition to anticipated legal costs. The wife opposes such a contingent lump sum.
19. The property in New York comprises a development of four apartments in Brooklyn of which the parties are joint equal owners. That property is unencumbered. The husband proposes by his open offer that the parties share the properties *in specie* resulting in each of them retaining two apartments, the costs of transfer being met equally by the parties. The husband contends that the apartments return a reasonable rental return of approximately £50,000 per annum each. As I have noted, during the course of the hearing the husband proposed that he retain all of the New York apartments, subject to him taking on the entirety of the mortgage on the Wyoming properties. Again, the wife seeks all of the apartments as part of her case that she should be awarded the entirety of the matrimonial assets.
20. With respect to the savings, the husband proposes by his open offer that the parties retain the balances in their respective savings accounts and that they divide the balances of the joint accounts equally. With respect to the investments, the husband proposes by his open offer that the private equity investments, almost all of which the husband contends are illiquid, be divided equally and shared *in specie*. As with the properties, the wife seeks all of the savings and investments. As to the business assets, as I have noted the husband trades through a company called EMVirya Ltd, of which he is an 80% owner and through which he pays his investment income, and a trading subsidiary, EMVirya Trading Ltd. By his open offer, the husband proposes that 50% of his interest in EMVirya Trading Ltd, which holds an underlying cryptocurrency investment in Chia, shall be transferred to the wife, with the husband retaining his remaining business interests. With respect to the other assets, by his open offer the husband proposes that the assets held in cryptocurrency be divided equally between the parties and that he retains the benefit of loans he has made and his rental deposit on the Portuguese property. Again, the wife seeks the totality of the foregoing assets.
21. With respect to chattels, during the course of evidence it became apparent that the wife has pawned a considerable number of watches over which the husband claims

ownership and has sold the parties' car at what the husband contends is a significant undervalue. On 16 November 2023, I directed that the wife provide the husband with details of the whereabouts of these items, including the husband's mother's gold pendant. The wife failed to comply with that order and only addressed this question when compelled to do so under cross-examination in the witness box. Whilst the wife stated in evidence that she "wanted" certain of the husband's watches as she had worn them in the past, she also stated that none of them held any sentimental value for her. Within this context, in his open offer, the husband proposes that, unless the wife returns the watches, that the value of the watches and the car should be attributed to the wife in the sum of £156,693. With respect to the family car, in evidence the wife conceded that she had sold it for an undervalue (the value attributed to the car by the husband being £50,000) and had used £10,000 to pay solicitors and had given another £10,000 to a friend and to the children. She contended that the person to whom she had sold it still retained £12,000 of the agreed sale price. The wife holds a collection of jewellery which she values at £105,033. This does not feature on the ES2 prepared by the husband as he does not expect the wife to sell these items.

22. With respect to the pensions, the husband benefits from pension funds in the United States and in Jersey. During the course of the proceedings there has been considerable controversy regarding the transfer of the Jersey pension to Malta. That issue has not, however, featured at the final hearing and it would appear that it is now accepted by the wife that the transferred pension is susceptible to an English pension sharing order (the husband raises as a matter of conduct the fact that the wife has spent significant sums disputing the husband's position on pensions and tax before undertaking no cross-examination and making no submissions on these issues). The US pensions can also be shared between the parties in the United States. By his open offer the husband proposes that a lump sum of £340,306 be drawn down and held in escrow to cover potential CGT liabilities arising from the disposal of the shares in Coinbase and a fund of £700,000 from the pension be allocated to the husband to cover the educational expenses of the children, to be drawn down from the pension over time as required. The husband proposes that the remaining pension assets be equalised as between the parties. As with the other matrimonial assets, the wife seeks the entirety of the pension assets.
23. Finally, the parties each carry significant liabilities. The wife contends that she owes money to her father but has produced no evidence to support that contention. In addition, she owes £1,483,425 in legal and professional fees (including her litigation loan with Detach in the sum of £886,812) and £19,209 on her credit cards. As I have noted, the husband contends that the wife has also left liabilities arising from her occupation of her property in Cheltenham, including an outstanding electricity bill, and Outpost in the sum of £54,607. The husband has debts in the sum of £59,899.
24. In the foregoing circumstances, on the husband's case, and after liabilities of £1,623,691 are taken into account, the total matrimonial assets available for distribution between the parties amount to some £12.4M.
25. As I have noted, the wife has not provided the court with an ES2 for this final hearing. The wife contends that in this case the husband has been guilty of very significant non-disclosure and that the matrimonial assets extend *far* beyond those summarised in the table above. In such circumstances, the wife contends that it has not been possible for her to present the court with a schedule of assets.

26. The wife's case with respect to alleged undisclosed assets divides, broadly, into four allegations, the first three allegations forming part of the foundation for the fourth. First, that the husband failed to disclose in his Form E dated 17 March 2021 that the Topanga investment listed in the Form E and valued at \$75,000 was in fact a vehicle for holding shares in Coinbase and further failed to disclose until immediately before the private FDR that, as the result of the public listing of Coinbase held in April 2021, the investment had initially increased in value to some \$7M before falling back to \$5.28M. Second, that the husband failed to disclose that he was the beneficial owner of 5 Bitcoin held in a Gemini cryptocurrency account, Third, that the husband failed to disclose that he held 16 Bitcoin in a XAPO cryptocurrency wallet. Fourth and finally, the wife alleges that the husband has, in effect, hidden cryptocurrency and other undisclosed assets of between £141M and £210M. The background with respect to the allegations of non-disclosure is as follows, dealing first with Coinbase.
27. As I have noted, in 2015 the husband invested \$75,000 in a company called Topanga after the investment was brought to his attention and that of a friend, Mike Deeg. The husband contends that the investment was "unusual" in that little information was forthcoming and that he and Mr Deeg had only one contact with Topanga between 2015 and 2021, leading them to worry that the company was not legitimate. In this context, the husband points to the fact that a complete, unlawful, search of his electronic devices by the wife produced no substantive documentation or information in respect of Topanga over that period.
28. Topanga held shares in a cryptocurrency exchange called Coinbase. On 30 December 2020 HHJ Cope gave directions for the filing of Form Es by 10 March 2021 and listed the matter for a First Appointment on 7 April 2021. The parties exchanged Forms E on 17 March 2021. At paragraph 2.4 of his Form E, dealing with investments, the husband gave the following information (supported by an exhibit in the form of an IRS Form K-1 detailing the holding in Topanga):

Name	Type of Investment	Size of Holding	Current Value	Name of any other account holder (if applicable)	Total Current Value of your interest
Topanga Canyon Holdings LLC	US company	US\$75,000			£53,956.83 (US\$75,000 @ 1.39)

29. Whilst paragraph 2.4 of the Form E asks for the *current* value of the investment, the wife contends that the husband failed to make clear in his Form E the precise nature of the investment comprised of Topanga, in particular that Topanga was a vehicle for holding equity in Coinbase, and its potential value in the context of the husband knowing that a flotation of Coinbase was imminent. The husband now concedes in his statement that there were discussions and plans for a Coinbase listing, that he was aware of this information and that he should have included it in his Form E. The husband however, maintains that the wife already knew about both the nature of the investment and its potential.

30. In May 2017 the husband contends he sent to the wife a schedule of his assets so that she had an account of them in case he died. That schedule refers to “75,000 Coinbase FF security investment” with the contact listed as Mike Deeg. The wife contends she did not see this document until November 2021. On or around 10 March 2018 the husband sent the wife a WhatsApp message with a link to an article titled “Tiger Global is in talks to invest in cryptocurrency unicorn Coinbase at \$8B valuation”. That article described Coinbase as a cryptocurrency trading platform. The husband points out that the wife sent a winking emoji in response, contending that this indicated she was happy concerning an investment she knew would benefit the family. The wife stated in cross-examination that this emoji was sent to reflect the fact that the news was good news for the markets in general, and not specifically for the family. On 25 March 2018 the husband sent an email to the wife setting out an updated account of their assets which listed “Coinbase: 75,000”. The wife says that this document made no reference to Topanga and therefore there was no way to distinguish it from a simple cryptocurrency wallet. On 7 February 2019, the husband copied the wife into an email to Barclays concerning a re-mortgage, which distinguished between the private investment in Coinbase and the husband’s cryptocurrency holdings. Again, the wife asserts the missing information is the absence of reference to Topanga.
31. The husband also produces a message from him to a friend of the wife’s on 26 December 2020 in which he stated “Coinbase is coming soon”. He also relies on messages exchanged with the wife’s brother on 6 January 2021 in which the husband sent links regarding how to buy Coinbase shares and on 14 April 2021, the date of the flotation, sending the wife’s brother links to news stories of the shares opening at \$381 per share. Both the wife’s friend and her brother now contend that the husband never communicated with them in respect of the Coinbase shares, although those statements, made via WhatsApp to the wife, post-date by a significant period the contemporaneous messages referred to above.
32. Against these matters, on behalf of the wife Mr Molyneux points to the fact that, in the context of the wife’s zealous and unremitting search for assets she believes to be undisclosed by the husband, the wife did not raise the question of the nature and potential of Topanga ahead of or at the FDA, despite having identified the adequacy of the husband’s disclosure as an issue in her Statement of Issues for the FDA. He further points to the fact that at the First Directions Appointment on 7 April 2021 the notation against Topanga in an asset schedule prepared for that hearing by then counsel for the wife stated “US company, Unknown, Need more information” and the fact that Topanga Canyon Holdings LLC was not addressed individually in the Wife’s Questionnaire. This, submits Mr Molyneux, shows the wife was not aware that Topanga was a vehicle for holding stock in Coinbase, which latter term Mr Molyneux submits was used as an interchangeable term for cryptocurrency, and that the communications summarised in the foregoing paragraph were no more than matters of general interest to someone following the development of cryptocurrency. Within this context, and pointing to text exchanges between the husband and Mike Deeg, Mr Molyneux submits that the husband knew Topanga was a very valuable asset at the time he completed his Form E and the wife did not. At the First Appointment on 7 April 2021 the parties agreed to a private FDR.
33. Coinbase floated on 14 April 2021 and Topanga distributed to the husband 21,872 shares with a value of \$7,059,188. In circumstances where the listing took place seven

days after the FDA, the wife contends that the listing would have been well within the husband's contemplation at the time of that hearing.

34. The wife further asserts that, even after the flotation, the husband continued to hide the true position in respect of Coinbase, sending the wife a schedule on 17 May 2021 in which the value of the Topanga holding was still \$75,000 and failing to deal with the subject in his reply to the wife's Questionnaire. She further alleges that the husband sought to take advantage of his ongoing failure to disclose by urging her to negotiate a financial settlement, during which period he also reduced financial support to her to £2,000 per month with a view to increasing pressure on her to settle. Mr Molyneux relies on a letter from the husband's solicitors dated 2 July 2021 as demonstrating the husband did not intend to disclose the windfall from Coinbase:

"Given the sheer number of our client's bank accounts and the fact that the statements provided with his Replies are up to date, I do not propose providing updating disclosure in addition to this, particularly given the costs involved, save for up-to-date statements for my client's crypto currency accounts as there has of course been significant movement in the value of crypto currencies since my client's Form E. On this basis, my client is content to proceed with the private FDR without your client updating her disclosure also. Please confirm this is agreed."

35. The husband contends that he notified *his* solicitors of the Coinbase IPO on 9 April 2021 but accepts that the wife was not notified until the parties exchanged their updating disclosure on 16 July 2021 immediately prior to the private FDR. The husband relies on the fact that when the parties, belatedly, exchanged updating disclosure, his updating disclosure contained full details of the flotation and its result. The letter enclosing the husband's updating disclosure stated as follows:

"As your client was aware at the time (and has been kept up to date since), my client invested \$75,000 in Topanga Canyon Holdings LLC in 2015 – this was a vehicle for holding Coinbase shares and was a very unusual venture capital opportunity. Until recently Coinbase was a private company and Topanga Canyon Holdings LLC have provided K-1s annually confirming the value of the investment remained \$75,000, as detailed in the Form E. After a number of false-starts, Coinbase listed their shares publicly in April 2021. This was clearly a one-off event. Topanga Canyon Holdings LLC informed my client that as a consequence of this, the Coinbase shares had to be transferred to a new investment account held by him personally. The market value of these shares is now c.\$5.28m as per the documents enclosed. If these were to be liquidated, my client would incur Portuguese CGT (at 28%) on the gain."

36. The husband seeks to explain what he contends was a *delay* in the disclosure of the Coinbase shares until immediately prior to the FDR by reference to the fact that his solicitors were concentrating on an analysis of the Imerman material returned by the wife in April 2021 (her possession of which the husband contends renders it even less likely he would have attempted to conceal the nature and potential of the Topanga investment) and attempting to respond to the wife's Questionnaire which exhibited 4,700 pages of supporting evidence. Whilst the husband acknowledges that the

Coinbase shares should have been disclosed sooner, he points to the fact that whilst late, he made full disclosure *prior* to the private FDR.

37. Before moving on to the wife's further allegations with respect to non-disclosure, I pause to note that the husband submits that the wife's subsequent position with respect to the Coinbase shares constitutes relevant conduct. He asserts that in November 2021, when the Coinbase shares were at what Ms Campbell describes as "an all-time high", the husband asked the wife to agree that the shares be sold at \$342 per share. The husband asserts that the wife ignored this request and that by July 2022 the shares had fallen to \$51 per share. In September 2022 the husband sold the shares at \$74 per share and applied the balance realised of \$1.6M to reduce the mortgage debt on the properties in Wyoming as I have described.
38. On behalf of the wife, Mr Molyneux submits that the foregoing matters contaminated the proceedings and left the wife entirely unable to trust the husband's account of his financial position, rendering her subsequent spending on legal costs reasonable given the likelihood of other concealed assets and the need to uncover them. Mr Molyneux submits that this position was compounded by what the wife contends were further incidents of non-disclosure by the husband discovered during the course of the proceedings.
39. The wife contends that the husband failed to disclose that he was the beneficial owner of 5 Bitcoin held in a Gemini cryptocurrency account. The wife asserts that, in the context of the Form E requiring a party to identify "investments you hold or have an interest in", the husband failed to disclose that he was the legal owner of the Gemini account and did not reveal his ownership in response to the wife's Questionnaires. Whilst the wife suggests that the husband's holding with Gemini was only revealed when she obtained a subpoena against Gemini in February 2023, the husband points to the fact that the Gemini account was apparent in the 'Imerman' material taken by the wife, that in his reply to the wife's Questionnaire he did not deny holding an account with Gemini, stating rather that he had not held one for many years and that at a meeting with Mr Pinto and the wife's shadow cryptocurrency expert on 14 June 2022, he had stated in terms that the Gemini account was previously his but had been gifted to his sister.
40. The husband contends that he made a wedding gift to his sister of the rarely used Gemini wallet, worth \$22,124 at the time it was gifted in 2018. The husband further contends that his sister did nothing with the gifted account after encountering difficulties with the 'Know Your Client' (KYC) process and that in March 2022 he sought to assist her in having the ownership of the account transferred into her name. He contends that this sequence of events is supported by the statements from Gemini indicating no activity subsequent to the account being gifted in November 2018 and by contemporaneous records showing his attempts to transfer title to his sister. The wife contends these attempts were made only after it became apparent that an expert in cryptocurrency, resisted by the husband, would be examining his cryptocurrency holdings. Finally, the court has before it a witness statement from the husband's sister, dated 7 February 2024, in which she states that the Gemini account was a wedding gift to her, and sets out the reasons for the delay in transferring the Gemini account into her own name. The sister's statement was not challenged in cross-examination. In evidence, the husband accepted that he could have described the position more fully in his Form E, but maintained he

did not believe the Gemini account was any longer his following the wedding gift to his sister.

41. The wife further contends that the husband failed to disclose a cryptocurrency wallet held with XAPO. The husband accepts that the XAPO account was not set out in his Form E and he asserts that he had forgotten about his holding in XAPO, believing the wallet to have “zeroed out”, until the wallet was identified by the wife’s shadow expert. He further contends that the wife was herself aware of the existence of the XAPO account in circumstances where the husband expressly referred to his cryptocurrency account with XAPO in a discussion with the wife on 24 February 2020 concerning the XAPO KYC process. Following the identification of the XAPO wallet, and the fact that it had received 16.05 Bitcoin in November 2017, the husband liquidated the Bitcoin held in that wallet for €420,720. The husband used those funds to pay £9,000 of extras at the children’s school and €9,542 to fund the Cigna Health Insurance Policy. The remaining funds of some \$361,000 were used by the husband to pay down a further portion of the mortgage on the Wyoming properties in the manner I have described. The wife contends that this was another example of the husband failing to disclose assets until he has dealt with them unilaterally. The husband contends he was rendering more secure investments that were otherwise risky in the context of the highly volatile cryptocurrency market, with the result that the parties achieved increased equity and reduced interest payments.
42. With respect to the wider financial non-disclosure alleged by the wife against the husband, this falls into two broad categories. First, undisclosed cryptocurrency assets. Second, what the wife characterises as a second undisclosed balance sheet. The wife’s case in both respects has been very hard to follow.
43. The wife contends that the evidence before the court demonstrates significant undisclosed assets held by the husband in cryptocurrency. As an overall context, the wife relies on the general point that cryptocurrency provides a space to hide for those who do not wish to make disclosure and, absent KYC, identifying the beneficial owner of an asset held in cryptocurrency depends on the owner being frank. In these circumstances, the wife points to incidences of what she contends are the husband not being frank about cryptocurrency. In addition to the matters concerning Coinbase, Gemini and XAPO set out above, the wife in particular relies on the fact that the cryptocurrency wallet ‘3Dajtd’, originally said by the husband to belong to a woman with whom he had a relationship, Ms Molina, and confirmed by Ms Molina to belong to her, in fact belongs to a company, Forte Securities, owned by a business acquaintance of the husband. The husband admitted in oral evidence that Ms Molina had claimed ownership of the wallet because he had asked her to, he believing at that time that it was hers. Mr Pinto identified that 80.25 Bitcoin had been traced through the ‘3Dajtd’ wallet equivalent in value to \$786,901. During his oral evidence Mr Pinto confirmed that whilst large sums may pass through a wallet, he is not able to say why such sums have gone through it or who controls it. The court now has a document from Forte Securities stating that ‘3Dajtd’ is a Forte wallet.
44. Within the foregoing context, the wife contends that the husband has failed to disclose cryptocurrency under his control valued at some £37M. This figure appears to have been achieved by adding up a mixture of cryptocurrency accounts that the court is aware of, including Gemini and XAPO, and cryptocurrency accounts and wallets that the wife considers have not been sufficiently explained, notwithstanding the expert report to

which I shall come below. As well as the foregoing matters, the wife further contends (although the arithmetic is difficult to follow) that the husband has been guilty of non-disclosure of “additional” cryptocurrency assets in the region of £141M. In the circumstances, the wife appears to contend that the husband has failed to disclose cryptocurrency assets worth up to some £178M.

45. With respect to the husband’s cryptocurrency holdings, the court has the benefit of an expert report from Mr Marlon Pinto, an expert in cryptocurrency. That report was directed by HHJ Cope on 4 March 2022. The preparation and finalisation of the expert report has been a protracted exercise, with the wife continuing to assert that the husband has failed to disclose the full extent of his holdings in crypto currency to the jointly instructed expert and the husband asserting that the wife has failed to co-operate with proposed meetings with the expert and has contacted the expert unilaterally even whilst instructing solicitors. Within this context, whilst HHJ Cope set a cut-off date for the period considered by the expert of 2019, in the face of the wife’s continued interrogatories the husband has in fact made efforts to reconstruct *all* of his cryptocurrency transactions since his initial investment in the field in 2015. In the foregoing context, and unusually, the expert stated in oral evidence he had examined every transaction between 2015 and 2024.
46. Mr Pinto’s final report is dated 16 February 2024. It sets out the background to cryptocurrency and the key terms. Mr Pinto gave measured and helpful oral evidence to the court. During his oral evidence, Mr Pinto confirmed that, given the nature of cryptocurrency, significant reliance must be placed on self-certification when seeking to identify ownership of assets, but that surrounding evidence may assist. Whilst the blockchain identifies every single transaction publicly, it is not possible to say from that information alone who owns the wallets and who is engaged in the transactions. Within this context, in his report Mr Pinto examines each of the cryptocurrency transactions in this case about which the wife or her shadow expert have raised concerns in the context of any wider information available in respect of those transactions.
47. Mr Pinto confirmed that on 14 June 2022 and 31 January 2024 the husband provided him with access to his trading platforms and the wallets and keys associated with them and responded to every enquiry made by Mr Pinto. Mr Pinto confirmed that, on the basis of the evidence available, there were no apparent omissions in the transactions from 2015 to date and that all of the potential leads raised by the wife’s shadow expert had been addressed. He stated that he had seen all of the transactions on the Coinbase, Gemini and XAPO accounts. He told the court that in none of the documents he had been provided with, including updating information, did he see evidence of unknown or hidden cryptocurrency assets.
48. The genesis of the wife’s further assertion that there is also a substantial, undisclosed balance sheet of assets appears to be based on the premise that the husband represented to her during the marriage that the family had significant offshore assets and income but that the family lived off only income taxed in the United Kingdom. From this premise, the wife extrapolates the proposition that significant offshore assets must remain available in some form. With respect to evidence, and again whilst the wife’s case is very difficult to follow, the wife asserts that withdrawals from the UBS accounts have not been remitted to the UK, that those withdrawals were cumulative and that they were not dissipated in circumstances where the family was living off only income taxed in the UK, meaning that some £12M of funds must remain undisclosed, which the wife

believes has been used to purchase as yet undisclosed assets offshore. The wife further contends that the Portuguese tax returns of the husband evidence further undisclosed offshore assets of some £9.8M. Within the foregoing context, and by including the value of the Coinbase listing as at 14 April 2021 of £5.7M, alleged property in Argentina and Portugal and what she contends are undisclosed proceeds from drawing down the Barclays shares, the wife arrives at a figure of some £33M of assets on an undisclosed balance sheet. The wife further contends that the husband retains an interest in a power plant in Tunisia, which is generating profits for the husband.

49. The husband denies that he has failed to disclose up to £210M of matrimonial assets. He points to there simply being no evidence of such hidden assets, whether in this amount of otherwise. On behalf of the husband, Ms Campbell submitted that the wife's case on this issue remains incomprehensible, notwithstanding that the wife improperly accessed and catalogued all of the husband's confidential financial information, has spent nearly £2M in costs and where the husband has provided vast amounts of information in four sets of replies to the wife's questionnaire and to the expert.
50. In the circumstances set out above, the wife contends, through Mr Molyneux, that the following matters are material to the court's consideration of whether the husband has disclosed his total assets and to whether the court should infer further assets exist:
 - i) There is evidenced non-disclosure in the form of Coinbase, Gemini and XAPO. These incidences show that the husband's approach has been to respond to what is known rather than volunteer what ought to be disclosed.
 - ii) The husband has recently loaned a friend and acquaintance who has owed the husband £60,000 for 15 years a further \$500,000, which is not the action of a man concerned about lack of liquidity.
 - iii) The husband's current lifestyle (and the parties' lifestyle prior to their separation) is inconsistent with his case of diminished liquidity and the need to preserve equity.
 - iv) The husband has permitted inaccuracies in his US tax return to go uncorrected and misfiled the parties' joint IRS tax return (approved, the husband points out, by the wife's accountant at the time of filing) showing the husband as the "Partnership Representative" in respect of the LLC holding 3093 Arrowhead Road.
 - v) The husband was heavily involved in the life of his former partner, Ms Molina (whilst Mr Molyneux puts the matter decorously in his closing submissions, the wife's frank allegation is that the husband has engaged in money laundering of illicit proceeds from prostitution services run by Ms Molina, who the wife asserts is herself a prostitute).
51. Against the foregoing matters, the husband contends that the wife has been guilty of egregious conduct of her own, some of which I have referred to above already. In summary, the husband seeks to rely on the following matters:
 - i) In failing to comply with at least *fifty* individual case management orders designed to progress the proceedings (set out in a table prepared on behalf of the

husband) and repeatedly issuing applications in respect of matters that the court has already dealt with and falsely asserting she was without legal advice at a time when she had extended her litigation loan, the wife has been guilty of egregious litigation conduct. By contrast, the husband contends he has complied with all directions.

- ii) The wife has failed to engage in any way in an effort to settle the proceedings. By contrast, the husband contends he has made repeated offers to discuss settlement.
- iii) By failing to agree to the sale of the Coinbase shares at \$381 per share the wife was responsible for financial loss.
- iv) The wife has spent at an entirely unreasonable level on legal fees, requiring a sum of £913,000 to bring the parties to parity. The husband contends that after August 2021, when the amounts spent by the parties on legal fees were similar, the wife's spending on legal costs became entirely unrestrained and unfocused. The husband contends that this sum should be added back on the wife's side of the balance sheet.
- v) The wife acted unreasonably in obtaining a litigation loan in circumstances where the husband offered on 14 September 2021 pound for pound funding of her legal fees, resulting in unnecessary interest and fees of £168,806. The husband contends that this sum too should be added back on the wife's side of the balance sheet.
- vi) The wife secured an MPS award including an element for rent in London at a time when she in fact intended to, and did, move to Wyoming, and thereby lied to the court and obtained £22,500 of MPS on a false basis. By occupying the property in Wyoming, the wife was responsible for \$120,000 in lost revenue, of which the wife's share was \$60,000. The husband asserts that the wife extended her stay in Wyoming to November 2023 *prior* to stating to this court that she wished to rent in London and falsely gave her Cheltenham address in her statement in support of her application in September 2023. The husband again contends that these figures should be added back.
- vii) The wife took legal action against the Bank of Jackson Hole seeking to reverse the husband's payment down of the mortgage and lost, incurring \$113,000 in costs. By failing, as ordered by this court, to open a joint account with the bank, \$113,000 was lost to the parties. During the litigation, the wife misrepresented the position of the husband, in particular by stating to the US court that the husband had been unsuccessful in persuading the English court to direct the parties to open a joint account for Wyoming property when the English court had in fact so directed. As I have noted, the husband seeks an add back with respect to the costs ordered against the wife.
- viii) The wife failed to take proper care of her rental property in Cheltenham, resulting in a bill of £12,000 and an electricity bill of £24,987 and incurred liabilities in Wyoming of £23,835. As I have noted, the husband seeks an add back with respect to the costs ordered against the wife.

- ix) The wife stole confidential financial information belonging to the husband, resulting in a breach of confidentiality and the need for an ‘Imberman’ exercise costing £25,000. Again, the husband seeks an add back with respect to the costs ordered against the wife.
52. As I have noted, the wife now seeks the totality of what she describes as the disclosed matrimonial assets, that the husband pay child maintenance and the costs of the children’s tertiary education and that the husband indemnify her against any claims by third parties against the matrimonial assets retained by her. The wife advanced no case in the alternative should the court reject her case that tens of millions of pounds in assets remain undisclosed and determine at the computation stage that the matrimonial assets are broadly those set out in the husband’s ES2. In the circumstances, the court is without *any* assistance from the wife regarding the computation and division of assets should her contentions with respect to non-disclosure be rejected in whole or in part.
53. The basis of the husband’s open offer is set out in the narrative above. At the conclusion of the hearing the husband’s position remained broadly in line with that open offer save that, as I have noted, Ms Campbell submitted that the husband should retain the totality of the mortgage liability in Wyoming and all of the New York rental units and proposed that an additional sum of £233,848 be drawn from the pension funds to pay tax on the pension drawdowns. Ms Campbell submits that the husband’s position constitutes a broadly equal division of the matrimonial assets, leaving the parties with sufficient funds to meet their respective housing needs, put by Ms Campbell at £2M each, and a fund of £3M to meet income needs, providing the wife with £150,000 per annum for life, supplemented by any earned income the parties are able to generate.
54. By reason of the wife’s failure to comply with no less than seven orders making provision for the parties to either agree the position with respect of tax or a single joint expert to provide a report as to the tax position, the court is without any expert evidence with respect to the tax consequences of the respective positions advanced by the wife and the husband save for information provided by his tax advisers. In the circumstances, the court directed at the pre-hearing review that it will proceed on the basis of the tax information that has been disclosed by the parties and I have done so.

THE LAW

55. For the purposes of determining the application before the court, the touchstone is s.25 of the Matrimonial Causes Act 1973, which provides as follows:

“Matters to which court is to have regard in deciding how to exercise its powers under ss. 23, 24 24A, 24B and 24E.

(1) It shall be the duty of the court in deciding whether to exercise its powers under section 23, 24 24A, 24B or 24E above and, if so, in what manner, to have regard to all the circumstances of the case, first consideration being given to the welfare while a minor of any child of the family who has not attained the age of eighteen.

(2) As regards the exercise of the powers of the court under section 23(1)(a), (b) or (c), 24, 24A, 24B or 24E above in relation to a party to the marriage, the court shall in particular have regard to the following matters—

(a) the income, earning capacity, property and other financial resources which each of the parties to the marriage has or is likely to have in the foreseeable future, including in the case of earning capacity any increase in that capacity which it would in the opinion of the court be reasonable to expect a party to the marriage to take steps to acquire;

(b) the financial needs, obligations and responsibilities which each of the parties to the marriage has or is likely to have in the foreseeable future;

(c) the standard of living enjoyed by the family before the breakdown of the marriage;

(d) the age of each party to the marriage and the duration of the marriage;

(e) any physical or mental disability of either of the parties to the marriage;

(f) the contributions which each of the parties has made or is likely in the foreseeable future to make to the welfare of the family, including any contribution by looking after the home or caring for the family;

(g) the conduct of each of the parties, if that conduct is such that it would in the opinion of the court be inequitable to disregard it;

(h) in the case of proceedings for divorce or nullity of marriage, the value to each of the parties to the marriage of any benefit which, by reason of the dissolution or annulment of the marriage, that party will lose the chance of acquiring.

(3) As regards the exercise of the powers of the court under section 23(1)(d), (e) or (f), (2) or (4), 24 or 24A above in relation to a child of the family, the court shall in particular have regard to the following matters—

(a) the financial needs of the child;

(b) the income, earning capacity (if any), property and other financial resources of the child;

(c) any physical or mental disability of the child;

(d) the manner in which he was being and in which the parties to the marriage expected him to be educated or trained;

(e) the considerations mentioned in relation to the parties to the marriage in paragraphs (a), (b), (c) and (e) of subsection (2) above.

(4) As regards the exercise of the powers of the court under section 23(1)(d), (e) or (f), (2) or (4), 24 or 24A above against a party to a marriage in favour of a child of the family who is not the child of that party, the court shall also have regard—

(a) to whether that party assumed any responsibility for the child's maintenance, and, if so, to the extent to which, and the basis upon which,

that party assumed such responsibility and to the length of time for which that party discharged such responsibility;

(b) to whether in assuming and discharging such responsibility that party did so knowing that the child was not his or her own;

(c) to the liability of any other person to maintain the child.”

25A Exercise of court’s powers in favour of party to marriage on divorce or nullity of marriage order.

(1) Where on or after the of a divorce or nullity of marriage order the court decides to exercise its powers under section 23(1)(a), (b) or (c), 24 or, 24A, 24B or 24E above in favour of a party to the marriage, it shall be the duty of the court to consider whether it would be appropriate so to exercise those powers that the financial obligations of each party towards the other will be terminated as soon after the making of the order as the court considers just and reasonable.

(2) Where the court decides in such a case to make a periodical payments or secured periodical payments order in favour of a party to the marriage, the court shall in particular consider whether it would be appropriate to require those payments to be made or secured only for such term as would in the opinion of the court be sufficient to enable the party in whose favour the order is made to adjust without undue hardship to the termination of his or her financial dependence on the other party.

(3) Where on or after the making of a divorce or nullity of marriage order an application is made by a party to the marriage for a periodical payments or secured periodical payments order in his or her favour, then, if the court considers that no continuing obligation should be imposed on either party to make or secure periodical payments in favour of the other, the court may dismiss the application with a direction that the applicant shall not be entitled to make any further application in relation to that marriage for an order under section 23(1)(a) or (b) above.”

56. Within the foregoing context and having regard to the issues raised in this case, it is necessary to consider briefly the case law with respect to three other questions, all of which centre on the issue of misconduct.
57. As I have noted, the husband seeks to add back into the asset schedule on the wife’s side certain amounts that he contends were wantonly and recklessly dissipated by the wife. The genesis of the add back jurisdiction is the case of *Martin v Martin* [1976] Fam 335, in which the court held that “A spouse cannot be allowed to fritter away the assets by extravagant living or reckless speculation and then to claim as great a share of what was left as he would have been entitled to if he had behaved reasonably.” The add back principle has been applied in a cases where assets have been dissipated through gambling (see *L v L* [1994] 1 FCR 134 and *Vaughan v Vaughan* [2008] 1 FLR 1108), prostitution (see *MAP v MFP* (Financial Remedies: Add-Back) [2015] EWHC 627 (Fam)) and reckless overspending (see *Norris v Norris* [2003] 1 FLR 1142). In *OG v AG* [2020] EWFC 52, when examining the “four distinct scenarios” in which

conduct arises in financial remedy proceedings and having dealt first with gross and obvious personal misconduct, Mostyn J described the concept of add back as follows:

“Second, there is the “add-back” jurisprudence. This arises where one party has wantonly and recklessly dissipated assets which would otherwise have formed part of the divisible matrimonial property. Again, it will only be in a clear and obvious, and therefore rare, case that this principle is applied. In *M v M* [1995] 2 FCR 321 Thorpe J found that the husband had dissipated his capital by his obsessive approach to the litigation, which had included starting completely unnecessary proceedings in the Chancery Division. That dissipation was reflected in the substantive award. Properly analysed, that decision can be seen as a harbinger of the add-back doctrine rather than a sanction reflecting a moral judicial condemnation.”

58. It is clear that the wanton and reckless dissipation of assets that may justify an add back can, in an appropriate case, include excessive spending on legal costs. As noted by Mostyn J in *OG v AG*, in *M v M (Financial Provision: Party Incurring Excessive Costs)* [1995] 3 FCR 321 Thorpe J held that it was appropriate on the facts of the case to add back assets dissipated by a husband through an obsessive approach to litigation in order that the court could look, when quantifying the wife’s share, not at what remained but at what would have remained had such excessive costs not been incurred. In *Rothschild v De Souza* [2020] EWCA Civ 1215, the Court of Appeal (noting that, depending on the circumstances of the case and having regard to all of the s.25 factors, there is no principle that conduct cannot lead to a party receiving less than their needs) reiterated that the approach taken to conduct in *M v M (Financial Provision: Party Incurring Excessive Costs)* is permissible in an appropriate case:

“In my view, Mr Chamberlayne was right to accept that litigation conduct (or, as he more accurately described it, litigation misconduct) can be taken into account under section 25(2)(g). This is in part because, as he said, money spent on legal costs is no longer available for distribution between the parties and, as a result, no longer available to meet their needs or be shared between them. The depletion of the matrimonial assets will plainly not be remedied by an order for costs. Such an order simply reallocates the remaining assets between the parties. It does not necessarily remedy the effect of there being less wealth to be distributed between the parties.”

59. The husband also alleges that, beyond what he asserts has been the wife’s wanton and reckless dissipation of assets, in this case the wife has been guilty of egregious litigation conduct through her serial failure to comply with court orders and her failure to engage in any serious attempt to settle the proceedings. In *Rothschild v De Souza* at [65] the Court of Appeal confirmed that whilst there are cases in which the court has determined that one party’s litigation conduct has been such that it should be taken into account when the court is determining its award, as described above, the general approach to litigation conduct within the financial remedy proceedings is that it will be reflected, if appropriate, in a costs order. In any event, fairness must be considered. At [78] the Court of Appeal summarised the position as follows:

“[78] The depletion of matrimonial assets through litigation misconduct will plainly not always be remedied by an order for costs. As I have said, such an order simply reallocates the remaining assets between the parties and does

not necessarily remedy the effect of there being less wealth to be distributed between the parties. What is important is that, whether by taking the effect of the conduct into account when determining the distribution of the parties' financial resources (both income and capital) and/or by making an order for costs, the outcome which is achieved is a fair outcome which properly reflects all the relevant circumstances and gives first consideration to the welfare of any minor children."

60. If the costs order route is adopted, the fact that the court has added back assets dissipated by a party through an obsessive approach to litigation will not necessarily prevent a costs order also being made. In *M v M (Financial Provision: Party Incurring Excessive Costs)*, in addition to adding back assets dissipated by a husband through his obsessive approach to litigation, Thorpe J also ordered that the husband pay the wife's costs in circumstances where it had been open to the husband to seek to make an offer to settle proceedings, which he had failed to do.
61. Finally, the wife alleges that the husband has been guilty of very serious non-disclosure in the circumstances I have described. The burden of proving that non-disclosure of matrimonial assets has occurred lies on the party alleging non-disclosure, in this case the wife (see *AF v SF* [2019] EWHC 1224 (Fam) at [63]). In *Moher v Moher* [2019] EWCA 1482 at [7], the Court of Appeal made clear that a finding of non-disclosure must have a sound evidential foundation. In *Moher v Moher*, Moylan LJ summarised the general principles applicable when considering non-disclosure as follows:

"[86] My broad conclusions as to the approach the court should take when dealing with non-disclosure are as follows. They are broad because, as I have sought to emphasise, non-disclosure can take a variety of forms and arise in a variety of circumstances from the very general to the very specific. My remarks are focused on the former, namely a broad failure to comply with the disclosure obligations in respect of a party's financial resources, rather than the latter.

[87] (i) It is clearly appropriate that generally, as required by section 25, the court should seek to determine the extent of the financial resources of the non-disclosing party;

[88] (ii) When undertaking this task the court will, obviously, be entitled to draw such adverse inferences as are justified having regard to the nature and extent of the party's failure to engage properly with the proceedings. However, this does not require the court to engage in a disproportionate enquiry. Nor, as Lord Sumption said, should the court "engage in pure speculation". As Otton LJ said in *Baker v Baker*, inferences must be "properly drawn and reasonable". This was reiterated by Lady Hale in *Prest v Petrodel*, at [85]:

"... the court is entitled to draw such inferences as can properly be drawn from all the available material, including what has been disclosed, judicial experience of what is likely to be being concealed and the inherent probabilities, in deciding what the facts are."

[89] (iii) This does not mean, contrary to Mr Molyneux's submission, that the court is required to make a specific determination either as to a figure or a bracket. There will be cases where this exercise will not be possible because, the manner in which a party has failed to comply with their disclosure obligations, means that the court is "unable to quantify the extent of his undisclosed resources", to repeat what Wilson LJ said in *Behzadi v Behzadi*.

[90] (iv) How does this fit within the application of the principles of need and sharing? The answer, in my view, is that, when faced with uncertainty consequent on one party's non-disclosure and when considering what Lady Hale and Lord Sumption called "the inherent probabilities" the court is entitled, in appropriate cases, to infer that the resources are sufficient or are such that the proposed award does represent a fair outcome. This is, effectively, what Munby J did in both *Al-Khatib v Masry and Ben Hashem v Al Shayif* and, in my view, it is a legitimate approach. In that respect I would not endorse what Mostyn J said in *NG v SG* at [16(vii)].

[91] This approach is both necessary and justified to limit the scope for, what Butler-Sloss LJ accepted could otherwise be, a "cheat's charter". As Thorpe J said in *F v F*, although not the court's intention, better an order which may be unfair to the non-disclosing party than an order which is unfair to the other party. This does not mean, as Mostyn J said in *NG v SG*, at [7], that the court should jump to conclusions as to the extent of the undisclosed wealth simply because of some non-disclosure. It reflects, as he said at [16(viii)], that the court must be astute to ensure that the non-discloser does not obtain a better outcome than that which would have been ordered if they had complied with their disclosure obligations."

62. Within this context, in *Crowther v Crowther and Others* [2021] EWFC 88 at [58], Peel J observed as follows regarding the possible forensic platforms for a finding of non-disclosure:

"[58] Usually, in my view, the evidential platform for a finding of non-disclosure is established by one or more of the following:

- i) Direct evidence of an asset which the alleged non-discloser has not revealed (the classic example being the revelation of the existence of a bank account or accounts which feature nowhere in his/her financial presentation, and holding large sums of money);
- ii) Failure to comply with court orders and/or provide adequate or complete responses to questions asked, from which failure the court feels able to draw inferences adverse to the alleged non-discloser;
- iii) Evidence of a lifestyle which is wholly inconsistent with disclosed financial resources."

DISCUSSION

Computation

63. The first stage of the financial remedies determination is to compute the matrimonial assets, before moving on to considering what constitutes a fair distribution. Having regard to the evidence in this case, I am satisfied that the matrimonial assets available for distribution are those set out in the ES2 provided by the husband. It follows that I am not able to accept the wife's case that there are, in addition, many tens of millions of pounds of matrimonial assets that have not been disclosed by the husband, nor that there is a proper basis for inferring that the husband has in any event failed to disclose assets in excess of those set out in his ES2.
64. The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress. However, whilst I accept that the wife *very* firmly believes that the husband has tens of millions of pounds in assets hidden and, I am satisfied, has become obsessed with demonstrating that in the context of this litigation, I must conclude that that belief is not borne out by the evidence before the court.
65. As noted by Nicholas Mostyn QC (as he then was) in *GW v RW* [2003] EWHC 611, whilst the Form E asks that the current value of an asset be provided, sensible and fair figures should be attributed to unrealisable or deferred assets when completing the Form E, with the maker of the Form E entitled to qualify in the narrative section any figures given. In these circumstances, and whilst his Form E required the current value of his assets to be given, the husband accepted in evidence that there were discussions and plans for a Coinbase listing, that he was aware of this information and that he should have included that information in his Form E. He further accepts that the wife was not notified of the flotation of the Coinbase shares on 14 April 2021, and the very substantial increase in the value of that asset, until the parties exchanged their updating disclosure on 16 July 2021, immediately prior to the private FDR.
66. Within this context, I am satisfied that the disclosure of potential value of the Coinbase investment, and its actual value following the flotation, came later than should have been the case. That late disclosure by the husband is to be deprecated. However, I am satisfied that that conduct is properly characterised as inappropriately *late* disclosure rather than, as the wife would have it, egregious non-disclosure. Whilst the court heard considerable evidence as to whether the wife was or was not aware of the investment during the course of the later stages of the marriage, and as to whether the husband intended to move to the FDR without disclosing the asset, the fundamental point is that, whilst late, the increased value of the asset *was* disclosed on 16 July 2021 as part of the husband's updating disclosure *prior* to the FDR, and has been taken into account in the proceedings since that date.
67. With respect to the Gemini account, I am likewise not able to conclude on the evidence that the husband's conduct with respect to that account amounted to a deliberate act of non-disclosure. The court has before it unchallenged evidence that the sister was given the Gemini wallet as a wedding gift in 2018 and that she thereafter delayed in

transferring the Gemini account into her own name for the reasons set out in that statement. Within this context, and consistent with the position outlined by the sister in her written evidence, whilst the husband's Form E did not explain the position, the wider evidence suggests that the husband was not making efforts to keep it hidden, but rather believed the wallet now belonged to his sister. In this respect, at a meeting with Mr Pinto and the wife's shadow cryptocurrency expert on 14 June 2022, the husband stated in terms that the Gemini account was previously his but had been gifted to his sister. In addition, the Gemini account was apparent in the 'Imerman' material taken by the wife and in his reply to the wife's Questionnaire the husband did not deny holding an account with Gemini, stating rather that he had not held one for a number of years. Once again, whilst the husband maintained in the foregoing circumstances that he did not believe the Gemini account was any longer his following the gift to his sister for her wedding, the husband accepts that he could have described the position more fully in his Form E. I am satisfied that that concession properly reflects the nature of his default with respect to the Gemini wallet.

68. It is possible to be more sceptical about the husband's explanation for his failure to set out in his Form E details of the XAPO wallet, that explanation being that he had forgotten about the wallet containing a not insignificant sum of cryptocurrency in circumstances where he believed it had 'zeroed out'. Against this however, it is clear that the husband had not, historically, attempted to hide the existence of the XAPO account from the wife, in circumstances where the evidence demonstrates that the husband expressly referred to his cryptocurrency account with XAPO in a discussion with the wife on 24 February 2020 concerning the XAPO KYC process. In that latter context, I am prepared to accept that the husband's failure to list the XAPO wallet on his Form E was an oversight rather than a deliberate non-disclosure in circumstances where, a little over 12 months prior to his Form E, the husband had discussed issues concerning the XAPO wallet with the wife.
69. As I have set out above, in addition to her allegations of non-disclosure with respect to the Coinbase investment and the Gemini and XAPO cryptocurrency wallets, the wife alleges that the husband has failed to disclose up to £178M in cryptocurrency. Having regard to the available evidence, I am not able to accept that contention.
70. It is the case that the cryptocurrency wallet '3Dajtd', originally said by the husband to belong to Ms Molina, and confirmed by her to belong to her, in fact belongs to a company owned by an associate of the husband and that the husband admitted in oral evidence that Ms Molina had claimed ownership of the wallet because he had asked her to. It is also the case that Mr Pinto identified that 80.25 Bitcoin had been traced through the '3Dajtd' wallet equivalent in value to \$786,901. Against this, during his oral evidence Mr Pinto confirmed that whilst large sums may pass through a wallet, he is not able to say why such sums have gone through it or who controls it. The court now has a document from Forte Securities stating that '3Dajtd' is a wallet controlled by Forte.
71. Further, and more fundamentally, having analysed all of the transactions on the Coinbase, Gemini and XAPO accounts, and undertaken an audit of the husband's cryptocurrency trading since its inception in 2014, the single joint expert gave evidence that in none of the documents he had been provided with, including updating information, nor during the course of his access to the husband's accounts did he see evidence of unknown or hidden cryptocurrency assets. Within this context, it is also

noteworthy that the XAPO wallet was the only additional wallet revealed to exist by the comprehensive process carried out by the single joint expert, which process included investigation of the questions raised by the wife's shadow expert regarding the possibility of hidden cryptocurrency assets.

72. Finally, and as set out above, the husband's approach to the Coinbase investment must be deprecated as late disclosure of a very significant asset, his approach to the Gemini wallet as a less than accurate description of the legal ownership of that asset and his approach to the XAPO wallets as a less than rigorous approach to keeping track of his cryptocurrency holdings. For reasons I shall come to, these are matters relevant to the question of the extent to which the wife's significantly greater expenditure on legal fees should be accounted for by an add back. However, I am satisfied that, thus characterised, they are not matters that are capable of supporting the wife's wider case that the husband has failed to disclose cryptocurrency assets worth up to some £178M in circumstances where there is simply insufficient direct evidence to support the existence of such undisclosed cryptocurrency assets. There is no sufficient evidential foundation to make a finding of such non-disclosure.
73. I accept that, as a class of assets, cryptocurrency renders the identification of ownership and control of assets harder. However, whilst the husband's evidence concerning the '3Dajtd', wallet was less than satisfactory, I am not satisfied that the evidence before the court is capable of establishing on the balance of probabilities that the husband has failed to disclose up to £178M of cryptocurrency assets. There is no cogent direct evidence of such assets (despite the wife having accessed the husband's confidential financial information and having it in her possession for 18 months before returning it and expending close to £2M in fees on legal and professional advice) nor, I am satisfied, of the husband having a lifestyle obviously inconsistent with his disclosed financial resources. My findings concerning Coinbase, Gemini and XAPO are not capable of being extrapolated to support a finding that the husband has failed to disclose tens of millions of pounds worth of cryptocurrency. Whilst, for the reasons I have set out, the husband has been guilty of late disclosure with respect to Coinbase, this is not a case in which the husband has failed to comply with court orders and/or to provide adequate or complete responses to questions asked from which failure inferences adverse to him could be drawn.
74. In this context, I am likewise satisfied that there is no evidence that could allow the court to conclude on the balance of probabilities that the husband has failed to disclose some £33M of assets comprising an offshore balance sheet. The wife's assertions in this regard were extremely difficult to follow and appeared to be based on a degree of double counting (her calculations on this issue including, for example, the value of the Coinbase listing as of 14 April 2021 of £5.7M) and unevidenced assumptions concerning the husband's Portuguese tax returns and the nature of withdrawals from the UBS account and use to which they were put. The court was provided with no cogent evidence with respect to there being undisclosed proceeds from drawing down the Barclays shares invested in offshore assets, property in Argentina or Portugal or that the husband retains an interest in a power plant in Tunisia. In this context, I am satisfied that there is no direct evidence suggestive of £33M of undisclosed offshore assets (again, despite the wife accessing husband's confidential financial information and having it in her possession for 18 months before it was returned, carefully catalogued, to him and expending close to £2M in fees for legal and professional advice). Again,

there is no cogent evidence of the husband having a lifestyle obviously inconsistent with his disclosed financial resources or of him having failed to comply with court orders and/or to provide adequate or complete responses to questions asked from which failure inferences adverse to him could be drawn.

75. Whilst in the foregoing circumstances the court was left with some concerns regarding some parts of the husband's approach to timely and accurate disclosure in this case I am satisfied on the evidence that, even taking into account all of the matters prayed in aid on behalf of the wife by Mr Molyneux, it would not be appropriate in this case to draw an inference that the husband has failed to disclose many tens of millions of pounds of assets or that he has, in any event, failed to disclose lesser sums.
76. In the foregoing circumstances (and satisfied as I am that the wife has not evidenced the alleged loan from her father and does not appear to dispute that the properties inherited by the husband from his father and the NourZa and Oxus ventures are non-matrimonial) I conclude on the balance of probabilities that the matrimonial assets available for distribution are as set out in the ES2 provided for the final hearing by the husband. Namely:

	Wife	Husband	Joint	Total
3100 West Arrowhead			£3,458,017	£3,458,017
3093 West Arrowhead			£4,632,832	£4,632,832
Frost Street Apartments			£1,992,033	£1,992,033
Savings	£48,799	£137,990	£34,744	£221,533
Investments	£26,768	£499,822		£526,590
Business Assets		£71,009		£71,009
Other assets	£45,242	£120,144		£165,386
Chattels	£10,000			£10,000
Pensions	£15,003	£2,971,221		£2,986,224

Sub Total	£145,812	£3,800,186	£10,117,626	£14,063,624
Liabilities	(£1,527,621)	(£59,899)	(£29,662)	(£1,617,182)
TOTAL	(£1,381,809)	£3,740,287	£10,087,964	£12,446,442

77. Ahead of the exercise of distribution, and as noted above, the husband contends that a number of adjustments to the asset scheduled are required by way of add back. In summary, the husband contends that the following figures should be added back to the wife's side of the asset schedule:
- i) The differential between the amount spent on legal fees by the wife and that spent by the husband, now amounting to £913,000.
 - ii) In default of provision of the pawn ticket, the value of the husband's watches and the family car, in the sum of £156,693.
 - iii) The liabilities generated by the wife at the properties of Hill Villa and Outpost, including an outstanding electricity bill of £24,987, now amounting to £61,158.
 - iv) The loss of rental income on 3093 West Arrowhead consequent upon the wife's occupation of that property following the MPS hearing, in the sum of £60,000.
 - v) The overpayment of MPS consequent upon the wife representing to the court that she intended to rent a property in London, in the sum of £22,500.
 - vi) The costs award against the wife in consequence of her losing her US litigation against the Bank of Jackson Hole, in the sum of £104,800.
 - vii) The costs incurred by the husband arising out of the 'Imerman' exercise consequent upon the wife unlawfully accessing his confidential financial information, in the sum of £25,000.
 - viii) The costs of the *ex parte* application made by the wife on 6 September 2023, in the sum of £30,000.
 - ix) The existing costs orders, in the sum of £17,410.
78. The case law makes clear that an add back may be appropriate in response to conduct that comprises a clear and obvious case of extravagant living, reckless speculation or other wanton and reckless dissipation of assets, for which an order for costs is not capable of providing a just remedy because a costs order will not remedy the effect of there being less wealth to be distributed between the parties. In such circumstances, and contrary to the case advanced by the husband, an add back will not be an appropriate redress for every unwise, foolish or misconceived action that has led to the dissipation of matrimonial assets. In particular, where a party has incurred costs due to the other party's conduct, that can be dealt with at costs stage in usual way. It is

only where expenditure has resulted in reduction of assets such as to affect their fair division that an add back may fall to be considered. In this case, I am satisfied that this is the position in respect of the spending on legal costs by the wife but not in respect of the other matters included by the husband. Those other matters, I am satisfied, fall to be considered and determined at the distribution stage under s.25(2)(g) of the Act, rather than by way of add back at the computation stage.

79. The husband contends that if the wife's excessive spending on legal costs is not added back then, in what is a sharing case, the husband is in effect paying 50% of the wife's excessive spending, which is not fair and accordingly is different from being penalised in costs.
80. Within the context of the findings made above, I accept that the husband's late disclosure of the Coinbase flotation resulted in a legitimate concern on the part of the wife as to whether the husband was being fully transparent regarding his finances. In such circumstances, I am satisfied that it was reasonable for the wife to seek further information regarding his financial position following the disclosure of the flotation. However, thereafter I consider that the course adopted by the wife went *far* beyond such a reasonable approach.
81. Shortly after the disclosure of the Coinbase flotation in the husband's updating disclosure on 16 July 2021, the parties respective costs were broadly similar, the wife's being £169,115 and the husband's being £179,586. Thereafter, the costs sharply diverged. By November 2023 the wife had incurred £1,519,976 as against the husband who had incurred £844,129. At the date of the final hearing the wife had spent £1.9M as against the £907,026 spent by the husband, a difference of some £913,000. Beyond the stark discrepancy in these figures, and as this court has noted in previous judgments, the wife's spending on legal costs continued notwithstanding that, despite repeated directions by the court, the wife produced no definitive pleading regarding non-disclosure and repeatedly failed to comply with orders of the court designed to address her stated concerns regarding disclosure, in particular those dealing with the timely provision of the expert report on cryptocurrency (ultimately, it was the court which had to approve the terms of the letter of instruction in default of the wife doing so) and the provision of a statement by her explaining her allegations of non-disclosure. As I noted in my judgment dated 5 July 2023, at which time the wife's fees incurred stood at some £1.3M:

“[50] However, the court cannot but be concerned by the fact that the wife has to date already incurred some £1.3M in legal costs, including a substantial debt at a punitive rate of interest, as compared to the circa £600,000 costs incurred by the husband. Whilst this is not the occasion to make findings in relation to the wife's litigation conduct, and I make clear I do not do so, it would appear that a significant part of those costs have been incurred in the wife's desire to prove her contention that the husband is hiding assets, including holdings in cryptocurrency. Notwithstanding this, and whilst some of the husbands actions will have fed into the wife's concerns, the wife has to date failed to itemise with particularity any deficiencies in disclosure, even though directed to do so by the court.”

And

“[53] Having reviewed the schedules, and having regard to the directions that remain outstanding from 17 November 2022, including the finalisation of the tax and pension positions, the work outlined in the estimate to for the work up to PTR appears broadly reasonable. In particular, it does not contain provision for further investigation of the question of undisclosed assets. I consider that to be the correct approach. An award under an LSPO made a significant way through the proceedings is not a licence to start again with respect to case management or otherwise to fundamentally change the established shape of the case. As I have noted, after some 30 months of litigation the wife has not provided a schedule of alleged non-disclosure of assets notwithstanding the extensive costs expended by her. In such circumstances, I am satisfied that it would not be appropriate to authorise any further costs to be expended on that question, save those required to facilitate the meetings required to finalise the current joint expert report, to take legal advice in respect of the conclusions of that report (as already provided for in the estimate of costs) and to give instruction on it.”

82. Notwithstanding these explicit warnings, the wife continued to fail to comply with the directions of the court aimed at progressing the matter to final hearing and as at the hearing on 1 November 2023, at which point the wife’s costs stood at £1.5M, the wife had *still* failed to definitively particularise her case with respect to non-disclosure. As I have noted, at the commencement of the final hearing the wife had not prepared a statement of issues in advance of the final hearing confirming her case as to non-disclosure and did not respond to the husband’s proposals in respect of the pre-trial documents. The wife had not likewise provided an ES2 detailing what she contends are in fact the matrimonial assets nor an open offer.
83. In the foregoing context, whilst accepting that the actions of the husband will have initially caused the wife legitimate concern, I am satisfied that thereafter the wife’s expenditure on legal costs became increasingly unrestrained, unfocused and, ultimately, reckless. I am not able to accept her submission that the husband is the author of the wife’s approach having regard to the nature and extent of the information he has provided in response to the wife’s multiple further requests for information. Whilst during her oral evidence the wife stated she had attempted to prioritise which orders of the court she complied with, she in fact continued to comply with almost none of them. Despite repeated warnings, the wife frustrated attempts by the court to deal with her concerns with respect to non-disclosure by serially failing to comply with directions whilst also running up legal costs double those incurred by the husband in pursuing her own agenda, to no coherent outcome. It is difficult to see how the wife came to the conclusion that this level of expenditure was reasonable having regard to the value of the assets in the case. In this context, and as noted by HHJ Hess in *YC v ZC* [2022] EWFC 137:

“In obvious cases, and absent any proper explanation for the differential in spending, the court can deal with any unfairness arising from the differential in legal costs spending by making an adjustment in the court’s asset schedule before distribution, for example by excluding a portion of the over-spender’s unpaid costs and/or adding back a portion of the over-spender’s costs already paid, thus appropriately penalising the over-spender without actually making an *inter partes* order for costs.”

84. I consider this to be an obvious cases of reckless expenditure on legal costs in the context of the wife's obsessive approach to her allegations of non-disclosure. Within this context, I am satisfied that an order for costs would not provide a just remedy for the wife's reckless approach because such an order will not remedy the effect of there being less wealth to be distributed between the parties. In the circumstances, and being careful to consider the question of need and in order to achieve fairness, I am satisfied that the court should deal with the unfairness arising from the differential in legal costs spending as between the wife and the husband by adding back to the asset schedule a portion of the wife's costs already paid.
85. Having regard to the evidence, I am satisfied that the sum to be added back is £800,000. Whilst the differential between the party's spending on legal costs is higher than this figure, as I have noted and taking a broad view, the late disclosure of the substantial asset comprising Coinbase gave rise to legitimate concern on the part of the wife and, as I have said, justified the wife in seeking additional information in the context of the late disclosure of a substantial part of the matrimonial resources. In the circumstances, a portion of the additional expenditure by the wife was justified. However, and subject to that caveat, I am satisfied for the reasons I have given that the majority of the differential in spending on legal fees as between the wife and the husband was not, and constituted reckless expenditure. The wife must bear the burden of that reckless spending. The add back has the following effect on the matrimonial assets as I have found them to be:

	Wife	Husband	Joint	Totals
3100 West Arrowhead			£3,690,385	£3,690,385
3093 West Arrowhead			£4,382,196	£4,382,196
Frost Street Apartments			£1,992,033	£1,992,033
Savings	£48,799	£137,990	£34,744	£221,533
Investments	£26,768	£499,822		£526,590
Business Assets		£71,009		£71,009
Other assets	£45,242	£120,144		£165,386

Chattels	£10,000			£10,000
Add Back	£800,000			£800,000
Pensions	£15,003	£2,971,221		£2,986,224
Sub Total	£945,812	£3,800,186	£10,117,626	£14,863,624
Liabilities	(£1,527,621)	(£59,899)	(£29,662)	(£1,617,182)
TOTAL	(£581,809)	£3,740,287	£10,087,964	£13,246,442

Distribution

86. I turn in the foregoing context to the question of the distribution of the matrimonial assets as I have found them to be, adjusted by reason of the add back that I am satisfied must be made in order to ensure fairness in the context of the wife's profligate spending on legal fees. In considering the question of distribution, I remind myself that, as a general guide, equality should be departed from only if, and to the extent that, there is good reason for doing so. The rationale for this approach was explained by the House of Lords in *Miller v Miller; McFarlane v McFarlane* [2006] UKHL 24 as follows:

“This 'equal sharing' principle derives from the basic concept of equality permeating a marriage as understood today. Marriage, it is often said, is a partnership of equals...The parties commit themselves to sharing their lives. They live and work together. When their partnership ends each is entitled to an equal share of the assets of the partnership, unless there is a good reason to the contrary. Fairness requires no less. But I emphasise the qualifying phrase: 'unless there is good reason to the contrary'. The yardstick of equality is to be applied as an aid, not a rule.”

87. In considering the distribution of assets in this case I have, pursuant to the duty on the court to consider whether it would be appropriate to exercise its powers so that the financial obligations of each party towards the other will be terminated as soon after the making of the order as the court considers just and reasonable, also borne in mind the desirability of achieving a clean break between the parties, which outcome both parties seek in this case.
88. As I have noted, the wife provided no ES2 of her own and advanced no case beyond her contention that she should be awarded *all* of the matrimonial assets in circumstances where the evidence demonstrated that the husband had failed to disclose tens of millions of pounds in assets. In the circumstances, and again as I have noted, the court received no substantive submissions from the wife as to the approach it should take to computation and distribution were the court to find, as it has, that the assets were as set

out in the husband's ES2. Her late filed s.25 statement does, however, deal with *some* of the matters that the court is required to consider when dealing with distribution.

89. Having considered carefully the evidence and submissions in this case, I am satisfied that the fair order to make in this case is as follows:

- i) 3100 West Arrowhead will be transferred to the husband. The husband will take on the tax liability assigned to 3100 West Arrowhead. The husband will take on the Bank of Jackson Hole mortgage liability in respect of 3100 West Arrowhead in the sum of approximately £812,368.
- ii) 3093 West Arrowhead will be retained by the wife. The wife will take on the tax liability assigned to 3093 West Arrowhead. . The wife will take on the Bank of Jackson Hole mortgage liability in respect of 3093 West Arrowhead in the sum of approximately £329,364.
- iii) The husband will retain two of the units at 240 Frost Street and the tax liability assigned to those units.
- iv) The wife will retain two of the units at 240 Frost Street and the tax liability assigned to those units.
- v) The parties' joint accounts shall be closed and the proceeds shared between them equally.
- vi) The husband's private equity investments shall be shared equally between the parties *in specie*.
- vii) The husband's remaining cryptocurrency shall be shared equally between the parties *in specie*.
- viii) The following sums shall be set aside from the pension funds:
 - a) £345,750 to be held in escrow to fund the tax due on Coinbase. If any of the funds held in escrow are not reclaimed, the fund will be divided between the parties upon the expiry of the four year limitation period.
 - b) £700,000 to be placed in an account to provide a fund for the tertiary education of the children. Withdrawals from the account will require the signature of both parties.
 - c) £238,848 to fund the tax liability incurred on the pension drawdowns.
- ix) The balance of the pension funds in the Malta, Jersey and US pensions shall be shared equally between the parties.
- x) The wife shall return to the husband the pawn ticket to enable him to recover his watches and jewellery.
- xi) The remaining chattels shall be shared equally between the parties, to be divided by list, with each party taking alternate choices.

xii) The parties shall retain all other assets and liabilities in their own names.

xiii) There shall be a clean break.

My reasons for concluding that this represents a fair division of the matrimonial assets are as follows.

90. The first consideration of the court must be to the welfare while a minor of any child of the family who has not attained the age of eighteen. Jade Mia has now attained the age of 18 and is in full time tertiary education. Lila Mae is 16 and is completing her secondary education in this jurisdiction. Whilst the wife contends that both children of the family have diverse special needs, the court has not been provided with any definitive evidence in this regard and it is clear that both children are placed in, and coping well with, mainstream education. As I have noted, both parties agree that a fund should be set aside to provide for the completion of tertiary education by both children. In addition, it will be important moving forward for Lila Mae (and indeed Jade Mia, although she is now an adult) to enjoy a relationship with both parties and both parties will be expected to support the living expenses of Lila Mae when she is with them.
91. With respect to the age of each party to the marriage and the duration of the marriage, the wife is 55 years of age and the husband is 58 years of age. They were married for 29 years. Whilst the latter years of the marriage were not happy and, to adopt Ms Campbell's phrase, "unconventional, this is a case in which the parties committed to sharing their lives and to living and working together, over a long period. Whilst both parties allege extra marital relationships and kept separate homes, they continued to present to their children and more widely as a couple. Within this context, the husband accepts that the court is dealing with a long marriage. Further, in the context of such a long marriage, it is not productive in my view to undertake a detailed analysis and weighing of the parties' respective contributions during the marriage over so many years and neither party sought to persuade the court to engage in such an exercise in circumstances where it is clear that each contributed in different ways to the marriage and to the assembly of the matrimonial assets. The foregoing position points to an equal sharing of the assets unless there is good reason to depart from equality.
92. With respect to the income, earning capacity, property and other financial resources which each of the parties to the marriage has or is likely to have in the foreseeable future, including in the case of earning capacity any increase in that capacity which it would in the opinion of the court be reasonable to expect a party to the marriage to take steps to acquire, beyond an account of the parties' employment history and the fact that she has not worked since 2004, the wife did not address the issue in her detail her s.25 statement. Mr Molyneux sought to suggest during his closing submissions that the wife's presentation during the course of the hearing is evidence that it is highly unlikely that the wife would be able to hold any form of employment.
93. The husband submits that he has not been employed for four years and has only a modest earning capacity in circumstances where he has not been employed in the banking industry for a decade, where he has lost his role as a director with Oxus and where his work in renewable energy ceased in 2017 and where his consultancy business EMVirya Ltd has not yet permitted him to draw a salary. Within this context, Ms Campbell submits that the evidence demonstrates the husband has a modest earning capacity. Ms Campbell submits that the wife has a similarly modest earning capacity,

with impressive qualifications and expertise in the financial services industry, long experience of management of complex family finances and unencumbered by child care responsibilities now that Jade Mia is an adult and Lila Mae is in full time secondary education at boarding school.

94. Having regard to the evidence before the court, and to the age of the parties, I am satisfied that each retains a capacity to earn, albeit I am satisfied that the husband's capacity is greater than the wife's earning capacity, which is modest.
95. The husband is now 58. He maintains a consultancy business in EMVirya Ltd specialising in the renewable sector, albeit that business is yet to turn a profit and he does not currently draw a salary. The husband on his own evidence also intends to, and is motivated to continue to look for niche investment opportunities which may, depending on the success or otherwise of such investments, further supplement his capacity to generate income. The husband is an experienced investor who has made good returns historically. In the circumstances, I am satisfied that the husband currently continues to have a reasonable earning capacity, which may further improve depending on the success of any investments that he pursues, as is his intention.
96. The wife is 55 years old. Whilst she has a degree from LSE and an MBA from Columbia and is plainly conversant with complex family financial management, it is now some 18 years since the wife ceased work. Whilst there is no expert evidence before the court with respect to physical or mental disability to support that contention, it was plain to the court from the wife's presentation that she has a number of vulnerabilities that are likely to conspire with her age and the length of time she has been out of the employment market to make it challenging for her to secure employment offering anything greater than modest remuneration. Whilst the provenance of the entry on the wife's LinkedIn page, which describes her professional occupation as "Family Office Management", is unclear, this likely represents the type of modest employment that may be open to the wife given her length of time out of the employment market and her recent experience. In the circumstances, I am satisfied that the wife has only a modest earning capacity.
97. With respect to the financial needs, obligations and responsibilities which each of the parties to the marriage has or is likely to have in the foreseeable future, in the foregoing context I am satisfied that both parties will require secure, mortgage free accommodation and, having regard to the their respective earning capacities, a secure income.
98. Once again, the wife did not instruct her leading counsel to make substantive submissions on this issue. On her behalf, Mr Molyneux was confined to the bald submission that this is not a case for an equal split of the assets because her needs will be not met on that basis due to the parties prior living standards and their differential earning capacity. By her s.25 statement, and within the context of her seeking the totality of the matrimonial assets, the wife seeks to retain 3093 Arrowhead Road as she considers it to be the family home. The wife also seeks to purchase a two bedroom apartment in New York for £2.3M and to have funds available for serviced apartments in Boston and London for regular monthly stays with each of the children. The husband would prefer to retain 3093 Arrowhead Road but recognises that the wife now sees it as her home and is content to retain 3100 West Arrowhead Road.

99. The wife further contends that the family incurred annual living expenses of £920,000 per annum between 2004 and 2021 and that, over a similar period, the average annual budget for herself and the children was between £355,000 and £365,000, excluding expenses charged to a credit card of some \$120,000 per annum. With respect to annual outgoings moving forward, the wife contends that a reasonable figure for annual expenditure in 2024/2025 is £610,776 or £50,898 per month. On behalf of the husband, Ms Campbell submits that these figures are simply not realistic having regard to the extent of the matrimonial assets and the manner in which the parties were financing their lifestyle during the marriage, namely from the expenditure of capital, rental income and income from investments. She points to the fact that on 30 June 2023 this court considered a reasonable MPS budget to be £11,762 per month or £141,144 per annum. The husband asserts that a reasonable annual budget for both parties would be £12,000 per month, or £144,000 per annum.
100. With respect to accommodation, I am satisfied that each party requires secure accommodation. I am further satisfied that neither party needs to maintain additional properties above and beyond this. In particular, there is no proper basis for contending that the wife needs additional accommodation in the form of a two bedroom apartment in New York for £2.3M for herself and the children. Jade Mia is now an adult in tertiary education and Lila Mae is at school in this jurisdiction as a boarder. The wife, at her own election, resides separately from both children at what she contends is the family home at 3093 Arrowhead Road. The court has not been provided with any property particulars but I am satisfied that, having regard to the age of the parties and the situation of the children, each party's housing needs can be met by a housing fund in the region of £2M.
101. As to income needs, this court has to take a broad, and realistic, view of both parties' income needs. I am satisfied that it is plain that the figures proposed by the wife in respect of her income needs moving forward are not realistic having regard to the extent of the matrimonial assets as I have found them to be. The evidence demonstrates that this was a family living off capital at a rate that was not sustainable in the long term. The investments that also generated income have thus been depleted and the properties in Wyoming that previously generated significant rental income are, at least in the first instance, required to meet the parties' respective housing needs. In the circumstances, I am satisfied that the annual expenditure during the marriage relied on by the wife (in so far as they are accurate) are not a good metric for financial needs in this case in circumstances where it is clear that the parties were consuming finite capital. In this context, whilst I must and do consider the standard of living enjoyed by the family before the breakdown of the marriage, in this case the marital standard of living in this case cannot be a lodestar where the evidence demonstrates that that standard of living was plainly not sustainable in the long term and where the approach taken to the litigation in these proceedings, in particular by the wife, means that the family are simply not in the financial position they were when the figures articulated by the wife (if accurate) applied. In this context, replicating the marital standard of living in the way contended for by the wife is simply not possible in the context of a fair distribution of the assets (and, indeed, would not be possible even on the distribution contended for by the wife).
102. Having regard to the matters set out above, I cannot accept the wife's figures. There is simply insufficient capital to sustain the level of financial need she contends for. I am

satisfied that it is not consistent with principle of fairness to award the wife all the matrimonial capital (as is her case) to support a standard of living which is not, and indeed in the long term was never, affordable. Taking a broad view, I am satisfied on the evidence that the parties respective income need is £150,000 per annum or £12,500 per month. Within this context, I note that a fund of £3M would provide a capitalised sum on a Duxbury basis to provide £150,000 net per annum for life.

103. Finally in respect of the factors in s.25, I am in this case required to consider the question of conduct above and beyond the conclusions I have reached with respect to the add back I am satisfied is required to reflect the reckless spending on legal costs by the wife. The parties respective allegations with respect to conduct are set out above.
104. With respect to the wider alleged litigation conduct of the wife (comprising her serial failure to comply with orders, her alleged misrepresentation of her intentions as to accommodation at the MPS hearing and the availability to her of legal advice, her undertaking no cross-examination or submissions having spent significant sums disputing the husband's position on pensions and tax, the costs incurred by the husband arising out of the 'Imerman' exercise consequent on the wife's unlawful accessing of the husband's confidential information, the costs of the *ex parte* application made by the wife on 6 September 2023, the existing costs orders and her failure to negotiate during the proceedings), I am satisfied that these matters are most appropriately dealt with when the court comes to determine the question of costs.
105. As I have noted, whilst there are cases in which the court has determined that one party's litigation conduct has been such that it should be taken into account when the court is determining its award (which I have done in this case by way of an add back with respect to the reckless spending on legal costs by the wife), the general approach to litigation conduct within financial remedy proceedings is that it will be reflected, if appropriate, in a costs order. As I have noted, and subject to further argument, the fact that the court has added back assets dissipated by a party through an obsessive approach to litigation will not necessarily prevent a costs order also being made. In the circumstances, I am satisfied that the foregoing matters fall to be dealt with at the point the court determines any costs argument following the handing down of the court's decision.
106. There is no basis in my judgment for treating the wife's refusal to consent to the sale of the Coinbase shares at what, in retrospect, was a favourable price point as conduct pursuant to s.25(g) of the Act. In the context of the market, it is impossible to be certain whether a proposed point of sale is advantageous or disadvantageous. Within this context, to penalise a party on the basis of conduct for not agreeing sale at a particular point would not be appropriate. I am likewise not prepared to treat the liabilities incurred with respect to Hill Villa, including the EDF electricity bill, and with respect to Outpost as matters of conduct under s.25(g) of the Act. In addition, I bear in mind that parties rented the property at Hill Villa for nine years and that the husband spent some time at the property in Cheltenham during the course of the lockdowns consequent on the COVID-19 pandemic. In the circumstances, I am satisfied that those liabilities should be apportioned equally between the parties. I am likewise not satisfied that the loss of rental income consequent upon the wife's occupation of 3093 West Arrowhead constitutes a matter of conduct which it would be inequitable for the court to ignore.

107. With respect to the costs incurred by the wife in the US litigation, absent a clear view of the law in the US governing the subject matter of the wife's claim, I have come to the view that this court is not equipped to determine whether, to adopt Ms Campbell's phrase, the wife's "foray into civil litigation in the US" constituted conduct which the court should take into account pursuant to s.25(g). In this context, it would not in my view be desirable for the court to, in effect, engage in satellite litigation about whether the litigation was justified. I likewise reject the husband's contention that he should be awarded a contingent lump sum to meet any future costs associated with litigation against him in the US. It is not part of the role of this court to indemnify a party as to costs with respect to proceedings abroad. Such costs will be a matter for the US court depending on the outcome of those proceedings.
108. I am satisfied that it is appropriate for provision to be made from the pensions for the latent tax liability arising from Coinbase of £345,750, a fund for the tertiary education of the children of £700,000 and tax on the pension drawdown of £233,848. Removal of sums these sums results in total matrimonial assets for distribution of some £12M. Having regard to the matters set out above, I am satisfied that the following distribution of those assets represents the proper outcome in this case on the basis of a clean break between the parties:

	Wife	Husband
3100 West Arrowhead, Jackson Hole, Wyoming		£3,458,017
3093 West Arrowhead, Jackson Hole, Wyoming	£4,632,832	
Frost Street Apartments, New York	£996,000	£996,000
Joint Accounts	£17,372	£17,372
Private Equity Investments	£249,911	£249,911
Cryptocurrency	£26,683	£26,683
Chattels	£10,000	
Own Assets Retained	(£581,809)	£144,869
Sub Total	£5,350,989	£4,892,852

Pensions (less funds for education and tax)	£853,313	£853,313
TOTAL	£6,204,302	£5,746,165
	52%	48%

109. From this arrangement, the wife will retain a property with a modest mortgage and the lower tax liability and two rental units in New York, together with some savings and investments and pension provision. This will provide the wife with sufficient assets to purchase a property for £2M, leaving her with a fund of some £3M to invest to generate an income of £150,000 for life, in addition to an income from investments and the pension funds in due course. If the wife seeks to retain the property in Wyoming, then she has the option of doing so, albeit on a likely reduced income generated from the New York units retained by her, supplemented by what I am satisfied is her modest earning capacity and income from the other investments and pension she retains. Within this context, I am satisfied that this sharing award is sufficient to meet the wife's future needs.
110. The husband will likewise retain a property and will retain two rental units in New York from which he can generate income if necessary, supplemented by his reasonable earning capacity, business interests and the investments and pensions retained by him. Whilst the husband retains a larger mortgage and a higher tax liability this, and the slightly lesser share of the matrimonial assets that the foregoing distribution constitutes, is in my judgment justified by what I am satisfied is the husband's greater earning capacity moving forward.

CONCLUSION

111. I shall invite the parties to agree and prepare a draft order for my consideration and approval. I propose to deal with the question of costs on the basis of written submissions unless either or both parties seek an oral hearing on that issue.

EXHIBIT NZ-E

Subject: Re: Draft Court order and submissions
Date: Thursday, May 2, 2024 at 1:50:09 PM British Summer Time
From: Nadia <nadia@rosekross.com>
To: Selby-King, Karen <karen.selby-king@justice.gov.uk>
CC: Alexis Campbell KC <ACampbellKC@29br.co.uk>, Nicholas Allen KC MCI Arb <nallenkc@29br.co.uk>
Attachments: image001.png

Dear Karen,

Thank you for your reply.

I am really struggling with this process, and I feel extremely vulnerable and powerless.

I cannot continue like this. This is too much for me. I want to inform everyone involved that I cannot do this anymore without help. It's too much. I need help.

Sincerely,
Nadia

Veritas Numquam Perit
UK: +44 79 1332 8615
US: +1 424 426 9226

From: "Selby-King, Karen" <Karen.Selby-King@justice.gov.uk>
Date: Thursday, May 2, 2024 at 1:46 PM
To: Nadia <nadia@rosekross.com>
Cc: Alexis Campbell KC <ACampbellKC@29br.co.uk>, Nicholas Allen KC MCI Arb <nallenkc@29br.co.uk>
Subject: RE: Draft Court order and submissions

Dear Ms Zahmoul,

Both your emails from this morning have been forwarded to the judge.

His Lordship has not yet given me a reply to send out. As soon as he does I will email parties.

Kind regards

Karen

EXHIBIT NZ-F

Subject: BV20D01752

Date: Thursday, May 2, 2024 at 4:28:28 PM British Summer Time

From: Nadia <nadia@rosekross.com>

To: Alexis Campbell KC <ACampbellKC@29br.co.uk>, Nicholas Allen KC MCIArb <nallenkc@29br.co.uk>

CC: Selby-King, Karen <karen.selby-king@justice.gov.uk>

Dear all,

I have contacted the Civil Legal Advice, FLOWS, EHRC, and Mind Legal. Unfortunately, the abuse has gone too far and the consequences are impeding my ability to cope by myself..

I am extremely distressed, I cannot cope anymore, I am being silenced and my rights have been stripped away from me with no explanation. I am being burnt alive on the stake with no trial.

The CLA is sending someone to be with me, they tried to help me with the case, and they provided names of solicitors who can assist with family proceedings, but they are concerned about my mental health and my safety. I cannot do this alone. I cannot do this without my rights. I have a right to protect myself and my children.

You are aware that my PTSD is triggered in situations where I am abused, cornered, powerless, silenced, unheard, and where my rights are not upheld.

I have a right to participate in the judicial process, I have a right to understand what the draft order is, and I have the right to have someone represent me. I have a right to understand what the submissions are, how to compute them and have someone do it on my behalf. I have a right to understand what a submission for anonymization is and I don't want the judgement to be anonymized and therefore I have a right to have a legal representative write the arguments to support my position. The respondent wants anonymization for obvious reasons. I don't want anonymization because the world needs to know that it is possible to stand up to tyranny, abuse, and oppression and my daughters want the judgement to be public because they know the truth and they are proud of me.

I feel powerless, abused, silenced, raped, and oppressed.

You have read my section 25 statement, and you have witnessed my evidence in cross examination.

You are aware that I suffer from severe PTSD, you are aware that I have been subjected to 30 years of domestic abuse and coercive control, and you are aware that I am vulnerable.

You are aware that the final hearing was a triumphant success and, after 30 years of oppression, it gave me my voice back. I was heard, I was seen, and I said my truth. It is all recorded and in transcripts. It is etched forever, and nothing can erase it.

You are aware that on an X-ray, the vocal cords and the female vagina look very similar. Both are used for raping a woman, subjugating her, and forcing upon her tyranny, power, and complete dominion.

Rape is what I feel in the deepest of my bones when my rights to speak my truth, defend

myself, and have a fair process are denied.

I am being raped right now.

I informed you that I have no resources, no home, no food, and no legal assistance.

I informed you that my daughters and I are in danger because the respondent is involved with high-profile individuals who are known for carrying out extra-judicial assassinations.

You are aware that my daughter and I were followed in London on 24 March 2024 and that Cheltenham Ladies' College has put in place a security protocol for my daughter.

You are aware this the third such incident and all were reported to law enforcement.

You are aware of everything. I am being burnt alive, with no trial.

I am not naïve, and I am not asking for justice.

I want my rights to be upheld and I want a process that gives me equal probabilities of success as the opponent. Stripping me off my voice, food, a roof over my head, and legal advice is not a fair process and is not giving me equal probabilities of success. It is robbing me of my right to impact my life, it is rendering me powerless, and taking my ability to have agency and dominion over my life.

Whether the judgement is final or not, and regardless of my appeal, the draft order and the submissions for costs and anonymization are crucial. The court is proceeding with one party only. The other one is left behind, voiceless and powerless.

I cannot do this anymore. You all know that, and you are watching this happen, with no assistance to me and the children in circumstances where I have asked for help because of serious threats to our lives, and I have filed the necessary form to enforce the maintenance order.

You are just watching me go away, disappear, fade in the distance, until my voice becomes inaudible, and my spirit is crushed forever.

This is not right.

Veritas Numquam Perit

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US: +1 424 426 9226

EXHIBIT NZ-G



IN THE FAMILY COURT

Case No: BV20D01752

Royal Courts of Justice
Strand, London, WC2A 2LL

Date: 24 May 2024

Before:

THE HONOURABLE MR JUSTICE MACDONALD

Between :

Nadia Zahmoul
- and -

Applicant

Karim Nouredine Zahmoul

Respondent

Application for costs dealt with on written submissions

Approved Judgment

This judgment was handed down remotely at 10.30am on 24 May 2024 by circulation to the parties or their representatives by e-mail.

Mr Justice MacDonald:

1. On 18 April 2024, I handed down judgment in this matter following a final hearing of financial remedy proceedings between Nadia Zahmoul (hereafter ‘the wife’), who was represented at the final hearing by Mr Brent Molyneux KC and respondent husband, Karim Zahmoul (hereafter ‘the husband’), who was represented by Ms Alexis Campbell KC and Ms Sassa-Ann Amaouche. The court now needs to deal with the issue of costs. The combined costs in this case amount to what I have already described as the monumental sum of £2.9M, or approximately 23% of the assets. The husbands costs were £987,000 at the date of the final hearing and are now £1M. The wife’s costs amount to £1.9M.
2. The court has provided the parties with the opportunity to make written submissions as to costs. The court initially directed submissions as to costs to be lodged by 4pm on 3 May 2024. The husband provided his written submissions on that date through Ms Amaouche. The wife did not do so. The wife has emailed the court on multiple occasions contending that she has no funds to instruct lawyers and stating that she will not be in a position to with representations as to costs, nor as to the terms of the final order, until the court places her in funds.
3. To this end, the wife issued an application to enforce the order for maintenance pending suit, alleging that the husband had missed MPS payments in April and May 2024, subsequent to the handing down of judgment on 18 April 2024. The court made clear to the wife that it required submissions as to costs, that those submissions could be submitted notwithstanding that she is now acting in person and extended the deadline for submissions as to costs to 14 May 2024. The position remains that the wife has not provided written submissions on the question of costs. In circumstances where the court extended time for the filing of written submissions by 10 days but has still not received submissions from the wife, I am satisfied it is appropriate for the court to proceed to determine the issue of costs on the information it has. I have borne in mind, and taken into account, the fact that the wife is likely to object strongly to paying any portion of the husband’s costs.
4. The long history of the proceedings and the evidence on which the court made its decision is set out in detail in the judgment. During the course of the proceedings, the court had cause on a number of occasions to express concerns about the manner in which the wife was conducting the litigation and the extent of the costs she was incurring. For example, on 5 July 2023, the court noted as follows in its judgment determining the wife’s application for a legal services payment order at [50]:

“[50] However, the court cannot but be concerned by the fact that the wife has to date already incurred some £1.3M in legal costs, including a substantial debt at a punitive rate of interest, as compared to the circa £600,000 costs incurred by the husband. Whilst this is not the occasion to make findings in relation to the wife’s litigation conduct, and I make clear I do not do so, it would appear that a significant part of those costs have been incurred in the wife’s desire to prove her contention that the husband is hiding assets, including holdings in cryptocurrency. Notwithstanding this, and whilst some of the husbands actions will have fed into the wife’s concerns, the wife has to date failed to itemise with particularity any deficiencies in disclosure, even though directed to do so by the court.”

5. At a hearing on 7 September 2023, the wife made an application for an order under s.37 of the Matrimonial Causes Act 1973 or s37 of the Senior Courts Act 1981 to prevent the husband from taking steps to transfer, dispose of or in any way deal with any cryptocurrency assets and a Penn Mutual life policy. That application was made without notice notwithstanding that the husband had given notice, by a letter dated 30 August 2023, of his desire to liquidate the Penn Mutual policy in order to meet ongoing obligations under the LSPO and MPS orders and in circumstances where the wife herself had specifically targeted the policy for that very purpose in June 2023. The husband's costs referable to that application are Costs of that application £30,654.50.
6. At the final hearing, ahead of the computation exercise, the key issue for the court to determine was whether, as alleged by the wife, the husband had failed to disclose vast hidden assets, which the wife contended amounted to between £170M and £210M. Having considered the evidence and the submissions of leading counsel, and having noted the absence of cogent evidence of, and the difficulties with the wife's case in respect of, non-disclosure, I rejected the wife's case on non-disclosure for the detailed reasons set out in the judgment. I concluded on the balance of probabilities that the matrimonial assets available for distribution were as set out in the ES2 provided for the final hearing by the husband (the wife did not provide an ES2 for the final hearing).
7. Having computed the matrimonial assets, I thereafter decided it was appropriate to add back a sum to account for what I was satisfied, for the reasons set out in the judgment, was an obvious case of reckless expenditure on legal costs by the wife, being satisfied that an order for costs would not provide a just remedy for the wife's reckless approach because such an order will not remedy the effect of there being less wealth to be distributed between the parties. Having regard to the evidence, I was satisfied that the sum to be added back was £800,000. This conclusion was reached in the context of the following finding at paragraph 83 of the judgment:

“Despite repeated warnings, the wife frustrated attempts by the court to deal with her concerns with respect of non-disclosure by serially failing to comply with directions whilst also running up legal costs double those incurred by the husband in pursuing her own agenda, to no coherent outcome.”
8. With respect to distribution, for the detailed reasons set out in the judgment, I concluded that the distribution of the matrimonial assets detailed in the judgment, comprising an overall division of 52% to the wife and 48% to the husband, represented the proper outcome in the case on the basis of a clean break between the parties. I was satisfied that that sharing award was sufficient to meet the wife's future needs. This award reflected broadly the outcome proposed by the husband in his open offer (of a broadly equal division of the matrimonial assets, leaving the parties with sufficient funds to meet their respective housing needs) rather than the outcome proposed, only at the final hearing, by the wife (that she should receive the totality of the disclosed assets). As I noted in the judgment, the wife advanced no alternative case in the event that the court were to reject her case that up to £210M in assets remained undisclosed by the husband.

9. The husband asserted at the final hearing that, beyond what he contended had been the wife's wanton and reckless dissipation of assets, the wife had been guilty of egregious litigation conduct through her serial failure to comply with court orders and her failure to engage in any serious attempt to settle the proceedings. In this context, at the final hearing, the husband made wider allegations of litigation misconduct that he sought to rely on to support his claim for an add back. On this issue, I observed as follows at paragraph 104 of the judgment:

“With respect to the wider alleged litigation conduct of the wife (comprising her serial failure to comply with orders, her alleged misrepresentation of her intentions as to accommodation at the MPS hearing and the availability to her of legal advice, her undertaking no cross-examination or submissions having spent significant sums disputing the husband's position on pensions and tax, the costs incurred by the husband arising out of the ‘Imerman’ exercise consequent on the wife's unlawful accessing of the husband's confidential information, the costs of the ex parte application made by the wife on 6 September 2023, the existing costs orders and her failure to negotiate during the proceedings), I am satisfied that these matters are most appropriately dealt with when the court comes to determine the question of costs.”

10. In support of his contention that the wife's conduct justifies a costs order in his favour, the husband now relies on the following matters within the context of the terms of FPR 2010 r.28:
- i) The wife stole confidential financial information belonging to the husband, resulting in a breach of confidentiality and the need for an ‘Imerman’ exercise incurring costs for the husband of £25,000.
 - ii) The wife failed to comply with the rules of court and Practice Directions. The wife's failed to provide an open offer pursuant to FPR 2010 r.9.27A following the FDR and ahead of the final hearing pursuant to FPR 2010 r 9.28, and her failure to negotiate made a contested hearing inevitable. These breaches were exacerbated by the failure of the wife, as noted in the judgment, to provide the court with any assistance regarding the computation and division of assets should her contentions with respect of non-disclosure be rejected in whole or in part.
 - iii) The wife failed to comply with multiple case management orders of the court. In particular, the wife breached multiple court orders as set out in the Schedule prepared on behalf of the husband and appended to leading and junior counsels' written closing submissions, which details the wife failing to comply with at least fifty individual case management orders designed to progress the proceedings. This included failing to comply with 7 orders to agree the tax position, leaving the court without any expert evidence of the tax consequences of the parties' competing positions and putting the husband to further expense in order to try and adduce reliable evidence to assist the court.
 - iv) The wife in this case was given fair warning at interlocutory hearings that she needed to particularise her case as to non-disclosure and division of assets but did not do so. The wife engaged in a zealous and unremitting search for assets

she believed to be undisclosed by the husband and, in the face of judicial warnings at interlocutory hearings, sought to pursue an unmeritorious case in a disproportionate manner. This was unreasonable and the wife's inability to show any restraint significantly increased the costs.

- v) The instruction and finalisation of the expert report on cryptocurrency holdings became a protracted exercise by reason of the wife's failure to comply with case management orders, to co-operate with proposed meetings, her unilaterally contacting the expert and her failure to agree the letter of instruction, ultimately requiring the court to approve the terms of the same.
- vi) The wife misled the court during the course of her application for MPS in circumstances where she moved to Wyoming shortly after informing this court in June 2023 that she intended to return to rented accommodation in central London and this court having made an order for MPS on that basis.
- vii) At the hearing in September 2023 the wife made an application for an order under s.37 of the Matrimonial Causes Act 1973 or s.37 of the Senior Courts Act 1981 to prevent the husband from taking steps to transfer, dispose of or in any way deal with any cryptocurrency assets and the Penn Mutual life policy after the husband had given notice, by a letter dated 30 August 2023, of his wish to liquidate that asset in order to meet ongoing obligations under the LSPO and MPS orders *and* where the wife had specifically targeted the policy for that purpose in June 2023.
- viii) The wife failed to comply with multiple orders to disclose the whereabouts of watches and, as recorded in the judgment, only addressed that question when compelled to do so under cross-examination in the witness box, at which time she confirmed she had pawned considerable number of the watches over which the husband claims ownership.
- ix) The wife failed to engage with basic pre-trial case management and preparation, presenting no ES1, ES2, chronology or statement of issues in advance of the final hearing and failing to respond to the husband's proposals in respect of those documents.
- x) The wife's s.25 statement was filed on the second day of the final hearing styled as a document authored by the wife notwithstanding she had representation and in a form that required submissions regarding the admissibility of certain parts of the statements and exhibits, including an attempt to introduce expert evidence for which the wife had no permission, in breach of the Efficient Conduct guidance.
- xi) The wife's behaviour during the hearing was disruptive and caused considerable delay to the conclusion of the final hearing, resulting in increased costs. Following the hearing, the wife attempted to contact the judge and proceeded, without permission, to email large amounts of material to the court without making applications to re-open the evidence and to adduce additional evidence.

- xii) The wife's litigation misconduct is at the extreme end of the scale and merits a costs sanction.
11. With respect to the financial effect of any costs order, Ms Amaouche submits that the wife's needs are met by the terms of the final order made by the court such that any costs order will not undermine the wife's ability to meet her ongoing needs. The cumulative finding of the court was that the wife's needs are met on an award of £5M and the wife will be receiving £6.2M after the add back is taken into account. In this context, Ms Amaouche submits that were the wife to seek to rely on a statutory protection to defeat a costs order (which, absent the provision of any written submissions, she has not), this would have to be set against her wholesale failure to lead any case as to need at the final hearing in the event that the court were to reject her case that up to £210M in assets remained undisclosed by the husband.
12. The legal provisions and principles applicable to the determination of costs in financial remedy proceedings are well settled.
13. As will be seen, the wife made no open offer in this case and her position as to the proper outcome of the final hearing only became known at the final hearing. FPR 2010 r.9.27A contains the duty to make open proposals following the FDR appointment or where there has been no FDR appointment:

“9.27A Duty to make open proposals open proposals after a FDR appointment or where there has been no FDR appointment

(1) Where at a FDR appointment the court does not make an appropriate consent order or direct a further FDR appointment, each party must file with the court and serve on each other party an open proposal for settlement—

(a) by such date as the court directs; or

(b) where no direction is given under sub-paragraph (a), within 21 days after

the date of the FDR appointment.

(2) Where no FDR appointment takes place, each party must file with the court and serve on each other party an open proposal for settlement—

(a) by such date as the court directs; or

(b) where no direction is given under sub-paragraph (a), not less than 42 days before the date fixed for the final hearing.”

14. The duty to make open proposals also applies prior to the final hearing of financial remedy proceedings, which duty the wife also failed to discharge, FPR 2010 r. 9.28 providing as follows:

“Duty to make open proposals before a final hearing

(1) Not less than 14 days before the date fixed for the final hearing of an application for a financial remedy, the applicant must (unless the court directs otherwise) file with the court and serve on the respondent an open statement which sets out concise details, including the amounts involved, of the orders which the applicant proposes to ask the court to make.

(2) Not more than 7 days after service of a statement under paragraph (1), the respondent must file with the court and serve on the applicant an open statement which sets out concise details, including the amounts involved, of the orders which the respondent proposes to ask the court to make.”

15. The importance of parties making clear their open positions, with a view to engaging in reasonable and responsible negotiation of the proceedings is further emphasised by FPR PD 28A, the importance of which was made clear by Mostyn J in *OG v AG* [2020] EWFC 52. Paragraph 4.4 of PD28A provides as follows as to the potential cost consequences of not engaging in open negotiations:

“In considering the conduct of the parties for the purposes of rule 28.3(6) and (7) (including any open offers to settle), the court will have regard to the obligation of the parties to help the court to further the overriding objective (see rules 1.1 and 1.3) and will take into account the nature, importance and complexity of the issues in the case. This may be of particular significance in applications for variation orders and interim variation orders or other cases where there is a risk of the costs becoming disproportionate to the amounts in dispute. The court will take a broad view of conduct for the purposes of this rule and will generally conclude that to refuse openly to negotiate reasonably and responsibly will amount to conduct in respect of which the court will consider making an order for costs. This includes in a ‘needs’ case where the applicant litigates unreasonably resulting in the costs incurred by each party becoming disproportionate to the award made by the court. Where an order for costs is made at an interim stage the court will not usually allow any resulting liability to be reckoned as a debt in the computation of the assets.”

16. Within the foregoing context, and in so far as is relevant, FPR 2010 r.28.3 provides as follows with respect to the general rule as to costs in financial remedy proceedings, and the exceptions to that general rule:

“Costs in financial remedy proceedings

.../

(5) Subject to paragraph (6), the general rule in financial remedy proceedings is that the court will not make an order requiring one party to pay the costs of another party.

(6) The court may make an order requiring one party to pay the costs of another party at any stage of the proceedings where it considers it

appropriate to do so because of the conduct of a party in relation to the proceedings (whether before or during them).

(7) In deciding what order (if any) to make under paragraph (6), the court must have regard to –

(a) any failure by a party to comply with these rules, any order of the court or any practice direction which the court considers relevant;

(b) any open offer to settle made by a party;

(c) whether it was reasonable for a party to raise, pursue or contest a particular allegation or issue;

(d) the manner in which a party has pursued or responded to the application or a particular allegation or issue;

(e) any other aspect of a party's conduct in relation to proceedings which the court considers relevant; and

(f) the financial effect on the parties of any costs order.”

17. Finally, with respect to the orders for costs it is open to a court to make in financial remedy proceedings, whilst FPR 28.3(2) disapplies CPR 44.2(1), (4) and (5), FPR 28.3(3) mandates that CPR 44.2 (6) to (8) continue to apply. CPR 44(6) states that the orders as to costs that it is open to the court to make are that a party must pay:

- i) A proportion of the other party's costs;
- ii) A stated amount in respect of the other party's costs;
- iii) Costs from or until a certain date only;
- iv) Costs incurred before proceedings have begun;
- v) Costs relating to particular steps taken in the proceedings;
- vi) Costs relating only to a distinct part of the proceedings; and
- vii) Interest on costs from or until a certain date, including a date before judgment.

18. As noted above, in this case the court decided it was appropriate to add back a sum of £800,000 to account for what the court determined was an obvious cases of reckless expenditure on legal costs by the wife, being satisfied that an order for costs would not provide a just remedy for the wife's reckless approach because such an order will not remedy the effect of there being less wealth to be distributed between the parties.

19. As I noted in the judgment, the fact that the court has added back assets dissipated by a party through an obsessive approach to litigation will not necessarily prevent a costs order also being made. In *M v M (Financial Provision: Party Incurring Excessive Costs)* [1995] 3 FCR 321, in addition to adding back assets dissipated by a husband through his obsessive approach to litigation, Thorpe J (as he then was) also ordered

that the husband pay the wife's costs in circumstances where it had been open to the husband to seek to make an offer to settle proceedings, which he had failed to do. In *WC v HC* [2022] EWFC 40, in making an order for costs Peel J concluded that it is not unfair for the party who is guilty of misconduct to receive a sum less than her needs would otherwise demand in circumstances where a failure to make sensible attempts to settle a case, or an unreasonable failure to make such an attempt, would ordinarily be a powerful factor in considering costs having regard to FPR 2010 r.28.3 and PD 28A paragraph 4.4. In the later decision of *HD v WB* [2023] EWFC 2, in holding it was reasonable and proportionate to invade a needs based award the court had made, Peel J noted that a party cannot be insulated from the costs of litigation.

20. Within the foregoing context, I propose to look at the relevant factors in the round. I bear in mind that the ordinary rule in financial remedy proceedings, pursuant to FPR 2010 r.28.3(5) that the court will not make an order requiring one party to pay the costs of another party. However, pursuant to FPR r.28.3(6) the court retains a discretion to make an order requiring one party to pay the costs of another party at any stage of the proceedings where it considers it appropriate to do so because of the conduct of a party in relation to the proceedings, whether before or during those proceedings.
21. I am satisfied that each of the matters of conduct set out at paragraph 10 above are established on the evidence before the court. As is apparent from those matters, and the more detailed exposition of the course of these proceedings set out in the judgments given by the court (namely *DH v RH (LSPO and MPS Applications)* [2023] EWFC 111, *DH v RH (No2)(Variation of Interim Arrangements)* [2023] EWFC 210 and the final judgment to be published), this is a case involving very serious litigation misconduct on the part of the wife. I am satisfied that this litigation conduct materially increased the costs the husband was required to spend above and beyond the costs ordinarily consequent on the litigation. In her submissions as to costs Ms Amaouche asks, rhetorically, if this wife's litigation misconduct is not sanctioned in this case, then what degree of litigation misconduct ever would be?
22. Within the foregoing context, the husband's costs are £987,000 to final hearing, and have now reached £1,000,018. Of those costs, £134,197 were incurred from the date of his open offer, which as I have noted was not reciprocated by an open offer from the wife nor responded to by her in any event.
23. I acknowledge that, in this case, the court has added back the sum of £800,000 to the wife's side of the balance sheet to account for an obvious cases of reckless expenditure on legal costs by the wife, being satisfied that an order for costs would not provide a just remedy for the wife's reckless approach. In the circumstances, the court has already accounted for what the court was satisfied was the wife's reckless expenditure on legal costs in pursuance of her unremitting search for assets she believed to be undisclosed by the husband.
24. However, the authorities make clear that the foregoing circumstances do not preclude the court from also making a costs order in an appropriate case. I am satisfied in this case that the additional and extensive examples of litigation misconduct by the wife, as summarised above, must be marked by an order for costs. Having regard to the size of the award made to the wife, a costs order will not undermine the wife's ability to meet her ongoing needs. In any event, the wife's conduct is at the upper level of such

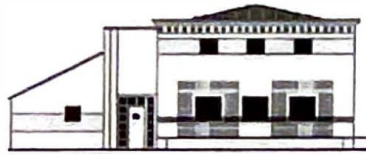
behaviour and the wife cannot, in the circumstances, expect to be insulated from the costs of litigation either on the basis of the general rule as to costs or on the grounds that an order for costs will reduce the monies available to her.

25. In all the circumstances, and having regard to what I am satisfied is has been the particularly egregious and persistent litigation conduct of the wife in this case, I propose to make an order that the wife pay the to the husband a proportion of his costs in the sum of £200,000.
26. In addition, I am satisfied that the wife should pay to the husband he costs referable to the Immerman exercise consequent on the wife accessing the husband's confidential documents were £25,000. I am further satisfied that the wife must also pay the costs referable to the without notice application in September 2023 for an order to prevent the husband from taking steps to transfer, dispose of or in any way deal with the Penn Mutual life policy notwithstanding that the husband had given notice of his wish to liquidate that asset and where the wife had specifically targeted the policy for that purpose in June 2023 are £30,654.50.
27. In the circumstances, I propose to make an order that the wife pay to the husband a proportion of his costs in the sum of £200,000, that the wife pay the husband's costs of the Immerman exercise in the sum of £25,000 and that the wife pay the husband's costs of the without notice application in September 2023 in the sum of £30,654.50.

EXHIBIT NZ-H

Dr Stuart Nelson
Dr Thomas Morgan
Dr Rachael Coker
Dr Daniel Fox
Dr Michael Williams
Dr Sarah Macrow

r l:k l
Providing NHS services



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Tel - 01242 580511
overton.opsdirect@nhs.net

Practice Manager. Mr Mark Thatcher

www.overtonparksurgery.com

Date: 28th June 2024

To Whom it May Concern

Dear Sir/Madam

Re: Mrs Nadia Zahmoul, 3 Montpellier Parade, Cheltenham, GL50 1UA, DOB: 27 Apr 1969

I can confirm that Nadia Zamoul is experiencing extreme anxiety due to the stress of going through a tricky divorce. She is unable to cope with activities of normal daily living. She is struggling to cope without legal representation and is experiencing extreme financial difficulties.

I would be grateful for your support in this matter.

Yours faithfully,

A handwritten signature in dark ink, consisting of a long, sweeping horizontal line followed by a stylized, looped flourish.

Dr C Copps
Overton Park Surgery

EXHIBIT NZ-I

PROFESSOR GERALD LIBBY

E: office@geraldlibby.co.uk
T: 020 7224 3500

9 Upper Wimpole Street
London
W1G 6LJ

21st August 2024

To whom it may concern,

Nadia Zahmoul – 27.04.1969

I remain extremely concerned for the welfare of my patient Nadia Zahmoul who I have known and treated since 2011. She has capacity and so this is not the concern.

She has, I understand, grave financial hardship and this has meant a lack of home for her and her daughters and probably malnutrition as recent tests reveal anemia and auto immune Sjogren's syndrome.

Nadia must have legal representation but I understand financial difficulties impact this.

I understand participation measures that were in place for earlier hearings must now be in place again.

The impact of impending proceedings without representation and financial difficulties place Nadia under severe pressure and risk.

Signed



Professor Gerald Libby FRCP FRCPsych

EXHIBIT NZ-J

Dr Tim Ladbroke | Dr Jill Harling | Dr Laura Wood
Dr Ebba Khalil | Dr Clare Thompson | Dr Russell Ward | Dr Baldeep Syan | Dr Sophie Ladbroke
73 Courtfield Gardens, London SW5 0NL
T: 020 7373 3541 F: 020 7244 0018
E: enquiries@courtfieldpp.co.uk W: www.courtfieldpp.co.uk

13/02/2025

PRIVATE & CONFIDENTIAL

To Whom It May Concern

Dear Sir/Madam,

**Re: Mrs Nadia Zahmoul* 27/04/1969 35 Queen's Gate Gardens London
SW7 5RR**
Tel: 07913 328615 (Mobile) Email: nzahmoul@me.com

This 55 year old lady is a patient of our practice who has been diagnosed with Sjogrens Syndrome and new anaemia.

Due to financial constraints she has been unable to eat and drink and has no housing. She has a 19 year old child with special needs and a 17 year old minor and is responsible for them.

I am concerned that this patient has insufficient resources to meet her basic needs at this stage. She has been suffering with PTSD and is under the care of a psychiatrist. The past year has had a negative impact on her physical and mental health and she requires help to arrange an intermediary to support her through the process.

The patient is unable to attend the hearing and I would implore that you reschedule any hearings until an intermediary is arranged.

She has not received any financial help since February 2024 and is now homeless and struggling to eat. Her children are also vulnerable to this situation and they have been referred to adult and child social services in Cheltenham.

I would ask that you consider these mitigating circumstances seriously in this legal case.

Yours faithfully,



Dr Clare Thompson
MBBS BSc nMRCGP DCH DRCOG LMCC



cc Mrs Nadia Zahmoul*
35 Queen's Gate Gardens
London
SW7 5RR

Dr Clare Thompson
MBBS BSc nMRCGP DCH DRCOG LMCC
Courtfield Private Practice
73 Courtfield Gardens
London SW5 0NL
020 7373 3541
GMC: 6154323

EXHIBIT NZ-K

Private and Confidential

South K&C Crisis and Home Treatment Team
South K&C Mental Health Unit
1 Nightingale Place
London
SW10 9NG
Tel: 0203 838 7899
Email: cnw-tr.southkandchtt@nhs.net

26.03.2025

Re: Mrs Nadia Zahmoul D.O.B: 28.04.1969
Date of Hearing: 31st March 2025

Dear Sir/Madam,

I am writing to inform the Court that Mrs Zahmoul is currently under the care of myself and my team, the South Kensington and Chelsea Crisis Resolution and Home Treatment Team (CRHTT), due to her experience of a mental health crisis. Mrs Zahmoul has been experiencing significant levels of agitation and poor sleep, which have been exacerbated by the stress of her current court case. Specifically, she reports great difficulty processing certain aspects of the proceedings, particularly regarding the evidence presented to her that she perceives as untrue.

In light of these challenges, we are providing her with intensive support to help her manage her difficulties, with the aim of ensuring she is well enough to attend the hearing scheduled for 31st March. We are committed to supporting her in this regard and hope to help her navigate this difficult time in a way that respects her mental health needs.

Nadia is due to meet with our psychologists soon in response to a query regarding whether she may exhibit symptoms of autism. This query is particularly pertinent as she has a first-degree relative with the same diagnosis. It is possible that these factors may influence how she perceives and processes the information provided during the court proceedings.

Given these circumstances, we would like to inquire if there is an advocacy service or any other appropriate support that could be made available to assist her in hearing and giving evidence at the hearing. Such support could ensure that she is able to fully engage with the proceedings in a manner that is fair and conducive to her well-being.

Thank you for your understanding and attention to this matter. Should you require any further information or clarification, please do not hesitate to contact me.

Yours faithfully,



Dr Leigh Poyser MBBS, MRCPsych
Consultant Psychiatrist

EXHIBIT NZ-L

IN THE FAMILY COURT
SITTING AT THE ROYAL COURTS OF JUSTICE

Case No. BV20D01752

Courtroom No. 39

Royal Courts of Justice
Strand
London
WC2A 2LL

Thursday, 8th May 2025

Before:
THE HONOURABLE MR JUSTICE MACDONALD

B E T W E E N:

ZAHMOUL

and

ZAHMOUL

MR ZAHMOUL appeared in person
MRS ZAHMOUL was not in attendance

JUDGMENT
(Approved)

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MR JUSTICE MACDONALD:

INTRODUCTION

1. I deliver this *ex tempore* judgment in a matter that once again comes before the court in what are now very long-running financial remedy proceedings, between Karim Zahmoul who I shall refer to for the sake of convenience as “the husband”, and Nadia Zahmoul, who I will refer to as “the wife”. The final decision in this matter was made as long ago as 24 May 2024, and the matter has now been running on for some 12 months beyond the final hearing, without the order I made on that date, as amended under the slip-rule on 3 June 2024, having been implemented.
2. The wife has not complied with the final order dated 24 May 2024, as amended under the Slip Rule on 3 June 2024. In particular, her non-compliance has included, but is not limited to, the implementation of property transfers required to allow the parties to benefit from the assets that were awarded to them by the court. Indeed, as I shall come to, the wife has actively frustrated the implementation of the order across a period of over a year.
3. The final order, as amended, provides, as is clear from the net effect schedule contained in the final judgment, that the wife is to receive some £5.4M (£6.2M including pension) and the husband to receive some £4.8M (£5.7M including pension). The wife received, therefore, the greater share (52%) after the deduction of mortgages, costs and tax. The court structured its order such that the tax would be borne equally by the parties, if they could not agree tax mitigating measures.
4. Overall, were the wife now to cooperate with the implementation of the court’s final order as amended, she would be awarded £6.2 million of matrimonial assets and would have more than sufficient funds for her housing provision, living expenses and subsistence.
5. The final order also contained provisions providing that the applicant’s claims for secured periodical payments orders, periodical payments orders, lump sum orders, property adjustment orders, pension sharing orders and pension attachment orders, should be dismissed and that she would not be entitled to make any further application in relation to the marriage for an order under the Matrimonial Causes Act 1973, s.23(1)(a) or (b), and would not be entitled on the respondent’s death to apply for an order under the Inheritance (Provision for Family and Dependents) Act 1975 s.2.

BACKGROUND

6. Following the handing down of my judgment, the wife’s initial application for permission to appeal was made to this court and denied by me on 29 April 2024. The wife then applied to the Court of Appeal for permission to appeal. On 5 December 2024, the Court of Appeal stayed the parts of my order relating to the transfer of real property, pending the determination of the application for permission.
7. As is often the case with the wife’s approach to litigation, she had not served the husband with notice of her application for permission to appeal or her grounds for appeal. However, subsequently, the permission application documents were brought to the attention of the husband. Alexis Campbell KC, who represented the husband at the final hearing, prepared the document for submission to the Court of Appeal responding to the application for permission.

8. On 23 December 2024, the Court of Appeal dismissed the wife's application for permission to appeal. All grounds were dismissed by the Court of Appeal although, as I will come to, during the course of dismissing the application for permission, Moylan LJ made a number of observations in relation to the judgment concerning this court's treatment of the issue of tax and suggested that the wife *may* have a remedy pursuant to Section 31F(6) of the Matrimonial and Family Proceedings Act 1984, and rule 9.9A(2) of the Family Procedure Rules 2010. I shall return to these matters later.
9. The wife is now said by the husband to have applied to the Court of Appeal to reopen her appeal pursuant to CPR Rule 52.30, by an application dated 7 February 2025, although it is not yet clear, at least to this court, where that application stands in the Court of Appeal process.
10. A hearing was listed in the Central Family Court before his Honour Judge Ashby, on 14 February 2025, to consider an application by the husband in accordance with paragraph 27(g) of the final order, as amended, for the relevant transfer of documents dealing with real property, to be signed by a judge so as to give effect to the final order. That application was adjourned and is one of the applications that is now before this court today.
11. In dismissing the wife's application for permission to appeal, Moylan LJ observed as follows, with respect to the question of tax.

“The only other matter I consider separately is the wife's contention that the judge failed to take into account the US tax consequences of the division of the US real estate assets. I can, indeed, find no express reference to this tax in the judgment, although in paragraph 54 the judge refers to his approach to “to the tax consequences of the respective positions advanced by the wife and the husband” and in paragraph 89 he refers to the “tax liability assigned to” each of the properties. There are also references in paragraphs 109 and 110 to tax. Further, it does not appear to be an issue that the wife raised with the judge when asking him for permission to appeal. In addition, in his Response which I directed the husband to provide, it is contended that the judge's award did take into account the issue of tax on the transfers of the various properties. The Court of Appeal is not the right forum in which to determine this factual dispute. If the wife is right that the judge, by mistake, omitted to take into account the incidence of tax on the property transfers effected by the order, as she asserts (and I make it clear that I give *no* indication as to the merits of her contention), the remedy available to her is to apply to the judge (pursuant to section 31F(6) of the Matrimonial and Family Proceedings Act 1984, and Rule 9.9A(2) of the Family Procedure Rules 2010). Accordingly, this issue is not one which justifies the grant of permission to appeal”.

12. Pursuant to these observations made by Moylan LJ in his order dismissing the wife's application for permission to appeal, the wife applied on 13 February 2025 to set aside the final order of 24 May 2024. The wife has, over the course of the past number of months, also issued a number of other applications, again often without bringing those applications properly to the attention and notice of the husband. In November 2024, the wife issued an application to commit the husband. On 6 February 2025, the wife made an application to enforce maintenance payments under an order made in July 2023. On 18 February 2025, the wife issued an application for maintenance pending pursuit. On 4 April 2025, the wife applied

for what she termed a “hardship order” without notice to the husband. I dismissed that application on 9 April 2025 as being totally without merit.

13. Whilst the Court of Appeal suggested the wife may have grounds for an application to set aside on the basis set out in the passage quoted above, the wife’s set aside application is primarily based on her appeal grounds, all of which were dismissed by the Court of Appeal, although her application to set aside does deal tangentially with the tax point.
14. Pursuant to the wife’s D11, dated 12 February 2025, she seeks to a set aside on the basis of “wrong tax computations, wrong valuations and impact of the LLC fraud & perjuries of IRS tax returns from 2020 to 2024”. Specifically, the wife asserts that:
 - (a) The husband committed fraud by withholding a bank account from the Metropolitan Bank of New York, which received joint rental revenue from the New York properties. The wife says this is a matrimonial asset which was not included in the order;
 - (b) The husband has committed perjuries of LLC IRS tax returns in 2020, 2024, and perjury of LLC annual reports filed with the Wyoming Secretary of State;
 - (c) The husband has committed perjuries regarding the Oxus shares;
 - (d) Real property was undervalued;
 - (e) The final order, as amended, is unilateral and drafted by the husband and his counsel, with the drafts not shared with the wife;
 - (f) The court did not properly consider the tax consequences on the wife of the division.
15. In respect of the question of tax, the position that was before the court at the final hearing in 2024 is accurately set out in the note provided to the Court of Appeal by Ms Campbell KC, dated 11 December 2024. Ms Campbell KC’s note makes the following points, which describe the position as to tax that was before the court, when it made its final decision:
 - (a) The wife filed her initial tax evidence in 2021;
 - (b) In response, the husband provided detailed evidence of tax payable on transfer of real estate on 27 July 2022, 9 November 2022, and 12 November 2022;
 - (c) Both parties’ tax advice was included in the trial bundle before the court;
 - (d) The husband’s advice specifically dealt with the parties’ respective tax status and means of avoiding, deferring and mitigating tax;
 - (e) The wife was ordered to consider the husband’s advice and agreed or define the tax issues;

- (f) The wife repeatedly ignored multiple orders by this court, that she instruct her tax advisers to liaise with the husband's tax advisers, to endeavour to agree or narrow the tax issues;
 - (g) In direct contradiction to the court's directions, in March 2023 the wife specifically instructed her tax advisors *not* to engage with her husband or his tax advisers.
 - (h) The court made orders at six separate directions hearings, to give the wife an opportunity to identify issues and adduce single joint expert evidence on tax. The wife failed to comply with any of the directions made.
16. I pause to note that, following the final hearing and the delivery of judgment, I delivered a separate judgment dealing with the question of costs, which sets out in detail what the court was satisfied was the wife's serial disobedience of case management orders, the cost consequences of which are set out in that judgment:
- (a) The wife only attempted to adduce tax evidence obtained on a unilateral basis at trial, as contained within her Section 25 statement, which was served out of time on the second day of the trial. As detailed in the cost judgment, this was in breach of the pre-trial review directions. The court refused to admit this evidence;
 - (b) Tax liabilities, including US tax liabilities, were included in the ES2 filed by the husband at the final hearing. The wife, through her legal team, did not engage in the drafting of the ES2 and did not file any figures to submit to this court. As a result of the wife's litigation conduct, this court accordingly only had the figures in respect of tax provided by the husband on the ES2. In light of the wife's position, the court was only able to proceed on that basis;
 - (c) All real property is currently held in the joint names of the parties. The US tax advice produced by the husband, provided schemes for the parties to avoid, defer and mitigate tax by transfers between them. Contrary to the wife's assertions, tax was at the centre of her husband's case and was fully reflected in the ES2 and the net effect schedule adopted by the court, as is clear from the final outcome in the judgment;
 - (d) The order, provided for the transfer of the real property between the parties to achieve a broadly equal share of marital assets on a net basis, taking into account the incidence of tax. That approach enabled the parties to work together to mitigate most, if not all, of the US tax included in the net effect schedule and this was the intention of the court;
 - (e) If the parties were unable to agree transfers and reach agreement to mitigate the US tax, the order provides for a default position, namely that the properties are to be sold. In the event of a sale, as the properties are jointly owned, the expert evidence before the court at the final hearing was that each party would pay 50% of the US tax, calculated on the basis of the ES2 and the net effect schedule. The parties would suffer US tax on an equal footing, irrespective of their tax status. This ensured that the tax burden, by default, would be shared equally.

17. In those circumstances, the wife's assertion in her grounds of appeal that what she termed "the husband's draft order" left her alone as the only party with the tax burden, was simply incorrect.
18. The wife, for this hearing, has produced no new evidence regarding the tax position and as I have noted prior to the final determination before this court, had failed to comply with multiple case management orders requiring her to deal with the issue of tax.
19. Within the context that I have summarised, the husband also now has a series of applications before the court.
20. First, an application dated 18 March 2025, by which he seeks to rely on the three statements of evidence. Those statements relate to the execution of the documents required to transfer properties in New York and Wyoming. Second, an application to have the property transfer documents signed by the court, pursuant to paragraph 27(g) of the final order, as amended, in the absence of the wife willing to cooperate. Third, an application dated 26 March 2025 for the pronouncement of Decree Absolute.
21. After the close of business yesterday evening, the wife emailed my clerk seeking an adjournment of today's hearing on medical grounds. She has not attended the hearing this morning. At 12.41am this morning, the wife emailed the court with an application to adjourn, with appended a letter from a treating clinician. The grounds for the application to adjourn comprise what the wife contends was a severe mental health crisis in February 2025, the effects of which she says she is still suffering from, to the extent that she is not able to attend this hearing on the basis that she has "a severe mental health emergency". The letter that the wife provides in support of her application to adjourn today's hearing is from her treating consultant psychiatrist. In the letter, the doctor states that the wife is suffering from a:

"...mental health crisis. [The wife] has been experiencing significant levels of agitation and poor sleep, which have been exacerbated by the stress of her current court case. Specifically, she reports great difficulty processing certain aspects of the proceedings, particularly regarding the evidence presented to her that she perceives as untrue."

22. The letter from the wife's treating psychiatrist is dated 26 March 2025 and there is no more up-to-date information, confirming the matters asserted by the wife in her application to adjourn. In particular, there is no evidence that the wife is at present having a "severe mental health emergency" preventing her from attending the court today. Furthermore, at no point does the treating psychiatrist suggest in the letter dated 26 March 2025, that the wife is not fit to attend the hearing, but rather states as follows:

"Given these circumstances, we would like to enquire if there is an advocacy service or any other appropriate support that can be made available to assist her in hearing and giving evidence at the hearing. Such support could ensure that she is able to fully engage with the proceedings in a manner that is fair and conducive to her wellbeing"

23. In determining the issues that now fall before the court, I have had the assistance of submissions from the husband in person. The husband has also filed a unilateral bundle for this hearing, containing documents that the court requires for its purposes.

RELEVANT LAW

24. As far as the law is concerned, there are a number of legal principles that the court has to consider in dealing with the applications that are now before it, starting with the question of when it is appropriate to proceed in a party's absence.
25. The law governing proceeding in the absence of a party is usefully summarised by Cobb J in the case of *Sanchez v Oboz* [2015] EWHC 235 (Fam) at [5]. Whilst that case relates to committal proceedings, I am satisfied that the factors set out by Cobb J are instructive in considering an application to adjourn, where the refusal of that application will result in the court proceeding in the absence of one party. The factors set out by Cobb J for consideration are as follows:
- (a) Whether the respondent to the application has been served with the relevant documents, including the notice of the hearing;
 - (b) Whether the respondent has had sufficient notice to enable her to prepare for the hearing;
 - (c) Whether any reason has been advanced for her non-appearance;
 - (d) Whether by reference to the nature and circumstances of the respondent's behaviour, she has waived the right to be present;
 - (e) Whether an adjournment would be likely to secure the attendance of the respondent, or at least facilitate their representation;
 - (f) The extent of the disadvantage to the respondent in not being able to present her account of events;
 - (g) Whether undue prejudice would be caused by the applicant by any delay;
 - (h) Whether undue prejudice would be caused to the forensic process if the application were to proceed in the absence of the respondent; and
 - (i) The terms of the overriding objective (FPR 2010 r 1.1), including the obligation on the court to deal with the case "justly", including doing so "expeditiously and fairly" (r.1.1(2)), and taking "any...step or make any...order for the purposes of...furthering the overriding objective" (r.4.1(3)(o)).
26. With respect to the wife's application to set aside, the wife pursues her application having regard to the observations made by the Court of Appeal when refusing permission. As set out by the Court of Appeal, that application is governed by s.31F(6) of the Matrimonial and Family Proceedings Act 1984, which provides as follows with respect to proceedings and decisions:

“(6) The family court has power to vary, suspend, rescind or revive any order made by it, including –

- (a) power to rescind an order and re-list the application on which it was made,
- (b) power to replace an order which for any reason appears to be invalid by another which the court has power to make, and
- (c) power to vary an order with effect from when it was originally made.”

27. Rule 9.9A(2) of the Family Procedure Rules 2010 further provides, in respect of an application to set aside a financial remedy order:

“(2) A party may apply under this rule to set aside a financial remedy order where no error of the court is alleged.”

28. The grounds on which Section 31F(6) of the Matrimonial and Family Proceedings Act 1984 may be used, were considered by Mostyn J in *CB v EB* [2020] EWFC 72, in which he observed at [55]:

“...the set aside power in section 31F(6) was not a brand new break with the past. It did not usher in a brave new world. It was no more than a banal replication of a power vested in the divorce county courts from the moment of their creation in 1968. That power had been confined by the law to the traditional grounds for decades.”

29. The traditional grounds are those set out in *L v L* [2006] EWHC 956 (Fam) at [34], where Munby J (as he then was), summarised the situations in which the set aside may occur and trigger such a review, namely:

“(i) if there has been fraud or mistake: *de Lasala v de Lasala*;

(ii) if there has been material non-disclosure: *Livesey (formerly Jenkins) v Jenkins*;

(iii) if there has been a new event since the making of the order which invalidates the basis, or fundamental assumption, upon which the order was made: *Barder v Caluori* [1088] AC 20, [1087] 2 FLR 480;

(iv) if and insofar as the order contains undertakings: *Mid Suffolk District Council v Clarke* [2006] EWCA Civ 71, [2006] All ER (D) 190 (Feb);

(v) if the terms of the order remain executory: *Thwaite v Thwaite* [1082] Fam 1, (1981) 2 FLR 280 and *Potter v Potter* [1990] 2 FLR 27.”

30. Practice Direction 9A at paragraph 13.5 states:

“An application to set aside a financial remedy order should only be made where no error of the court is alleged. If an error of the court is alleged, an application for permission to appeal under Part 30 should be considered. The grounds on which a financial remedy order may be set aside are and will remain a matter for decisions by judges. The grounds include (i) fraud; (ii) material non-disclosure; (iii) certain limited types of mistake; (iv) a subsequent event, unforeseen and unforeseeable at

the time the order was made, which invalidates the basis on which the order was made.”

31. Finally, in relation to the law as far as the husband’s application to sign documents is concerned, Section 39 of the Senior Courts Act 1981 provides as follows with respect to the power of the court to execute an instrument:

“39. Execution of instrument by person nominated by the High Court.

“(1) Where the High Court or family court has given or made a judgement or order directing a person to execute any conveyance, contract or other document, or to endorse any negotiable instrument, then, if that person –

- (a) neglects or refused to comply with the judgment or order; or
- (b) cannot after reasonable enquiry be found,

that court may, on such terms and conditions, if any, as may be just, order that the conveyance, contract or other document shall be executed, or that the negotiable instrument shall be indorsed, by such a person as the court may nominate for that purpose.

(2) A conveyance, contract, document or instrument executed or indorsed in pursuance of an order under this section shall operate, and be for all purposes available, as if it had been executed or indorsed by the person originally directed to execute or indorse it.”

DISCUSSION

Proceeding in the Wife’s Absence

32. Dealing first with the question of whether the court should proceed in the absence of the wife, in circumstances where she makes an application to adjourn this matter. I am satisfied that the application to adjourn should be refused. The consequences of that application are that the court will proceed today in the absence of the wife at this hearing, to determine both her application to set aside the order of 24 May 2024, as amended, and the husband’s application for the court to sign the documents required to implement that order.
33. I deal with that application for an adjournment by the wife, by reference to the factors set out in *Sanchez v Oboz* (supra), in the circumstances where I am satisfied that those factors cover the issues that the court is required to address when coming to a reasoned determination of the wife’s *very* late application to adjourn this hearing and where disallowing the adjournment will mean the court proceeds in her absence.
34. Dealing first with whether the wife has been served with the relevant documents, including the notice of hearing. I am satisfied that the notice of hearing and the husband’s applications have been served on the wife via the email address she has used throughout the various applications brought before the Family Court, in accordance with Family Procedure Rules 2010 at rules 6.7A and 6.13. The wife has not been willing to provide any other postal address for service and in those circumstances, it was appropriate for her to be served with the notice of hearing and the husband’s applications by that means. Her own application, of course, was filed and issued by her with this court.

35. With respect to whether the wife has had sufficient notice for her to enable to prepare for the hearing, I am satisfied that the wife has had ample notice to prepare for the hearing, not least because this hearing has already been adjourned once due to my being indisposed, due to matters beyond my control. The wife was well aware of that hearing and the matters that would be dealt with, which is evidenced by, amongst other things, the fact that she requested special measures be put in place to allow her attendance.
36. As to whether there has been any reasons advanced by the wife for her non-attendance, the wife has advanced reasons, as I have already set out, by providing to the court and the husband an application at around this morning. However, whilst the wife contends those reasons constitute a medical emergency, the evidence on which she relies relates to alleged matters that occurred in February and March 2025, with no evidence to support the contention that she is in difficulty in attending this hearing today, by reason of those matters.
37. Further, in addition to the letter from her treating clinician, dated 26 March 2025, it is clear from the letter supporting the application, that the treating clinician does not consider, or at least did not consider at that date, that the wife was not able to attend court, just that she required support in order to do so. As I have noted ahead of this hearing, the wife had required special measures and the court is fully able to implement such special measures pursuant to Part 3A of the Family Procedure Rules 2010, to ensure that she is on an equal footing.
38. Since the date of the letter from her treating psychiatrist, and the wife asserting a mental health crisis in February and March 2025, it is also of note that the wife has been in regular correspondence with the court regarding this litigation and has issued further applications in respect of the litigation. Further, it is said by the husband that the wife is also currently actively engaged in litigation that is ongoing in the United States. In those circumstances, I am not able to place significant weight upon the reasons advanced by the wife for her non-appearance and her application to adjourn.
39. With respect to the question of whether the wife has waived her right to be present, as will be clear from the matters I have already summarised, the wife's very late application to adjourn this hearing stands at the end of a very long line of what I am satisfied is deliberately obstructive behaviour, designed to hinder the implementation of the final order, as amended, made as long ago as May 2024 by this court. Within the context of the wife's longstanding conduct, I am satisfied that it is reasonable to conclude that the wife intended her non-attendance today, as indicated by a very late application to adjourn, to further frustrate attempts to implement the final order, as amended, of the court. This conclusion is reinforced by the fact that legitimate avenues for disputing the final order have been exhausted by the wife, she having been refused permission to appeal the order and having made an application to set aside that, for reasons I shall come to, was almost bound to fail in the absence of any fresh evidence.
40. As to whether an adjournment would be likely to secure the attendance of the wife, or at least facilitate her representation, in the context of the long-running efforts of the wife to frustrate the implementation of the order made by the court, I have no confidence that an adjournment would be likely to secure the attendance of the wife, or at least facilitate her representation.
41. With respect to the extent of the disadvantage to the wife in not being able to present her account of events it is, I acknowledge, disadvantageous to the wife not to be here to present

her case to the court. That said, the position of the wife is plain both from the papers in respect of her application to set aside and her approach to the implementation of the property orders that are the subject of the husband's applications. In those circumstances, I am not satisfied that proceeding in her absence will result in any significant disadvantage to the presentation of her case.

42. With respect to whether undue prejudice will be caused to the husband by any delay in an adjournment, I am satisfied that the husband will be caused manifest prejudice by any further delay in the resolution of these proceedings, through the implementation of the final order, as amended, made by the court, in respect of which order the Court of Appeal, dated 23 December 2024, refused permission to appeal. This court divided the parties' matrimonial finances a year ago. Since that time, the husband has not been able to access the vast majority of the assets awarded to him by reason of the wife's conduct. By way of example, a further complication arising from the failure of the wife to cooperate with the implementation of the final order of the court, is that the mortgages currently secured against the properties in Wyoming have been required to be replaced, in order to avert the prospect of a forced sale. Further, this is the second time that the husband has been required to take an international flight into this jurisdiction in order to attend a hearing. It would not be appropriate in those circumstances to further adjourn, for a third time, the matters that are now before the court.
43. With respect to whether undue prejudice would be caused to the forensic process if the applications were to proceed in the absence of the wife, given the matters I have set out, I am satisfied that there is no undue prejudice that would be caused to that process. The wife has provided copious documents to the court. Whilst often verbose and rambling, the wife's arguments are tolerably clear from those documents, both her application to set aside and the husband's application for the documents to be signed. Her position would not be materially improved by adjourning this matter to permit her attendance.
44. Finally, I must have regard to the terms of the overriding objective in the Family Procedure Rules 2010 at Part 1, to deal with cases justly, expeditiously and fairly. A year after the court made its final order, and in the context of the serial frustration by the wife during the period of implementation of the order, it is in my judgment entirely inconsistent with the terms of the overriding objective, to grant a further adjournment to the wife. In the circumstances, I refuse the wife's application for an adjournment and I am satisfied that it is appropriate to deal with the applications now before the court.

Wife's Application to Set Aside

45. Having refused the wife's application for an adjournment and determined that it is appropriate to proceed in her absence, I now deal with the wife's application to set aside the final order made on 24 May 2024, as amended on 3 June 2024.
46. As I have referred to, the wife applies to set aside the final order, as amended, on a number of grounds:
 - (a) The husband committed fraud by withholding a bank account from the Metropolitan Bank of New York, which received joint rental revenue from the New York properties. The wife says this is a matrimonial asset which was not included in the order;

- (b) The husband has committed perjuries of LLC IRS tax returns in 2020, 2024, and perjury of LLC annual reports filed with the Wyoming Secretary of State;
 - (c) The husband has committed perjuries regarding the Oxus shares;
 - (d) Real property was undervalued;
 - (e) The final order, as amended, is unilateral and drafted by the husband and his counsel, with the drafts not shared with the wife;
 - (f) The court did not properly consider the tax consequences on the wife of the division.
47. The wife has already, via her appeal, explored many of these contentions in her effort to demonstrate the court made an error. It was only following the rejection of those arguments that she contended there were grounds to set aside the order, that contention arriving nearly nine months after the final order, as amended, was made by this court. It is apparent from the documents that she relies on in support of her application that, to a significant extent, the set aside application she now pursues is simply a reformulation of her grounds of appeal to the Court of Appeal, contending that the decision of this court was wrong. As I have noted, the Court of Appeal rejected that contention and refused her permission to appeal application
48. The wife makes a number of sweeping accusations of fraud against the husband. At times, via email, to a large number of judges, Members of Parliament and other public figures, = the wife has made allegations of corruption and fraud against a much wider range of individuals, including myself and counsel involved with the final hearing. The wife does not articulate in clear terms, at any point, what the fraud she alleges is comprised of, or the evidence she relies on to support those allegations of fraud. The wife has likewise provided no further reliable evidence in relation to the allegation that the husband committed perjury. The court has responded on a number of occasions in relation to the wife's allegations regarding the Oxus shares and again reiterates, as is plain from the final judgment of the court, that that asset was dealt with on the basis that those shares did *not* constitute matrimonial property.
49. There is likewise no evidence to demonstrate that the real property was undervalued at the time the court made its final order. To the best of my recollection, there was no such submission at the final hearing. Indeed, the wife refused to cooperate with the joint instruction of valuers in relation to those properties and failed to propose a valuation of her own at the final hearing, leaving the court, once again, to rely on the ES2 provided by the husband.
50. There is, I am satisfied, no evidence that the final order, as amended, that the court made was unilaterally drafted by the husband and his counsel and that the drafts were not shared with the wife. In any event, the court is responsible for its final orders, including checking that those orders reflect accurately the decision the court has made. I am satisfied that the Court was given a proper opportunity to, and did, check that the final order, approved in May 2024 and amended in June 2024 last year, reflected the decision the court had made as set out in the final judgment.
51. With respect to tax, in the context of the wife having failed repeatedly to comply with orders of the court to provide tax information ahead of the final hearing, it remains the case that the wife has brought no fresh tax evidence in support of her application to set aside, nor has she

set out what new or different evidence she suggests that court would require at a hearing, or set out in what manner the final order would be adjusted on her case in relation to tax.

52. As far as tax is concerned, for the reasons I have summarised, and as are summarised in Ms Campbell KC's reply to the Court of Appeal, the position in relation to tax was as clear at the final hearing as it could be in the context of the wife's persistent disregard for the case management orders made to try and ensure tax information was available. The court accordingly considered the tax issues and consequences on the basis of such evidence as it had and that evidence was fully factored into the decision of the court. It cannot now be suggested by the wife that the court proceeded on a mistaken basis in relation to the tax, in circumstances where she failed to take advantage of all of the opportunities provided to her in relation to the provision of tax information regarding her case.
53. In those circumstances that I have outlined, I am satisfied that the wife's application to set aside should be dismissed. As identified by the Court of Appeal, at the heart of the application to set aside is the contention that the court was mistaken or the victim of non-disclosure in relation to the tax consequences for the wife of the division of the assets that it arrived at. That argument is simply not sustainable. As I have said, the court dealt with, as far as possible, that issue in the context of the wife having serially failed to comply with all case management orders, designed to ensure the court had before it the tax evidence on which she sought to rely.
54. The wife's claim that the court was the subject of fraud, mistake or non-disclosure with respect to tax obligations, or the tax implications of the property transfers, is hopeless and plainly forms no proper basis for a set aside application. Notwithstanding the wife's serial failure to comply with case management orders in respect of tax information, the court had before it evidence as to the tax position and factored that in to the structure of the final distribution. Within this context, I am satisfied that none of the limited grounds under which a final order may be set aside, namely fraud or mistake, material non-disclosure, a *Barder* event or executory terms not yet carried out, as set out in *L v L* (supra) are met in this case and the wife's application to set aside must be dismissed. The strong public policy of respecting the finality of sealed orders should, in particular, carry weight in a case in circumstances where such criticisms that the wife makes, in respect of the information before the court at the final hearing were *entirely* of her own making.

Husband's Application for Documents to be Signed

55. Turning next to the husband's application for various documents to be signed to effect the property transfers, as provided for in the final order, as amended. This court anticipated at the final hearing that the wife may not cooperate in implementing the final order, as amended. In the circumstances, the court approved a specific provision within that final order, as amended, at paragraph 27(g) which provided as follows:

“In default of prompt cooperation as directed pursuant to paragraph 27(d)-(f) above, documents which require the other party's signature to give effect to paragraphs 21-24 above, the non-defaulting party may apply on paper to the Family Court sitting at the Financial Remedy Court in the Central Family Court for a District Judge to sign the relevant document pursuant to section 39 of the Senior Courts Act 1981, together with a brief explanation of the default, a copy of this order and the judgment of Mr Justice MacDonald dated 18 April 2024.”

56. The husband now applies for the court to exercise the powers stipulated paragraph 27(g) of the final order, as amended, and available to the court pursuant to s.39 of the Senior Courts Act 1981, to authorise the documents to be signed on the wife's behalf.
57. As I have noted, the application has been served on the wife, via the email address she has used throughout the various applications to the Family Court. For the reasons I have given, I am satisfied it is appropriate to proceed with the husband's application in the absence of the wife. I grant the husband's application for permission to file further statements of evidence which are intended to assist the court in understanding the nature of and need for the documents that the court is invited to sign *in lieu* of the wife's cooperation.
58. The statement of the husband sets out the efforts already made to put the property transfers into effect, including the proposals he has sought to make to the wife to progress matters and details the further steps that the husband has taken and been advised to take, in order to effect those transfers. I accept that evidence. The husband has written to the wife many times seeking her cooperation in implementing the final order of 24 May 2024, as amended.
59. To date, the wife has not been willing to cooperate with any of the matters that require her input. This extends to the orders that provide for payments or property transfers to the wife. Her behaviour in that regard has been almost entirely self-defeating in the circumstances where the wife has repeatedly communicated with the court, and repeatedly issued unmeritorious applications, alleging she is impecunious, unable to afford food and accommodation. To repeat, the value of the assets awarded to the wife in the final order of May 2024, as amended, amounts to some £5.3M (£6.2M including pension). Notwithstanding her assertions of impecuniosity, the wife continues, for reasons which are opaque to the court, to fail to cooperate with the implementation of the final order, as amended, that would permit her to realise the assets awarded to her by the court.
60. As the properties to be transferred are located in the State of New York and the State of Wyoming, the documents that require execution in order to effect the transfers differ from those used in this jurisdiction. The second statement relied on by the husband provides evidence of the requirements in New York for the documents to be signed by both parties to effect a transfer and exhibited to the statement, are those documents which require signatures to effect the transfers directed by the court.
61. Finally, the third statement relied on by the husband provides evidence of the situation regarding restructuring the financing secured against the Wyoming properties, an issue that will need to be addressed to effect the court directed transfers. As explained in the third statement, a further complication arising from the failure of the wife to cooperate with the implementation of the final order, as amended, is that the mortgages currently secured against those properties require to be rearranged or replaced. The third statement deals with the prospect of refinancing with the current mortgagee and alternative lenders.
62. In context of the matters that I have set out in this judgment, I am wholly satisfied that the wife has actively and deliberately sought to frustrate the implementation of the final order, as amended, made by this court in May 2024. Over the twelve months since the order was made, the wife has been actively engaged in a number of endeavours, all intended to resist the implementation of an order properly made, but with which she does not agree. The wife has not signed any document necessary to implement the order. She has not complied with any

of the transfer mechanisms set out in that order, despite the husband's repeated written invitations and offers to work with any professional of her choosing. There is, as I have noted, evidence before this court that the wife is now seeking to frustrate the process via litigation in the jurisdiction of the United States.

63. In the light of the evidence before the court and the continued refusal of the wife to engage in the implementation of the order following the dismissal of her application for permission to appeal to the Court of Appeal, and in circumstances where I am satisfied it is not appropriate to set aside my order of May 2024, I am satisfied that without the court using its powers under s.39 of the Senior Courts Act 1981, the wife will continue to refuse to implement the order of 24 May 2024, as amended on 3 June 2024. In those circumstances, I am satisfied it is appropriate for the court to sign the various documents in place of the wife, to allow the implementation of the court's order to proceed.

Wife's Ancillary Applications

64. Finally, as I have noted, the wife has made a number of other applications before the court over the past number of months. Namely, a contempt application made against the husband in November 2024, an application made to enforce the order made in July 2023 for maintenance pending suit and a further application for maintenance pending pursuit made on 18 February 2025. As I have noted, the court has also over the past number of months refused, as being totally without merit, a number of other applications that have been issued by the wife.
65. There is no proper basis on which to advance a contempt application of the type issued by the wife in November 2024 before this court. There is no evidential basis for such an application. More fundamentally, however, it is an application that has been made in the Court of Appeal proceedings, number CA-2024-001342. In the circumstances, this court has no power to deal with it.
66. I am further satisfied that the other applications of the wife each must be dismissed as being totally without merit. The application to enforce the July 2023 maintenance pending suit order, issued on 6 February 2025, seeks to enforce an order that is no longer itself in force and the arrears under which were remitted by the court in the final order of May 2024, as amended. The wife's application for permission to appeal that aspect of the final order was dismissed by the Court of Appeal.
67. Finally, the application dated 18 February 2025 for a maintenance pending pursuit order, is likewise totally without merit. As I have set out, the final order contained provisions providing that the wife's claims for secure periodical payments orders, periodical payments orders, lump sum orders, property adjustment orders, pension sharing orders and pension attachment orders, all stand dismissed. In the circumstances, this court has no jurisdiction to make a maintenance pending suit order at this stage.
68. Finally, I am satisfied that the wife must bear the costs of each of the applications before the court. She has failed both in her set aside application and the husband has succeeded in this application for the court to sign the documents in the circumstances I have described. Further, given that the applications arise in the context that I have described, namely the persistent poor litigation conduct of the wife over a number of months, in the context of litigation conduct that the court has already had cause to penalise for the reasons set out in the cost

judgment of last year, I intend to make the cost order on an indemnity basis. I am satisfied, having regard to the factual context in which the cost order arises, that the indemnity basis for costs is entirely appropriate in this case.

End of Judgment.

Transcript of a recording by Acolad UK Ltd
291-299 Borough High Street, London SE1 1JG
Tel: 020 7269 0370
legal@ubiquis.com

Acolad UK Ltd hereby certify that the above is an accurate and complete record of the
proceedings or part thereof

EXHIBIT NZ-M

ED Depart Summary (Verified)

**Chelsea and Westminster Hospital NHS
Foundation Trust *NHS***

Chelsea Westminster Hospital
Fulham Road
Chelsea
London
SW10 9NH

7 STANHOPE MEWS WEST LONDON

SW7 5RB

Emergency Department

Direct Line: 0203 315 8001

Direct Line Referral for GPs: 0203 315 8121

Date: 21/Jun/2025 15:39:32

Dear S HUSSEIN

Name: Zahmoul, Nadia

D.O.B: 27/Apr/69

Gender: Female

NHS Number: 705 199 5111

MRN: 80718960

Home Telephone:

Mobile Telephone: 07913328615

Address: 35 Queens Gate Gardens, LONDON, SW7 5RR

Previous Emergency Department attendances in the last 12 months:0

Your patient attended the Emergency Department on: 20/Jun/2025 06:09:00

Source of Referral: Ambulance

Incident occurred at: Living room

Seen by: Jessica-Lee Greeff

Printed by: Kennedy, Catherine
Printed on: 20/Jul/2025 17:23 BST

Presentation: Mental Illness

Initial Assessment: BIBA> unusual behaviour, erratic. Called police at 0330, states she's been "raped". denies ETOH, drugs. marital issues, divorce on going for 5 yrs. disorganized speech, movement on arrival. Has attempted to abscond

Brief Summary:

Requested Actions for GP:

Presenting complaint:

Nadia was brought to A&E by ambulance on the morning of 20/06/25 after she phoned the police to report that she had been assaulted by her ex-husband in the early hours

On arrival, LAS found Nadia to be behaving bizarrely and that she was evasive of questions

She also appeared to be fixed on "the courts" and kept asking LAS if they were sent by them

Her daughter reported a decline in Nadia's behaviour over the past 48 hours

Nadia was conveyed to A&E under the capacity act. When she arrived to the department, she presented as agitated and attempted to leave

Nadia was given droperidol 10mg IM at 06:23 and a further 2mg lorazepam PO at 12:11

Impression: 56-year-old lady, currently open to the autism service and previously known to HTT. Concerns were raised about Nadia's mental state by the autism service on 19/06/25 and she was referred to CNWL SPA for triage. Nadia presents as insightful into her MH and reports that she feels she needs more support at this time. Given her recent, significant deterioration and episode of agitation in A&E, I would recommend that she is supported by SK&C HTT for a period of further assessment and containment. Nadia remembered working with HTT previously and was happy to be referred to them again.

Plan:

D/C from PLT

Refer to SK&C HTT in AM

Diagnosis: Bizarre behaviour

Investigations:

Acuity1&2, Safety_Zone, Ref Psych Liaison/Psychiatry, LFT, FBC, ALC, BONE, CRP, UE, BBVED, Electrocardiogram

Outcome: Treatment complete

Ward or Trust:

GP Actions:

TTA Medication:

No relevant medication details

Screened by Pharmacist:

Reason for Incomplete Treatment:

Critical Care/Majors:IV Cannula,

Treatments:Verbal advice,

Medications Administered to the Patient whilst in ED:

Medication	Dose	Route
droperidol	10 mg	IM
lorazepam	2 mg	oral
paracetamol	1 g	oral

Results:**Laboratory or Other Results This Visit** (last charted value for your 20/06/2025 visit)

Blood Sciences

20/06/2025 10:35 AM

Printed by: Kennedy, Catherine
Printed on: 20/Jul/2025 17:23 BST

Page3 of 5

White blood cell count, blood: $13.8 \times 10^9/L$ -- Normal range between (4.2 and 11.2)
Adjusted calcium level, blood: 2.40 mmol/L -- Normal range between (2.20 and 2.60)
Alanine aminotransferase level, blood: 24 unit/L -- Normal range between (0 and 34)
Albumin level, blood: 40 g/L -- Normal range between (35 and 50)
Alk phos level, blood: 59 unit/L -- Normal range between (30 and 130)
Basophil count, blood: $0.1 \times 10^9/L$ -- Normal range between (0.0 and 0.2)
Calcium level, blood: 2.40 mmol/L -- Normal range between (2.20 and 2.60)
Chloride level, blood: 102 mmol/L -- Normal range between (95 and 108)
C-reactive protein level, blood: 2.6 mg/L -- Normal range between (0.0 and 5.0)
Creatinine level, blood: 63 $\mu\text{mol/L}$ -- Normal range between (49 and 90)
Eosinophil count, blood: $0.0 \times 10^9/L$ -- Normal range between (0.0 and 0.5)
Ethanol level, blood: <100 mg/L
Globulin level, blood: 29 g/L -- Normal range between (19 and 35)
Haematocrit level, blood: 0.326 L/L -- Normal range between (0.350 and 0.450)
Haemoglobin: 109 g/L -- Normal range between (114 and 150)
Inorganic phosphate level, blood: 1.52 mmol/L -- Normal range between (0.80 and 1.50)
Lymphocyte count, blood: $1.7 \times 10^9/L$ -- Normal range between (1.1 and 3.6)
Mean cell haemoglobin conc, blood: 335 g/L -- Normal range between (315 and 350)
Mean cell haemoglobin level, blood: 32.1 pg -- Normal range between (27.5 and 33.1)
Mean cell volume, blood: 96.0 fL -- Normal range between (83.5 and 99.5)
Mean platelet volume, blood: 10.8 fL -- Normal range between (7.4 and 11.5)
Monocyte count, blood: $0.9 \times 10^9/L$ -- Normal range between (0.3 and 0.9)
Neutrophil count, blood: $11.0 \times 10^9/L$ -- Normal range between (2.0 and 7.1)
Nucleated red blood cell count, blood: $0.0 \times 10^9/L$ -- Normal range
 between (0.0 and 0.1)
Platelet count, blood: $327 \times 10^9/L$ -- Normal range between (135 and 400)
Potassium level, blood: 4.0 mmol/L -- Normal range between (3.5 and 5.3)
Red blood cell count, blood: $3.40 \times 10^{12}/L$ -- Normal range between (3.73 and 4.96)
Red blood cell distribution width: 11.7 % -- Normal range between (10.0 and 15.9)
Sodium level, blood: 138 mmol/L -- Normal range between (133 and 146)
Total bilirubin level, blood: 8 $\mu\text{mol/L}$ -- Normal range between (0 and 21)
Total protein level, blood: 69 g/L -- Normal range between (60 and 80)
Urea level, blood: 10.4 mmol/L -- Normal range between (2.5 and 7.8)
Estimated GFR CKD EPI: >90 ml/min/1.73m²

Microbiology and Virology

20/06/2025 10:35 AM

Hepatitis C virus Ab screen, blood: Not detected
Hepatitis B virus surface Ag, blood: Not detected
HIV-1 and HIV-2 serology, blood: Not detected

ED Depart Summary

Zahmoul, Mrs Nadia - 80718960

Discharged by: John Joseph Henry Green

Final Emergency Department Discharge Summary

Completed Action List:

- * Perform by Green , John Joseph Henry on 21 June 2025 15:39 BST
- * Sign by Green , John Joseph Henry on 21 June 2025 15:39 BST
- * VERIFY by Green , John Joseph Henry on 21 June 2025 15:39 BST

Printed by: Kennedy , Catherine
Printed on: 20/Jul/2025 17:23 BST

Page5 of5

EXHIBIT NZ-N

Central London Adult Autism Service (CLAAS)

LBHF | RBKC | Westminster

Westminster: 215 Lisson Grove, NW8 8LW

LBHF: 56 Bloemfontein Road, W12 7FG

RBKC: 1-9 St Marks Rd, W11 1RG

0208 102 3889

clcht.claas@nhs.net

www.clch.nhs.uk

Private and confidential

Mrs Nadia Zahmoul
35 Queens Gate Gardens,
London SW7 5RR
(sent via normal email with consent: nzahmoul@me.com)

Date: 20/06/2025

To Whom It May Concern,

Re: Autism Assessment Outcome for Mrs Nadia Zahmoul; Date of Birth: 27 Apr 1969

We are writing to confirm that Mrs Nadia Zahmoul has a confirmed diagnosis of **Autism Spectrum Condition (ASC)**, according to the Diagnostic and Statistical Manual for Mental Health Disorders, Fifth Edition (DSM-5), from our service, **Central London Adult Autism Service (CLAAS)**. The assessment was led by Dr Catherine Cheung (Principal Clinical Psychologist; HCPC Registration Number: PYL32865).

Diagnosis of Autism Spectrum Condition (ASC; DSM-5: 299.00; ICD-10 Code: F84.0)

Our assessment protocol is based on recommendations in The National Institute of Health and Care Excellence (NICE) Guidance for adult autism assessments, and our findings concluded that she does meet diagnostic criteria for ASC, according to the DSM-5.

This means that Nadia was born with this condition, but unfortunately, she was only formally diagnosed in our service in June 2025. A neurodevelopmental condition is pervasive and lifelong. The National Autistic Society (NAS) describes Autism as a “neurodevelopmental disability”. This means that **Nadia has always been and will continue to be autistic for the rest of her life.**

Being autistic significantly impacts Nadia’s ability to cope with the demands of day-to-day living. By definition of the diagnosis, she demonstrates **genuine, significant differences (or**

difficulties) in social communication and understanding and managing social relationships, which can give rise to **challenges in managing social interactions and situations** (e.g., difficulty expressing her needs or comprehending other people's information sharing, social isolation). Without the appropriate support for her autistic communication, Nadia struggles to effectively share information about herself, respond to others' questions and comments, and engage in interactive settings. This can also give rise to unintentional misunderstandings and place her at a disadvantage.

Please note that Nadia's communication and relationship challenges are autistic in nature. However, she can communicate using sophisticated vocabulary and grammar, which can generate the false impression that she is managing better than she is. Her challenge lies in the pragmatic use of language to effectively communicate and interact with others.

Additionally, Nadia continues to experience high levels of anxiety and distress daily, usually triggered by everyday problems of daily living and the challenges of managing social communication, which require continued support and reassurance.

Being autistic also significantly impacts Nadia's **information-processing style**: there is a **genuine need for familiarity, structure, and predictability**. This is both external and internal. Externally, unfamiliar people, places and settings can be significantly upsetting for Nadia; she often needs a lot longer to familiarise herself and settle down. Internally, Nadia has very **specific or defined ways of thinking or understanding information** and needs significantly more time and effort to process new information or engage with new approaches. Information that does not fit in directly with Nadia's way of thinking or understanding can again be extremely confusing and distressing for her.

Because of her disability and autistic needs, Nadia is entitled to support and reasonable adjustments. This will allow her to meaningfully participate in court and to ensure that her experiences and preferences are effectively and reliably presented during any legal proceedings. We will later provide a letter of clinical recommendation for accommodation and adjustments to Nadia's communication and information processing style.

Warmest Regards,

Electronically signed and delivered to avoid delays.

Dr Catherine Cheung
Principal Clinical Psychologist
Central London Adult Autism Service (CLAAS)

Sophia Iacovou
Assistant Psychologist

Cc: Nadia Zahmoul;

GP – Stanhope Mews West Surgery (stanhope.mews@nhs.net)

EXHIBIT NZ-O

NHS No.: 705 199 5111
DoB: 27 Apr 1969

Central London Adult Autism Service (CLAAS)
LBHF | RBKC | Westminster

Westminster: 215 Lisson Grove, NW8 8LW

LBHF: 56 Bloemfontein Road, W12 7FG

RBKC: 1-9 St Marks Rd, W11 1RG

0208 102 3889

clcht.claas@nhs.net

www.clch.nhs.uk

NHS No.: 705 199 5111
DoB: 27 Apr 1969

Private & Confidential

Mrs Nadia Zahmoul

35 Queens Gate Gardens

London

SW7 5RR

(sent via email with consent: nzahmoul@me.com)

Date: 01/07/2025

Autism Assessment Report

Dear Nadia,

Thank you for meeting with us for the autism assessment on Thursday 15th May 2025. You were referred to the Central London Adult Autism Service (CLAAS) in April 2025 by Tamara Moon, Senior Assistant Psychologist at the South Kensington and Chelsea Home Treatment Team (HTT). It was hoped that an autism assessment could help you to understand your communication and processing needs and guide any adjustments for your ongoing divorce court case.

Our report focuses on key autism-related information and should be read in conjunction with existing reports to gain a comprehensive understanding of your background, life experiences and psychosocial and health needs.

Assessment Process

Our assessment was guided by the recommendations in the National Institute for Health and Care Excellence (NICE) Guidance for adult autism assessments and employed the following sources of information:

- Information provided by **Tamara Moon (Senior Assistant Psychologist)** on your current circumstances, difficulties and needs through your engagement with the **Home Treatment Team**. This was obtained through the completion of the referral form.
- An in-person clinical interview with **Dr Catherine Cheung (Principal Clinical Psychologist)** and **Sophia Iacovou (Assistant Psychologist)** on 15/05/2025. The

purpose of this meeting was to help gain a better understanding of your current circumstances and concerns.

- Behavioural observations guided by the **Autism Diagnostic Observational Schedule, 2nd Edition (ADOS-2)** was conducted in the same meeting. This allowed us to observe your communication style, social reciprocity, and behavioural patterns.
- Information regarding your social experiences, interests, thinking patterns, and sensory sensitivities was gathered through the **Ritvo Autism Asperger Diagnostic Scale - Revised (RAADS-R)** questionnaire. This form was self-completed by you using a virtual form.
- Ongoing collaboration with other professionals involved in your care, including a meeting with your referrer, **Tamara Moon (Senior Assistant Psychologist)** from the **South Kensington and Chelsea Home Treatment Team (HTT)**. These discussions contributed to a more comprehensive understanding of your circumstances and challenges within the broader context of your mental health.

Diagnostic Outcome

We concluded that **you are autistic**. We discussed this outcome with you on Thursday 12th June 2025 during a follow-up virtual meeting. You shared that this diagnosis came as a relief, and you hoped it may offer a helpful template to make sense of your experiences and difficulties. You described your long journey in self-understanding and finally recognising that you are not “deficient” but, rather, processing information differently.

Without appropriate support, autistic individuals can face significant challenges in their daily lives, which can affect their physical and emotional well-being. For example, you shared insightful reflections around how your deep and detail-oriented attention can be difficult and exhausting to manage at times.

Co-Occurring Diagnoses and Difficulties

A diagnosis of autism does not discount for the adverse life experiences impacting your sense of self and emotional well-being, which were also considered throughout your autism assessment process. You reported having **Post-Traumatic Stress Disorder (PTSD)** as a result of a series of adverse life events (e.g., witnessing 9/11 attacks in close proximity). Your self-reported experience of PTSD has been consistently recorded throughout your medical record, and is something that you have discussed with multiple healthcare professionals.

We also gathered information about how such experiences have impacted your current mental health and functioning through professional liaison with professionals involved in your care at the South Kensington and Chelsea HTT. You are thoughtful and recognised the interplay between your PTSD symptoms and autistic needs. Together, we discussed how some of your behaviours or responses might be coping strategies that you have developed over time to deal with challenging situations.

We also discussed how, during periods of heightened stress, your autistic needs can become more pronounced, making it harder to communicate effectively. For example, you may feel compelled to share thoughts or experiences that are most pressing for you, even if they seem

unrelated to the immediate context. This can also affect your ability to take on others' perspectives or advice, as your capacity for cognitive flexibility may be reduced in these moments, despite your motivation to engage meaningfully.

Services should hold in mind your neurodivergent traits, your mental health needs relating to adverse life experiences and your psychosocial context, and employ an Autism- and Trauma-Informed Approach when working with you.

Current Context and Ensuring Equity in Legal Proceedings

You are currently staying in a friend's flat in Kensington and managing your divorce proceedings without legal representation due to financial constraints. Preparing documents and engaging with the court process has been highly demanding and distressing. While helpful adjustments were made during the hearing phase (e.g., regular breaks, advocacy against harmful questions), these have since been withdrawn, despite the negotiation phase continuing to place significant demands on you. This, alongside financial and emotional strain, has negatively impacted your wellbeing. You described difficulty sleeping, teeth grinding, regular emotional breakdowns, and heightened anxiety.

Given your recent autism diagnosis, it is important that the court process considers your communication and information-processing needs so that you can participate on an equitable basis. The current structure and expectations of legal proceedings do not align well with your communication style, which can make it difficult for you to express yourself clearly or provide information in the way that is typically expected. This has understandably caused you significant distress, as noted in your recent contacts with health and wellbeing services. Reasonable adjustments - such as allowing you to communicate in alternative formats, giving you extra time to process and respond, and supporting you to organise your thoughts - may help you engage more effectively and fairly in the legal process.

A separate letter, addressed to the court, will be provided to outline your autistic needs and our recommendations for reasonable adjustments.

Risk and Mental Health

You were referred to us by the South Kensington and Chelsea Home Treatment Team (HTT), a crisis service, following a period of acute stress during which you believed you had been poisoned. While under the care of the HTT, you had regular meetings with clinicians. It was recognised that although the psychological impact of your trauma is significant, there were no concerns about active risk of harm to yourself or others.

During the autism assessment and follow-up meetings, we observed increasing levels of distress, which have affected your ability to maintain consistent self-care, sleep and eat well, and regulate your emotions. You spoke openly about these challenges, attributing much of your distress to the ongoing legal proceedings and the withdrawal of reasonable adjustments by the court.

Although you reported no current thoughts or plans to harm yourself or others, you acknowledged that your recent mental health difficulties have been more acute and impactful. You expressed a desire to access support to help stabilise your mental health. Following our post-diagnostic meeting on 19th June 2025, you confirmed your wish to engage with crisis services. We subsequently referred you to your local Single Point of Access (SPA) team, and you are now receiving support from the HTT.

Autism Profile

We recognised various autistic features in your social approach. This means that there are *marked differences* in how you communicate, approach social situations and process information. We also noticed *marked differences* in your daily approach and information processing styles that are consistent with an autism profile. These differences include:

Verbal Communication	
Expressive verbal communication	You express yourself with passion, particularly when discussing topics that are important to you. Your speech was often quicker than expected during our meetings and could involve extended, detailed monologues. While meaningful to you, this style of speech may mean that others may find it difficult to interject or follow your main point.
Formal, metaphorical, or repetitive language	You often use formal, analytical, or metaphorical language, and may repeat specific phrases or concepts. For example, you were keen to share how the “hyper analytical” processing style resonates with you and repeated words such as “microcosm” and “surreal” a number of times during our assessment. While this language is meaningful to you, it may make it difficult for those unfamiliar to you to interpret your intended meaning.
Turn-taking and gauging conversational expectations	It may be less intuitive for you to judge when to start or stop speaking, or how much detail to include. This can make conversational turn-taking more effortful. For example, during the assessment, you sometimes responded to personal questions with detailed theoretical content, which could be longer or less directly relevant than expected. Clear prompts and feedback can help to clarify expectations and prompt you to share relevant information.
Non-verbal Communication	
Interpreting social cues	Interpreting others’ emotions, intentions, or cues can be effortful. You may not always pick up on more subtle cues (e.g., whether a listener is struggling to follow), and you thrive when this information or feedback is offered more clearly. In unfamiliar or formal settings (e.g., courtrooms), this may impact how your reactions or participation are received by others.
Use of non-verbal communication cues	Your non-verbal communication (e.g., eye contact, gestures, body language, vocal tone) may not always be as well-meshed with your internal state or the social context as may be expected. For example, you may hold strong brief eye contact, punctuated by looking around the room. Your gestures and body language may also seem more animated or jerky than expected.

Communication Preferences and Support Needs	
Preference for direct communication	You prefer communication that is direct and transparent. Vague, contradictory, or unclear language can be distressing. For example, you described finding the inuendo and ambiguous communication of the court room very stressful. You also mentioned that in the past it has been helpful when workplace bosses offer you clear and direct feedback.
Strong sense of fairness and justice	You described a strong sense of justice and rule-based thinking. This can mean that when you perceive dishonesty or unfairness in social settings, you may become distressed and find it difficult to engage or negotiate.
Difficulty “reading between the lines”	Inferring unspoken intentions or navigating ambiguity in social or legal interactions can be challenging. For example, during our meetings, it seemed difficult to gauge how much information was appropriate to share or which questions were appropriate to ask.
Emotional Expression and Regulation	
Emotional recognition and expression	You experience emotions intensely and may find it difficult to regulate or express them in ways that others expect. When emotionally heightened, your communication may become more intense or expressive (e.g., through tone, movement, or language). This reflects your intention to be understood but could lead to misinterpretations by others.
Emotional regulation	Though you expressed difficulties with regulating your emotions when experiencing heightened stress, you show strong insight and commitment to managing these challenges. You described routinely seeking time alone to self-regulate, a strategy you have used throughout your life. More recently, you have also proactively accessed support through mental health services. These are important strengths that support your ability to navigate emotionally difficult situations.
Social Relationships	
Making and maintaining relationships	You described a very limited social circle during your younger years, often preferring to focus on schoolwork rather than forming relationships with your peers. Though you have developed social skills and navigated social spaces (e.g., the office environment) over the years, you described often seeking alone time.
Information Processing Style	
Analytical, rule-based thinking	You tend to create internal rules to make sense of the world, which you refer to as your “hyper analytical” style of thinking. This makes ambiguity or contradiction difficult to process, creating a sense of distress and, in some cases, contributing to breakdowns. You also mentioned that emotions can be difficult to make sense of, as they “do not fit inside the rules”. This can make it difficult for you to connect with nuances.
Detail-focused memory	You have a strong attention to and memory for details. You are able to recall information - including research, life events, or procedural details - in great

	detail. This strength can support you in structured or evidence-based environments, but may also contribute to cognitive overload.
Preference for structure and predictability	You are aware of your need for structure and clarity, and you thrive when expectations are clearly defined. Unfamiliar or unstructured environments can be more challenging to navigate.
Immersive Interests	
Deep focus on specific topics	You described your interest on topics as “intense”, often consuming most of your waking hours. Previously, you have been very interested in education and special needs. Currently, you spend an extensive amount of time reading legal documents - you are able to recall large amount of information and texts of your research.
Difficulty shifting focus	When engaged in your interests or sharing your interest with others, you often become deeply focused. This can make it difficult to shift your focus. For example, you described currently having little time for self-care and emotional regulation activities as you spend much of your time engaged in matters relevant to your court case.
Sensory Sensitivities and Regulation	
Sensory sensitivities	High-stimulation environments (e.g., court room, busy spaces) can be overwhelming. You may benefit from quiet spaces and sensory tools to self-regulate (e.g., movement, tactile objects like putty). You also mentioned that time alone has helped you throughout your life to regulate.
Sensory-seeking behaviour	During our meetings you engaged in a number of sensory seeking behaviours, such as flexing and clenching your hands and fingers, repetitively touching your face and head, and twisting your legs together. These actions may provide distinct sensory feedback, which can function as a way to self-soothe.

Your Strengths and Capabilities

While this report focuses your autistic needs, it is equally important to highlight your many strengths. You are highly intelligent, motivated, and passionate, with a strong sense of justice and commitment to your children. Your information processing style is analytical, which you have applied in previous professional roles and are currently using to navigate complex legal processes. Your care for your children was clearly expressed throughout our assessment, and you spoke warmly about your relationship with them.

Your autistic traits do not directly correlate to your parenting capability. Rather, your communication and information-processing style are part of your neurodivergent profile. When understood and supported appropriately, you are able to engage meaningfully and effectively.

Recommendations and next steps

Support from CLAAS

Post-diagnosis Support Sessions

We initially planned to meet for 2–3 post-diagnostic support sessions, focusing on developing strategies for emotional regulation and exploring helpful thinking patterns. You expressed openness and motivation to engage in these sessions.

However, following our first session, we jointly recognised that, given your current circumstances and the high levels of stress you are experiencing, it was difficult for you to engage meaningfully in post-diagnostic support at this time. You were insightful and open in acknowledging this, and we agreed that your primary need at present is mental health support rather than autism-focused input.

We understand that your situation has become particularly challenging in recent weeks, and you are now receiving support from crisis mental health services, who are helping you work towards greater stability and wellbeing. Once your circumstances have stabilised, and if you wish to re-engage, we would be open to re-opening your case to continue with autism-focused post-diagnostic support through CLAAS.

In the meantime, we have agreed to provide a supporting letter for the court to assist you in accessing reasonable adjustments. This letter will be sent to you virtually via email.

Liaison with other services

We are aware of your recent contact with mental health services and understand that you are currently receiving support from the South Kensington and Chelsea Home Treatment Team (HTT) following a referral to the CNWL Single Point of Access (SPA), made by us at CLAAS following a meeting in which we discussed your current difficulties.

We have been in contact with mental health services, including the CNWL Single Point of Access (SPA) and South Kensington and Chelsea (K&C) Community Mental Health Hub (CMHH) to share our concerns about your mental health and safety, and our understanding of your autistic needs in the current context.

Our service is not an emergency service. We do not coordinate or offer ongoing support. However, we will continue to ensure you are safe and communicate your psychosocial needs to the relevant services, with the hope that you can access appropriate support.

Autism Advice Clinic

We host a regular **Autism Advice Clinic**. These are 20 to 30-minute virtual slots for informal chats, advice-giving or signposting to other services. Please see the attached invitation letter and contact us to book an appointment.

Autism consultation and advice for professionals

We will remain in contact with your care teams and attend professional meetings. We can also provide **autism-specific consultation** to any professional supporting you. These are usually to provide specialist advice around supporting your autistic needs.

Recommendations for autism-related resources

Websites and online resources:

- There is useful information to be found on the National Autistic Society's website (<http://www.autism.org.uk/living-with-autism/adults-with-autism-or-asperger-syndrome/useful-resources.aspx>).
- **The Centre for ADHD and Autism (CAAS)** is a third-sector organisation that can advise on your autistic needs and support practical tasks in the community. Please visit this link for more information: <https://adhdandautism.org/services/adults/> or contact the local representative, Laura Nettleford (laura@adhdautism.org).

Books:

- [*Unmasking Autism*](#), Devon Price
- [*Looking After Your Autistic Self: A Personalised Self-Care Approach to Managing Your Sensory and Emotional Wellbeing*](#), Niamh Garvey
- [*An Adult with an Autism Diagnosis: A Guide for the Newly Diagnosed*](#), Gillian Drew
- [*The Guide to Good Mental Health on the Autism Spectrum*](#), Emma Goodall and Jane Nugent. Forewords by Wenn Lawson and Kirsty Dempster-Rivett Jeanette Purkis
- [*The Independent Woman's Handbook for Super Safe Living on the Autistic Spectrum*](#), Robyn Steward
- [*Women on the Spectrum: Walking to the Beat of Autism*](#), Barb Cook and Dr Michelle Garnett

Jessica Kingsley Publishers is one of the largest publishing houses on autism-related books.

Podcasts:

- Robyn Steward - <https://www.bbc.co.uk/programmes/p06sdq0x>
- John Offord - <https://anchor.fm/differentminds/episodes/How-it-feels-to-be-diagnosed-with-Autism-later-in-life-en6qhb>

General information about CLAAS

Our service **does not** offer ongoing psychological therapy or social care provision or case management. However, we can support you in accessing services.

- **Psychological support** for ongoing or co-morbid mental health needs. We can support you in being referred to **mental health services** (e.g. IAPT, CMHT) as appropriate via the GP.
- If there are concerns about daily functioning and independent living, a referral to **Adult Social Care Services** is recommended to see if there are needs eligible under the Care Act.

- If in **crisis** or feeling unsafe, please contact the **GP** or the **CNWL Single Point of Access** on 0800 0234 650 or attend the nearest **A&E**. The **Samaritans** also offers a helpline on 116 123 or jo@samaritans.org for difficult times.

We will close your case to mark the completion of your Autism assessment. Where appropriate, our service remains available for ad-hoc professional consultation and joint-working with other professionals or services.

Yours sincerely,

Electronically signed and delivered to avoid delays.

Sophia Iacovou

Assistant Psychologist

Dr Catherine Cheung

Principal Clinical Psychologist

Central London Adult Autism Service

CC: Referrer: South K&C Home Treatment Team, cnw-tr.southkandchtt@nhs.net

GP: Stanhope Mews West, stanhope.mews@nhs.net

CLAAS File

EXHIBIT NZ-P



IN THE COURT OF APPEAL, CIVIL DIVISION

REF: CA-2024-001342

ZAHMOUL –v– ZAHMOUL



ORDER made by the Rt. Hon. Lord Justice Moylan

CA-2024-001342

On consideration of the appellant's notice and accompanying documents, but without an oral hearing, in respect of an application for permission to appeal

Decision:

Time is extended and I give permission to the wife to rely on her amended Notice and her Replacement Amended Grounds of Appeal but the application for permission to appeal is refused.

Reasons

The wife applies for permission to appeal from the final financial remedy order made by MacDonald J on 24 May 2024 following his judgment on 18 April 2024.

I can only give permission to appeal if the proposed appeal has a real prospect of success or there is some compelling reason to do so. I also refer to the following principles which are applicable to appeals.

The Court of Appeal gives very substantial weight to a trial judge's findings and evaluative conclusions and there is a high hurdle before it will overturn or interfere with them. For example, in *Volpi v Volpi* [2022] EWCA Civ 464, it was said:

"[2] the following principles are well-settled:

(i) An appeal court should not interfere with the trial judge's conclusions on primary facts unless it is satisfied that he was plainly wrong.

(ii) The adverb "plainly" does not refer to the degree of confidence felt by the appeal court that it would not have reached the same conclusion as the trial judge. It does not matter, with whatever degree of certainty, that the appeal court considers that it would have reached a different conclusion. What matters is whether the decision under appeal is one that no reasonable judge could have reached."

And in *Re R (Children) (Reunite International Child Abduction Centre intervening)* [2015] UKSC 35, the Supreme Court said:

"it is relevant to note the limited function of an appellate court Where the lower court has applied the correct legal principles to the relevant facts, its evaluation is not generally open to challenge unless the conclusion which it reached was not one which was reasonably open to it".

The wife advances 17 Grounds of Appeal, supported by a Skeleton Argument with attached documents; a further statement also with attached documents and numerous other documents.

The wife's overriding Ground of Appeal is: "The overriding failure of the judgment is that the judge has systematically and exhaustively suppressed all mentions of my mental health disabilities, including my trauma and autism symptoms, how they impacted my evidence and his findings. There is a wholesale failure of the court's duty under Part 3A and PD 3AA to consider my mental health disabilities and to ensure participation measures are in place at all times throughout the proceedings."

Grounds 2 to 10 and 12 raise procedural issues in reliance, in particular, on FPR Part 3A, PD 3A, PD3AA and Part 15.

There is no prospect of the Court of Appeal deciding that there were any procedural or other irregularities which undermined the fairness of the hearing or which undermine the judge's conclusions and decision. The wife contends that there were a number of breaches of FPR Part 3A, PD 3AA and Part 15. It does not appear that any of these points were raised before the judge. It is too late to seek to raise them, for the first time, in support of an application for permission to appeal. Further, in any event, the judge did consider whether to make participation directions and did so. There is no indication that, during the hearing, the judge was asked to make other or further

such directions or that it was submitted that those directions were not adequate. If they were considered to be inadequate, an application should have been made at the time. It is too late for the wife now, after the final hearing has concluded, to seek to argue that other directions should have been made under any of the provisions of FPR r.3A or PD3AA.

Dealing with some of the specific points raised. Contrary to the submissions made by the wife, including under Ground 3, the judge did not fail to consider making participation directions. As referred to above, the judge considered whether to *and* made participation directions. There was no reason for the judge to make further directions for the purposes of completing the terms of the order after the conclusion of the hearing. The wife's email to the judge on 3 May 2024 is headed "Unequal Footing and Unequal Participation in Proceedings" but raised only enforcement of the maintenance pending suit order and did not seek any participation directions. I deal with the issue of maintenance pending suit below.

The reasons for making participation directions do not appear to have been recorded in accordance with the provisions of Part 3A.9. This may be because no order was drawn up. Again, this does not appear to have been raised during the course of the hearing and it is too late to seek to do so now. Further, the absence of any order setting out the reasons does not impact on the fairness of the hearing or of the judge's decision and does not, therefore, justify the grant of permission to appeal.

The judge was not required to refer in his judgment to FPR Part 3A or to the participation directions or any of the matters referred to, for example, at page 16 of the Replacement Amended Grounds. None of those matters undermine the judge's judgment.

In respect of Part 15, there was no evidence to suggest that the wife was or might be a protected party. As the judge noted in paragraph 96, there was no expert medical evidence at all. Further, and again, it does not appear that this issue was raised before the judge.

As to Grounds 1 and 11, there is no merit in the wife's contention that the judge "suppressed" her "mental health disabilities" by not referring to them in his judgment. The wife was represented at the final hearing by leading counsel and solicitors and there is no reference to any of the matters now raised by the wife being raised by them. This includes there being no reference to any of the matters now raised by the wife being raised during the hearing under either under section 25(2)(e) or section 25(2)(g), namely "any physical or mental disability of either of the parties to the marriage" or "the conduct of each of the parties, if that conduct is such that it would in the opinion of the court be inequitable to disregard it". The only issue raised on behalf of the wife was as to the husband's disclosure. The judge's conclusion, as set out in paragraph 64, was plainly open to him.

The final order is as approved by the judge. The asserted procedural irregularities (including Grounds 12 and 14 and the addition of paragraph 34) do not undermine the terms of the order and there is nothing to support the contention that it contains "irregularities, false representations and acts of fraud". The judge was clearly satisfied that it reflected his judgments and that its provisions were appropriate.

As for Ground 13, the maintenance pending suit order was not "unlawfully revoked". The judge had to decide what should happen to that order and any arrears under it following the final hearing. As set out in the order, the judge considered whether the maintenance pending suit order should continue in effect. The judge decided that it should not and remitted any arrears. I would add that the judge's observation, relied on by the wife, in paragraph 69 of his judgment of 9 June 2023, namely that: "Pending the determination of proceedings, the husband must make reasonable provision for the wife's rent" would have meant, pending the final hearing, and in any event did not inhibit the manner in which the judge determined what order to make in respect of maintenance, including maintenance pending suit, as part of his final order. Accordingly, the judge had jurisdiction to make this order and there is no prospect of the Court of Appeal deciding that the judge's decision was not one reasonably open to him. There is, therefore, no merit in the wife's challenge to this decision and the order the judge made in paragraph 34.

In respect of the other Grounds, the wife challenges and disputes a number of the judge's findings. As referred to above, the Court of Appeal gives very substantial weight to a trial judge's findings and will not interfere with the trial judge's conclusions on primary facts unless it is satisfied that he was plainly wrong. The judge had extensive evidence including from an expert on cryptocurrency. The judgment is based on the judge's assessment of the evidence. The judge has clearly carefully considered *all* the evidence and, contrary to the wife's submissions, was not "focused on what I knew, how much I knew, and when I knew it". The judge has comprehensively explained and justified his factual conclusions which are clearly based on his assessment of the evidence. This included in respect of the wife's case that the husband had, as the judge described it, "failed to disclose vast hidden assets". The judge considered this case and rejected it as explained in the judgment.

The judge was entitled not to consider evidence sent to him after the hearing had concluded. A judge determines a case on the basis of the evidence at the date of the final hearing.

The wife's assertion that the real estate assets were "grossly undervalued" does not provide any justification for an appeal. The judge's determination was clearly based on the evidence available to him at the hearing.

Other matters relied on by the wife - including that the judge's reasoning is flawed; that the judge's findings were inconsistent with the evidence, that the judgment suppresses evidence, for example in respect of the husband's LLC fraud and IRS perjuries; that the husband lacked credibility and was dishonest; and the matters relied on in the transcripts - would not lead the Court of Appeal to decide that the judge's conclusions were not reasonably open to him. In addition, there is nothing to support the conclusion that the judge was biased. As I have said, he can be seen to have carefully and comprehensively considered all the evidence and his reasoning both explains and justifies his conclusions and decision.

The only other matter I consider separately is the wife's contention that the judge failed to take into account the US tax consequences of the division of the US real estate assets. I can, indeed, find no express reference to this tax in the judgment, although in paragraph 54 the judge refers to his approach to "to the tax consequences of the respective positions advanced by the wife and the husband" and in paragraph 89 he refers to the "tax liability assigned to" each of the properties. There are also references in paragraphs 109 and 110 to tax. Further, it does not appear to be an issue that the wife raised with the judge when asking him for permission to appeal. In addition, in his Response which I directed the husband to provide, it is contended that the judge's award did take into account the incidence of tax on the transfers of the various properties. The Court of Appeal is not the right forum in which to determine this factual dispute. If the wife is right that the judge, by mistake, omitted to take into account the incidence of tax on the property transfers effected by the order, as she asserts (and I make clear that I give *no* indication as to the merits of her contention), the remedy available to her is to apply to the judge (pursuant to section 31F(6) of the Matrimonial and Family Proceedings Act 1984 and r. 9.9A(2) of the Family Procedure Rules 2010). Accordingly, this issue is not one which justifies the grant of permission to appeal.

In conclusion, for the reasons set out above, the proposed appeal has no real prospect of success and there is no compelling reason to give permission to appeal.

Information for or directions to the parties

Court of Appeal Mediation Scheme (CAMS)

Where permission has been granted or the application adjourned:

a) Does the case fall within the Automatic Referral Scheme (see below)?

Automatic Referral Scheme categories:

- | | |
|--|--|
| <ul style="list-style-type: none">• All cases involving a litigant in person (other than immigration and family appeals)• Personal injury and clinical negligence cases;• All other professional negligence cases;• Small contract cases below £500,000 in judgment (or claim) value, but not where principal issue is non-contractual; | <ul style="list-style-type: none">• Boundary disputes;• Inheritance disputes.• EAT Appeals• Residential landlord and tenant appeals |
|--|--|

b) If yes, is there any reason not to refer to CAMS mediation under the Automatic Referral Scheme?

c) If yes, please give reason:

d) Cases outside the Automatic Referral Scheme: Do you wish to make a recommendation for mediation?

Where permission has been granted, or the application adjourned

a) time estimate (excluding judgment)

b) any expedition

Notes

- (1) Rule 52.6(1) provides that permission to appeal may be given only where –
 - a) the Court considers that the appeal would have a real prospect of success; or
 - b) there is some other compelling reason why the appeal should be heard.
- (2) Where permission to appeal has been refused on the papers, that decision is final and cannot be further reviewed or appealed. See rule 52.5 and section 54(4) of the Access to Justice Act 1999.
- (3) Where permission to appeal has been granted you must serve the proposed bundle index on every respondent within 14 days of the date of the Listing Window Notification letter and seek to agree the bundle within 49 days of the date of the Listing Window Notification letter (see paragraph 21 of CPR PD 52C).

Case Number: CA-2024-001342

Exhibit NZ-Q



IN THE COURT OF APPEAL, CIVIL DIVISION

REF: CA-2024-001342-A



Zahmoul –v– Zahmoul

CA-2024-001342-A

ORDER made by the Rt. Hon. Lady Justice King

UPON consideration of an application to reopen an application or appeal, previously refused or dismissed.

Decision:

The application for permission to re-open the order of Moylan LJ of 23 December 2024 is **refused**.

The application for a stay on the order of MacDonald J of 5 June 2025 is **dismissed**.

Reasons

This is an application for permission to re-open a final determination of an application for permission to appeal.

The applicant is Nadia Zahmoul, the applicant wife in the financial remedy proceedings below. The applicant applied for permission to appeal the final order of MacDonald J dated 24 May 2024 (amended 3 June 2024 under the slip rule). This application was refused by Moylan LJ on 23 December 2024.

The order of Moylan LJ refusing PTA noted that the proper forum for one aspect of the applicant's challenge to the final order was by way of a set aside application to MacDonald J. This application was made by the applicant and was dismissed as totally without merit by the order of MacDonald J of 5 June 2025. The applicant seeks a stay of this order, which directed for enforcement of the final order and refused a maintenance pending suit application as totally without merit.

The applicant has filed numerous documents in support of this application. I have considered the documents in support, including the N244, the grounds of appeal, and the applicant's witness statement dated 22 April 2025 and appended documents.

The applicant ranges a wide range of arguments in support of the application to re-open. In summary, it is said that Moylan LJ failed to address the fundamental contention of the applicant's case that the judge did not refer to the applicant's mental health issues and disability in the judgment and failed to ensure proper participation directions under Part 3A and PD 3AA of the Family Procedure Rules. It is said that Moylan LJ's decision was therefore flawed, irrational, and violates the applicant's rights under the ECHR.

Pursuant to CPR rule 52.30, the final determination of an appeal will not be reopened unless:

- (a) it is necessary to do so in order to avoid real injustice;
- (b) the circumstances are exceptional and make it appropriate to reopen the appeal; and
- (c) there is no alternative effective remedy.

The application of this provision has been considered in a number of decisions. A structured approach is for the court first to ask whether the judge who refused permission engaged with the issues raised by the application for permission. Secondly, if the judge did engage with the issues, the court should then ask whether there is a powerful probability that a significant injustice has occurred because the decision in question would have been different if the integrity of the earlier proceedings had not been critically undermined.

I will deal with each question in turn.

First, it is clear that Moylan LJ engaged with all of the extensive grounds advanced by the applicant in support of her application for permission to appeal. The central contention of the applicant's re-open application is that Moylan LJ did not engage with her argument that the trial was procedurally unfair because of a failure to accommodate her mental health issues and disability. There is no basis for this argument. The order of Moylan LJ observes that this was the applicant's "overriding Ground of Appeal" and deals with the issue at length in his reasons.

The applicant also states that Moylan LJ did not consider the “Oxus perjury”. The judge’s factual findings, including those regarding the Oxus shares, were considered by Moylan LJ who concluded that MacDonald J had “comprehensively explained and justified his factual conclusions” and the conclusions are clearly based on his assessment of the evidence”.

Second, I consider whether the integrity of the earlier proceedings have been critically undermined such that there is a powerful probability that a significant injustice has occurred.

The applicant’s central contention that she has been denied a fair hearing by a wholesale disregard for her mental health issues and disability was correctly dismissed by Moylan LJ. The applicant was represented by leading counsel and as Moylan LJ notes, she did not point to evidence that any of these issues were raised by them before the judge beyond the request for participation measures. MacDonald J was not required to identify these issues explicitly in his judgment. Moylan LJ considered the possibility that these issues were overlooked in the judge’s assessment of the substantive application as well as the procedure of the hearing and did not consider that this submission had any prospect of leading to a successful appeal. Further, there is no basis for the submission that the decision of Moylan LJ is “inconsistent” with the FPR or CPR. Moylan LJ considered the applicant’s reliance on each of FPR Parts 3A and 15, and Practice Direction 3A and 3AA, in turn.

Regarding participation measures, contrary to the applicant’s submissions in favour of her application for permission to appeal, MacDonald J did direct participation measures for the applicant’s engagement in the final hearing. The applicant repeatedly states that the participation measures were “unlawfully” revoked after 28 February 2024. This was the last day of the final hearing. It is not open to the applicant to challenge the decision arising from the final hearing on this basis given that participation measures were in place for the duration of that final hearing. The fact that the reasons for making participation directions were not recorded in an order pursuant to FPR Part 3A.9 does not justify a grant of permission to appeal.

As regards the complaint that Moylan LJ “failed to consider the materiality of the Oxus perjury”, this has no basis. Moylan LJ considered the judge’s assessment of the facts and concluded that the judge’s findings were open to him on the evidence before him.

Similarly, the applicant’s complaint that the judge had no jurisdiction to revoke maintenance pending suit has no basis. MacDonald J was required to consider the continuation of maintenance pending suit on making the final order and having considered the position terminated the payments and remitted the missed payments. There is no basis for arguing that this conclusion was not reasonably open to the judge.

None of the matters raised by the applicant establish that the decision of Moylan LJ to refuse permission to appeal was “critically undermined”. There is nothing to support the suggestion that the decision was marred by bias or a lack of impartiality. There is no basis for the contention that the decision contains “inaccuracies, deficiencies, errors of law, omissions, and procedural irregularities”, allegations which are wholly unparticularised beyond the matters dealt with above.

In summary, therefore, there is no basis for re-opening the refusal for permission to appeal. The decision of Moylan LJ is not undermined and the application for permission to re-open the order is therefore refused.

The applicant also seeks a Stay on the order of MacDonald J of 5 June 2025 referred to above “pending final decision by the Court of Appeal”. There is no appeal before the Court of Appeal in respect of the proceedings with this application having been dismissed and as such the application for a stay is refused.

Note: Where the application is refused the decision of the judge is final and the application cannot be renewed to an oral hearing - see rule 52.30(7) and *Taylor v Lawrence [2002] EWCA Civ 90*

Signed: BY THE COURT
Date: 4 August 2025

Exhibit NZ-R

These notes were taken contemporaneously. They are relied upon **pending** production of the official transcript (EX107 requested). The Applicant seeks permission to rely on these notes now, and to substitute/augment with the approved transcript when available.

Attendance Note – Zahmoul Final Hearing

Client: Zahmoul

Matter: ZAH01.1

Date: 20.02.2024

Time: 09:30

Initials:

J - MacDonald J

ACKC -Alexis Campbell KC – Counsel for Respondent

Sassa-Ann Amaouche – Counsel for Respondent

BMKC - Brent Molyneux KC – Counsel for Applicant

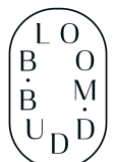
ZB – Zoe Bloom

MP - Marlon Pinto

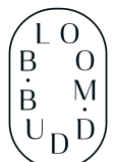
	10:34
BMKC	Introducing everyone. Can I apologise for the gross lateness of my position statement, Ms Zahmoul tried to confirm it. Difficulties of IT in her approving it. No real excuse but explanation of the lateness in the day yesterday. Whilst you have seen Mr Zahmoul's statement, you won't have seen my clients, they haven't had an opportunity to read it. My client's s25 has fundamentally been prepared by my client herself. Going to ask for an hour, to have the opportunity to skim it, so counsel can determine whether to tell you not to read it because it is inadmissible
J	I haven't read it – given its lateness you will need permission, I will not read it until I've given permission.
ACKC	I anticipate in the next 15 minutes I will have reviewed it and be in a position to say whether you will be able to review it.
J	There is an updated SJE report. I will take a hard copy.
	Hearing paused at 10:38
	11:38 back in court
BM	Thank you for the time you have given us, I know I will require to take instructions and reflect more broadly on where this will go.
AC	Didn't want to keep you waiting, having read the [s25] statement quickly, I don't think it will prejudice our examination of the statement. I object to the statement being admitted in its current form, want all conduct redacted. Paragraphs 9-26 are all under the heading conduct, you made directions on conduct pleadings, W has had opportunity to plead conduct, it is not permitted to use a s25 to further expand on something dealt with elsewhere. My client has difficult reading long documents, and reading English, he hasn't yet had an opportunity to read this. He is content for the statement to be brought in with the redactions. Those paragraphs are very easily under conduct. The second part is behind the statement there is 110 pages of exhibits, some of these are tables which we have seen before but look slightly different, need to review this. and there is effectively another statement. 35-40 are repeats of what is in the bundle they should come out. Statement in exhibits should come out. Reserve the rights to



	consider 41-53, 54-56 is a statement from a US lawyer, it presents a legal document from a lawyer, it's an attempt to adduce expert evidence, there is a risk that this is waiving privilege. 60 onwards is a statement from an accountant, Jeff Wilkinson, one 13 th February and one 16 th February. You gave clear directions about expert evidence. None of this evidence was served near the time limits. They should come out. Then there are more tables, I reserve my position on them, at 83 there is another affidavit from the wife. It needs to come out. There are a number of detailed tables and evidence which needs to come out. Either whole document is not admitted or the body of the statement except conduct can go in. I can understand the need for the parts about income needs. Exhibits, Ms Amaouche and I will consider the more detailed documents overnight and discuss with Mr Molyneux.
J	Yes
BM	I didn't get a complete note of what needed to be redacted, so will need to speak about that. My client feels passionately about this, the nexus between feeling her voice has been heard and her capacity to take part. She was extremely distressed at finding out the 11 th hour that her s25 would be redacted. I understand everything Ms Campbell says about repetition. Can't apply to one and not the other. It would be wrong to redact her statement and to leave the husband's statement untouched. If you look at Mr Zahmoul's statement, already in the court documents, on page 3 at paragraph 16, background, initiated relations with professor Stebbins..despite my awareness of her indefinitely' [BM reading statement paragraph 16]. Paragraph 67, conduct, [BM reading statement] page 71, he attempts to attach a transcript of a conversation with his daughters, he has done what he is accusing Ms Zahmoul of.
J	On time – timing brings wife's statement well outside the rules,
BM	Principle objection is not the lateness, it is what is permissible. What is good for Mr Zahmoul is good for Ms Zahmoul. They should feel their voices have been heard. She would have to take notice of the court, but it would feel her with unhappiness and regret if she were not able to set out the background. She says this is much a part
J	I have heard evidence regarding conduct, it is set out in documents which were filed in sufficient time to other side
BM	She focused on financial conduct in her conduct statement, my client wants to set the record straight in terms of marital conduct. The advantages to the parties and the court being able to get on with things, you attached whatever weight you want to or disregard what you want to may outweigh the technicality of sticking to the rules
AC	There may be some substance in what BM says, there comes a point where there is a direction, if this had proceeded as ordered, we could have met and agreed as to what should have come out. It is not fair for BM to say you should deal equally for these statements, you made directions as far ago as November. Wife didn't file conduct statement until 16 Jan. Then today, I have sight of another 4 or 5 pages, it is not appropriate for BM to stretch out what should be permitted.
J	Do you invite me to read the statement or make pronouncement, I have not read it.
AC	You don't need to read it, I say conduct should be ignored, BM says allow it because the husband has breached a little bit too.
J	As a preliminary matter I am required to determine whether the wife's s25 statement, which was filed late this morning, should be admitted in part or in full. Basis of decision in part 22 of FPR 2010, allows to produce a document when



	they have failed to comply. Here it's a failure to comply with the courts directions and to the contents of that statement. AC on behalf of the husband says there are a number of features which should not be permitted. [x] has been dealt with elsewhere. AC informs the court that the exhibits to that statement also deal with a number of matters which seek to bring in matters by the back door, in particular AC says there are two statements within the statements, which are in the exhibits but are not an exhibits. AC says the statement from the lawyer and the accountant constitute expert evidence and circumvent the need for a part 25. Though she doesn't go against the statement...Paragraph 21 dealing with conduct, exhibit statement of wife and affidavit, statement of accountant and lawyer should be removed. AC reserved her permission of the tables. Mr Molyneux in response points out the importance to the wife given the case and the history for this coming to a proper outcome utilise the time. BM says the conduct in those statement are not dissimilar in terms to conduct allegations made by H in her statement. I am satisfied that the exhibits to the statements should not be permitted at the final hearing, those exhibits would have had to be disclosed to H in a timely fashion, not appropriate to circumvent part 25. You cannot exert documents which are in the form of a report. Likewise a party cannot file additional statements to a statement as an exhibit. Those matters must be removed. In respect of the tables, allow further time for counsel discussions. Matters concerning conduct, they can remain in the statement, I am not convinced, the matters set out therein if they match the husbands statement, are going to particularly assist the court with the determination of the case. Having regard to not disrupting the timetable. I admit paragraphs 9-26 in the statement.
AC	Paragraph 21 effectively lifts one of the affidavits, that can be redacted
J	Yes thank you
BM	We can start
J	Had an opportunity to read those parts, latest report in full.
	12:03 Mr Pinto joins
MP	Taking the oath
BM	Tell the judge full name and address
MP	Confirms name and address
BM	Latest iteration of 16 February we will focus on. You will understand that maybe the others don't have familiarity. Distinction between account and wallet?
MP	Wallet is like a digital wallet, like a leather wallet in the real world. Account is like a bank account. Leather wallet would be a custodial wallet, account would be a bank account. Wallet address is different from wallet. A wallet could have 100s of addresses.
BM	Explain to his lordship, if he was opening an account wanted to buy a bitcoin and transfer it how would he?
MP	Use a service provider like Coinbase, similar to a bank account, they are like e.g. NatWest,, they would set up a wallet for you, you would put in address and execute that to sent the amount to someone. They create an account for you.
BM	Then you purchase your bitcoin.
MP	Yes. Self-storage wallet, where you have a custodial wallets, you could have a USB stick, you could create a seed to generate a wallet. One in one thousand years to come up with the C phrase to break it.
J	Seed phrase will lead to creation of the wallet?
MP	Once you have access to the wallet, you can keep regenerating it

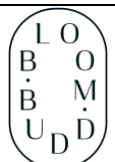


B	What does that mean?
MP	If you had the wallet and no longer had access you could use the seed phrase to generate access to the wallet
J	You then have two wallets which have been generated by the same seed phrase, both go towards the bitcoin
MP	To bring it further, I have dealt with certain fraud and the fraudster would use the seed phrase to generate the wallet.
BM	Coinbase and self-storage are entirely different, Coinbase they keep the wallet for you, self-storage you take more risk
MP	Correct. If you own Coinbase, you can be hacked you don't have ultimate control. You can take self-storage offline and you have control, offline, hot and cold
BM	You forget your cold storage log in, you're in trouble, you have crypto that no one can access
MP	Yes. Multibit is self storage wallet
BM	Is there any way when you look at a wallet address, if you can tell it is cold wallet, coinbase?
MP	Though analytics you can, you can look at perhaps the change address for every transaction and if its to a known address. You can't always look at cold and hot storage
BM	Crypto is totally separate to government, offers complete secrecy if you want it to
MP	If you want it to yes
BM	If you saw a wallet address in isolation, would you be able to tell who it belongs to?
MP	Ultimate answer no. If you just had wallet address abc123, you would not tell, someone may be a victim of fraud from a wallet address and post it online and then we would do the research and try and find out who it belongs to
Bm	Old fashioned detective work. If J wanted to provide bitcoin, you wouldn't know who sent it but you could go to the service provider and try to find out the owner of the account
MP	Yes
BM	You also have KYC info
MP	Some service providers take KYC some don't, some offshore are not as stringent as the likes of Coinbase.
BM	Page 9 of most recent report. You say in relation to all of these transaction in coinbase, there are lots of smallish transactions, they reveal the same amount of assets..except T6..remain unspent in the wallet..trying to educate how crypto works to individuals. You show the little wallet on page 10 'no onwards transactions of these addresses.. no other wallets that have not been disclosed' would be like paying £50 into multiple bank accounts and being able to evidence that there were no withdrawals from the account where they were deposited to. Page 11 '..that Mr zahmoul had been sent assets to'. I think explanation, Mr zahmoul was educating third parties?
MP	Yes
BM	You say at page 5, fifth bullet point from the bottom 'no reason to contest these', that is your opinion, not your expert opinion, its just you saying seems plausible to me, not expert, is that fair?
MP	That's fair
BM	He has transferred 60000 dollars into wallets and they remain there, but what you can't do is tell the judge who they belong to because you just don't know
MP	Yes

BM	There would be no way to know the recipients of these bitcoins
MP	Only other way if every person was spoken to and they showed them accessing the wallets to show they were in control.
Bm	If we look at page 12, one transaction was queried, transaction 6 – all balances par transaction 6...sent to BC1QG..unless it was to amalgamate' what does it mean?
MP	If you look at all the addresses, Mr zahmoul said for educational purposes, wallet transaction 6 if that was for educational purposes the person owning that wallet would leave it there or extract onto a platform. To leave it there would not make any sense
J	What's the forensic basis of that decision/conclusion
MP	I don't think there is a forensic opinion that sits behind that, its just my experience of crypto, they would not want to move them on unless to cash out of amalgamate
BM	Its lay opinion rather than expert. Initially Mr Zahmouls explanation was that it went to his daughter, but it wasn't true as he told you. His explanation has changed. You through instruct wanted to press him on this – on 8 February, he says there was an error ' I initially mistook this transaction due to closeness to the birthday, it was to Olivia' you say ' based on the above, he did not make a transaction to his own account, and they are not associated to his own account. We know they have not been to his account. We don't know who they have gone to, the only way to know would be that if the wallet it was received to was a coinbase account and we did a subpoena to get the KYC.
MP	It is not a service provider – I can use [x] platform
BM	Bottom of page 14 'beneficial to... pre-2019' I want to understand the limits of what you have done – nothing you have seen could answer the question, does Mr Zahmoul have crypto assets pre dating 2019 which he has either transferred to other parties or kept himself?
MP	Can you repeat the questions
BM	The nature of crypto, if he had transferred pre 2019 which touches on that wallet, it could still be there from 2019. If he had crypto in 2016 or 2015 or 2017 and he hadn't transacted with it, then it could still be there on that scenario
MP	Possibly, on that scenario yes
J	The impression I get from the evidence so far is that the surrounding info is important as there is so little you can tell from the blockchain information
MP	Yes, when we talk about the limitations on the blockchain, with the anonymity it provides the limitation, a lot of it is geared against self-disclosure.
BM	If you had gone back to 2015, you would have a clearer idea of transaction then
MP	Yes
BM	Page 15, transactions into Mr Zahmouls 'ascending wallet could be controlled by someone else other than Olivia' 1AWKG, Ms Molina has said is attributed to her. Attributing that to her comes from her saying yes it's my wallet, that's how you know - is that fair?
MP	That's fair
Bm	Page 16,...0.08 bitcoin on July 2018, it has now been provided to another day. 1GQYK..768000' could recognise your analysis of 1GQ..whats link between that and 1AWKG?
MP	1GQY is the sending transaction for 8, that forms part of same cluster for 1AWKG
Bm	1AW is the one Olivia says is hers
M	Yes

BM	Whoever controls 1AW has made 57 transactions, 768000 dollars of bitcoin transactions during the period that you have analysed. Ms Molina has transacted 768,000 yes?
MP	Yes
J	Would the reading of the bitcoin wallets be used nefariously if this is published?
MP	Generally use the first 5 letters
BM	Next few pages, you look more closely at Olivia's account, at page 21 you conduct some similar analysis. 'total of 142 bitcoin have been traced through this cluster'. The nexus between these clusters and Olivia's wallet? As I read this 1072 bitcoin going through that cluster of addresses
MP	Cluster addresses we look at the green circle of the cluster. When we look at the green circled address, we can see that that address is only 1 step away from the cluster controlled by Olivia. There are transactions from the green address to Olivia's address. When we look at the address which appears as the white dot, that also has a direct link to that address. Could give the reason why there are a large sum of bitcoin being transferred.
BM	Ms Zahmoul does not think Ms Molina owns this wallet, in today's money it is a lot. What evidential value does this have to linking Olivia's wallet to this volume of transactions.
MP	I would say there is a direct link which we can see from the green circled link to Olivia's, but I can't give the reasons for these transaction. I can't give the reason as to why the large sums went through the cluster. There is a link somewhat between the two.
BM	Is it possible to link it to a banking analogy?
MP	Would be if judge has 2 million GBP going through your account, you have a link to me, you sent me 2000, shows you have a link to my account.
BM	Transaction 8 at page 22. Within 1AWKG cluster. 'This wallet also has a value of zero...two addresses have sent money...it is possible they are controlled by him or another entity...specific transaction' only way to be sure would be to go back to coinbase and get the KYC, they would tell you who is the account holder? Only way to know?
MP	Yes
J	The question of the exchange, the white dot, in terms of assuming the exchange may have a large volume of movement, can those movements follow any route on the spiderweb or does there have to be intention?
MP	Exactly that yes. We can't see with an exchange any internal ledgers and any transactions internally. It would have to be executed by someone with a coinbase account who says I want to send x bitcoin to an account
BM	At page 23, this 15k cluster, 148 bitcoins traced through it. The letter on 14 February, 15h5k not associated with Mr Zahmoul, 'it is suggested it may assist in showing who is in control of 15h5k' you were suggesting coinbase might be able to say who it did belong to?
MP	Almost reverse of earlier, asking who did make the transaction and getting the KYC
Bm	Possible it is Mr Zahmoul custodial wallet
MP	Yes, we don't know
Bm	Although 'an application should be made should this be required' what can we deduce from that?
MP	With those transactions going to the yellow dots, if Olivia is the controller, each of those transactions if they have KYC information will show who were the recipients.

BM	Page 25, transaction of 90 euros. 'The above transactions shows that the wallet address was spent' transaction out of Mr Zahmoul's wallet to ...Ms Molina confirms this is her address. Olivia is saying this wallet is my wallet. She seems to have a number of different wallets. You say 'cluster of route addresses 3n69e' What does this mean, was it a typo?
MP	I believe it is a typo.
BM	So we are looking for a further reference to 13gat somewhere else because I can't find that. It would be helpful for judge to understand if this other account has been the recipient 786,000 US dollars. We see in the first paragraph that that wallet address appears to be her wallet address. I need to understand whether you meant to say it went though D...
MP	That would be something I would have to check
BM	Leads onto another question – can we adjourn now
J	How long do you have left?
BM	30 minutes left
AC	I have atleast an hour possibly an hour and a half
J	Back at 2pm
	12:51
	Hearing resumed 14:01
BM	You were kindly going to look at 25, to see what it should have said
MP	Second para 1GQYJ should be 3DAGT
BM	Shows that 3DAGT dated 20 October, Ms Molina confirms this is her address
MP	I can't recollect
BM	Was the answer to one of your additional report October 2022. This address seems to have made 20 transferred, we saw the previous account which was apparently Ms Molinas account, we now see this wallet with 36901 passing through it
MP	That's correct
AC	Passing through?
BM	Transferred received, sent 703901. I am going to stick with my calculation and your agreeing with me
MO	Yes
BM	This transactional bitcoin, Ms Molinas email at 28 of your report, at the bottom of the page, I want to confirm the following wallets. 189UKP..october 20 th 2022. This is where is gets confusing, in the letter page 28, the payment made to Miss Molina, 13 th February, absence of any formal record, they spend time in new York day prior to her sending 10 bitcoin to him. Actually it was directed to Forte securities. 25 th October 2019 Mr Zahmoul transferred a further.. including a letter from forte securities showing the ownership of the wallet, they claim the wallet WDGAT is theirs. Page 29 you see the letter from Forte securities, 3DGAT. We then see some emails from 2019..' The emails 'once you want to sell let me know' [BM reading email chain on page 29]. We've got 2 people claiming that is their wallet, Mr [Kassis] at 29 and at 28 we have something from Molina saying the wallets are mine and mine alone. Are you able to tell the judge who's wallet it is?
MP	No
J	The two communications are 3 years apart, is there any way the wallet can move from one person to another in that time?
MP	Can they transfer the seeds and giving them access, it would be a question of who owns the wallet
BM	Any pointers that you can tell us who owns it?



MP	From looking at the blockchain no, only way I can do is see if there is any direct links through exchange either inbound or outbound to that wallet.
BM	A lot of self certification of the assets, you only know if someone says yes its mine.
MP	From an investigative point, yes.
BM	Is there any independent source info that could cast some light
MP	Other way would be to have Miss Molina in the court room or Mr Casis and ask them to access the wallet
BM	Only one have the key
MP	Well they could technically both have the key
BM	As a matter of theoretics but not reality
MP	Yes
BM	Focus of this has been Mr Zahmouls coinbase transactions
MP	Exactly
BM	Did it include coinbase pro
MP	Yes coinbase and pro
BM	Difference?
MP	Coinbase pro is more of a trading platform, ultimately you shouldn't be able to see transactions on coinbase pro without it being a coinbase account
BM	In your experience do financial institutions have these crypto wallets themselves, how would they hold their assets – the email from Mr Kassis. I want to understand whether it is normal or abnormal
MP	Cant comment on that
BM	Point 30 'olivia bpt exchange, letter from Ms Molina on 20 th October she confirms this is her address..she confirms this is her address' in my opinion this is likely to be correct..1AWK traditionally wouldn't seem reasonable he would send himself things..is this a matter of expertise? Why not reasonable from a crypto expert that he would send himself crypto from his own account
Mp	From a personal opinion I would not have sent it, from a professional opinion he could or could not send them to himself.
BM	So he could do it, at the moment all you can say is this is the evidence
MP	Exactly
BM	Page 32, more transactions to Olivia Molina, three lines down. 'Transactions 14 and 15 can be justified as from Olivia, 15 has been provided for as from Mr Zahmoul as Olivia..' same point, all self-certification, no empirical said way of establishing who has sent these
MP	I agree
BM	Page 71. In the interests of time, only going through a few transactions. We have your observations in relation to the multibit address, analysis of this address, 24 bitcoins have been sent to this address..when it was first active was May 2015. In your November 2022 report..was there an explanation of who's bitcoin they were or where they were going?
MP	Not that I can recall
BM	We then see what the transactions were in relation to this address, the counter parties this has interacted with. Zappo.com 'it is possible Mr zahmoul has an address at a mining company' he may have an account at Zappo, court order may reveal the owner of this assets...Gemini exchange address' I want to be clear about the numbers, it is actually 10.964, page 71, sent figure the first one, and then at the bottom the transaction take it to 10.9 sent to Zappo.
MO	Yes

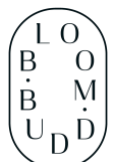
BM	As far as you were concerned these were bitcoins leaving Mr Zahmouls account but he wasn't able to identify save that it was a zappo account
MP	Correct
BM	Now transpires that this was his account they were being sent to
MP	Without reviewing the disclosures I can't definitely say
B,	So much of identifying the recipient is about the honesty or the recollection of the recipient.
MP	Correct
BM	You are not able to say who is the probably recipient of the Gemini
MP	Yes
BM	If we now know this went to Mr Zahmoul, you wouldn't have known. The thing about the crypto world, its so invisible as to who owns what, you are dependant on the honesty and integrity of who owns it
M	Partially correct, what you have said is factually correct, but when we are looking for the off ramp transaction
Bm	The linked transactions that give you a clue of the scale of someone's usage
M	No where the bitcoin is sent to an exchange, where they want to transfer it to currency
BM	So its only the end game, where you want to get the cash that gives you the info
MP	Yes
BM	If you want to sit tight, its hard to tell how much you have
MP	Yes I agree
BM	If you are an early adopter, then its even more difficult to tell what crypto assets you have
MP	I cant answer that, it is down to the individual
BM	That might be all I have to ask, [checks with NZ] all questions asked, thank you
AC	Couple of preliminary things if I may, you met with Mr Zahmoul this year, last meeting previous was June 2022
MP	Yes
AC	During your interactions with Mr Zahmoul, how would you say you have found him?
MP	Helpful, timely
AC	Do you fell he is trying to hide something from you?
MP	No
AC	Have you felt that Mrs zahmoul has been helpful in the same way?
MP	Not had direct contact but yes
AC	How often has she tried to contact you since the instruction?
MO	I would say 10-15 times
AC	This year how often has she been in touch with you?
MP	There have been influxes of emails on 3 different occasions
AC	Have you had to contact her instructing solicitors and ask her to desist
M	Yes
AC	Did she listen?
MP	No, contacted me in the last 2 weeks
AC	You are here based on experience, how long in crypto?
MP	4 years
AC	Experience of looking at personal accounts?
MP	I have assisted in civil and criminal courts, both individual and companies looked at

AC	The wallet is a bit like a physical wallet. Is it fair to say if we were looking at bank accounts, you can say I have seen your NatWest account but it doesn't show you don't have any other accounts
M	Yes
AC	It is hard to prove a negative isn't it
MP	Yes
AC	The only way to know would be to write to every single exchange
MP	It would take a lot of effort to do that
AC	We have 5 years' worth of data, if I was looking at bank accounts I would be looking for a link to an account that hasn't been disclosed, that's what you have been doing
MP	Exactly
AC	Looking at 5 years of Mr zahmoul's data, anything to suggest he had another account?
MO	Initially there were questions, but now Mr Zahmoul has come back to me
AC	He has given you all of the data, a complete account of all of the accounts he admits to?
MP	Yes
AC	So if he did have hidden accounts they would have to be kept completely separate from all the other accounts he had given you?
MP	That would be the assumption yes
AC	After your meeting last June he gave you a comprehensive account of every account he has
MO	Everything I have asked for he provided, from June 2022 to Jan 2024 there is additional data which shows additional account
AC	The additional zappo and gemini, you have now had the complete data for these?
MP	Yes
AC	BM has said that bitcoin tis for someone who acts undercover, but the blockchain is publicly available showing every single transaction
MP	Yes
AC	So you can see the transaction timing and leaving and arriving, you can see it going to an account, check incoming and outgoing on the blockchain
MP	There are sometimes where there is a slight discrepancy with timing, but you would normally be able to see it going across
AC	The fees charged by the platforms and the exchange of bitcoins
MP	You would also see the change address, it has assisted me with the investigation. If I had a wallet and wanted to send you 5 bitcoin I would send 10 and then 5 would come back to me. When we look at the multibit wallet [x] UTXO is an unspent amount
AC	Page 20 of your report, this is an example of wallet addresses receiving payments, the address on the left and payments on the right. One of the questions but to you is that you don't know who the wallet address belongs to. You could enter the link and go on the public blockchain to find the connection, here Mr zahmoul went and provided that information. I will find the page reference for your lordship. 3942 in our bundle. Mr Zahmoul was able to give you the direct links – 8 transactions on page 20, he says he can identify 5, he has given the specific links. In the bundle, it takes you to the blockchain and it. I know they are correct, apart from 1 there is an extra dot. He was able to check and was able to identify who were in those transactions. Is it also right to say these days the crypto market is more carefully regulated than it used to be?
MP	The last 2 years yes

AC	Coinbase and Binance have quite formal regulations, standard things from a bank such as KYC, they are quite careful to make sure if you have an account it belongs to you
MP	Yes
AC	Coinbase and binance only allow you to have one account per person
MO	Yes
AC	You used to be able to have two accounts, one in UK and one in US but not anymore
MP	I can't say
AC	The best Mr zahmoul can do is show you a comprehensive picture of all his trades and movements, that's best he can do in proving his movements.
MP	Yes
AC	Bundle at 3969, you can see date January 15 2024, Mr zahoul writing to binance and giving his details, he is asking for an email clarifying the accounts he has, he acts for details of the accounts, jurisdictions and to see whether he has any accounts, any jurisdiction. 17 January, Mr Zahmoul, 'I would appreciate you confirm all the accounts', he chases it, if you can scroll through that, on page 3965, 'please find enclosed a copy of your personal data' Binance have given a complete view of all the accounts he has ever had. 3948, should find an email there in green, 11 January 2024 Mr zahmoul to Miss Marsh, general counsel at coinbase third paragraph 'documentary proof, please can you reiterate the details of any and all accounts' 'that account has since been closed, transferred to karim@.net' at 3647 you can see repeat of this requests, further requests at 3646 and we have the coinbase team saying showing the wallet address. They have responded and as I understand they have given a complete run of all the addresses Mr zahmoul has had. Same can be said of Gemini, you have seen 100% of the transaction of that account
MP	Yes
AC	Seen everything on the zappo account from the date of inception to now?
MP	Yes
AC	Mrs Zahmoul was able to find an expert who gave a list of accounts that Mr Zahmoul might be connected to, we can see it at page 2135..this is a detailed account that Mr Zahmoul gave to Cipherblade. Cipherblade put to Mr Zahmoul a list of accounts that had somehow touched his account.
Mp	Partially recollect, I do recall seeing this.
AC	They reported some possibly connected accounts, binance, gateIO, OKX, bitfinex and 33 bitwire, blockwire..uphold and zappo. These were the accounts that had been thrown up as connected. Mr Zahmoul was able to check and give a conclusive report of every one of these accounts made. With binance, he used to have accounts and provided statements for them were you aware of that
MO	Yes
AC	Nothing from the statements that he was hiding any accounts?
MP	That is correct
AC	The bitfinex, you could see that account had never been used. He was able to use Bittrex accounts, and was able to show it hadn't been used since 2015, do you recall that?
MP	Yes
AC	650 paycoins there worth about \$2 because of fraud [of the ceo of Bittrex]
M	Correct
AC	He was able to show he never had an account with X
M	Correct
AC	Cumberland is for corporate institutional platform



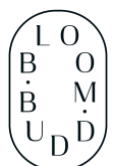
MP	Correct
AC	They didn't reply, not surprising.
BM	Are these questions for the expert, we can all read his statement but are these questions for the expert?
AC	It is difficult to prove a negative, you have been drawn by BM to certain transactions, you must also be shown transactions that throw nothing up. He answered everything, left just zappo and Gemini. With Zappo, Mr zahmoul was unaware, can we look at 2280 please. You can see at 2283, letter to the corporation.2281 you can see the Gmail address, 'sorry our services no longer available, we would love you to reactivate your account.' We can see at 2284, 'I did not know I had balances..please can you explain the entries' 2285, 'balances were internal when business migration occurred'. Can we look at the comprehensive zappo account at 2287, we can see the whole transaction history, the third column first two entries are the migration and then BO, look to the far right there is a tiny transaction I am told its likely to be a fee. Activity starts on the third line up, starts on 26 th October, we can see if we follow up the trading there. It ends 4 lines from the top, 7 th November 2017. Mr zahmoul didn't have any activity on this account from 2017
MP	Correct
AC	BM asked you about the multibit wallet, brought to your attention by cipherblade. Mr Zahmoul was able to give you a comprehensive account of everything that went through that account. I have made reasonable efforts 'my friend mike D..is Washington state in a mining farm' He gives evidence of 1GEQT at 2290. Full account from 3 rd January 2015 through to March...we can see every single transaction carried out'. 2297 we can see some money being sent out, that wallet was never used again, he has revealed that wallet, shown every transaction. 2299, this is the second wallet, this is called 1LVSG, we can see the period of time, we can see a 1.42 dollar balance, the money from the old wallet has gone to the new wallet
MP	Yes
AC	Then some payments in, fast forward to 2311, these are then actions, these are 17 transactions that we can see. Mr Zahmoul was able to explain every single transaction. He is able to identify every single transaction and where they go. It shows some went to his coinbase account
MP	Yes
AC	Some went to the Gemini
MP	Yes
AC	And some went to an orphan wallet, see at 2316. We then have coinbase receipts at 2314. The orphan wallet has been lost and he cant access that.How often does that happen?
MP	I can't give a definitive. It can happen to individuals who have numerous wallets
J	Is there a way of keeping a central register of what you have?
MP	You buy devices to manage all of it into essentially one wallet, but security issue is if you lose the key or the security breach you have lost all your assets. Large investors separate their assets for security reasons
AC	Quick google says 30% of bitcoins are lost
J	Can't trust google
AC	We can trace money going into the orphan wallet, and apart from that everything else was traced
MP	Yes
AC	I want to look at specific transactions we have been taken to, page 12 of your report. Looking at the report, Mr zahmoul thought it was a transaction to his



	daughter for her birthday due to the date but later, page 14 he was able to confirm this was payment out to Olivia Molina his former girlfriend, it was a payment to her to repay her for expenses in Dubai of \$2500. You are aware?
MP	Yes
AC	If its not able to prove the recipients' details, it will help to have contemporaneous details?
MP	Yes,
AC	So if I say at the time here is a WhatsApp from my girlfriend saying that you for the payment at the time, that suggests the recipient?
MP	Yes circumstantial evidence adds up
AC	Page 16 of the report, you refer to the wallet the 1AWK we are referring to this as Miss Molinas account. 39 bitcoins have been traced through the account, The exchange rate of bitcoins to dollars, is that the value at the time or the value from today
MP	Value at the time
AC	What period?
MP	During the life period of the route address
AC	Could be anything from 2008 to now, hard to tell if it's a lot of money
J	Contemporaneous evidence – is there a central thing used in terms of time zones. The WhatsApp is fairly contemporaneous in terms of time
MP	Eastern standard time
AC	We can see the WhatsApp 31 st July 2019. I am told the time zone is ZMT. If we have a look at page 23, this confirms the money transferring through this account is not a coinbase account, the query BM is raising is these nexus points of interest, these are somehow associated, they could be Mr zahmouls, but they could be anyone's couldn't they
MP	Yes
AC	The fact that an associated address has 40 million worth of a trade, it just has an associated with a wallet with lots of transactions going through it. If I sold a handbag for 1 bitcoin to a Saudi princess I would be associated with her account of lots of movement doesn't mean I have a penny of it
MP	Correct
Ac	We know from page 29, Mr Casis at Forte, although it is not definitive, the email on the left, the 3DAJ address, the consistent transfers, it is almost certain that that transaction was going to Mr Forte
MP	Yes
AC	Unless there was very careful fraud afoot to assist Mr zahmoul in lying, the address shown here and on the transaction are definitive
MP	I would agree
AC	Page 30, transaction 11 and 12, Mr zahmoul confirmed these were effectively payments in from Ms Molina in repayment of a debt. He made a payment of 85000 euros, and she paid him back in bitcoin. Assuming there is a payment from my client of 85000, he says this is her repaying him in bitcoin, we can see in the detail in red, we assume this is coming from the account we associate with her. You say it wouldn't seem reasonable that Mr zahmoul would send himself bitcoin. But from your experience, it is not likely that a user would send themselves from another wallet
MO	Yes unless you are amalgamating it
AC	First screenshot is 28 th October, she then gives the details, then on 31 st October Mr Zahmoul says 'I took the conversions you set' received 5 bitcoins, 31 st October 2019. Over the page we can see her sending in the small windows on

	the right, the payments second on 27 th October on page 30. In fact one is 26 th rather than 27 th – can you account for that?
MP	May have been a delay on the blockchain
AC	They look to be consistent, in relation to those we know on page 32 you were able to verify the cluster as 1AW.
MP	Yes
AC	On page 32 we have the transactions 14 and 15, 5.01 bitcoins being paid in, we know there was an argument between Mr Zahmoul, Mrs Zahmoul and Ms Molina at 3981 of the bundle. So you understand where this comes from, Mrs Zahmoul and Ms Molina got into a conversation and understood that Mr Zahmoul owed Ms Molina bitcoin and she encouraged Ms Molina to chase them. It looks as if Ms Zahmoul recognises that those bitcoin belong to Ms Molina. Scroll down, Ms Molina says bitcoin...price is reference and the date, 3983 you see 30 th January 60 euros. Mr zahmoul will say this is contemporaneous evidence of these transfers. From your position Mr pinto, that looks consistent, but you need something to tie it to miss Molina, we do have evidence of that?
J	There is no way of saying without the surrounding evidence of saying who owns them
MP	That is correct, yes
AC	3960 please. Evidence Mr zahmoul provided to verify the transactions he made to Ms Molina, February 2023, if we follow down we can see their conversations, he is referring to bitcoins he is about to send, bread wallet. 12 th July 2018, we see Ms Molina giving her address to receive the Valentine's bitcoin. Her contemporaneous letter, these WhatsApps show that they are contemporaneously that these are bitcoins being sent to Ms Molina
MP	That is correct yet.
AC	Page 34 you refer to the helium hotspots, he used bitcoin to purchase helium hotspots. Mr Zahmoul has explained that he and two friends were mining helium, you haven't had any investigation into that. That and chia are a bit more off piste
MP	Yes
AC	They are not recognised by coinbase?
MP	I'm not sure I can't answer that
AC	To summarise, all the documents you have seen from 2015 to date, all are comprehensive correct
MP	Yes
AC	You were not able to identify any missing assets
MP	Clarify, there were things that cropped up and then information was provided
AC	Are you content that looking at the information and the comprehensive statement there are no undisclosed assets?
MP	Correct
J	Thank you Mr pinto, that has been useful in what is a complex and new area.
	15:36 Mr Pinto left
J	I don't think it would be appropriate, move to the next stage tomorrow at 10:30
	Hearing ended 15:37pm





Attendance Note – Zahmoul Final Hearing

Client: Zahmoul

Matter: ZAH01.1

Date: 21.02.2024

Time: Hearing started at 11:00

Initials:

J - MacDonald J

ACKC -Alexis Campbell KC – Counsel for Respondent

Sassa-Ann Amaouche – Counsel for Respondent

BMKC - Brent Molyneux KC – Counsel for Applicant

ZB – Zoe Bloom

FS – Faye Simpson

	Hearing started at 11:00am
BM	We're back again, one or two housekeeping matters then NZ's evidence. Yesterday, you grappled with Miss Campbell's redaction of the witness statement, page 7 paragraph 21. I don't think you need 20 mins, paragraph with exhibit KZ7, a cut and paste and AC said given that it is a cut and paste of an exhibit there is no need for it to be in there, we don't need to have it in there. It transpires that it is expressed as a cut and paste, we cannot find it anywhere else in the bundle. My client deals within that in a light touch way, deals with an aspect you are familiar with in respect of money laundering and it feeds into her concerns that there may be forfeiture proceedings outside these proceedings, and she is worried about the US authorities by KZ's actions in the middle east, she sets out some extracts of exchanges with her and KZ. You could say it could be dealt with in her conduct statement, she feels passionately that you should read and add whatever weight you might add to that paragraph. The court should be limited by the questions that she should be asked. Very short examination in chief, questions then moved on.
AC	You have already ruled on this, the wife has made a statement, one of the exhibits is a separate affidavit and she takes a portion of this affidavit and puts in the main statement, the excerpt that is in the main body should be removed. You have made a decision and it should be taken out. We couldn't find this affidavit, we looked carefully and saw it the statement was made on 20 July 2021, when we checked the chronology and the private FDR was on that date, it was evidently produced for the private FDR, it shouldn't be produced in court proceedings. BM says there should be an opportunity for you to hear about forfeiture proceedings, all this does is records various dates about proceedings, its her recording of what her view is and what's been said. Impossible to verify where it has come from. Thirdly, this is already covered in the conduct statement. It is privileged, it's not reliable, you've already decided on it, appears to broadly have appeared in conduct.
BM	AC can't say that it was privileged, it wasn't for an FDR or tribunal, you should not make a decision on that. It was thought to be elsewhere within the exhibit to the statement, transpires that it wasn't elsewhere in the bundle.



J	I have already said yesterday it is inappropriate for statement to exhibit another statement, I understand that that paragraph comes from the statement. It follows that that paragraph should not be permitted. That is my ruling. Need 20 minutes to read redacted statement
	Court resumed at 11:40
BM	Before NZ starts, I would take her to each of the sworn statements. In terms of housekeeping, I would suggest this is agreed to your approval, Rosie to assist with the bundles.
	NZ takes the stand
BM	NZ you cannot take notes, you can take blank paper to write things down
NZ	If I want to refer to page numbers. NZ takes the religious oath.
BM	Tell the court your full name and address
NZ	NZ confirms her name and address at 3093 Teton Village.
BM	You have produced a number of statements and affidavits; those are already in evidence. The procedure now is that you will be asked questions with AC, there are a number of questions about Karim's s25 statement. There was a suggesting in KZ s25 there was an affair with Professor Stebbing, is that true
NZ	No
BM	Abortion as a result of the affair with Stebbing is that true?
NZ	Yes and no, we had 3 rounds of IVF in 2009, 2 were lost and 1 resulted in a foetus that had Edward's syndrome, the nurse gave me a...it was a result of IVF treatment with preserved specimen of the respondent.
BM	One of the disclosure yesterday was a multibit wallet, suggesting it came from you or ciphorable, was that correct?
NZ	The Gemini come from another part of the documents called Imerman on April 16 2021 sent to KZs solicitors, on 6 may 2021 he sent me a text message of the full documents that were sent to HFC, they are called Pinocchio, the other binders are UBS, the Pinnocchio are 200 pages it took me 400 pages to understand, because he sent them to me they lost their confidentiality statement.
BM	Rosie will be assisting you with the page numbers in the bundle, I am now handing over to AC
AC	Mrs Zahmoul, sure you understand that one of the first things the judge needs to do is to understand what assets there are.
J	You need to listen wherever you look, and listen carefully AC
NZ	I will look at her speaking, but line she is on is hard
AC	Judge has to work out what is available before he decides how to share it. Am I right that apart from what KZ says there is at least 141 million missing.
NZ	I am sorry
AC	Is it your case that the assets are at least 141 million?
NZ	The nature of crypto
J	You need to listen to the question and answer what is being asked.
AC	Is it your case that apart from what KZ says is in existence, there is another 141 million?
NZ	Yes
AC	Can we first look at what is in existence, do you know the copy of the ES2 – have you had a chance to have a look at it?
NZ	Yes
AC	Do you agree with it?



NZ	No
AC	Where is the column with your figures?
NZ	You are asking me assess access of the ES2
AC	Next to it there is another column to say what you are worth
NZ	I do not have assets of my own, that I can control over which I have visibility, there is no column on the wife's side simply because there is the disclosure process that the proceedings have turned because there is no details.
AC	Do you accept there is a property in Wyoming that you and Mr Zahmoul share ownership of?
NZ	Yes, don't know what they are worth
AC	Do you accept the property you live in is worth 4.72 million?
KZ	On 11 May 2022 we received appraisals, rocky mountain appraisers, they are close in value. Yes.
AC	I am not clear if you accept [the 4.72 million valuation]?
KZ	I accept the formal valuations in May 2022, they are 6 months in date and then they expire, we have asked for updated valuations. I accept those May 2022 valuations, but they need updating.
AC	Bundle at 640. This is an order made on the last occasion, ordered your solicitors to file a bundle with an ES2 in it. You were ordered to file your version of this document in the bundle, what is your explanation of not doing what you have been asked to by the judge?
NZ	Is the question why do I not comply?
AC	This one specifically, the bundle shall include the ES2, by that date we should have had your version of the ES2, why did we not have it?
NZ	I work 24 hours a day it is very hard for me to keep up with everything, I don't have another answer.
AC	567 of the bundle. Paragraph 21, the parties shall exchange updated open offers on 20 January, you didn't do an open offer – why not?
NZ	To provide an open offer, its very difficult to provide an offer when what I received was nowhere in the universe of what is true, we are not even overlapping so I would be wasting your time.
AC	Your counsel made essentially an open offer in their position statement, you want everything. It was ok for you to say that on 19 th February 2024, why couldn't you say that on 20 th January?
NZ	I was doing to work, making my way from Wyoming
AC	You were too busy.
NZ	Not too busy, I was busy with orders filling his order, I have to prioritise, I have to do conduct and section 25.
AC	Do you understand the purpose of these orders are so Mr Zahmoul can understand your case?
NZ	I do understand, I apologise, we are going to go through the orders outstanding and there is a list.
AC	On the schedule of assets, Mr Zahmoul has put forward there is a difference in the tax we think is going to have to be paid, BM says there is about half a million less in tax than Mr Zahmoul, on the schedule we are about 850000 apart, do you accept that?
NZ	Which taxes are you referring to?
AC	Answer the questions please
BM	She has got to be able to ask that, she needs clarification



AC	The figures in the ES2 and BMs statement are 850,000 apart – do you agree with Mr Zahmoul's figure? If you look in the left-hand column, looking at 240 Frost Street, if you look under there we can see there is a few lines, if you scroll along you can see the figures that Mr Zahmoul is saying needs to be paid 191,040. You can see in red the figures Mr Zahmoul says 191 in CGT, 394k in NY transfer tax and those figures come to 550000. Your counsel comes to 747,000. There is about 200,000 apart on those figures. 300 arrowhead, the bold address, Mr Zahmoul says 1.3 million in CGT to be paid, and your counsel puts it at just over a million.
NZ	Where is the computation behind these taxes?
J	Counsel asks the question and you answer – you say you are much more apart, why?
NZ	We are 4 years in, all taxes are done by CPAs, all principles on tax have to be agreed by us, they did not, some of the metrics are US statutes, I can see a number we have been seeing for some years. I need a spreadsheet with the numbers behind. Because I am a US citizen, when we made a capital gain of 4 million in 2016, as long as you buy the same property under the same legal orders you defer to the next one. The tax number is going to depend on who gives to whom, this means nothing, I cannot accept a tax numbers from a spreadsheet they need to come from a CPA.
AC	We need to give the judge the numbers, you understand it is important we do that?
NZ	The original memo from my CPA is august 2021, update of the CPA
AC	I need to ask you some question, I said you do understand that the judge needs some figures so he can understand what there is?
NZ	The only asset that has my name on it is...the order of April 2021
AC	Let's look at that order on page 26, made in April 2021. 3 years ago, the judge tried to sort it out and said KZ should serve on you his tax calculations and the parties should use their best endeavours to agree on tax calculations, and if you don't agree, you can provide your figures.
AC	You understand what the court was asking?
NZ	Yes, I did it, filed my tax on August 2022
AC	Page 4230 of the bundle. This is Mr Zahmoul's advice about tax in the UK,
NZ	I have the earlier version, 13 April 2021
AC	You have seen this document, his advice in June 2021?
NZ	Yes
AC	4229, you see some other figures there?
NZ	There is a big section where they say we are not Portuguese specialists
AC	You had your accountant on 6 august 2021, you had your accountant set out your position. The order said you should file your tax document before the private FDR. You were ordered to respond to KZ's documents 6 weeks before the private FDR. You produced it in August 2021 – why wasn't it produced before the private FDR. Do you understand?
NZ	Not at all. Can I see the order?
AC	Page 26, paragraph 26. 'Parties shall use their best endeavours to agree KZ's figures, if they can't agree, the applicant can serve competing calculations'. What the judge was trying to do was to get the important figures to the private FDR judge. Why didn't you have your tax figures in advance of the July hearing as you were ordered?



NZ	Provide the tax numbers on abcde, I can only do the real estate as I don't have my name on anything else, the same court order asked us to file updating disclosure before the private FDR, and the respondent filed the coinbase disclosure 48 hours prior. I cannot produce taxes on assets I don't control.
AC	Mr Zahmoul gave you his position in relation to taxes, you were asked to respond and you didn't.
NZ	Let's go to the memo, May 26 2021, it says if you transfer the appreciating property, you have no step up or gain recognition. There is no computation, nothing.
AC	No immediate tax to pay, it will rollover
NZ	No, there was tax
AC	If that was your case, the judge needed to know that.
NZ	There was nothing to answer, the FDR judge had no problem with the taxes as it relates to my residence and his non residence.
AC	No less than 9 orders were made to agree the taxes, as we stand here today you have not produced any response or your version of the figures in accordance with 9 orders
NZ	No I do not accept them, asking your client.
AC	Is it fair you instructed Nick Warr to liaise directly with KZ to try and find out the figure?
NZ	Yes
AC	There was a negotiation, was it without prejudice?
NZ	Always open. I can only provide taxes on assets that I own, I cannot instruct his broker to give me the tax because it particular to his taxes.
AC	On 21 st July 2022 KZ prepared a table with his figures in relation to tax – do you remember?
NZ	Can we please get the order of 10 July 2022
J	If you keep interrupting it will not help, if you answer the question that will help
AC	Page 311 in the bundle. Paragraph 8, made by judge Cope, recital that the parties will discuss and endeavour to agree the figures in relation to tax, they will do so with Nick Warr of Taylor Wessing, they will produce a schedule on what is agreed. Judge was trying to see what the issues were.
NZ	No, she said tried today create a table.
AC	I am asking if you understand what that table said.
NZ	The judge asked us to agree, then create a table, I thought that meant discuss all the issues and then narrow it down
AV	As a result of that order Nick Warr continued to have discussions with Nick Warr
NZ	No, the discussions were in August
AC	31 st July 2022, schedule of outstanding tax issues for agreement sent to your solicitors
NZ	At that stage we are in July, at that stage Karim has not spoken to Nick, they were not outstanding your client was managing the universe, outstanding was a manipulation.
AC	If it was a manipulation, was the sensible thing to get your solicitors to add this to the table of outstanding issues?
NZ	Not at all, I would fire him if he did that, we would be working off the wrong table, not at all with taxes.
AC	You have been trying to file amended taxes
NZ	Not at all, we do not file jointly



AC	You have filed joint taxes in 2020, 2021, and 2022
NZ	No not at all
AC	I have misunderstood, with LLCs in American there are corporate tax returns, those documents were filed jointly in the LLC?
NZ	It's a partnership called 3093 it owns 100% of the house at 3093 where we live and purchased in august 2020, it has two partners who are equal, I have the corporate documentation and everything. That partnership has one face that is the representative, the respondent, he files the tax returns and give the other partner the 401k, every year he talks to my CPA, then he files the numbers for the partnership, the other house we own 50/50 in joint names.
AC	The Wyoming properties, those taxes were filed by KZ in 2020, 2021 and 2022.
NZ	I don't agree, still mad about those
AC	He sent them to you and then filed them. You were involved.
NZ	Yes, absolutely
AC	You were unhappy with the content of those returns?
NZ	No, it's not a book
AC	You didn't agree?
NZ	No
J	What were you unhappy about?
NZ	The returns and the computations by the CPA are false, as a result of the misrepresentations there is something called a recourse loan which is also not correct, it puts me at risk, the respondent has represented that he is a US citizen he is not, and said I am UK citizen which I am not. Gives him right to open a mortgage, open an account close an account and everything, He is not a US resident, it is relevant. He doesn't pass the residency test.
AC	You were not happy with the returns.
NZ	No and I filed a D11. The court need to understand the issues, my CPA has been telling his CPA for 3 years, it is in my D11 of April 2023, the other piece is the partnership, the debt. One coin guarantees the debt vis a vis the bank, the person responsible for the liability it the respondent, that is not correct. When he liquidated the assets in September, he increased his partnership interest, he is now in credit of 4 million.
J	I understand, thank you.
AC	You made an application for an English court to make a determination on your divorce proceedings, didn't you
NZ	I live here for 18 years, where else should I have?
AC	This court knows those properties are owned by you jointly, don't they?
NZ	Yes
ZC	This judge can make orders as he sees fit, do you agree?
NZ	Absolutely not
AC	You wanted an English court to deal with your divorce they have the power, it doesn't matter what is on the tax returns, is that correct?
NZ	I filed my application on 24 January 202- with withers, you can decide on the division of the properties, does that mean if I find the fraud I should sit back, I am completely alone and without any money I can't get Waitrose, one of my daughters has needs
AC	Even in the US, you and Mr Zahmoul share the ownership of the properties
NZ	No
AC	The 3100 is owned by two LLCS



NZ	No problem with that
AC	Other properties are owned by LLC with you and KZ, is that true?
NZ	Exactly the same as the 4 million, he liquidated and sent to the Bank of Jackson Hole, if he wanted 50/50 he would have split the liquidated, he put himself as the only guarantor.
J	I understand, I have your point
AC	In 2022, the tax returns were rectified to put them in the position you wanted them to be in, 50/50 owners in the LLC.
NZ	No, there are two issues, the mortgage at bank of Jackson Hole needs to be 50% one property 50% the other, the respondent applied 2/3rds for one house. The only reason is the consequence is that it discharged the capital account of the LLC, so one is debt free. Inside the house, I wanted to divide the 4 million 50/50. I needed both 50s, this one in the 3093 is more important as it says he is the only guarantor.
AC	The contact with Bank of Jackson Hole, you are both equally liable. BOJH don't care about the taxes as long as the mortgage is paid down.
NZ	In terms of ownership, I don't care about the bank. He withdrew 4 million fraudulently as the only guarantor and we are equal.
AC	Can you look at 2531. You can see here there is a message from Jeff Wilkinson, CPA, look below it at 2531, you see the email from Steve smith, Karim's CPA. In March 2022 Mr Zahmoul's advisor was trying to liaise with yours to rectify some tax information. At that stage, 29 march your advisor writes to him asking for the information, then Steve Smith says 'Hi jeff, we will follow up when we receive it. Message a year later, 'Mrs Zahmoul is suggesting you contact her attorney' you instructed your tax advisor not to speak to Karim's and sort these issues out, didn't you?
NZ	Absolutely not correct
AC	You instructed your CPA not to talk to him
NZ	I have very limited funds, I cannot pay people when they are gaslighting, my CPA asked many times for the information which is not here, they overrode my CPA
J	Is your answer that you sent that email asking him not to engage because you had no money to pay your CPA?
NZ	No
J	Do you agree just before March 2023 you had instructed jeff not to engage?
NZ	I instructed him not to engage
J	Why?
NZ	When someone pretends not to understand you what is the point of carrying on, they were ignoring him for 3 years, I cannot keep answering when they are ignoring.
AC	Do you accept the two US pensions can be shared between you and Mr Zahmoul equally?
NZ	Which ones?
AC	Look at the ES2, the pensions owned by the Husband – the US pension can be transferred to you, so you get half of the US pensions
NZ	The memo of my CPA on the impact of the tax position..
J	Let's start at the beginning, do you accept they can be shared?
NZ	Answer is on august 10 th 2021, there is a liability I forgot the name..
J	Are they shareable



NZ	Yes, with tax consequences
AC	Did you agree that the Barclays pension could not be shared because of the type of pensions they were?
NZ	No, I do not agree
AC	Withers said on [x] they could not be shared
NZ	Which ones and for what reasons?
AC	Do you think they could be shared or not?
NZ	I don't know
Ac	Mr Zahmoul got lots of advice from pension experts about this
NZ	This is very convoluted, I have a timeline of he said she said, April 30 th 2023, he sent to me, to my address the link on April 17 th was below. I only pressed the link in September, the discussions when I had funding with Taylor Wessing and withers were a dead end. At the LSPO the respondent knew he had already executed the funds to Malta, when he asked us to discuss the pensions, he knew they were already executed to go to Malta, he knew and did not say, later at 7 September 2023 he said he executed. In April everything was done unilaterally, I didn't agree I still don't, I never received the documentation withers asked for. He takes the conversation without asking for approval, I have never had advice that we asked for, my team never got what they asked for, Taylor Wessing it was a minefield.
AC	4241 please. This is the initial advice in November 2021, explaining the Portuguese position, the tax position. Have a look at the document. Your lawyers were asking 3 questions, and it was Karim's lawyer's response. 'If H were to transfer any assets to you' 2.'can he confirm a time limit' 3. 'Lump sum subject to tax' Then they give a detailed analysis of those three questions, do you agree?
NZ	I accept this is a memo from Ilya.
AC	They were attempting to answers questions your lawyers had asked
NZ	The memo is giving an over theoretical answer and it is deficient. I bring your attention to the deficiency, it is saying if you were to transfer assets outside of Portugal at 4242, a mere transfer of assets is not transferable in Portugal. If you go to the asset schedule of the respondent, he has put taxes everywhere, why.
J	Why is the memo deficient?
NZ	It is not consistent with how it has been applied to the asset schedule, it says if one gets more than the other, this becomes a taxable event in Portugal. I am not sure what that means – if the husband sends the assets to the wife, his regime is called non habitual resident, he has a US Portuguese tax treaty that is also a source of problems he did not disclose on the Portuguese tax returns. He talks about the real estate no consequence if it is taxed at 28%. Instead of saying it is deficient, it is very helpful, because this is the opposite of what has been done on the asset schedule.
AC	Are you saying you do not agree with the memo?
NZ	No, I am not a tax expert
Ac	Your lawyers asked specific questions and KZ paid advisors to answer them
NZ	These questions are theoretical
J	Pause, I think I can take notice of that fact. NZ has been in the witness box for some time, there will be some time to go. Break for lunch.
	12:56
BM	We are not allowed to chat to you now, you are not allowed to talk to anyone about the case. Go get a tea or coffee.



	Back in at 2pm
AC	Mrs Zahmoul, turn to 4028. Still asking questions about pensions, beginning of the document, a letter from Mr Zahmouls lawyers to yours 30 February 2022, open proposal on the case, 4027, talking about how to share investment properties, crypto assets, paragraph 18 talks about equalisation of the US pension, 4029 it says the Jersey pension 'alternatively my client is considering transferring the pensions to Malta...preferable so the pensions are in your clients hands' suggesting he should move the Barclays pension before it is divided.
NZ	I see in specie, but not subject to. When was it sent to me? You are talking about Asden, no date on first page, what document?
J	The document you have got there
AC	I am told its dated 1 April 2022, it doesn't matter except that your solicitors were sent it, they responded. This document was sent 2 April 2022. What I am trying to do is identify a timeline, unfortunately the important person who needs to understand the document and the timeline is the judge
J	I need to come to a considered decision at the end of this trial, I need to understand for myself what you live and breathe. I need you to listen to the questions asked and answer. I need you to listen carefully and answer.
AC	It was second of April 2022, it talks about transfer, from advisors Adsen Moore, at 4293. This is a document sent to my client, talking about pension sharing in Malta.
NZ	Do you know when I received it – I can tell you, it was April 24 th 2023 if it was part of the 100 page package, if it was part of the link.
AC	You agree that it came at the beginning of April, it explains to my client that pension sharing in Malta can be executed and the pensions can be split, and it is favourable. Just showing you the document. 4294. This is later, July 2022, information about the effect of the transfers
NZ	I got this September 9 th 2022, November 2015 sent 20 million dollars.
AC	You saw this document, in September 2022.
NZ	Do we have the reply?
AC	We have some detail KZ has put forward
NZ	I am not a pension expert, this is complex, Taylor Wessing have assisted all the way to the end even after august 2023, 1 hour conversation in 2023, Taylor Wessing terminated everything as it was going circular. None of the advice on the pensions was sufficient or accurate.
AC	You weren't at all impressed with this advice
NZ	It's not my area
AC	341, you will see where we were by November 2022, order by his lordship, he was aware the pensions were still at large, you said you weren't content so his lordship ordered by 8 th December you should state whether you agree whether the pensions could be shared in Malta..ordered either party should apply under section 25 and if there was a dispute an expert should be ordered. Judge was saying if you can't agree that you should get an expert, you understand?
NZ	Completely
AC	You needed to respond to the advice by 8 December
NZ	Yes



AC	You didn't do that did you?
NZ	I need to give some context, we arrived to your court from Bristol, the new team joined 1 day before, Rebecca KC was not on top of the situation, when you issued the orders, I was with Burgess Mee the entire conversation was how I was going to pay and get money. Then until September the entire time was spent on figuring out funding, they thought the hearing was about finding, my bills went to pay funding documents. I am unable to shed any light on whether I agree, I am not an expert I don't know where to start. Burgess Mee called the respondent and said nothing is being done until funding is sorted. This is the consequence of going through 3 different lawyers.
AC	Effectively you are saying you didn't have the funding to arrange the advice in relation to response. Go to the order of 1 March 2023, paragraph 5, you shall state whether you agree with his advice, did you send a letter to say you agreed or you didn't agree?
NZ	This is the order, and your asking me if I complied with this order – no I didn't, I had to write the LSPO by myself, there were many events in April. I managed to do the LSPO application by April 20 th , 3 weeks late, and then I wrote to his lordship that the respondent emailed me saying he is moving the pension, after that I filed a D11 by myself about the Wyoming situation
AC	On 30 th June 2023, LSPO was made to carry out the order, his lordship was worried these orders were not being dealt with. Did you then respond once you had a legal team? Page 560. On 7 September, his lordship gave orders to try and deal with pensions, again Mr Zahmoul was ordered by 6 October to provide disclosure in relation to pensions, in the event there is a dispute, either party may seek to apply for an expert, it says you shall by 14 October 2023, confirming whether you agreed in accordance with that order.
NZ	No because that day of the hearing, he presented that he had executed that transfer, the bundle was void void void bundle, the real bundle was the one he executed and sent me with a small link.
AC	You had lawyers acting for you, did you provide a response to the advice of Adsen Moore in accordance with his lordships order. Did you obey his Lordship's order?
NZ	Your lordship, he had already moved them since April.
J	Did you obey the order or not, or 12 th of June
NZ	Zoe can you find out when the respondent told you...
J	I understand this is difficult and there is a huge amount of information about the case, lets concentrate on the questions
NZ	Did I obey the court order to respond to advice I had not read, and the respondent had already unilaterally moved it by September 7, he already moved it.
AC	On the 21 st November 2023, solicitors on your behalf did respond and said they didn't accept the advice, not by the 13 th October, not by 13 th November, but the 21 st November.
NZ	Your point is?
AC	My point is you ignore the court orders and you do want you want when you want to.
NZ	I am not a lawyer, I am extremely sorry if I look like I lack respect, if I allocate your resources to what I need help and what I can do myself



AC	You have had 2.7 million pounds worth of help. On 21 st November you said you do not agree with the advice – are you saying the pensions cannot be transferred?
NZ	No, we could never discuss it, we never received satisfactory responses. Nothing was received or analysed properly.
Ac	Do you now accept the pension can be shared?
NZ	No – I have not had an expert.
AC	You have been given 3 opportunities to get an expert and you have not
NZ	Not correct, the execution order was April 24th 2023, everything else is a show. September 7 th you are asking me if you complied with the order post facto.
AC	Mr Zahmoul told you he was planning to move the pensions, wrote in October 2022 and December 2022 to tell you that.
NZ	On every time he said he was planning we said we need a detailed plan of what is happening, he did never provide a tax analysis, you can say more dates if you wish, if we are waiting for tax analysis and it is not provided
AC	We have seen Mr Zahmoul put his view in writing, would it not be easier if you had put your view in writing?
NZ	Your lordship, she is asking me my view on the taxes
J	Question is would it not have been simpler if Karim had put his opinion on taxes on paper and then you put your opinion on paper?
NZ	1 you are duplicating costs there we would not agree and 2 do we even know whether the respondent has a detailed tax position, it would have probably been a solution, but that would not guarantee a solution.
AC	If you borrow money from your family, that is quite straight forward. On the liabilities you claim, you owe your father \$202,000
NZ	That is correct
AC	Do you think it is fair that Mr Zahmoul should see documents evidencing the debts you have?
NZ	The respondent has a debt outstanding no contact, miss Molina, no proof, he wired bitcoin to Miss Molina. My children survive because of my father.
AC	Bundle at 388
J	You alright?
NZ	Yes, yes
AC	Do you see paragraph 10, 1 March 2023, he ordered you to provide the following disclosure, evidence of any moneys borrowed which has not so far been disclosed. You had never provided evidence, but you said your father had leant you money.
NZ	You want a contract – I haven't had a chance to provide money documents, I apologise for the delay I will have all the documents to you in due course, as soon as I can. I am working as hard as I can.
AC	Page 561
NZ	April 2021, the respondent cut me off unilaterally.
J	14:40 – short break, lawyers will tell me when to go back.
	Hearing paused
BM	Try and focus your answers, will help the judge and you.
NZ	Trying my best, none of the questions move the case. She is trying to trap me.
	14:51 – court resumed
AC	Mrs Zahmoul, please look at 341 in the bundle. Can you see at the bottom at paragraph 12, made on 7 November 2022.



KZ	There was no hearing 7 November 2022
AC	17 November sorry, you were asked to provide you US tax returns by 8 December 2022. The order of 1 March 2023, paragraph 10, you are being ordered to do the same thing, to produce them by..
NZ	And then in September and November
AC	Yes let's have a look, ordered by 8 th November. We still don't have copies of your US tax returns.
NZ	My solicitors sent correspondence saying I do not pay taxes in the UK and I only became UK citizen in 2021 and left in the summer, I do not pay taxes in the UK
AC	What about in the US?
NZ	Why are we repeating the same orders and wasting money. My CPA cannot file my taxes for numerous reasons they are long and complex, my barrister will say I am going off piste, firstly I have no money I have maxed out 3 credit cards for the children, secondly I need to wait for the LLC, we didn't accept the K1 for the LLC, thirdly I was due a refund from the IRS which has been withheld because they had an inconsistency in information that told them I was American and another saying I was not, the LLC blocked my refund, 60-70k 401k refund I sold everything to survive. Jeff Wilkinson my CPA said there is no downside to wait until this mess is over.
AC	You were told no problem for you to wait, so you just wait
NZ	When you are owed money or have no money, there is no downside to wait.
AC	Page 223, paragraph 6 you were ordered to provide your health insurance policy called Cigna, you were asked to ask Cigna to reinstate Mr Zahmoul as a parent with authority, you were asked to provide a breakdown of claims, you have been asked on 4 occasions and you have refused to comply?
NZ	Yes, I agree
AC	Do you think its okay to not comply with the orders?
NZ	Absolutely not, this is a big one your lordship
J	I know it's a big one, I understand this and I am going to ask AC to move past it
AC	Page 338, paragraph 7, you were asked to sent details of the whereabouts of Mr Zahmoul's belongings, you haven't done that
NZ	No I have not. These watches, there is nothing that says they belong to KZ, they are joint matrimonial assets, the watches why are we making a big fuss. I didn't have a choice. I had applied for the LSPO, I received a unilateral email on 2 May, I went to zero on May 2 nd on my daughters birthday, my landlord said I had to move by July 4 th , thousands of pounds just to move, still had one daughter taking a levels, math, French. My father sent 3557 per month, goes to children. I would not have survived, my mother has angina it is taking away money.
J	Just pause, you are running away again
AC	Same page 637, 6.1 provide disclosure with respect to two transactions for 20,000..
NZ	That is the watches, this is leading.
AC	You haven't sent letters saying this is the watches
NZ	Your lordship, in the interests of you understanding the case, I can't respond to everything so I have different ways of responding, so I have different buckets of requests. I allocate my resources to moving the case forwards.
AC	Let's move on to what you do think is important, the undisclosed assets. Do you think this is important?
NZ	Not strictly true, what is important is freedom from everything and justice.



AC	At 3273, you said there is 141 million pounds missing from the assets. Can we have a look at your breakdown of this, page 3266. Paragraph 9, figure 1 23.1 million
NZ	I am with you
AC	Scroll forward, page 3269 there is another figure of 9.8 from the Portuguese tax return, you add these together. Another on 3272 crypto 3.9 million, 3273 103.9 million figure, you say add all those together it comes to 141 million. Can we try and examine some of it. I want you to be clear what my instructions are. My instructions are these are plucked out of the air and they don't make sense, do you accept that?
NZ	Absolutely not
AC	Let's go back to the first figure on 3266. The round figure 23.1 million, it is different from your s25 statement, paragraph 35. This figure of 32.88 million, you are saying it is completely different
NZ	One is called initial, and it is representative of Form E, this one is more 7 April 2021.
AC	You say this is a figure representing April 2021, we have just looked at the figures – we have added them to come to 141 million missing.
NZ	Okay, so?
AC	If we look at this first box, it is different than the one at paragraph 35. The difference isn't the breakdown of assets. Are you saying this paragraph 35, you are referring here, below is a summary of the non-disclosed marital x, which amounts to 38.28 million – is this sum of 38 the figure you want the judge to rely on or the 141?
NZ	There is overlap, we need to go asset by asset. Coinbase, this table, Gemini is on this table but not on the original table as I only found out at March 2023 when I received the subpoena, when I found out, that is why is it not in the other table, then we go to purchased land from IPP1 and IPP2.
J	Are you saying the table in your section 25 that adds up to 38.2 million should replace the table at 3266?
NZ	Exactly, but we are missing the Barclays account, they are not in form E they were disclosed later so I consider them to be deficient disclosed investments. The on shore investments...
AC	So when I asked you the first question about 140 million, the answer is no?
NZ	This would be more accurate, this is a very difficult exercise, with no disclosure, we cannot...
AC	You have given specific figures to come to 23 million there
NZ	If there is a figure, I can back it up
AC	You have focused on coinbase, at 3266, the figure in your statement is 7.99 million dollars..the paragraph says it amounts to 38 million pounds in your statement.
NZ	Should be dollars
AC	Exchange rate to give you 5.70, where from?
NZ	The exchange rate at the date of exchange
AC	Where is the evidence for this figure?
NZ	The first evidence is 16 July 2021, updating disclosures from HFC announcing he had received, that was the first evidence, in it there was a little piece of paper, from Topanga holdings.



AC	You have taken it from the value awarded to Mr Zahmoul for the Topanga shares in July 2021.
NZ	Yes
AC	I understand, those shares went down, they were surrendered in September. Correct?
NZ	No, could you pull out the transaction statement
AC	I can't do that – are you challenging what those shares were sold for, are you saying Mr Zahmoul never surrendered those shares?
NZ	Exactly, Mr Zahmoul made 4 million from coinbase securities, he produced on 5 September 2022. He states he sold, remind me to go back to the Portuguese taxes, he states that 7 million became 1.4 million, the shares were at bank of New York Melon. These were coinbase, they only trade on Nasdaq, when he produced the documentation evidencing the same, it is not a confirmation of sale, this was an indication of sale, if you sell you will get this price, from Sydney Australia.
AC	Let's look at the document at 4142
J	Are you okay?
NZ	Yes – At the top it says Australia, this is a lot of explanation, why is this from Australia? The bitcoin wallet, the forte securities is a whole saler, they service hedge funds and broker dealer, Kassis was a senior person here was the boss of the respondent, in order to have a license he needs, respondent signed manual of compliance of forte, he is sponsored by forte. The respondent has a financial security company. This is very relevant.
AC	Are you saying you don't believe this document is true?
NZ	Not at all, you don't sell Nasdaq from Australia, someone who trades would not sell at that time
AC	What do you think happened?
NZ	He has not disclosed his relationship with forte. If you do not want to sell stock, you can if you think a stock is going to go up, you can let other people borrow the stock, it looks like a sale.
J	What do you say happened here?
NZ	The derivative of forte is in Australia, I think someone borrowed the shares and Mr Zahmoul sold them out and gets them back at a later date. Not a single reason why a Nasdaq share would be sold form the Australia desk, we next see shares form forte securities in London to Revolut London. Revolut is sending it to revolut NY, then to USB and then to Jackson. The denomination of coinbase is US dollar, it goes from Sydney to London, to New York, to Denver. It does not make sense.
AC	Mr Zahmoul has sold the shares and you do not agree. This document is evidence of the sale.
NZ	If it is, great. There is many questions, there are other ways to sell US dollar. I am sorry he sold on 16 September
AC	Can we go back to conduct statement at 3266. Paragraph 35 of your s25 statement, Gemini subpoena, at 1834 you call that the Gemini subpoena results. You have said you got a subpoena in early 2023 against Gemini
NZ	February and March
AC	Page 1936 please of the bundle. You are claiming 1.8 million dollars, how you are learning about the crypto. 1939 has specifically the reference to the Gemini subpoena. You say this subpoena shows that Mr Zahmoul had been cheating



NZ	Subpoena results show that he had an account at Gemini. A judge in New York city made an order for full subpoena
AC	I accept you made the disclosure
NZ	The judge told me how many bitcoin in the account
Ac	1.8 million dollars, how many bitcoin does this relate to?
NZ	Okay I get it I'm sorry, the results of the subpoena show on 2 nd February 2023, 5.5 bitcoins and change, the blockchain is solid. Mid-February 2023 and the second tranche is 9 March 2023.
AC	5 bitcoins in March 2023, you are saying have the value 1.8 million
NZ	The blockchain is immutable, it tells you how many bitcoins were there on exchange of form E. They would have been there in the wallet on the day we exchanged form E. It is the bitcoin in the wallet on the day we exchanged form E, on that day he didn't disclose.
AC	I still don't understand the 1.8 million – Where in this statement can you show the blockchains or the bitcoins add up to 1.8 million?
NZ	I will get the information and give it to you, someone needs to go to chain analysis.
AC	The undisclosed UBS accounts, paragraph 35 again.
NZ	Undisclosed holdings in the UBS accounts
AC	You say 20.546 million – where does that come from?
NZ	Comes from the statements of UBS cumulatively over the years. I have an explanation that makes more sense at 42.
AC	The first line is wrong, Mr Zahmoul stopped working for Barclays in 2014.
NZ	He was still an employee, we need more clarity, there is inconsistency. He received compensation. I am assuming but I don't want to speculate. Why was he not working but getting paid?
AC	Let's see the big picture – how do we get to the figure at 42, you've added up UK earned income from 2005 to 2018, you have taken off the tax, we shall follow through the maths.
NZ	The starting point is AG tax memo
AC	I will ask you the questions, first column of 13,8 million odd, living expenses of 8.99 which you have deducted to come up with figure of 2.4 million
NZ	2.4 is clean capital at end of 2018, it has paid taxes, it can be used in the UK without paying further taxes. They were meant to go this way, what I am saying, your lordship 4 sources of income are in 4 fiscal buckets.
J	I understand
NZ	The three other buckets are not in the UK. One bucket I have access to. One bucket is UK earned income, end of 2016 there was a reserve of 2.5, that reserve what did we do when he didn't have a job, we spent 932k and the reserve went down. Page 13 tells you at the same time what was happening at Barclays, it was offshore on tax, three buckets. There is one more account called remittances, it is through a scheme called Lichtenstein HMCTS, that money can come and pay the bills here in a separate account called LDF. He did not do full disclosure. Page 13 says we can see onshore spending, we see these inflows and outflows from UBS, 13 in 12 out sterling, we see pre liquidations of Barclays shares. The Barclays shares are complicated, three different categories one of them are UBS. He didn't pay tax outside the UK, he was also doing tax avoidance scheme.



J	You may think you are making sense, but I am struggling to understand, so I am going to get AC to ask another question.
AC	Paragraph 26, figure of 20.5 million dollars, UBS. 3266 in the bundle, the figure you say for undisclosed holdings is 12.81 million pounds. I don't understand 20 million in one, 12 million in another?
NZ	The spending in the UK is covered, there are 3 offshore incomes, the UBS income, shares of liquidations and shares of Barclays and shares of the rentals in New York.
AC	Are you suggesting none of this has been spent?
NZ	Offshore tax, it is an asset base, 20 I cannot account for, purchased prior to 2004.
AC	I don't follow what you are saying. I am going to stop you. BM can help you explain this in re-examination.
NZ	It is an asset base that has been invested but not disclosed.
AC	Each item – UBS at 3299 of the bundle. If we focus on each item, we might understand where the figures are from. Inflows and outflows from the UBS. This is your document, its giving different figures from those in your statement. You are trying to say that in sterling you have had 14.29 million come in and 14.63 million out, they are payments of UBS assets
NZ	They are flows, these are above and beyond the cash burn of the UK
Ac	I am not keeping up still. The UBS shows 14.29 million coming in, and 14.69 million going out, are you saying that?
NZ	No you said that, that money is not accounted for, Cash burn we use 900 a year.
AC	Have a look on page 3496 for me. Document from UBS showing all the money going in and out, in reverse you can see a fund value of some 84,000 euros, in 2010 there are inflows of 8.8 million euros and 5.6 goes out. That leaves a final value of just over 3 million. The next year 252 flows out, inflow...
NZ	Outflows are above and beyond what was spent, what assets they were used for I don't know
AC	Because you don't have a list of everything was spent, you think additional money still exists.
NZ	There have been no assets that have been reported that justify 20 million. The outflows don't go to the UK. The outflows don't go to the UK.
AC	I am told they go to the UK, and they are used by the family and spent
NZ	I don't remember the excess and above and beyond
AC	The money has got to come from somewhere, where do you think it is coming from? It says quite clearly that it is coming into the UBS and out of the UBS account, what do you think happened to it when it comes out?
NZ	I don't know, you tell me. The respondent is an active investor in all sorts of assets. I would like to know where it went.
AC	Paragraph 35, 5.1 million dollars, not in Form E. Look in bundle at 3506, you can see those Barclays shares, these are shares Mr Zahmoul was paid for by Barclays. The shares vest over time, one year they vest, then the next, then the next they vest.
NZ	From a fiscal perspective it is a very complicated process. We need a HR person to explain it.
AC	We can agree generally. 3506 – Statement period...
NZ	If you know what CVP means



AC	Cash value plans, you can read what it says 3507. It shows every activity on the case, you can follow this through, flick forward, you can see all the detail, you accept it is genuine?
NZ	Yes
AC	Mr Zahmoul has asked Barclays to produce all his shares and the share releases, 3504 you'll see each and every vesting, scroll up towards to front of the bundle, on 3502. You'll see the dates are in reverse order, these shares are being released and shares paid out. If you keep going to 3498
BM	I do wonder if we have reached a point
NZ	I want to make progress
J	I am going to rely on you, we can continue for a little while
AC	I have quite a lot to go, if you feel she would benefit from a break.
J	I have something else at 4:15 so we will rise them
AC	Mr Zahmoul has produced all the releases, the Barclays shares have all been spent, so where do you get the 5.1 million dollars in your statement at paragraph...
NZ	I put them all on a spreadsheet, the shares are taken inclusive
AC	You have added all the shares realised since 2009 to 2018 and you say that comes to 5.1 million dollars and you are saying it is still available for Mr Zahmoul to spend
NZ	No I'm not saying that, some of the shares he was granted access to, I was saying this money was not needed to live in the UK above and beyond the burn. Not needed. Its very simple, what was burnt in the UK was page 12, anything else I don't know.
AC	You don't accept that Mr Zahmoul was drawing down on these shares and spending the money on the family?
NZ	Absolutely not, there may have been share liquidations but there was a salary
AC	How do you prove that? You have to prove that was not spent on the family living
NZ	I am going to take you to my statement, his old CPA says between 2004 and 2016 says the UK income exceeded the cash burn
AC	What do you think income is?
NZ	Probably some of it is income
AC	You have said probably some of the shares were income, you are saying
NZ	Some of them were called BACS, I am not a HR specialist, the respondent had 3 different ones from 2020. Even if we assume 3.8 will liquidate it, you still have 12 of 13 from UBS that were not used, those 3.8 are shares vested, we are saying he is part of a payroll, we need someone to explain BACS, payroll and say what went out and what did not go out.
AC	You say Mr zahmoul would draw down on the shares to pay for the family, do you accept that?
NZ	Onus on me to accept or for the respondent to show?
AC	I need to know whether you believe that?
NZ	It is not believe, it is not religion, it is evidence based. His AG tax says in so many words, between 2004 and 2016 the salary more than covered the burn which was 750, when he stopped work we spent 942 and a year later we spent 942, the clean capital went down again. UK based tax income and earnings, that is what was used for our cash that went all the way to 2020, then he goes on to say if they continue to spend at that rate, he will have to get it from offshore, then



	you find out there are 3 buckets, offshore income, offshore investments, each one has a different tax consequence if it is remitted to the UK
Ac	Bundle page 3269. This is money you say is undisclosed investments, 9.8 million pounds, are you asking the judge to take this figure and add it back to the asset schedule?
NZ	No. One here that is allegedly coinbase. I don't speak Portuguese and not expert in tax returns, the returns were produced [dates] by reconstruction the investments are coded but not identified by the entity invested in, there is just a charge and the date of acquisition and date of liquidation. I spoke to people in Portugal it's the value at date of one and the other.
AC	I don't understand, this figure the 9.8 million, are you asking the judge to add this to Mr Zahmoul's share of this assets?
NZ	No, at this stage I sent a letter saying these were investments disclosed of by US E trade.
AC	Yes or no – do you want J to add 9.8 million to the assets?
NZ	Are they on the balance sheet, they are not, where is the money?
AC	We looked at the boxes and added them up to the 141 million pounds and you said Mr Zahmoul is hiding the assets. My assumption looking at these figures is that you do want him to add them to the balance sheet.
NZ	Is it your client's case, the biggest number 7.2 million is your client claiming as coinbase?
AC	Are you asking me if the figure on your schedule should be added on or taken off?
NZ	Of course I don't know
AC	Of course, you don't know. Mr Zahmoul filed a statement saying you had completely misunderstood the Portuguese tax returns, here at paragraph 17 is Mr Zahmouls response 'she has fundamentally misunderstood the documents' you have just said as much
NZ	I said I don't know which entity this is, it is the equity or partnership this is, I cannot guess it.
AC	Mr zahmoul pays his advisor in Portugal
NZ	Which one, there are many.
AC	If you look on 4241, this is the historic advice that has been given, this is louis Leon, Ilya, this man has assisted in the past. When you said there was nearly 10 million pounds missing, Mr Zahmoul went back to him.
NZ	Do you know why your client has two different tax advisors in the same place, has multiple people and can't produce proper numbers for the final hearing?
AC	On 26 January, advisor filed a comprehensive reply, have you read this document NZ?
NZ	Let me read it
J	I am going to pause matters there. I am going to make sure you are in a position to give your best evidence so we will pause. You are not allowed to talk to anyone about your evidence, you cannot talk to Mr Molyneux about your case, you can't talk to your solicitor about your case.
BM	It is not just me or Miss Bloom NZ can't speak to, it is anyone who has assisted with the case.
NZ	Anything implied?
J	No. 10:30 tomorrow.
	16:13 Hearing ended





Attendance Note – Zahmoul Final Hearing

Client: Zahmoul

Matter: ZAH01.1

Date: 22.02.2024

Time: 10:30

Initials:

J - MacDonald J

ACKC -Alexis Campbell KC – Counsel for Respondent

Sassa-Ann Amaouche – Counsel for Respondent

BMKC - Brent Molyneux KC – Counsel for Applicant

ZB – Zoe Bloom

	Hearing started at 10:32
AC	Before I continue before cross examination, at the bar we have reached a conclusion, Ms Zahmoul has given a lot of evidence. BM won't make any objection, if I make reference to the statement without putting each point to NZ because we would be here forever, not going to put any further points on the non-disclosure. Mr Zahmoul rejects her case on non-disclosure, I have gone through some questions with NZ and she has made her points.
J	Sensible, thank you for having that discussion.
AC	Mrs Zahmoul, turn to the Bundle at 1193. Email 16 November 2016, email about investment, you are explaining it looks interesting, good demographic. If this information KZ passed to you about an investment. He was asking for your opinion?
NZ	Yes, based on a business model which was not yet public.
AC	Thank you. Page 1230 please. This is another business investment, subject yummy in 2017. Another investment opportunity KZ was forwarding to you for your opinion?
NZ	Yes, similar business, not yet public
AC	1198 please. Email 2018 from your husband to you about a crypto fund, subject draft crypto fund, he is forwarding a multi coin fund, this is another fund Mr Zahmoul was sending to you.
NZ	Not correct – this one is a fund, the other 2 were not funds. The respondent sent me, typically business models to get my take, my fundamental analysis on the business. No such thing as Topanga.
AC	First page of the respondents exhibit to his s25 statement. This is a document that Mr Zahmoul passed to you, about his contact with sphere digital, he sent it to you to have a look at. This is you giving your opinion on the contact?
NZ	Correct
AC	2095. 2019, this is a message from Mr Zahmoul to you, looks like he has sent a whole collection of documents that refer to his tax returns to UK and US,
NZ	Yes
AC	Sending you the information to compile his tax return



NZ	Not return, we had purchased a house in Cheltenham, to get a mortgage
AC	This was evidence to try and get a mortgage
NZ	Yes
AC	I understand. 338. WhatsApp conversation. What is this – looks like you are saying should I buy back? Green is Mr Zahmoul asking your opinion?
NZ	Sugarneff, sounds Russian, I don't know
AC	Looks as if you are making a record for him, of the trades. I am told this is something that was sent to my client by UBS and it was sent to you.
NZ	Yes, sounds good
AC	1433. 2020, the date at the bottom, it's a WhatsApp
NZ	Sorry I am trying to understand whether the date is American or English
AC	February I'm told, you are talking about some health details, bitcoin investment he has forwarded to you, do you remember this?
NZ	Sorry I was looking at the emoji. I don't remember but that would be reasonable.
AC	1467, this is you sending him details about the new scientist PDF, he is talking to you about putting bitcoin in Bitwire.
NZ	Yes, correct
AC	1037, this is Mr Zahmoul in 2021 sharing some information with you about mintgreen
NZ	Correct, this is in the divorce proceedings
AC	Throughout the latter part of your marriage and into the divorce, Mr Zahmoul shared with you a significant amount of financial information, he was open with you ,do you accept that?
NZ	The part discloses the whole
AC	Do you agree, Mr Zahmoul shared with you, he was an open book?
NZ	I don't agree
AC	How did you get the Imerman or Pinocchio as you call it.
NZ	Some of it was documents that were prior in a drive, this is the minority. Context in 2020 we had been married for 27 years, the person who does all the admin, this is set out in the march 27 th letter. I was the administrator, I paid for everything. I had access to everything.
AC	What happened in 2020?
NZ	In November 2020, I found out the respondent had given a computer to Jade, she became tired and was watching Netflix.
AC	You had full access and then in November something changed and you didn't?
NZ	I had access to what the owner decided to give access to
AC	When did you get access to what the owner hadn't given you permission to access?
NZ	Pinocchio was sent to the solicitors in March 2021
AC	How did you get access to the documents referred to as Imerman?
NZ	I was thinking yesterday, I am still piecing things together.
J	When did you get access to Imerman?
NZ	End of March, Withers asked me to send copies.
AC	That's when you delivered it up, when did you obtain the information?
NZ	December 2020, that's when I realised my daughter was not sleeping
AC	1397. This is a letter from Evelyn Gargano, 'Nadia asked me to be executive of her will...Nadia stayed with us in September 2020'...she says it was during that stay, you stayed until 5 October, you told her and her husband about having hacked into his laptop and his phone, is that true?



NZ	False, absolutely I did not tell...
AC	Did you access this information in September 2020?
NZ	He left in November, and I realised jade was not sleeping, it was between November and December.
AC	This information that you had, we know there was extensive information copied to your solicitors
NZ	On the same day when everything when he left, pick up was maybe 16 th April. Two devices, he texted back to me Pinocchio. April 16 th 2021. There is one more set of documents, it is the documents. During the pandemic he hacked Ms Molina's account, we need the Imerman letter from Diana parker, there was 6 months of the pandemic with all the screens open all the time, 3600 pictures.
AC	From 2020 you got 6000 pictures?
NZ	During the pandemic he had left devices open everywhere, they were open
AC	Did you look at them in 2020?
NZ	During the pandemic with Miss Molina
AC	Did you or didn't you look at them.
NZ	If they were open and everywhere, probably
AC	Well, your either did or you didn't
NZ	Screens were open and I can recount it
AC	Did you just see what was open or did you access the devices? You mentioned a few moments ago there were thousands of documents. You are saying you just glanced at the screen, you didn't scroll through?
NZ	I walked in the room in Morocco, there was an open WhatsApp with Miss Molina and that's when I found her existence.
AC	November 2020 you noticed your daughter's computer, between February 2020 and November 2020 you had access to respondent's devices
NZ	In February 2020 I found out about miss Molina. He came to Cheltenham for 6 months, we went to LA for 3 weeks then we went to Wyoming..
AC	Between February 2020 and November 2020 you just told us you had access to our devices. When did he leave your home?
NZ	August. October 2020 was the last presence of the respondent
AC	From February to end of October 2020 you had access to his devices. I am going to put to you that you carried out extensive research on Mr Zahmoul's devices.
NZ	That is not true. I only found the laptop computer in November 2020.
AC	Did you access the devices between November 2020 and April 2021 when your solicitors got them?
NZ	Through the 200 pages, yes I did. They were returned to me, they made no sense and they only made sense last week.
AC	I understand there were over a thousand documents.
NZ	They were useless.
AC	What do you mean?
NZ	They were simply bank records asking me to forward to the respondent, they were filed by me as administrator of the house, they had no useful value to the proceedings.
AC	You downloaded them and put them onto paper.
NZ	No, they arrived in the post, I opened them. 200 documents are Pinocchio. 4 binders, 1 is Pinocchio, 3 are useless. 200 pages are useful. Reason Imerman took so long, even though it was forwarded to the respondent we were not communicating, they instructed HFC to do the entire exercise, coinbase was on



	the FDA, the Imerman being stretched in time and cost we arrived one day before the private FDR, they asked to skip the updating disclosures, we said no. I said it should be so expensive it should be one folder, they said no we are doing all 4.
AC	2230 of the bundle, letter from Mr Zahmoul's solicitor to yours.
NZ	Review of Imerman?
AC	What we can see here is there were categories of documents, you categorised them.
NZ	Yes
AC	Yellow lever arch with Barclays, red lever arch, grey with tax
NZ	Useless
AC	Red folder about children
NZ	Yes. Only one is the black lever arch.
AC	You are concerned whether they breached the privacy of Mr Zahmoul, I am trying to decipher what you looked at.
N	Everything in the black folder, 90% did not make sense, I did not know what a node was, he sent by text it lost confidentiality status.
AC	We are talking about 2 different things.
NZ	I looked at them, they are not confidential.
AC	Not the question I am looking at. We now know you had access from February 2020 to November 2020.
NZ	No. The document the respondent had, the devices he was with me and the children. I saw what I saw and the children, it is horrible we would not want them in the courtroom.
AC	2235. Paragraph 51, a printout relating to coinbase and Gemini. It is expressed there that Mr Zahmoul's coinbase account, and he had not had a Gemini account for a number of years
NZ	Not true, it took a subpoena and millions of pounds to find out that was false
J	Can you listen for the question
AC	Page 1389. Back in 2018. This is an email Mr Zahmoul sent you a list of updating assets, relates to real estates and then investments, can you see. Can you see reference to coinbase, 75,000.
NZ	2018, two things there it says coinbase there is no connection in this email between coinbase and Topanga, the only person who knew about Topanga was an LLC.
AC	In 2018 you know Mr Zahmoul had 75000 in coinbase?
NZ	No. In addition I did not know about Topanga, he made on 17 th February 2015 into macros the holding company in 2015, I did not know that. I knew he had a wallet at coinbase and in that wallet he invested in crypto, when I spoke to my brother it's the wallet buying crypto, only became coinbase on 16 th July 2021, one day before private FDR.
AC	Look at the heading of investments, coinbase, you knew your husband had invested 75000 in coinbase. I am asking you if you knew he had 75000 in coinbase
NZ	If I knew this was Coinbase do you think...
AC	1392. WhatsApp exchange on 3 rd October, Mr Zahmoul sending you a link, about Tiger Global investing in coinbase, you reply with a wink. This was 2018. What did the wink mean?



NZ	Coinbase the private company had 17 rounds of investments, so when the respondent said he did not know the value of the investment, this is in opposition when a venture capital firm like tiger global he is saying he knows it is worth 8 billion.
AC	What is your wink for?
NZ	I sent it because I didn't care
J	I am trying to understand your case, I am trying to listen to the answers you are giving. If you do not listen to the question and try to answer I am not going to be able to understand your case. I want you to calm down and listen to the question.
AC	Why are you sending a good luck wink to him about the announcement that coinbase was now worth 8 billion
NZ	Because I have no words, it is good news for the market
AC	I put it to you that you sent it because it was good news for your family, because you knew there was a 75,000 investment. Page 1394, you were arranging a mortgage, an email exchange to the bank.
J	Look at the document
AC	In context, 1395 you see where this is coming from, this is the bank asking for additional information. At 1394 Mr Zahmoul is correcting the information being relayed. He says the big missing piece the IPP2 its more than 1.8m of assets...'i have private investments that don't seem included like the investment in coinbase.' Reflection that you and he knew about his investment in coinbase.
NZ	The missing word is Topanga.
AC	I'm asking about coinbase.
NZ	My training is the valuing of companies, it wouldn't have taken me 2 years and 1.2 million to get there if I knew about Topanga.
AC	1394, as mentioned yesterday 'I have crypto'...he is distinguishing the coinbase company investment.
NZ	There is no connection between coinbase and Topang,a if I would have known that it was worth 7 million
AC	Did you know about coinbase?
NZ	No, I did not
AC	You were copied in the email. I am putting it to you
NZ	Investment in Topanga also called coinbase
AC	You knew that he had made 75000 in the company, different to the shares
NZ	I do not agree.
J	That is fine, I understand.
AC	Page 1400. Mr Zahmoul instructs me that not only you, but your friends and family and they knew you and he had investment in it.
NZ	No
AC	Exchange between Mr Zahmoul and your friends about his coinbase investment.
NZ	Not true. Mrs Ouziel is honoured by the French government well respected [NZ speaking French] Zu means pieces, it is direct. It refers to pieces.
AC	She says 'bitcoin' He says yes, I am waiting for ICO also
NZ	This is pieces. I make prudent investments, this is the rest of the conversations
AC	Where is it?
NZ	She can come and give evidence, my team said
AC	Don't tell us what your team said. Conversation with your husband and brother on 6 th January, at this stage Mr Zahmoul didn't know you were proceeding with the form A.



NZ	I disagree.
AC	Your brother was sending information about buying into IPO. Mr Zahmoul says it is expecting to go to 10,000 dollars. Over the page on 17 January, Mr Zahmoul, asking do you work with Hassan, over the page the conversation continues, again from your brother, the details about buying from coinbase. Page 1405 there is an emoji from your brother with an excited happy face. Mr Zahmoul tells me this is evidence that your brother knew about coinbase, he knew about the coinbase deal and that's why he sent an excited happy face.
NZ	No, my brother is available to come and testify.
AC	1692, this is a spreadsheet that was prepared, dealing with a list of investments, date of acquisition, currency, and the value. Listing 2016, 75000 in coinbase security investment, document sent to you in 2017.
NZ	No incorrect, this is a document made available to me in a shared google drive.
AC	I'm told it was sent to you in May 2017
NZ	Absolutely not, the date of acquisition was 2015 not 2017. It is 25 February 2015.
AC	This is inaccurate. He sent you this schedule, so you knew what he had.
NZ	Absolutely not, the only thing of value is the last line
AC	You are talking about something else. Is it your case that you have not seen this document until divorce proceedings?
NZ	Correct.
AC	I put it to you that you are lying, you say this in 2017 when he was reassuring you about what he had in the event of his death.
NZ	The respondent said at 21 and 22 he said he had not invested, after sending me all the documents and what I invested in it. During the proceedings, he said he didn't do it because he is not a US citizen, this says he did do it through Mike Deeg. Mike takes the money and gives it to Karim when it goes up. Stack is an off-peak IPO.
AC	What is Mike Deeg's job?
NZ	Expertise is taxes and..
AC	He is FCO regulated?
NZ	Yes
AC	You think mike Deeg would hold money and assets for KZ to hide them from you?
NZ	The answer is still yes, this investment was made through a vehicle he was told you need to be a US resident, he said can I put my wife. Can he do it? yes, would he do it? yes
AC	You are saying he did it for business reasons?
NZ	In this case, he simply did it to help, in the rest of the proceedings, Mr Deeg would do it.
AC	KZ said it is nonsense, that Mr Deeg would not engage in activity to hide assets from you.
NZ	He would, absolutely.
AC	After the IPO in coinbase we know IPO rocketed to 7 million, and he wrote to you about the appreciation between coinbase and bitcoin, that it puts the value of 10 million dollars. Mr Zahmoul wanted to sell the shares in coinbase on 4 November, to liquidate the coinbase and each of you take cash.
NZ	I don't read any messages by the respondent, and I blocked the respondent a long time ago. I do not read anything from him and he knows this. Did he send this, he knows the price of coinbase.



AC	Did you know he wanted to sell the coinbase on 4 November?
NZ	This is not 'I would like to sell'
AC	He says 'we would get 4 million'
NZ	He is saying would I settle, I would not do settlement on an email because of non-disclosures.
Ac	1375. You are writing to Rachel, she has kindred ventures control of the coinbase shares.
NZ	Yes
AC	You are asking that half be transferred to you
NZ	Yes
AC	KZ is not copied?
NZ	No. Direct listing on April 14 2021, because of the 7 million. The respondent invested in an LLC vehicle, he paid for 75,000. The partnership did an in-kind distribution. On April 14 he received a [x], that went to forte securities. From a tax perspective, the capital gain between 75000 and 7 million he pays nothing on that because he is in Portugal, but Portuguese authorities hold 28% and might claw back on it. I was trying to avoid it, that I am a US citizen.
AC	You are telling us why, I want to know what.
NZ	I am getting there, I didn't want to be chained for 4 years, to avoid that there is another way. At the time of the exchange, if he said I would get half of 7 million and be responsible for all the capital gains, as if those 75 were from. I am not asking her; it is totally doable.
AC	You were asking for legal title to 50%. What were you asking her to do to?
NZ	To put 2 people under the distribution, to get 50%
AC	Did you tell Mr Zahmoul or his solicitors?
NZ	In correspondence.
AC	They did not know you did that
NZ	When he did know, he did not do it. She said you have 1 more week. If I'm correct, coinbase has reported 7 million. It's not a capital gain it is a dividend he wants to charge me capital gains.
AC	1367
NZ	The UK believes LLCs are shady vehicles
AC	Katherine Landells writing to the owner of Bitwyre, concerns about the transactions, Mr Zahmoul sold back some bitwyre.
NZ	Do you want me to explain?
AC	No. Look at the middle paragraph, why were you writing to Mr Denby telling him that?
NZ	I will explain the transaction, we sold on November 2020 to bitwyre in Indonesia, for professionals in crypto.
AC	I am asking you why your solicitors are telling Mr Dendi that you were possibly going to report Mr Zahmoul to the FCA. What is the interest to this man?
NZ	The respondent bought 10,000 bitcoins and a year later he divested. Mr Dendi is the owner of the company, he texted him to buy back his costs, he said buy me back at cost. Mr Dendi did the company had 6 funding rounds in 1 year, on the day they did the transaction at 6000.
J	Just stop. Part of my job is to write down your answers, at the moment I am not writing, as you are not answering the question you are being asked. You are not listening to the question. It makes it very difficult for me to listen and understand your case, I really need you to listen. Short break.



	11:42 break
	12:03 court resumed
J	I should have made clearer, I have had the opportunity to read everything in the bundle. I have been involved for a long time, I know a lot about it, you don't need to give me the background. I know.
AC	I am moving topics. I want to ask you about the litigation with the BOJH. 2203 of the bundle.
NZ	May I finish, the explanation on the bitwyre was convoluted, it is called an undervalued transaction in the code of fraud. I simply asked to show the respondent had 1% of bitwire with 11 other people. I wanted evidence that he sought that 1%, evidence that he sold back his ownership. It is a private transaction; he is allowed to send something that is 100,000. This is a man who they would like to know he is regulated. In my opinion it is something notable, this is why I instructed my solicitors to write to the CEO.
J	Okay. Have you got the page?
AC	You provided the court with confidential settlement communications; the court thought it was inappropriate. What were those documents, do you know? 'the plaintiffs arguments..the courts finds the terms and conditions are ambiguous'
AC	What were the settlement communications you gave?
NZ	We had mediation communications, we reached after 1 day of mediation and the bank and the mediator reached out that should the CEO call the respondent and ask him to reverse the transaction, the respondent did on the December.
J	What were the confidential communications?
NZ	The mediation documents
AC	I was under the impression is was documents from these proceedings you have clarified it is not. Page 2383 – opening of the joint LLC business, Mr Zahmoul was trying to get an account opened for the LLC. It is your case he was trying to do so through the UK court, your case to BOJH was the court had not approved an order to open an account, what is this reference to? Court is reciting your case, but he was not successful.
NZ	He was not successful, 17 November 2022 court order, it is a variation, possibility to vary the order. Burgess Mee applied for a variation, I represented myself with a D11 to vary.
AC	Let's look at the orders at 336. 17 November 2022, you and Mr Zahmoul trying to have arrangements for the Wyoming bank account. There are promises that you are Mr Zahmoul are giving. Bottom paragraph on 335, 'must take all steps necessary for the rental payments being paid into the following account; LLC account at 3100, paragraph B is the property at 3093. Rental income shall be paid into an account, account shall be opened on the parties' joint application to the bank. The parties are promising the judge you will open the account.
NZ	I do not agree, paragraph 17 you could vary. I was told I should proceed to move on and I could apply to vary it.
AC	You gave a promise to the court that you would do that, but you weren't happy so you would vary it?
NZ	I was unhappy with this
AC	You have made the point you were not happy and you did not want to open an account
NZ	I didn't want an account because..



AC	I don't want why, I just want what. There is a court order which contained a promise you would open an account but you are making clear you wanted to vary. You knew what the order meant, but you wanted to vary.
NZ	I understood that there was language in the order asking to open the account and I had made clear to all that I was not happy with an account open as on 4 October 2022, I received an email saying an account..
J	I understand all that, just concentrate on the question
AC	Paragraph 31 on page 2183
NZ	The court order with paragraph 17 was sent to the Bank of Jackson Hole and was sent with redaction of paragraph 17 and asking them to open the account.
AC	You thought because you could vary your order, you had been successful in asking the court to prevent him from opening an account. You said to the bank he had not been successful in getting the order, because you could vary it?
NZ	I genuinely thought I could vary the order, everybody knew, I think Burgess Mee applied for variation immediately. Absolutely, what I think is that he could not open that account
AC	You are continuing with these proceedings against Mr Zahmoul?
NZ	Technical breach
AC	These proceedings are continuing in America?
NZ	Yes, the judge joined Karim.
AC	The action against the bank was discharged
NZ	Yes, and costs against me
AC	What's the benefit of carrying on with this in America?
NZ	There are false representations and fraud regarding the LLC. This is a dynamic situation, when the judge ruled against me, the transfer that the bank did too, 676,000. I lost on the matter. On the timeline this is before I started understanding the LLC fraud.
AC	How does it advantage you if you are successful – what do you get out of it?
NZ	There is a live misrepresentation, it's not what am I getting it is what is the downside, there is a misrepresentation, the fraud. What am I getting? When you have an entity and the ownership has been shifting, the bank needs to be on notice.
AC	If these properties were sold, the mortgage was repaid, the LLCs closed down and no further connection between you and KZ. What would be the benefit of these proceedings?
NZ	As long as someone is perpetrating fraud against me, I will need protection. I need someone. I bring to court on the D11, 27 April 2023, he answered May 2023 the answer is worth a read. As long as...
AC	Does that answer apply to why you have reported him to the IRS?
NZ	The respondent told me everything himself about the relationship and what there is to know, it is bigger than me. It is dangerous, there are too many things I do not know. I need protection. The children...
AC	Your children do not know about this, it is adult material. Page 2623.
NZ	It's not the IRS, it is the IRS criminal division, New York.
AC	Email exchange from Mr Zahmoul to you, he is writing to you, saying 'it is looking like we spent 800,000..' 'what I think is reasonable to spend 400,000 to 450' 'the balance left is 195 to 235', divided by...leaves a free float of 91 to 131k' do you remember this?
NZ	Absolutely



AC	Next page, email exchange in December 2014, you to Mr Zahmoul and him to you, you say 'I do understand your situation has changed and I will be more supportive, good luck' I read this email to understand that you understood there was financial pressure.
NZ	Yes
AC	Next page - December 2015. You say you cancelled the membership for an expensive gym, KX. He writes to you, you write that you are sorry about it, if she likes we can extend it to 3-6 months
NZ	Not KX, maybe a gym in Gloucestershire.
AC	Mr Zahmoul 'you spend over 5k a month...we are burning through the Barclays shares faster than anticipated'. You write 'I understand I will try not to do anything frivolous.' I read that as you saying you understand there is a bit of pressure on money and you will try not to spend as much.
NZ	Yes, this goes back to taxes, there is onshore and offshore
J	You explained all of that yesterday I don't need you to repeat, I understand.
NZ	The 104, he set my retirement at 104.
AC	At the time you knew there was some financial pressure, and you were trying not to spend.
NZ	Not correct. Respondent made clear if I wanted to spend I can do it offshore, I have been always clear that the restrictions were about remittances to the UK, when he was working or not working the spending onshore was 192l. They are lies so I am stuck at 104.
AC	2626, this is an exchange by you and Mr Zahmoul by WhatsApp, forwarding a message. You had written a message for Mr Zahmoul to send to the bank as you wanted to buy a house and couldn't afford it.
NZ	We bought the house and..
AC	I am told this email exchange about buying a house from Steve and you didn't buy it because you couldn't afford it.
NZ	There is what I know then and what I know now, what I know now is he was restricted by clean capital reserve, when he put in the mortgage he was probably told take it out of it will mess up the taxes.
AC	'Budget will not meet our expectation'. You drafted that email from Mr Zahmoul and he sent it.
NZ	Absolutely, the next year our spend onshore was 942, reconciling those two facts is enlightening.
AC	Next page - 6 May 2019. Looking at budget, high-level budget for you and the girls, 66 in tuition, 66 in rent...
NZ	Me writing to him?
AC	No, I think its him to you. He is saying it will be 360 dollars, he is showing how much.
NZ	360 thousand, using his salary to peg, which now he is doing with the rental in Wyoming, 104 is 2000 x 52. There is always pegging, there is always a budget and a plan. In 2018 he had Miss Molina, we are looking at a pegging right now. My future income is restricted by Wyoming, we never touched rental income, this is a box. I make 30 therefore budget is 360.
J	I need you to concentrate on the questions, I can't write fast enough when you answer like this. The faster you talk, the more difficult it is to take a note. You need to listen to Miss Campbell.



AC	In the bundle there are documents from 2018 – 2023, in the documents Mr Zahmoul is trying to ask you to spend less money, do you agree?
NZ	I agree he was doing that, it didn't make sense and now I know why.
AC	I was asking whether we agree and I think you say yes
NZ	I know this boxing, everything is by tax memos, the move to Portuguese was premeditative since 2018, likewise my budget and restriction, he even asked me to go and get a job at Cheltenham ladies college.
Ac	He asked you to earn money?
NZ	Yes, can you believe that.
AC	You believe he was trying to ask you to spend less money, its his case that he was worried about you running out of money, so he was asking you to not spend so much. Do you agree?
NZ	He was worried he would have to remit funds from offshore
AC	Would help to say yes or no, Mr Zahmoul was asking you to spend less as he was worried you would run out of money, do you agree?
NZ	No. From where it stands today, our expenses speak louder and clearer than I ever will. I am worried for this balance sheet.
AC	You don't agree and you have explained why. 2083. Table showing the reservations for the property in Wyoming. Recognise this?
NZ	Yes
AC	Third column says type, it says guest. We can see the third line you have booked the accommodation from the 9 th July until 26th august.
NZ	Yes, and I am staying there now
AC	Purchased first Wyoming property in 2017
NZ	Yes
AC	Second in 2019, where did you stay before the purchase?
NZ	A hotel.
AC	When you purchased in 2017, you didn't stay there because it was let.
NZ	When we purchased the first one I would stay in terra hotel
AC	So only time you started to stay was when you bought the second property
NZ	No, in the pandemic
AC	So 2020, I am told you stayed two months in 2020 and two months in 2021 and one month in 2022
NZ	Different houses but yes
AC	In November 2022 you booked to stay for the summer.
NZ	No, yes probably, when they send an email they are opening the calendars, I originally...I only booked to stay 1 month.
AC	Can we look at the second booking at 2225. Bottom two lines, second booking on 10 March extending the booking from August through to November
NZ	Correct
AC	2297
NZ	The situation is..
J	Let's just get to the question first
AC	2995 please, sorry. This is a bill from GB liners in July 2023 from Hill Villa to Boston, for Jade.
NZ	Correct
AC	2997, email dated 3 rd August from one of the agents to look after one of the Wyoming properties, saying because Nadia is in residence indefinitely, remains



	blocked off until we get confirmation from both parties. Did you tell Daniel to block it off?
NZ	I asked Daniel to block it off and moved indefinitely. Life is a moving river, these emails, what has happened not in writing, one girl, Jade was finishing her a levels and moving to Boston. I lost our home and I at first I thought I would rent in London, my time in the UK was finished my older daughter was in US and she has needs. To rent in London you need a balance sheet, and to rent in London my monthly rent would depend on the respondent, I could not do that
AC	When you came to court and asked for the rent in London to be paid for by the respondent, you already knew you would be moving to Wyoming.
NZ	When I came to court I would intend to move to London in September, my intention was to ship the belongings to donkey storage. I wanted to live in London until the end of the proceedings and decide what to do with my life. It shifted when I couldn't pay to move out of Hill Villa, I can't do anything without my own balance sheet, I will not accept to live in London without my own balance
J	You have set it out for me
NZ	I didn't lie
AC	When you booked the accommodation in Wyoming through to November, back in March and then you told the agent to keep it booked for you indefinitely
NZ	Booking date in March
J	I am satisfied I can see from the document. How long do we think we have left?
AC	Another hour, I may possibly be able to refine that. It would help me to narrow my questions if we had a slightly longer break. I have no objection to NZ being supported if she needs that. If we came back at 2:30 or even 3 o'clock?
J	2:45
	Hearing paused 12:50
	Hearing Resumed 14:51
AC	Page 2168 please. A letter I am told you wrote.
NZ	Beginning 'neither of us'?
AC	Yes
NZ	Absolutely. 2171. 3 June 2020 correct?
AC	Yes. Can you read the highlighted two paragraphs. Is what is written true?
NZ	Yes, at the time of writing.
AC	Thank you. S25 at paragraph 9. Read the first two paragraphs. Those two statements are contradictory
NZ	Reflect the reality and inconsistencies of the time. What is the question?
AC	They appear contradictory, at paragraph 9 you say this is someone who broke you and took you to the edge of despair
NZ	Process of 30 years, coherence comes way before the breakdown, there was a 10 year, gradually slowly these things happened. It is progressive. Between 1994 and 2011, for when I ordered drugs for the first time in my life. You take someone, it takes a long time to change the internal messages. Likewise, once there is a complete if you are brave enough to go all the way and restart fresh, it does not happen all the time, it is an exception rather than a rule, when that happens you need another 10 years to piece things together. The process is there is a break, that is why I lack coherence.
AC	2701.



NZ	Inconsistencies don't represent a liar, they represent incoherence.
AC	This was an affidavit prepared 7 September 2021, you give the address of Hill Villa, Daisy Bank
NZ	Representative of how homeless I have been, I don't know where I live. An oversight, but more being homeless.
AC	We know you were living in Wyoming. May I suggest the reason you gave that address you wanted to dupe your lordship into thinking that the rent you were getting paid was for London.
NZ	You are telling me this is to keep on getting the rent, no.
AC	You had moved back to Wyoming, why would you give a Cheltenham address?
NZ	It was not a secret I was not trying to hide that, by its nature it is a freezing order because there was a million dollars in the Coinbase account.
AC	Look at page 2064 please. Legal lender.
NZ	Lila had a rough time in the autumn term because of losing her home in England and because I was no longer on the continent
AC	We can see this is September 28 2021, explaining you had taken a loan
NZ	Correct, 14 days later they offered pound for pound and Diana said too little too late.
AC	KZ was prepared to dip into the savings in BOJH if he could use the same money for his legal fees, the same amount.
NZ	False, not savings they were rental revenue, they were sitting there. 2 at the FDA Judge Cope asked that that account, my assets at the beginning were 350 at fidelity were savings from Lehman brothers, started off at withers, joint account at BOJH was frozen. Maintenance of the homes..
J	I get that
NZ	When we ask for my legal fees, the respondent could close the balance sheet. When we asked for access to the joint funds for my legal fees, the answer was no. They would not agree to give me permission but I could apply for variation when needed.
J	Rather than the whole history, just listen to the question.
AC	1839.
NZ	That he would give me access provided he had access does not exist.
AC	Paragraph 38.
AC	Withers were informed respondent would be acting in person. You were able to secure Burgess Mee 24 October 2023, they ceased their instruction on 24 February 2023. During that time, you had extended the detach loan by 40,000 and you hadn't declared that. You didn't declare that the loan had gone up did you?
NZ	I appeared in person on 1 March 2023, I am not sure I filed a form H.
J	Did you increase the loan by £40,000?
NZ	The 40000 was ringfenced to apply for an LSPO. I signed a contract was that it was only for the LSPO.
J	Did you tell his lawyers or him about this?
NZ	No, Mr Zahmoul said that he represented himself so I didn't converse with him, I would not have sent an email to him no.
AC	Supplementary bundle at page 324. Page 389, the application dated 18 April 2023, if you look and confirm you are the applicant, your application for maintenance and so forth. You represented that you were acting in person.
NZ	Correct



AC	Now at 2572, this is a document who shows who the author of the document and it was David Lilywhite
NZ	Correct
AC	You were filing documents by solicitors who were assisting you
NZ	This was a template sent to me by burgess mee, they provided the template to me. They sent me a draft and I didn't use it
J	AC I am aware, if someone takes an MS word document and uses it in another case for another order, it can look like counsel drafted it.
NZ	The first time I sent it I didn't have the D11 form, I needed a template
AC	I accept what you say, look at 1839. This is where we were looking before. You were giving the judge the impression you had no legal assistance between November 2022 and April 2023 and it continued for a year, you say at paragraph 41 you had no access to legal assistance to pursue your case.
NZ	This is correct
AC	We know you had the detach loan, and it had been effectively doubled.
NZ	Between September 9 and when it ran out in august 2023...
AC	You got another 40,000
NZ	Yes ringfenced
AC	That wasn't referenced in these documents
NZ	I need to check if I filed form H, if I did it would be there.
AC	Whilst this was happening you were instructing lawyers in America who were pursuing subpoenas for you
NZ	Nothing has been paid yet
AC	I am getting on to ask about Mr Zahmoul watches
NZ	Your lordship do you have any questions on legal fees?
J	No
AC	Mr Zahmoul would like them back, are you holding them or are they being pawned?
NZ	We had the answers yesterday, the watches I said yesterday are not matrimonial pot.
AC	Where are they?
NZ	They are with the institution that leant me money. I do not agree that they exclusively belong to one party.
AC	There were 11 items of jewellery in the order. You didn't respond, are they safe with the agent?
NZ	Yes
AC	Do you agree you should give Mr Zahmoul the documents so he can go and get the items back?
NZ	Of course, except the items which are joint
AC	638.
NZ	I am sorry, I have paintings in Mr Zahmoul's flat in Portugal, watches paintings and everything, they go together.
J	Look at the page
AC	Item 11, Mr Zahmoul's mother's pendant, that belongs to him that was given to him by his mothers, I assume you don't want that?
NZ	I don't know where it is, I am not sure if I have it, or its in Tunisia or Portugal, I will not hold onto it.



AC	The 10 items, number 10 you accept this was a gift to KZ from you and a friend and number 9 was a gift from his father, number 8 was a gift on his 18 th birthday...
NZ	What's going on? Yes
AC	Number 7 a gift to KZ from your parents at your wedding
NZ	Yes
AC	Which watches do you want?
NZ	The ones you skipped
AC	Items 2-6?
NZ	Yes
AC	Why?
NZ	I am living out of suitcases with no permanent addresses, this is the legal definition of ownership. I am not capable to say about anything because I don't have anything. They are all except are engraving the ones in the middle you skipped are just from the shop.
AC	You sold the family car for 50,000.
NZ	Not for 50, it was a long time on the market. I asked someone in Cheltenham to sell it. I used 10k to pay solicitors, and 10k to pay a friend who lent me and there is about 12k remaining.
AC	Do you accept it was worth £50,000?
NZ	The discrepancy is theoretical
AC	Okay. You have told J you want to live in New York
NZ	Yes, Lila has ambitions to go to Columbia. I was in New York before I moved here 18 years ago.
AC	You have not lived in New York since 2005
NZ	Given Jade's needs and I don't have any more reasons to stay here, I move now, Lila Mae is boarding.
AC	Wouldn't you want to be in Massachusetts where your other daughter is? You have not lived in New York for 18 years, your other daughter is in Boston. You want to move for the first time in 18 years to New York?
NZ	Correct
AC	I say you want to live there because it is expensive
NZ	Actually, I would not get very much for the price. Both girls would not get a bedroom.
AC	So it's not affordable?
NZ	No, I'm just being rational.
AC	You didn't provide any particulars
NZ	I have some
AC	They were not in your statement were they?
NZ	No
AC	Mr Zahmoul is absolutely confident that what you said yesterday is absolute [X] No further questions
	Re-examination
BM	You were asked about your sister-in-law and your brother, in relation to what they said about Topanga. Could you look at 1407 in the bundle. You told his Lordship you could get a statement from them, there is no need as here there are emails and WhatsApp's from them. The first one, from Sylvie – was that the Sylvie you were referring to?
NZ	Yes, she will come here



BM	No need, 1408 – tell your lordship who is sending that message?
NZ	Me
BM	The response, 'no never'
NZ	My brother.
BM	The barrister told you he knew; he replies 'I am 100% sure'
NZ	That is correct
BM	Did you dishonestly procure those, by telling the author to write them in those terms?
NZ	Absolutely not.
BM	A letter. 2171.
BM	Was put to you that this text was inconsistent with other text where you had been highly critical 'I would never had the opportunity...you have provided us with luxury...i am conscious of this and grateful'. I am going to ask his lordship, to focus on 2168-2171, look at the second page 2169. Mr Lord, you will need to read the whole letter. 9 years ago you write 'I rose from the ashes...I healed through...the pain and the loneliness and the suffering...I torched my own beliefs [BM reads the letter] for the first time there was no tension between us during lockdown' do you think there is an inconsistency with what you say there and what you say in your other statements?
NZ	No
BM	There was a list of chattels you were taken through, what are you saying should happen to those for the avoidance of doubt?
NZ	I don't care
BM	Are you happy for the things to be returned to him that have sentimental value?
NZ	Yes
BM	She mentioned paintings in Portugal...
J	If you seek to adduce the evidence in the witness box, or put on record what your client's position is, you can but I'm not sure about resolve it
BM	In relation to the property in Portugal where your husband lives you mentioned paintings you describe as yours
NZ	Yes
BM	Are there any other specific items you would like to retain as Mr Zahmoul will like the watches
NZ	The artist is [X] she is a friend, I love them, some furniture for the children two beds and chest of drawers, peter rabbit hand painted, the girls would like those.
BM	His personal possessions in your possession, would you have any objection to Mr Zahmoul having those returned to him
NZ	No
J	I have no other questions, I am grateful. I am going to release you from your oath and let you go back to your seat.
	15:36
BM	I am going to need a little bit of time to speak to NZ after giving the evidence, I propose starting tomorrow.
J	Cross examination time estimate?
B	I would like to think I can do this in a day, depend how verbose I am and how succinct KZ is.
AC	I am in your hands, seems a shame to lose an hour but I won't make representations



J	I am prepared to rise now, but I would want to finish tomorrow, we need to be as sure as we can be so he's not in purgatory over the weekend
BM	In your hands
J	I would like to start now, reduces chance of KZ being in purgatory over the weekend. I will rise now for 5 minutes, and then we will go through until 4:20
	15:38
	KZ in witness box – 15:46
	KZ taking the oath.
AC	Mr Zahmoul give your full name
KZ	158, Lisbon 1150282
AC	Your voice is soft, direct your answers to his lordship. You have filed a number of documents, are those contents true?
KZ	Absolutely
AC	You want to deal with a debit on the asset schedule that's due for tax, a lifetime allowance tax, been included as a liability, is that a current liability?
KZ	As I understand that the UK parliament has changed the law, and there is no longer the lifetime allowance, there should not be a tax on taking that out.
AC	You would be happy for us to deduct that?
KZ	Yes

BM	Usually, the name and address bits are uncontroversial. Can you say again your address
KZ	158 Lisbon 155-81 . That's been the position since passing of my father in October 2020
BM	The issue is the difference between this address and the one in Cascais as Nadia is concerned there may be a different address that you haven't disclosed. Please provide an explanation of difference between Lisbon address and that?
KZ	When I left the UK in 2018, I moved to Portugal. Change in EU regulations, made pension taxable past the date of 20 February 2020. A friend of mine introduced me to address in Cascais. I was able to show I had a rental contract with someone and say I was a non-habitual resident. Deloitte did this for me in Portugal. Had contract for 6 months, I have showed the contract signed the 500 euros per month out of my account from February to October. Stayed on my tax return I addressed it with my current accountant. He has fixed it in my tax returns. My HMRC tax returns showed hill villas, it is not so relevant from a tax perspective.
BM	Tax advantage for that address?
KZ	Benefit from drawing from the pension with zero tax, from 2020 it was 10% because I qualified, I could take annuities at 0%.
BM	That wasn't true,
KZ	In what sense?
BM	You weren't living there
KZ	I was not living there
BM	That was a lie to advantage yourself for tax purposes
KZ	Was not a lie
KZ	I paid someone 500 a month at the time I was searching for an apartment I could live in. I was debating if I was going to take a two bedroom instead NZ convinced me to rent a more expensive property.



Bm	It was an artifice
KZ	I don't think so.
BM	It was a façade, the key is where you were residing you were pretending you were residing there. You were paying out money but not living there
Kx	My father passed away I was travelling I had a Pied-a-terre that I wasn't actually staying in for the changing legislation in Europe.
BM	1340. Do you see any dissonance between what you have just said and what you wrote here. About your character. 1340. You juxtaposed your good character and integrity, 'my banking career...respected for giving...completely trustworthy and honest...Nadia wanted to give bribes in Morocco I was completely against the dishonesty' do you think that description of yourself is consistent with what you've just said about what you did with the property you pretended to live in?
KZ	Yes
BM	1676 please. A couple of things by way of explanation, what the assets are and how we got to where we got to, with such a difference in presentation between what Nadia thinks the asset base is. In amongst over criticisms of Nadia, you wrote this to Burgess. You say 'lastly I am enclosing a list of books over the years ..during therapy period...believed Nadia had borderline personality disorder and PTSD...not to expose Nadia but make you aware of your actions, take advantage of someone who is may not be well' Nadia sees this as being characteristic of what some men do to women, to tell them they are unwell to undermine them, she thinks this is what you were doing with her solicitors, that is a fair criticism isn't it?
KZ	It's a spin, not a criticism. I have done since beginning of Nadia serving me, this has been written, we have been in proceedings for 1051 days since FDA. This was done after so many attempts of reaching out to Nadia, my first email to miss Bloom to offer any explanation with any expert and nobody was engaging. I was articulating what I was experiencing in earnest. We bought a house together Wyoming joint. I should have said you take one house I take the other, I wrote an email on June 3 rd explaining what had happened to our assets, she gave court origami to our friends she didn't want to engage.
J	As I understand it, this email was written to progress things
KZ	Yes
BM	Do you regret writing it in those terms, was it helpful to write?
KZ	I thought it when I wrote it, similar to her when she writes, I am not a Russian Oligarch, I worked hard for my money, if I offended I am sorry. I pleaded around that time for her to be rational. I wrote to her Mackenzie friend Monica McGregor, she is a forensic expert, I asked her to ask any question she wanted, I was despairing she didn't respond.
BM	I am going to be explaining to his lordship it is a case in which every action has an equal and opposite reaction. You reference your belief that Nadia suffers from PTSD, if you look at 2164, there is a letter from Professor Libby that you exhibit to one of your statements. This is a letter you exhibit to your statement, you were relying on it, 12 July 2022. 'I write in some urgency...I understand you are acting for her in divorce proceedings...I am treating symptoms of PTSD' keep that in mind, look at 477. Hearing in June 2023. One of the advantages of you having acted in person, your words are not said through medium of a barrister, you speak your words 'don't believe there is liquidity...she suffers from PTSD...this is reminiscent of 2014' I want to put to you that you present as if this



	PTSD is sprung on you as a device, you knew Nadia is someone who had been unwell and the proceedings would trigger her.
KZ	Fair thing to say, some context, letter is 12 July, remember when that was, day we had a mediation session. Then the next day you made an appeal on the Cigna policy, an appeal, when you had the letter, at the time this letter was available on July 13 th , you decided to use compassionate grounds to get judge cope to overturn her order, to give me access as a father to my children medical proceedings, they were rightly mine, that is what I was trying to say.
BM	Nadia you know is someone who values transparency and feels the need not to be misled or feel that things are being hidden from her, these proceedings particularly in relation to Topanga have triggered her and made it hard for her to believe anything said.
KZ	The reason I didn't want to get divorced and purchased a house on the basis we were not going to get divorced, and October 2021 she sent me a letter to postpone everything 1 year or this is a form E and you have 1 month to put it together. Of course it increases her PTSD, but I didn't do this, I was trying to stop this occurring, we renewed the vows, I stayed with her, I wanted to maintain her assets. I didn't want to get divorced; I don't deal well with ultimatums and that is how I reacted.
BM	A fair summary is that Nadia is someone who deals badly with being misled but you don't feel you are someone who misled her
KZ	Yes
J	Cannot talk to anyone about the case
KZ	Can be on my computer, looking at the statements.
J	Yes, the embargo is not to talk to anyone. Tomorrow at 10:30.
	Hearing paused at 16:14



Attendance Note – Zahmoul Final Hearing Day 4

Client: Zahmoul

Matter: ZAH01.1

Date: 23.02.2024

Time: 10:28

Initials:

J - MacDonald J

ACKC -Alexis Campbell KC – Counsel for Respondent

Sassa-Ann Amaouche – Counsel for Respondent

BMKC - Brent Molyneux KC – Counsel for Applicant

ZB – Zoe Bloom

RV – Rosie Vorri, Pupil Barrister

	11:20 into court
BM	Before we resume, I am going to ask for more time, understandably it is more important to my client that she is satisfied that I have full instructions in the technical aspects of the case, she is anxious she has communicated to me, she does not want points to be missed or inconsistent with the way she wants things to be put. I understand that is not what everybody else would want, I do ask for your indulgence so Mrs Zahmoul can give me full instructions, so she can sit comfortable in her seat knowing her case will be properly put. I anticipate no more than 15 mins.
AC	I am anxious to accommodate Mr Molyneux. I am concerned about the time slipping away, KZ is anxious to have his evidence heard and be released. It is appreciated BM wants to present his client fully, I suggest that BM continues and at a break if further instruction is needed then. I am happy to allow a short period now, and then if a further period is needed at end of cross examination, we can consider once we are through the lion's share of evidence.
J	Final Break, 15 minutes.
	11:37
BM	Very grateful for that. KZ good morning. Portuguese tax return, expand today.
KZ	Can I ask a question?
J	Listen to BM and take it from there
BM	701 please. Happy doing bundles?
KZ	Happy doing it myself
BM	Bottom of the page, extract from 2022 tax return in Portugal, can you explain the run of figures at 952?
KZ	I can try. The two figures 6.6 million euros is the distribution of the coinbase shares. In Portugal the distribution from Topanga canyon is taxable is a dividend, for non-habitable resident is exempt from taxes. While in the US would be taxable from 75, in Portugal what's relevant is what crystallised. I know it says January but its April.
BM	Why?



KZ	My accountant messed up, he said he made a mistake, but it has no impact. The 6.6 million is the value of the shares when I received them and I sold them in September 2022 for 1.74 million dollars, this generates, sold them for 1.5 bought them for 6.6. I had no idea when I arrived there. At the first hearing it was a dividend considered divided. If a [x] occurs in next 4 years, wasn't taxed in UK and US, and Portugal says it is aggressive not to be taxed on that, so we decided to leave in escrow so we can release. Bought it at 75, basically you generate 1.5 million euros, there is 28% CGT on that. It is a loss, it was discussed extensively with Nick Warr. I could tell you about the other figures, I don't know, I trusted my 20-year Deloitte tax person.
BM	You are saying you have the benefit of the tax assets, 1.4 million on future gains. It's a tax asset, the gains you make in the future you won't be paying 28% on in the next 5 years?
KZ	I don't know
Bm	That is a valuable tax asset to have, worth having
KZ	I believe in my s25 statement I said I don't know where I will be in the future. I don't know if this is going to be tax asset I am going to have, there is a risk in the next 4 years that this tax asset will evaporate.
BM	But that is a potentially valuable asset to you, to offset those gains against a crystallised asset.
KZ	It could, I suppose
BM	You could have paid tax at 28%, you could because the acquisition cost was 75000. You could have put 1.533 million euros as the sale price. You could have put the actual acquisition cost and the sale cost, and just paid the tax that arises on the capital gain rather than mixing and matching dividends.
KZ	I don't think so, I don't think I could have done that we are talking about a 20-year Deloitte partner that has been articulating that receiving shares in kind from the US is considered a dividend in Portugal.
BM	Does he say that? 3532, he seems more sceptical about it, perhaps as sceptical as I am. He says 'the allegation that Topanga canyon as a dividend...should be notified that it may be 28% tax on capital gain' all I am saying is you could have avoided all this complexity by paying the 28% tax
KZ	Not his advice
BM	Over the page, two errors I made 'the omission of details in the foreign account details...do not affect the tax return calculations'. NZ had discovered during these proceedings that when things are not produced there are malign reasons, she sees this failure to produce these tables as the same malign issues. Are you prepared over the weekend to provide these account tables? At 3529 gives an understanding what he was talking about. 'The only additional reporting obligations...cross referencing'
AC	I am not keeping up with you
BM	3529, penultimate paragraph. 3532, we were looking at, the omission of the table, will you produce that table over the weekend so we can see it?
Kz	I would be glad, can I check what table? When he forgot to produce it the account in 2020 and 2021 was the account [x] he says there is nothing from this, it was an innocent omission. NZ failed to disclose...it is criminal
BM	You are going off piste. It is not a debate; I ask the questions. You have confirmed you will produce the accounts table.
KZ	I will ask my accountant to produce, I am not sure what you are asking



J	This will take a lot longer if you try and jump in over the question, you need to wait for the question.
BM	So we are clear, your accountant says there is an obligation to produce a table of bank accounts to be cross reference with international obligations
AC	I will get the exact description and pass it on
KZ	I would like the clarify something yesterday
J	Clarification comes at re-examination, your leading counsel can ask any questions
KZ	Can I speak to her, I am not allowed to.
BM	I have some questions about distribution of Coinbase shares. 651 please. This is a point that has been troubling Nadia. This is a cut and paste from an email that you sent 9 April 2021. Shortly before distribution of Coinbase shares from Topanga, you need to set up a brokerage account to receive it, a bank of New York brokerage account. If you look at 732, you will look at what happened when you sold those shares. You'll an email to Kassis in Australia, Sydney, forwarded to Marco Bach at forte securities in London. Nadia is concerned that the shares were distributed to a New York brokerage account with forte and then sold through your friend/colleague in Australia. Why were they distributed to New York and sold in Australia? The proceeds went through London and back to the US.
KZ	Risk of tax in the UK, Andrew Gammon my accountant in the UK thought it was better to keep the shares outside the UK. Kassis has accounts all over including Australia, sold shares in Australia, held the funds for me. On September 15 I instructed him to sell, and I instructed him to wire the proceeds to bank of Jackson hole, how his firm was set up I don't know.
BM	We see the shares going through a Barclays account at 652, at the bottom. We see the wire transfer of £1.624 million to the 8909 BOJH account, about two thirds of the way down the page, the wire transfer of 1.62 million. The wire message a correspondent bank' 'this transactional flow, is not commensurable with the liquidation of US' raises question that the Respondent may not have liquidated the shares. Why were they transferred through the UK, if they were in the Australia to avoid the pull or consequence of them being in London?
KZ	I have no idea. Where you have offshore bank account for safety of assets, I don't know. I would be happy to send an email and have him provide an answer, it is more in response to Nadia thinking I still hold the shares. It was sold for the cash value of the shares on the day of the shares. We can get the series of transactions that fill the order, you cannot borrow that amount of cash. The shares were sold, you can trace the funds to BOJH, but I don't know.
BM	The tax returns for previous years in Portugal, previous years were 18 or 19 pages. The most recent return is shorter, was the most recent a complete tax return your full tax return or are there other pages?
KZ	That is my complete tax return
BM	1807 please. This is a page you produced in May 2021 with a view to sorting things with Nadia, look at 5 entries up from the bottom, coinbase estimated to market 2.327 million
J	2014
BM	Table produced by you in spring of 2021. 5 lines from bottom, coinbase. Tax rate Portugal 0%. 1.790 million after, is that a reference to crypto holdings?
KZ	Correct



BM	We'll come back to that. 752. You'll see there Topanga canyon holdings, US companies, converted to sterling 53 thousand...no explanation as to this line item in your form E or your enclosures.
KZ	There were a 100 pages of Topanga canyon documentation, lot of pages on it
BM	On the form E there was no explanation as to this or in your enclosures
KZ	I'll take your word for it. I answered on June 24 th the US securities offering
BM	We will do this methodically and look at different entries. Form E dated 15 th March, we all agree. We know you knew that coinbase announced its own direct listing on Nasdaq, you knew that when it happened.
KZ	I did not know
BM	I think you did, at 1343 this is what you said subsequently. There you do accept, that you should have stated on your form E that there were discussions/plans for a coinbase direct listing. TCH was a vehicle for coinbase shares. That fact you should have said, shows that you knew about the forthcoming listing.
KZ	Doesn't mean that
BM	Explain?
J	Answer the question
KZ	My father passed away, I got letters form Withers on January 21 2021, find the page in the bundle with Diana Parker threatened me we have to go to court. Nadia wants the UK to stay as the jurisdiction, 28 January I responded. I had other things on my mind, my father's inheritance and looking after my sisters. I had to get ready, find a lawyer. I was not allowed to spend much time in the UK, I knew this deadline was coming for my pension, that's why I rented the apartment in early February in Cascais, I left in...I was dealing with the form E with Andrew Gannon , I decided to leave Tunisia with my sister and went and isolated in Morrocco. I hired Stewarts law firm. I switched to HFC on the advice of the wife of Stebbing that Nadia had an affair with. I had lots of things on my mind.
J	I am in charge of this court room, when I speak, you listen. We'll rise for a short break. 12:09.
	12:21
BM	Mr Zahmoul, before the interruption, we were exploring that you should have disclosed your knowledge about the plans of the listings, and when you produced your form E you knew the plans.
KZ	The statement I made on May 17 2022 was late. I wrote this statement I delivered it late because I had a very serious problem with my lawyers at the time. When I found out about the listings it was on 9 April, while Coinbase had announced that they were looking to do it, it never materialised and it might not have happened. I wasn't sure – when I filed my form E, I put 75,000 for Topanga canyon, paragraph 3 of the May 17 th statement, I discussed it.
J	Paragraph 4
KZ	I had a call with Caroline Parkes and she asked about the quantum and I said it was between 75 and 100 and I disclosed in my form E, this is privileged.
BM	If it is privileged, you shouldn't say
KZ	She told me we have so much work to do on Imerman and questionnaire and it should wait, without waiving privilege that is all I could do. I am superstitious, until it happened that was not an asset I could list in my form, the assets move by huge amounts every day. I was ready to exchange on July 4 th



BM	I am going to stop you there. Methodically. Is it right that your solicitor has no recollection at all of that conversation?
KZ	That's what they said. No, they said they had no recollection of quantum, not the conversation. I sent the WhatsApp to my solicitor on 9 April of the 2021. K1 which stated it was 75, from a tax perspective.
BM	I want to ask about the solicitor, which you talk about in paragraph 4 [BM quoting paragraph] 'they have a record of the conversation', not just the quantum, they have no recollection of any of the conversation in relation to the listing
KZ	No
BM	You've just told his lordship that they did have a recollection of Topanga but not the quantum but here you say no recollection?
KZ	Yes
BM	At the time you disposed the truth of your form E, you knew every detail about the listing apart from the amount, yes?
KZ	No
BM	You knew there were listing rounds between 202 million and X
KZ	I was not focused on this with the divorce going on, I was in Morocco, switched lawyers, I was in the middle of nowhere, so I didn't infect anyone with what was going on in my life,
BM	You knew 2 days after your form E, Coinbase had made a regulatory filing according to previous filing, 268 million dollars, you knew in that filing Coinbase had said his private stock 342 per share, you knew it was a buoyant market.
KZ	You are impounding things I knew on me, not correct
BM	3 rd April, release it would go on sale 14 th April, you knew that didn't you?
KZ	You think I was focused on Coinbase, my father had passed away, family falling apart if that is what you think, then fine.
J	Being petulant in your answers is not going to help me, what is being put to you is that you knew, did you know or not?
KZ	Did I know about Coinbase, potentially. I knew that things had happened in the past, many things can happened, I am superstitious I didn't want to assume things, same thing as I know Coinbase 15 million euros. I don't have access to my shares I don't have access to Topanga canyon, my friend Mike Deeg when we invested in Coinbase we never spoke to them or had feedback, tried to get updates from Steve Jones but we weren't getting them, wasn't 100% sure.
BM	Idea that you were semi-detached at end of march and beginning of April with Coinbase is not true. Look at 650 please. Extract, copied into a D11 that Nadia issued, at C. 6 th April 2021, extract of material you were asked to produce. We see a copy of the email overleaf. At beginning of April you knew things were progressing to a floatation, didn't you?
KZ	I knew, I responded to an email on 9 th April, if was before FDA on 6 th April, an email came in an I missed it. I responded on 9 th April.
BM	881, the day after you received that email requesting [X]. This is the asset schedule prepared. Topanga canyon at the bottom box, 4 th line item, narrative sum in capital account 'company business unclear' it was wrong for you to allow that presentation to go before the judge. It was wrong of you not to instruct someone to say this in proceedings, only the day before you were told it was going to be floated. That was wrong.
KZ	6 th April I didn't know this, my first form E. I had just instructed new lawyers; I wasn't focused on this. I am sorry this happened, I wasn't hiding this from Nadia. I even said to my daughters on WhatsApp saying this will be an incredible day,



	I was trying to tell this happened. On the 9 th I knew and spoke to my solicitors, unfortunately.
BM	Do you take, I am going to be saying to the judge that this failure to disclosure has left such distrust and costs that we cannot disregard it. This was a bad error judgement in the very least.
KZ	Clearly, bad error at the very least, I have complied with every court order, meet anyone any time any place she wanted, offered anything.
BM	Did you know there had been 16 funding rounds at very significant prices.?
KZ	This is the email of November 18?
BM	Look at the nature, did you know of the previous stock raising?
KZ	I knew of the tiger round, but me going to Morocco, dad's passing, I was focused on other things, the detail for his lordship to appreciate, I wasn't focused on whether Coinbase would be tomorrow or next day, as investor in Topanga canyon I had no idea.
BM	Did you honestly think your investment on 15 March 2021 was as little as 75000?
KZ	The exchange we just went through financially, I put it on my form as 58000, they just raised money at 65000. It is not available to me the liquidity, how can I put it?
BM	Did you really think on 15 March that you thought your true value of your investment in Topanga was 75000?
KZ	I felt that the value I should report was the value on my tax return, thought that was the right way to do, I apologise.
BM	Dividend in kind, 21872 shares, 7.059 million dollars. Uncontroversial. 838 in the bundle. These are your replies from 4 th June 2021. We are over 2 months past the floatation of Coinbase. You are asked for a schedule of investments at 2.4 of form. You attach a table at 884. On that table you don't mention Topanga at all.
KZ	It was a mistake, a bad mistake addressed in communications. There were a few omissions, the response here was associated with 1500 pages of questionnaire and 3000 pages of Imerman. I am sorry, this has cost us as a family a tremendous amount of grief and money.
BM	Error in relation to that question and table, look at 843 please, question 3.5: 'Insofar as the respondent has not provided value of investments and their value can he do so...'. Your reply: 'All of these investment and value have been explained in form E' That was not an honest response.
KZ	Incorrect. I was overwhelmed with what was going on, it was not me trying to hide from Nadia. I apologise.
BM	One more question, in the 4500-page bundle this is one of the more straightforward. It couldn't be clearer what was being asked. What was going through your head - why did you not say it was worth 7.5 million? Why did you not say?
KZ	We were planning to do it in the financial disclosure, every time I brought it up with my solicitors, they said we will do it later, do this first.
BM	I am going to say there was a more malign reason. 1808. We've been looking...
KZ	This was WP by the way
BM	So many things have been said about WP things that ship has sailed. Events in March, bottom of that page. This is 6 th May, email from you. Suggesting mediation, you say please see the asset list.
KZ	This is WP



Bm	Nobody is taking that point so I am going to press on 'please advise what else you need...' you enclose the asset schedule prepared before by Mr Ray. Top of that page, split of the number titled 'in case you are serious' you continue, clearly all the numbers have changed, the bank accounts can split 50/50..pension we should split...tax consequences, let me know when...if this goes to lawyers' I am going to be saying this is one of the most important pages in the 4000, you are setting the parameters for a negotiation aren't you?
KZ	I don't agree but
BM	Tell us why you don't agree.
KZ	On June 3 rd I sent her a schedule of the assets. I begged for her engagement from the get-go and never did she engage a single time. I went to see her father in Morocco 7 or 8 times to do this with the least possible damage to the assets, she didn't mean it. She was foraging through my stuff, under my bed, she took a computer I gave to Lila Mae.
J	Question was were you by this document seeking to set the parameters?
KZ	No
J	What were you trying to do?
KZ	I was trying to get engagement from her so we could do this with least amount of damage. I have never looked to hide my coinbase assets, she had never connected Topanga to coinbase, I am sorry.
BM	1807, you reference coinbase there, but its crypto currency, coinbase and crypto were interchangeable terms, you didn't explain that it meant coinbase.
KZ	On June 3 rd I admitted on Topanga canyon, I said its not working, go to St Barts and get divorced in a civil way. On a June 3 rd 2020 I wanted it civil, she took pictures of Olivia and showed them to my daughters. She never asked questions about the spreadsheet. In November 2021 my friends sent her the spreadsheet she did not engage.
BM	We are ranging off, I am trying to draw you back to May 2021. I will put things to you, and you can say whether you agree. You thought Nadia suffered from PTSD didn't you, you told her solicitors that and other people?
KZ	I told them 17 Feb 2022. We left, I lived with her from March 13 in London to June to the US. She asked me to look for apartments in LA, then we bought the house in Wyoming and borrowed 5.98 million dollars, I asked her not to get divorced.
J	Did you say Nadia had PTSD?
KZ	You received letter on July 12, NZ said she had PTSD this is, I wanted to clarify.
BM	Your presentation was that Nadia is a vulnerable person who can be taken advantage of.
NZ	No, they were ordered to do several things she had to follow through and by November 17 2022 reinstated orders, copying in Ms knight. I did what Mr previous solicitors did because they had done nothing. I am explaining why I wrote this letter to Burgess Mee. I wrote that to him because I was despairing, we were spending so much money, and she had borrowed 280000. It was exacerbating her situation, I explained she had PTSD.
Bm	At the time you sent this email on 17 th May 2021, you knew that coinbase had floated and your holding was worth 7 and half million.
KZ	Yes, but less than
BM	Worth several millions of dollars, you knew that and didn't point it out to Nadia
KZ	Yes



BM	You didn't produce it in any schedule, you forwarded her a schedule which didn't even reference Topanga
KZ	Yes
BM	You told her she shouldn't discuss this or take this to her lawyers
KZ	Yes
BM	If she would have gone along with this you would have bought her out of the coinbase for 358000, this was exploitative and bad conduct.
KZ	No, I was trying to get engagement. I have not misled. I always told her 50/50 with her.
BM	Are you telling his lordship that getting engagement from Nadia would happen by misleading her about the figures on the spreadsheet?
KZ	I was trying to get any engagement from her, it's a precedent email. It was not feasible for her to agree with me without lawyers to get the contract. In 4 years, it was very difficult to get any resolution before FDR I was trying minimise the cost, it was hard to make the money I make. All that money had gone to lawyers.
BM	These proceedings had only been going on for a couple of months at the time of the letter.
KZ	Out of context, for 26 years this was the fear of my life
BM	You thought that engagement with Nadia would be helpful with the figures in the schedule
KZ	No, the house in Wyoming the K1's everything was shared
BM	Why was that attempt at engagement helped by grossly inaccurate figures?
KZ	Engagement can be helped by figures that are going to help you
BM	I understand. Is that an appropriate time to take a break?
J	Yes 13:02
	14:02 hearing resumed
BM	We had Monday as a free day, but I won't finish today.
J	Complete the evidence on Monday, Tuesday prepare submissions, hear them Wednesday and then I will be reserving judgement.
BM	Before the short adjournment we were looking at the timing of your disclosure about Coinbase and the discussions you were having at the beginning of May. I will be submitting to the Judge next week subject to what you say in evidence that your behaviour in April and May was not only dishonest, but was almost designed to exert maximum pressure. 1591 in the bundle. Letter on 26 April after first appointment, 10 days before you communicated with Nadia about mediation, 'I write regarding the interim financial arrangements...[brent reading the communications]' 'he is clear this sum is unaffordable, US AmEx with cap of 1,500 dollars...the burn rate has become greater' what that letter doesn't say is that you have just received shares worth 6 million/7 million dollars. Do you agree that was a significant and misleading omission given you were trying to reduce the amount Nadia was spending as capital?
KZ	It's an interpretation. I was trying to control the haemorrhaging of funds. It was segregated, just because I had an asset we cannot spend so much more, as AC articulated, I was always trying to reign in our spending. My accountant was telling me many times we couldn't afford the lifestyle we were having. It was not connected, I was not trying to be misleading, I was trying to control the shock of just having to purchase the 5 million dollar house in Wyoming, I have tried to



	appease my wife. She had cornered me, had boxed me into these proceedings which have led us here now. The guidance I received was to do this.
BM	This was a fortnight before the FDR, when you were trying to reduce the maintenance, that collection of facts is inappropriate
KZ	The collection of facts gives horrible optics.
BM	1600, Withers response, dealing with the letter which is on the opposite page at 1599. It's dealing with the loan for legal fees, you said it was unnecessary for a legal loan. [BM reading letter at 1600]. 'I note your client was critical of spending money on unspecified suspicions...depleted her own capital assets' do you agree with the implied criticisms that it was wrong, having received those monies, it was wrong to restrict the monies to NZ.
KZ	I did not restrict the monies to the children, I was trying to control the spending. We had just borrowed 5.72 million, the most we had ever borrowed. If we wanted to keep the houses then we would need to make a budget. We would have to make a plan, I don't believe that the optics you shine on the situation is accurate.
BM	Few more questions on this topic. 886, letter of 16 July 2021. [BM reading the letter]. 'this was a vehicle owning Coinbase shares...' why did you wait until 2 working days before FDR to make this disclosure?
KZ	Because Nadia was not ready to exchange on July 4 th , so we waited to exchange. Nothing was ever...
BM	You make so many criticisms of NZ of being late, do you take any responsibility for the inevitable problems that will arise from disclosing this 2 days before a court hearing designed to reach settlement?
KZ	I clearly take responsibility, I want to say the context.
BM	Tell the judge the context that doesn't make that wrong
KZ	My solicitors had been chasing withers to disclose from July 4 th , reason it was on the 16 th was because Nadia was not ready to be sooner. Between July 9 th and the 16 th we had a meeting with Nick Warr. He agreed she take all the [x] in American and I take everything else and I said no. I was not trying to misguide, I didn't understand the process like I understand it now. It has been an expensive lesson.
BM	In April HFC write the letter about maintenance being reduced, you know by this point that there is a 7 and a half million asset that has crystallised. You make that disclosure 2 days before the FDR and you say 'I was waiting to exchange', can you see the culpability for the delay lies with you here?
KZ	I don't agree with you. I was following clear guidance, they were waiting for Nadia to be ready, I am a lay person, your sophistication I do not have. I made a mistake by not disclosing earlier. I'm sorry I did that.
BM	You say that over a million pounds of extra costs, you are saying to his lordship Nadia should bare that responsibility. Do you think that is fair in the whole?
KZ	I think she bears the brunt of the responsibility for not engaging. She filed LSPO on August 14 th , she did not follow the FDR rules, to me it was never an intention to settle or progress constructively. So she just wants to not communicate, she was saying the way to respond, we have been told by J that it would be better to negotiate. I have wrote 27 times to try and reach with her and have proper engagement, she has never engaged. She tried to say I was bullying her after saying I was the nicest person in the world. She had premediated this for a year. She lived with me a ferreted through my stuff, trying to figure out everything that happened. I sent her a spreadsheet of all my AmEx cards, she has not done anything that was asked by me or anyone.



BM	888, letter from withers on 16 July. They describe first two paragraphs [reads the letter]. Fair criticisms aren't they?
KZ	I don't think so
BM	Response at 890 and 891. Your solicitors [reads the letter] point 8 at 891, Topanga canyon. Do you agree that the tone of this is improper in circumstances where you accept that you have not made the disclosure and you have apologised to the court?
KZ	I suffer from ADHD. All the letters from Withers were aggressive. There were letters from HFC to withers which did not need to be this aggressive, it is offensive but it has to work. She was looking to hurt rather than to work together to get this divorce.
BM	This is a run of correspondence following you attempting to mediate, with inaccurate figures where she has been saying all along she doesn't trust your disclosure. You have now disclosed upwards of 7 million, your solicitors response 'no basis for these allegations have been offered' Nadia sees this as gaslighting, people telling her something that she can see is obviously wrong. Do you agree?
KZ	No, I don't agree with you, you have to have the benefit of reading all the letters. Judge Cope served the costs order, again she penalised Nadia, from the get go she was looking to harm before coinbase.
BM	1343, paragraph 25 'I approached the form E literally...' [BM reading] literalist approach you are touching on there. The value of your other private equity unquoted invested is explained and qualified in your Form E. 175 please. I am going to be saying to the judge this literalist approach only seems to apply to Topanga, you'll see the Panama company 'the company owns squatting rights...' [BM reading the written qualification] 753, Hydra Ltd, you say [BM reading] 753 again, top of 754, 100 euro ordinary shares. 'this reflects what I paid for the shares in 2020 and remains my view of current value' you were with all these shares able to come up with an estimate of the current value, for all except to Topanga. It doesn't stack up.
KZ	Don't agree, didn't have much information from Topanga, it was done in 4 weeks 3 weeks. Route IA was not there, nothing there, bitwyre,
BM	Mr Zahmoul, where you looked at these and you had some view on value, you tried your best to attribute a value to the other equity interests. This only really applies to Topanga, why is that?
KZ	Not correct, I have announced I just put the initial numbers
BM	You say 'this reflects what I paid in 2020' you applied a critical eye to come up with a figure.
KZ	No, it was a recent investments
BM	1384. July 2020. Running into Steve at a party, someone who introduced you and Mike Deeg to Topanga investment. [BM reading exchange] you say 'better not be' because you knew this was a very valuable investment in underlying coinbase didn't you?
KZ	No, I didn't know that. There was a few emails over the years. We didn't get an update one time on this, not like venture capital every six months where you receive an update every 6 months. This investment I mentioned in May 7 th statement. Maybe it wasn't a serious investment
BM	Your sworn evidence is your best estimate to March 2021 was 75000.
KZ	Ok, I explained this in my May 7 th statement.



BM	Tell the judge please, whether you thought on 15 March 2021 whether this was worth 75000.
KZ	Until it is realised, it is 75000, until such time it is not worth more than 75000. That is what I have always believed in all private venture capital. Many friends in finance have this approach, be conservative until the investment is realisable.
BM	I am putting to you that is a dishonest presentation. 866 please.
J	14:35 bathroom break
	14:43 hearing recommenced
BM	There is a document, a letter from HFC to Withers from 2 July. I don't know how to deal with it, I have a copy here.
AC	Happy for it to be read
BM	Letter from HFC 2 July 2021 to withers, 'given the sheer number of our clients bank accounts, I do not propose providing updating disclosure, there has been significant...my client is happy to proceed without my client updating her updating disclosure also' You were proposing contrary to what you were saying earlier, you wanted pFDR to go ahead without updating disclosure, with no update about Topanga. How do you explain that letter of 2 July? let's do the FDR without updating disclosure.
KZ	I can't explain it I don't know, it was never the case I have recordings all kinds of things I am happy to share them it was never the case to share them.
BM	You can't explain this letter
KZ	No, I don't believe, it has to have a context.
BM	I will read it again. I'd rather have the letter produced. We will deal with that on Monday, we will have correspondence either side so he can see it in context
BM	Move on. Large part of Nadia's case is undisclosed capital, I want you to ask you about this so her case can be put to you. 3297 please. AG tax memo prepared for you in April 2021, form E tax queries. I will put the whole thing to you. 'all Karim's assets are clean remitable capital...all funded from this source..2 and a half reserve of clean capital...his UK clean capital, he received offshore earnings...some of this he remitted to the UK...after 2016/2017 and UK income was unable to keep pace with his expenditure [BM reading the memo]. The first element, Nadia says that your UK income met your UK expenditure, she says your US assets predate 2005 and then look at 3496, she says the outflows from your UBS account from Switzerland approximately 12 million pounds sterling, if you add up the outflows from 3496.
KZ	The outflows, you don't need to inflows
Bm	The outflows from UBS totalling 12 million, she says there is no evidence anywhere on the balance sheet showing what happened to these outflows. It wouldn't have come to the UK, it wasn't being used in America to purchase assets as they were in situ. Your explanation is at 3467 [BM reading response] 'there is no 12 million pounds missing, payment of premiums on Penn mutual' Nadia doesn't accept that, she says UK income met UK expenses, the US assets are already in situ and the UBS outflows are not accounted for by the minor expenses, and certainly not brought into the UK as he could have to pay 45%. What has happened?
KZ	We were running out in 2011, I left as sphere digital. Let me leave the UK from the tax perspective, something used by offshore deep sea divers, they can get paid in the UK and work outside the UK. I discussed sphere digital with Nadia in



	April and May 2018. I had spent too much money in the UK. We had exhausted the clean capital that could be moved. The Liechtenstein disclosure facility I had to provide every account that assisted in my name in the world, it could be criminal if I had done a remittance if I couldn't prove it was clean. There was no way to prove that the money coming into the UK was not clean capital, had I stayed in the UK that remittal account would have been reputed by that tax, that is the driver for why I left the UK. I have showed the full inflow and outflow from my UBS account, we can go line by line. It's not in the bundle it predates 2019. I provided my UBS account in the form E. There was no hidden balance sheet, that is my exhaustive income, there is no money being earned elsewhere. I invested in an EIA in the UK, that could come as capital offshore. I invested that it was repaid in 2017 2018, the capital invested could stay in the UK, each one of these transfers can be explained, I can send you each inflow and outflow in 2012, there is no hidden balance sheet.
BM	Nadia would be saying at the bottom of 3297, during this 13 year window of time, you earned 20, you paid tax of 8.5 you spent about 9 meaning there was about 2.5 million clean capital in the UK as of 2016/2017. That was drawn down to meet you spend of 942 per annum, by 2020 this was exhausted, she can't understand if your UK expenses were met by this source of income and clean capital, where the 12 million has gone to. She understands that some has gone to investments, that still leaves several million and she cannot explain where it has gone, can you explain?
KZ	I can show you the inflows and outflows, the balance of UBS was never 12 million, I never had 12 million in an account at any time. How could I have accumulated, what is the logic? You are saying the sum of the flows into an account is the stock in the account. You are telling me year 1 and 2 and 3, money going out coming, the sum of all this is my asset?
B	Nadia's maths is that there is 12 million of outflows, that assumes there is no reinvestment of those moneys. Your response says the money goes out and goes back in so it is double accounting to add up all the outflows. What happened to the money?
KZ	What do you think happened, we spent it
BM	Can I speak to my client, I know she would like me to
J	Yes
	[BM conferring with NZ]
BM	Is the position that none of the UK expenses were met using the UBS monies?
KZ	Of course not, many expenses were paid from UBS monies – New York apartment, the taxes from the 1031 was the UBS monies, the money in the BOJH, the UBS was the source.
BM	The Barclays shares that were another line item of non-disclosures, are the Barclays shares paid into UBS?
KZ	everything in UBS was part of the 19.8 Million. I was hired into Barclays service level agreement with Barclays Jersey. I was seconded by a jersey company. The account Nadia said she had access to was a jersey account, was not UK onshore, I could have the non-ordinary resident status, I could separate the money and send to UBS. On June 24 in the questionnaire there was a request to give provided the exhaustive list of all the share awards, all the units cash value, Barclays was doing a lot of tax with the employees. I was paid in a proportion of the 50 60% in cash. The whole exhaustive list of everything, I left Barclays 2014, last bonus was February 2014. The portion was not in cash it



	was in shares it was paid in a 3 year period, this was why I could not leave the UK to go to Portugal, as the income was earned as an employee of UK so I would be taxed on proceeds of invested shares. We lived way beyond our means, all that was provided as an exhaustive list in replies to questionnaire in June 2021. I changed careers completely, made 2 investments, Ventus 1 and Ventus 2, it was exhausted. It didn't go into UBS. I am happy to provide to help quell Nadia, the list of all the cashflows the inflows and the outflows.
	[BM conversing with NZ]
BM	Move on, Gemini. 751. To contextualise this, Nadia says that you criticised her throughout these proceedings for her suspicions and allegations of non-disclosure that there are other examples of you not telling the truth and I want to explore this with Gemini. Form E at 751. Broad descriptor at 2.4. 'hold or have an interest in' so court can police the totality of your disclosure. Your completion of the form was incomplete, you didn't reference your holding of crypto currency in Gemini
KZ	Correct, Gemini was no longer mine in March 21, I had gifted to my sister in November 2018. When I gifted it, I explained in my April 10 statement, I gifted it to her I explained on June 2014. April 10 2023, made a statement.
BM	We will go there in course
KZ	Video with Mr pinto, Nadia had forced..
BM	2135 is the paragraph you want to reference
KZ	Link there to a whole conversation, during the zoom. My initial response was June 14 th , I explained the Gemini account was no longer mine. It may be wrong legally, but it was gifted to my sister. 1 year later on a zoom call, Mr Pinto attended, I explained that Gemini was a former account of mine. The paragraphs of the relevant parts of the conversation, I was telling Mr pinto and Withers this was no longer my account. Many things that happened between 2018 and 2022 I was only able to get my sister legally on the account of [April] 2022. I gifted my daughters 1 bitcoin each in 2022. Nadia wanted some in 2017 I gave her a quarter of bitcoin. I was a believer in crypto, I was an early adopter.
BM	Because your case is that Nadia has been unreasonable and her case is that you have not disclosed, I will take you methodically through the document. 751, you are asked to provide details of investments you hold...you did hold them, so they should have been disclosed.
KZ	I genuinely believed I did not have an interest
BM	There is a difference between things that you hold, for somebody else and something you have nothing to do with, it should have been in there.
KZ	I disagree
BM	Would have been totally otiose if you only had to put things you had a beneficial interest in
KZ	No...
BM	148. Here we have a series of questions you were asked in May 2022 about deficiencies in your clients disclosure. On 25 th may 2022, question 6...details of NFT crypto currency' your reply at 152, answer 6. [BM reading] 148 question 12, details of any trading activities on behalf of third parties, your answer page 152, question 12. 'my client has not undertaken investments on behalf of third parties except chia'
KZ	I don't understand this
BM	BM rereading. Finally, 149 you are asked about question 16, any other relationships with any other banks or entities, your response at 16, 'he has



	disclosed all his crypto assets' thrust is have you made all disclosure of crypto, any holdings for third parties, no mention of Gemini for your sister
KZ	Didn't think it was my account, it was my sister's account.
BM	you had an opportunity on form E and you had an opportunity here you don't take advantage here to say I do have these 5 bitcoins but they are for my sister, why did you not do this
KZ	I don't know, I did not believe they were mine.
BM	861 please. Question 9.5, any investments 'or of a nominee' February 2022, it's a further nudge to say to you if you are holding anything put your cards on the table if you have no interest make it plain, why did you not?
KZ	I don't know, this process is overwhelming and traumatic. Like I said my first form E was done in a month, it was an honest mistake.
BM	Can you understand the adding together of these non-disclosures have added to Nadia's concerns about non-disclosures and that was reasonable to think
KZ	I could agree with that if I had not offered a hundred times to answer any questions that she had, I had emailed Ms Bloom. I had sent 15 letters, numbering the attempts to meet and explain anything she would like, with anyone, with the tax expert, I was trying to make sure she was comfortable. I don't understand, I have the benefit of 27 years of behaviour. I was trying to have communication, I tried to speak to her father, her brother to get an intermediate. You are pointing out pitfalls in my answers which are genuine pitfalls but it was not trying to hide something. After that when I was on the phone with my lawyers on June 14 th it was a genuine conversation, I am sorry.
BM	One of your criticisms is that she didn't take advantage of opportunity to discuss things direct. I am going to be submitting, but when trust has gone it is hard to get back. For NZ the scale of your non-disclosure, in relation to coinbase and Gemini and Zappo, she couldn't engage and take you at your word, that was reasonable wasn't it.
NZ	No, the attempt to engage wasn't to take me at my word it was to answer her questions, there was no discussion and there comes the final hearing. The day of the PTR there is the application with non-disclosure this has been the theme since the get go.
BM	I think your answer was that it was not reasonable for her not to engage with your requests. Look at 2235 next. This is a breakdown of the Imerman that your solicitors had analysed. They describe the 'Gemini KZ, our client no longer holds Gemini' you knew at the time this was produced that you did have a Gemini account, why did you not tell them to express it in those terms, it was misleading.
KZ	I didn't think it was misleading it was my sisters account not mine.
BM	2134 please. Paragraph 26. [BM reading] 'I stated the Gemini account had once been mine but was no longer mine', The document you were referring to was at 2135. What you say about the Gemini allegation 'I stated it had once been mine but no longer mine...the platform no longer exists' You weren't referencing a specific Gemini account, what you had originally done is denied any Gemini account, you didn't say you had one but you were about to transfer. Why not provide more clarity?
KZ	I did provide clarify, on June 14 2022 when I spoke to crypto expert and shadow expert in 2018, this was...
BM	When your solicitors produced this in June 2021, you knew you had a Gemini account didn't you?
KZ	I knew but I didn't see it as my account



BM	From a KYC perspective, as far as Gemini were concerned it was your account, is that correct? 2135. Paragraph 28 onwards [BM reading]. In 2022, you explain you were able to do this she had been added to your lease in Portugal. Look at 128 please, I am going to suggest this is a fictional explanation. Order 16 May, relates to a hearing on 4 th March in Bristol. The order wasn't finalised until May. Judge made a determination, part 25 applications, SJE Marlon Pinto, [BM reading order] 4 th March, judge made a determination that there would be an expert to look at your crypto holdings, you initially opposed that?
KZ	Not opposed that, initially what do you mean?
BM	On that day and before that, you opposed it.
KZ	At the time It was hard to understand what was going, you said she agreed to it herself. She had not made a determination, I was taken about on the march 4 th hearing, she made another day as cipherblade were considered a flimsy entity
BM	On 4 th march judge said there would be a crypto expert, that was something you didn't want
KZ	Erm yes
B	Is it true?
KZ	That I pushed back on crypto expert? I reluctantly agreed on 4 th March
BM	2724. Remember the chronology, on 4 th March the judge agrees to Nadia's request for a crypto expert to review crypto holding, 8 days later we see you contacting Gemini saying 'I have moved to Portugal and need to change the name on the account, should be Lila and Karim Zahmoul'. 8 days after, you say you have moved to Portugal but couldn't change the address on the site, you moved to Portugal in 2020.
KZ	In February 2020 I came back from the US I had lost my job with sphere digital I needed to find a place to reside, Deloitte informed me this law was changing, I found a place to rent until I could find a place more permanently. We had to go through all this process and get approval from the government to start a clock of 10 year. I was in Portugal from March to June 6, I lost my ESTA. I was staying with Nadia with her surgery, in October my dad passed away I went to Tunisia until January 21 st , the date Ms Parker sent me this email about jurisdiction, then I go see her father and establish myself in a dead zone in Morocco and in May 2021 she accused me of spending. To answer your question, there was no time to do anything with my sister.
BM	No time since 2020 to do anything?
KZ	No
BM	This was an insurance policy
KZ	What was?
BM	Listen to the rest of the question. On the 4 th of March, the judge has mandated an investigation into crypto currency, this was a holding in your name that despite repeated request you haven't told anyone about. You for the first time take steps to get the account into your sister's name too so you can maintain the fiction it was hers all along. This was to make sure if the crypto expert spotted it this would cover you.
KZ	No
BM	Its just a coincidence that 8 days later you do this?
KZ	No, it's not a coincidence, I just didn't have time. I look after my sister, you are right that it happened sequentially as if it was in my name it would have been even more dramatic.



BM	3194. Correct you did not disclose the existence of the Gemini account, even after the account was transferred into joint names with your sister, you never disclosed it.
KZ	In what sense?
BM	In every sense, it took Nadia getting a subpoena in America to reveal its existence.
KZ	I don't understand
BM	You never disclosed this, it required Nadia getting the subpoena for you to admit it
KZ	I don't get it – in June 14 2022 I disclosed it, the subpoena was in 2023.
BM	We are going to look more closely at what you were saying and accepting.
KZ	June 14 2022 I told Nadia and her legal team, she got the subpoena in February 2023.
BM	3194, 29 th June. [BM reading] Fair criticism isn't it?
KZ	Absolutely not, it is a hurtful nasty email that gets right under my skin. To be clear the email I wrote to her, I disclosed I invested, I became director in special company in US on November 6 th , Greenbase filed something before I signed, and that I was 6 days late in disclosing it and asking questions on SPAC . It was perpetrating the judgment of June 9 th when I attempted to explain what a SPAC was, all this communication was costly for what it was. I was trying to articulate that.
BM	2729 please. Continued correspondence, bottom of the page, message from Gemini, purports to come from Lila but signed Karim, why were you sending messages being her?
KZ	I don't know I don't remember
BM	2239, extracts of conversation with Marlon Pinto. Relates to June of 2022, after you had added your sisters name to the Gemini account. You'll see there its an account of conversation you have with Mr pinto, [BM reading the messages]. You don't say anything about 6 weeks ago, you say it was outside the scope, that was wrong wasn't it?
KZ	I don't think it was wrong, I said I disclosed it I didn't go into details of when
BM	1998 please.
Ac	Before this is the shadow expert, there has not been any permission for this to be adduced, it has never been an application for it to be adduced, it should not be relied upon. Because it has been taken out of the section 25.
BM	If it is controversial, I will ask a free standing question. Nadia had concerns she articulated to you that there was a Gemini account and you had not disclosed any involvement, that is why you said to Mr pinto 'yeah there was but I gave it in 2018' it wasn't voluntarily given, it was because you had been found out and you knew you would have to say something so you were getting in early. That's true isn't it
KZ	It is not true.
J	Still under oath over the weekend. Commence again 10:30 on Monday.
	15:56 hearing paused.





Attendance Note – Zahmoul Final Hearing Day 5

Client: Zahmoul
Matter: ZAH01.1
Date: 26.02.2024

Time: 10:30

Initials:

J - MacDonald J
ACKC -Alexis Campbell KC – Counsel for Respondent
Sassa-Ann Amaouche – Counsel for Respondent
BMKC - Brent Molyneux KC – Counsel for Applicant
ZB – Zoe Bloom
RV – Rosie Vorri, Pupil Barrister

	10:30 – Hearing Begins
BM	Good morning. NZ sits behind the curtain. Clip of correspondence I was referencing last week, first letter 30 th June, go to 7 or 8 pages in. Said to his Lordship, wait until updating disclosure and tell her about the Coinbase equity. You instructed your solicitors not to do any updating disclosure at all.
KZ	Not correct
BM	[Reading 2 July 2021 letter regarding not doing updating disclosure]. Could not be clearer you were proposing there would be no updating disclosure above and beyond your questionnaire
KZ	Incorrect, my solicitors, where they said crypto here they meant crypto including coinbase capital. I have evidence in the form of transcripts from august 23 rd , March 3 rd 2022, May 3 rd 2022, and July 7 th 2022. Excerpts of conversation with my solicitors.
BM	This is between you and your solicitors
J	Difficulty with this, if one goes down this line of questioning, you skirt around privilege, you say in your question ‘your instructions to your solicitors’
BM	I was saying your instructions do not update – entitled to put this questions as i am, as it is entirely contradictory
KZ	My communications with my solicitors, zero doubt that the intention all along was to provide the Topanga canyon converted to coinbase. There was precedents of sharing these small segments of communications. To prove a point that is fundamental, I will be happy to share the excerpts of the conversation. The costs involved save the up to date crypto, what is meant by my solicitors is my Topanga, and coinbase and crypto, there was no doubt there was disclosure of coinbase. We are talking about we are on day 1054, this was day 50, I was in Morocco at the time. I was travelling to Lisbon, had a conversation with Nadia and nick Warr on July 9 th .
BM	The only evidence admissible is the open correspondence. I am not going to pursue any questions on that as privilege has not been waived. Your attention had been pulled so you could not concentrate fully on replies to questionnaire...you were waiting on disclosure. Not what you were saying that



	at X [bm reading letter]. You are saying you spent a lot of time in preparation, so there was no excuse in not providing the updating in relation to Topanga.
KZ	July 2 nd , you have to put it in perspective, we started FDA on April 7 th , direct listing was on 14 th , we were extremely busy coming up with response to questionnaire and the Imerman. It was 3200 for one and 1500 pages for the other. I was not in the UK I was in Morocco; it was an overwhelming task.
BM	You were kitesurfing at the PK25 resort
KZ	I was trying to save money, to try and get myself out of the stress I was in. I was not allowed to see or speak to my daughters. I was trying to deal with it as best I could with my fathers passing. When it was announced that it was proceeding in January 2021. I decided to go to Morocco to speak to her father to instill reasons in her, I thought her father had the capacity to do that. DK25, I was doing Ramadan, I was the only guest in the hotel with the staff. This was done while I was remote communicating with my lawyers, I was introduced to them by Mrs Stebbing. I did the best I could, I had never met my lawyers. There was a windfall on 7 million, we have squandered it in the last year. There was a hundred times when I said I would speak anytime anywhere.
BM	Your clear intention by this letter, was to deceive your wife, and never reveal the windfall from Topanga canyon. Move on, 842 please. Nadia says you are a meticulous record keeper, as someone who works in financial services, reasonable?
KZ	No, I'm human.
BM	Fidelity investment account, provided by you to Nadia in June 2020, you say this was a mistake. [BM reading]. Which is true, the presentation of you having a separate fidelity brokerage account in the assets or what you say in your replies to questionnaire? 148.
KZ	Fidelity...
BM	We can move on we've dealt with it. 148. Item 10, details of cold storage wallets. Answer at 152, 'my client does not have any cold storage wallets...' look at 1837 please. There's a purchase of ledger wallet, Nadia's understanding is that ledger is a cold storage wallet, she sees a purchase of cold storage wallets, is that what it is?
KZ	Three ledgers, I have them in my bag now, I am an early adopter, I bought these ledgers, they have never been used.
BM	From Nadia's perspective, she asks in May 2022, she sees you purchasing a cold storage wallet and she assumes from that that you haven't told the truth...
KZ	You are misrepresenting what is meant by a cold storage wallet, what Nadia meant was a lost wallet that hasn't been disclosed, what I have is a calculator. It gives you a code, and a whole process I don't even know. The coins stay in the public wallet but stay embedded in the USB type device which have a passcode. I am happy to share them with the court. It is not meaning that Nadia, I have cold wallet. It is not a cold wallet with any crypto currency, or that I have ever used for crypto, that's what I understood by this wallet.
BM	Do you now think it would have been more accurate to say I have these cold wallets, they have no value, that was the more comprehensive way to answer that?
KZ	No, I maintain the way I said it. I have never had a crypto used ledger, I was maybe planning one day to use them but I have never used them. You need to have crypto sitting there in a wallet on the web, because of my fear of losing them, I did not trust myself. It was important to have all my crypto in exchanges.



	Most of this stuff was in coinbase. They were <i>de minimus</i> at first, they were in MetaMask wallets at first. It was most experimental for me to understand and learn.
BM	Time and time again in this litigation you are your own author in terms of the costs, as when you are asked questions you provide things that are misleading or confusing
KZ	I have said I would clarify anything, Monica the classmate of Nadia is a forensic expert, I have sent her an email which said I happy to sit with you and answer anything that will help Nadia be relived in her beliefs. The fact I had 3 ledgers and I disclosed in financial disclosure. Cold wallet means cold wallet with crypto in them, the question was phrased as if I was hiding more assets, but I was not.
	[BM conversing with NZ]
BM	Matters in relation to your coinbase account I am going to return to. 3648 and 3649. These are important to NZ so I shall return to them. These are emails passing between you and the coinbase team. Thursday 11 th January, email from you 'Dear Ms Marsh...' [BM reading email]. 'I would be grateful if you could reiterate to withers any and all accounts'. You then produced statements in relation to coinbase, I would like you to explain a couple of things. Firstly, can you tell his lordship when Zahmoulka@gmail was closed?
KZ	It was not accessible to me, but it was closed in 2024 when I reached out to them, only 1 was accessible, the last transaction in 2017 I could not access it after that, I am talking about zahmoulk@ka.com . I started dabbling in crypto in 2014, summer 2014 first opened the account then it became my crypto email zahmoul@ka.com , I was logging on from UK and they decided it was not acceptable to have an account in US and UK so they moved it to karim@gmail and closed my account down. If you look at my Form E, I haven't been able to reach high enough from the levels with Miss Marsh, some of the money coming in and out that wasn't disclosed.
BM	Coinbase pro not included, it is not the same
KZ	Coinbase sent me the statements that included the balances, there were no beginning balances. September 9 2023, they were able to provide me a completely different statement I hadn't seen before. It had balances, the coinbase pro. Gtax was the original coinbase pro, it was a trading platform, it holds all your assets, the trading platform where you can trade, you can put an offer or a bid, and if you take a hit you get less fees.
BM	My question was a pretty narrow one, when did the gmail account close?
KZ	2024, when I went back to the support, I had two accounts, one was dormant but still there, similar to bank of Jackson Hole.
BM	The two accounts have concerned Nadia, look at page 3651. This is the second account, the gmail account. One opened first. You received bitcoin from account on July 29, 2705\$. When Nadia looks at the statements for your other account at 2340 and 2838.
	[BM conversing with NZ]
BM	2340 – There is no corresponding entry for that date for the transfer of 1 bitcoin
KZ	It says external account, its not an external account
BM	I want you to explain to his lordship,
KZ	This is the other coinbase account, this is a less comprehensive statement.
BM	2838. [BM liaising with NZ – if you come out maybe you can spoonfeed me these questions]. My lord, Nadia is going to feed me these questions, and sit next to me as they are very important questions.



NZ	Take them back to the email of Jan 2020
BM	Going to ask you to look at the email at 3648. Nadia points out there should be an attachment to this that she hasn't seen.
KZ	It is the next email up
NZ	Where is the transcript?
BM	You told NZ the account had been closed and transferred, she can't see anything being closed or transferred. Can you explain where the transfer is to?
KZ	All I can say is that my understanding is that my account with karim@zahmoul.net was the successor of , it must have a starting balance that comes from that account. I haven't looked into it, I have tried my best to provide an explanation
BM	3648, says for the 'sake of clarity, I opened...all funds were transferred to' there was no evidence of anything being transferred, any explanation?
KZ	Provided explanation, provided all the statements pre and post transfer. Not sure how to respond to this. After zahmou@karim.net it was not possible to get into the account.
BM	Can you tell his lordship when the second account was opened?
KZ	Says here December 30 th 2014
Bm	Thought that was a European account?
KZ	When the address on the account was the London account, coinbase switched to the Irish entity to cover my account. When they see my French passport, they claim I am French and it was a French account. I have written to Ms March, the general counsel to coinbase, there is nothing hidden here.
NZ	When did the .net account open?
BM	Please can you tell me when the .net account opened.
KZ	30 December 2014. The exhaustive statement, I can only assume
BM	The Gmail account opened?
KZ	October 18 th 2024, I was in America when that happened. I went back to the UK, when I was logging on through the IP address in the UK I opened the karim@zahmoul.net , it was confusing so I was migrated to the UK address. Nadia can draft any letter she wants
BM	Short adjournment
J	5 minutes
	11:14
	11:52
AC	I would like to make a note on the record, I am concerned about the amount of time to consider the cross examination of my client. We have now spent 5 hours and 35 minutes allowing NZ to give instruction, over a full day of court time. Fairness is fair to both parties, he has been in the box since Thursday. While we are all doing our best to accommodate Mrs Zahmoul, I want to put a marker down.
BM	What am I meant to say to that, I am doing my best to represent my client in the most cost effective and best way. We are going to do this unusually, there are points Ms Zahmoul is very keen to be put.
J	Intention to finish cross today, I need to rise at 3pm
BM	[To NZ] Tell me your points and I will say them
BM	KZ, in relation To the coinbase account, there is a concern that until January 15 th there was one coinbase account, her focus was with getting statements for that account, Then there was the Gmail account, she can't reconcile the



	production of the statements, this has continued to cause concern, 3651, what account is this?
KZ	Original account I opened in America. As you can see from the balance, it was received only in January 1 2024, to alleviate some of NZs concerns, the balance has been 0 since July 2017 when 1 bitcoin was sent. On April 2023 statement..
BM	3651 statement, you say is the statement for the second coinbase account, the Gmail.
KZ	First one
BM	Yes, second in it has recently been disclosed
KZ	Yes original, predates 2019, transactions span October 2014 to 2017, coinbase could not accept to have one individual with KYC, I couldn't have two accounts. You can craft an email to Ms marsh the general counsel for coinbase. I was myself surprised at these accounts, I only obtained them after the allegations from Mr Southgate on September 7 th , I only found out about Miss Marsh because of previous solicitor.
BM	3648, Nadia sees at 3 paragraphs up, you say 'furthermore, while your email said Irish entity...that account has since been closed' Nadia looks at this statement at 3651, and sees it as not closed when you were representing it as being closed, we have an account statement to 15 January 2024.
KZ	No, I cannot reach it, I cannot log onto it. It is best clarified by coinbase not me. It is a bit like NZ saying the bank of Jackson hole LLC was open when it wasn't open. It was open but not accessible, that is the best answer I can give. We should ask coinbase.
BM	3651 it says deleted. You say this is a full list of transactions from that Gmail account as provided by coinbase, that's your evidence?
KZ	yes
Bm	See here that it says deleted, do we know what deleted means? 23 December 2023. NZ is confused and she doesn't know the meaning.
KZ	Probably best for coinbase to answer that
BM	Another concern she has with presentation, 3651. Series of wallets with series of cryptocurrency. 3651. Bitcoin statements in relation to this, 2816, zahmoul.net account, here we have over 40 different types of crypto, there is a difference in presentation of the accounts, are you able to explain it?
KZ	A lot of these currencies didn't exist when this account was live and used, it was not active and used by me. That's why you have so many less cryptocurrency there.
BM	Pause there [BM checking if the points were covered with NZ].
NZ	Where is GDAX?
BM	NZ does not accept that this is a complete run, there would be transaction to GDAX if it was
KZ	no
BM	why not?
KZ	I don't know, you have read the email I sent to miss marsh and the answer back, I have had them provide me as much evidence as a possible to every question and query,
BM	And if she had another query to put, you would be content for us to jointly write? Need to check with NZ that I have put the case properly [BM checks with NZ that no further questions are outstanding]



Bm	are you able to explain why if this was an account you had in the US, why it says GB?
KZ	I will explain FR, when I opened the account I probably used my US account, and then I switched it to my UK address, so they changed it to GB. These statements are relatively new statements which have come, it is cryptic to get the information from coinbase or binance. There is a limited amounts of requests for the statements, I had to get the VIP treatment to get the statements.
J	BM I am satisfied that you have sufficiently explored this. I know you are aware, I have case management powers to limit cross examination. I am satisfied you have illuminated this area.
BM	There was a letter attached, you would be happy to provide it?
KZ	Yes, I think it from Miss Landells
NZ	no
BM	We have two hours, I will return to my issues, I will need to do this at quite a pace. I want to ask questions on multibit, 2240. This is a transcript, there are some questions you are asked from Mr Pinto 'multibit this is an old wallet, that is what I have explained' 1LSGYV wallet, the wallet you used to send bitcoin to the Gemini account, you say this is your sisters
KZ	If you go to my statement, the Gemini wallet was handed, the bitcoin that filled the Gemini wallet was coinbase
BM	In relation to the multibit wallet, and the transactions that flowed from it that you couldn't remember, that was you not wanting to disclose bitcoin that were still in your control
KZ	Not at all, you are asking me to tell you things from 2017 and the order was 2019, I didn't think about disclosing anything from this in 2021. I don't understand the question.
BM	3863 please. This is one of the earlier iterations of the report by Mr Pinto. He raises the issues of transfers to Zappo, the 1LVSGYV, the wallets it has directly interacted with. 7.9 Bitcoins to Zappo 'he may have an account with Zappo' The combination of this in September 2022, Mr pinto raising the possibility of your bitcoin transferring coins to zappo, this should have put you on notice that you transferred to Zappo.
KZ	I never denied it
BM	Never admitted it until May 2023
KZ	This report had 8 accounts that I had never had association with. It was hard to understand the validity of this account, into the interdax . They had all these accounts that had never been attributed to me.
BM	You were made aware in september 2022, you had an active account with Zappo, weren't you?
KZ	No what he says is that he had info that money went from my LV account to a zappo account, I don't deny that but I believed I had no money in my zappo account, I had no money in my Uphold account.
BM	2098 Questions raised by my pinto with assistance of cipherblade [BM reading] 'additional zappo address..what became of the 10.98 bitcoin' Nadia through cipherblade in September 2022, were all raising the possibility you had an active account with bitcoins in with zappo in. You turned a blind eye.
KZ	I didn't
BM	What did you do when this was raised?
KZ	I thought it had zero in the account, my old boss had lots of accounts, I educated him and helped him move moneys and she attributed these to me and I thought



	this was the same. I decided between October and April 2023 I decided to go through the painstaking work of going through every transaction, when I decided to do that.
BM	You forgot you had 16 bitcoin with 500\$
KZ	Yes I forgot
BM	You just forgot, well there could be any number of other accounts that you have forgotten with bitcoin in that you can't remember. 2283.
KZ	This was a sequestered account by zappo, they had changed jurisdiction
BM	2136 you admit to that, Zappo confirms I had an account...I discovered I had a bitcoin account 27000 bitcoin 640000 if you haven't disposed of it. You spent those bitcoins before you told Nadia of their existence
KZ	I paid the joint mortgage and I paid my daughters school and 20000 was paying miss Molina for defending me in Wyoming
BM	Small percentage went to pay the mortgage that you knew would not be accessible, correct?
KZ	no
BM	You knew that once you used those funds to pay the mortgage you would not be able to access the liquidity
KZ	I wanted to pay off the mortgage, I didn't know I would be able to repay 5.6 million, most I have ever borrowed
BM	When you paid the 400,000 dollars, you knew that you would not be able to draw that money again, you had been in litigation with them about it.
KZ	Nadia knew...
Bm	You won't answer the question. 1339. Paragraph 7. You are referring to the Imerman exercise in the correspondence, on 1 April 2021..'the outcome of this intrusive exercise' can we agree that you had disclosed the coinbase equity, the account you had with Gemini and the existence of 16 bitcoin today worth 850000 dollars, you hadn't disclosed any of that.
KZ	I didn't know I had the zappo, I couldn't disclose something I didn't have. I have given my sister the Gemini, my word is my bond. The coinbase, I apologise I didn't do it before, but it was preventing me from showing evidence, you don't believe that my solicitors thought it was a quantum issue
BM	1895. Costs.
KZ	Produced by Nadia
BM	It is a breakdown of how costs have developed over litigation. Costs up until FDR in July 2021. NZ were 126000..scroll across to PTR March 2022, her costs had gone 393450. Uplift in costs after the FDR. This was due to your failure to make proper disclosure in relation to Topanga and coinbase. You were the author of this misfortune
KZ	I don't think so, you are missing nick Warr and third parties
BM	Tainted money will come back to bite the two of you in the future. NZ believes that Olivia Molina was a prostitute, was she?
KZ	no
BM	She ran prostitutes, escorts?
	No
Bm	What did she do
KZ	She is an influencer, she organises people for events and promotions
Bm	She arranged prostitutes for Phil Jenkins
KZ	No



AC	Not been in the conduct pleadings
BM	This goes to my clients worry that tainted money going through miss Molina's hands
J	I am not going to make the finding that someone is a prostitute
BM	1855, paragraph 162. 1440, financial assistance with Miss Molina
KZ	I have never provided financial assistance to Miss Molina
BM	This is a breakdown of some of the Imerman material, item 25, transfer to Olivia Molina's sole name. Includes repayment, Molinas Dubai company, Notification from US transfer, transfer blue oceans [BM reading transactions relating to Miss Molina/or businesses] you have provided her with a lot of assistance
KZ	I was in love with her, I helped her get on her feet, she was from Argentina, she had no money to her name. Nadia helped me get over her, I got anti-psychotic. You are trying to character assassinate.
BM	Page 16 of pinto final report, transactions with Miss Molina [BM reading page, 57 transfer] your case is that this lady, who is not familiar with excel and is an influencer has 768000 of her own money passing through her bitcoin account, is that your case? Or is that your money?
KZ	Not my money, she can come and testify
BM	Page 25 of the report, this is a typo, that should be 3dagtd. 'upon further analysis...' BM reading '20 transfers...to786901 dollars' keep in mind that address. Page 73 please. Reading email from Miss Molina, 'I also want to confirm the following wallets...are my wallets and mine alone' is subsequently transpired you disagreed with her as you obtained a letter from Kassis confirming DAG was his, that might strike his lordship as odd that in support of your case that she claimed ownership of ta crypto wallet that had nothing to do with her, explain the circumstances of that claim?
KZ	I was in New York with Olivia at the time of \$100 payment in October 2019. If I asked you who you gave \$100 to in October 2019, I could not find it. I put my wallet address in my phone and WhatsApp and looked for this sequence of characters I couldn't find who I gave it to, I was despairing Because I was with Olivia in New York because I was with her, consequently there is a WhatsApp on both sides, because I was with her in new York, I keep a spreadsheet of where I have been every day since 2019. That's why I thought it was her. Mr Pintos latest analysis he came up with what you articulated just now, he came up with a history that looked unusual with what Olivia would do. I was racking my brain as to what it was. I believed it was my emviry account, there was an email from Kassis, this was an attempt, I was looking for alternative sources of liquidity. When I set up emviry I was not FCA regulated in the UK, Kassis providing an umbrella service under the UK. Because he was doing crypto in Australia he asked me to send some. The letter was written, I had her write it, she doesn't know what is her account, I genuinely believed it was her.
BM	That is a preposterous account, the easiest way to find out, you should have just asked her is this her wallet and she would say yes. If you had transferred money to me you would say If this your account, I wouldn't say yes if it wasn't, why would she do that?
KZ	Nadia and Mr pinto has alleged, unlike a bank account
J	Why did she say it was her account if it wasn't?
KZ	You can create a new account. Mr Pinto was trying to say with the cluster. I have maybe 200 bitcoin accounts, you can create a new account with you. She kept saying this is a colonius address and it was never colonius address, when you



	run it through a reactor they make mistakes. I asked her to write it was hers, she didn't go and check.
BM	You asked her to say that it was her account and she, having no idea at all, was happy to make a letter and say this and give it as evidence in these proceedings, that was dishonest.
KZ	It wasn't dishonest when I did it. It had 768000 going through it, over how long?
BM	You say it belonged to Kassis, has he just signed this email at your request or is this actually his?
KZ	It is actually his
BM	We'll look at what he says
KZ	The proof it is his assess is from 2019, in 2019 when we were about to do the transaction, he says I have the money.
BM	That is not proof who is the beneficial owner is, all it illustrates is that you transacted with him and he is now saying he is the beneficial owner. In the same way [Miss Molina] was saying she was the beneficial owner. Page 29, they are regulated?
KZ	By the FCA
BM	Are you telling his lordship that account through which you transacted, that was an official forte securities crypto account?
KZ	I don't know.
BM	'Following wallet belongs to us' on forte securities headed notepaper.
KZ	I wasn't sure if it was forte securities. I was transferring to Kassis to change to [chia] I would invite the court to ask Kassis or the FCA, I can't speak if he owns this wallet in Binance.
BM	This is where words mean what we want them to mean, within the pool of perpetrators saying it belongs to forte you aren't sure, we have an email from October with Kassis transacting with you personally, your evidence. Who is the owner?
KZ	Wallet is owned and controlled by forte securities, I wanted to transact with institutions with [hard securities] would have been forte, that is who I was entering into an agreement with.
BM	On that same page, the subject for each of the emails, listing process Australia, 11 October. 'I am not sure I am ready to sell yet' he gives you the wallet address, when you want to sell, 'nice one'. Subject was listing process Australia, what was the listing process in Australia, and what was the thing you weren't ready to sell?
KZ	I don't remember what happened in a conversation in 2019
BM	You have no idea what this email with reference 'listings process Australia' was talking about?
KZ	No but I can find out, I don't recall
BM	What is it in the first email you aren't ready to sell.
KZ	Bitcoin
BM	Absurd, you are the one with the bitcoin, you can sell it yourself, you don't need to transfer a bitcoin to him you could sell it yourself.
KZ	My, I had coinbase exchange where I could sell crypto, binance I could sell crypto, other companies I was trying to find the liquidity, significant charges, depending on the business of the network it would cost more or less to sell bitcoin. I was talking to him to provide liquidity of bitcoin. It was about properly listings a company on the South African stock exchange, trying to recall on the



	spot. You are asking me 3 questions. This is a free-flowing conversation, we are discussing many things, one of the things we discussed was him providing me liquidity on my bitcoin. On October 11 he sent me the email, I will give you a good price, I was not ready to sell in early 2019, nothing happened, on 25 th October when I look at his email. I say I sent you \$100 let me know when you receive it. He says he received...nice one.
BM	Why didn't you send him any more?
KZ	Put it in the context of the timeline, this was October 25 th . I left New York on October 27 th went to Morocco and met Nadia there. Olivia and I had a massive breakup, and I went into significant depression. I travelled a bit and went to Portugal, then I went to in February 2020 I was in Morocco with Nadia when she says she discovered the affair then March 2020 lockdown stuck in Cheltenham for 90 days, I didn't think of selling.
BM	I will be suggesting this is an absurd explanation, look at the coinbase transactions on page 7 of report. You transfer to him 100\$, transaction 10, 0.01310, you never transact with that wallet again, you carry on transacting 2 days later.
KZ	Olivia...
BM	You carry on receiving and sending in 2020. This idea that you have done this small transaction to explore the possibility of liquidity, you had the liquidity of trading through coinbase. Having successfully achieved it, it is the only transaction.
KZ	Only explanation
BM	Was it to test out, [so that he could sell assets for you, so you could avoid the glare of publicity.]
KZ	I would welcome you asking him what exactly he has done with me, he has decided to produce a niche in crypto, he does a lot of transactions. One he did to show he could provide liquidity, none of the transactions, they are in all kinds of places. He goes into peel chain that I have never ever done. This was how I was able to obtain that it wasn't Olivia. Follow on transactions from that account is unusual for Olivia to do. I have explained the transaction. I thought it was Olivia because it was 25 th October
BM	I am careful not to suggest that he has done anything fraudulent. Is this your only transaction with him?
KZ	He has sold my coinbase shares, we have tried looking at opening a bank in Portugal or Switzerland
Bm	At the bottom...'I am not sure I am ready to sell yet'. What was he contacting you about?
KZ	About selling bitcoins, about obtaining liquidity, I could have gone to coinbase, I have developed a relationship over the OTC transactions, I thought it would be a cheaper fee costs, we did the small trade to see if he received the fund. The covid came
BM	These were official transactions with forte securities
KZ	I believe so. The proceeds of the funds, I expect they would have come from a regulated authority
BM	I don't think you know the answer to my question do you
KZ	I don't think so
	13:02 – back at 2pm
	14:02



BM	Happy for us to make a joint approach to Forte securities about that transaction?
AC	Need 30 minutes
J	Hard cut off is 3:30
BM	Stop at 3pm
	[FS reviewing notes for information needed to follow up]
BM	1595, partially released from her undertaking [BM reading] 1599. KZ's response, unnecessary to take out a litigation loan, funds should be utilised to her legal fees, draw funds from BOJH, 'on a pound for pound basis' preventing her from making the enquiries she wanted to make in relation to your finances. 1676. Before we look at that look at 1607. This is the response from Withers in relation to the letter, 'letter of 29 th September is too little too late...your client is to starve my client of funds', going to look at the whole run in the interests of speed and I am going to ask you to comment. 1633. 'it is not reasonable...[BM reading]'
KZ	She finally disclosed that, she never disclosed from September 2021, from March 2022, she had gone through the 282,000 we had hearings on March 3 rd , March 16 th , during all this time there were requests for her to provide where she was borrowing or her legal, at the same time she sent the 12% accrued interests, this is why everything was concluded this day, I had no capacity to maintain the 5.6 million mortgage
BM	That was the catalyst for that, was discovering that the borrowing had gone up
KZ	Borrowing, undisclosed loans, borrowing from her father, she was continuing to spend money, her assets were going from 10 million, I didn't have liquidity and repaying the mortgage.
BM	757 please. Same time you engage in another transaction. There we see details of personal moneys 'I am hopeful..' you had been owed £60000 by Mr Kobayashi for 16 years.
KZ	Correct
BM	In August 2022, 1544, you loaned him 500,000 dollars
KZ	Correct
BM	Bottom of that page, 'Karim informed me that he had made a loan...his friend needed a liquidity...he still owed him 60000' at 1819 you are asked questions about this loan, look at what you say. Copies of correspondence with Mr Kobayashi, you say you both live in Lisbon, therefore there is no correspondence. Again, you were reducing the amount of liquidity available.
KZ	No I don't believe this correct, his mother passed away just before this loan was made. She was a close friend of mine, he had an apartment in Paris and Lisbon and Battersea, he had no liquidity, at the time this was before I knew about Nadia's detach loan. I had crypto I have coinbase, I thought I had the liquidity to loan him the euros. This was discussed at the time and my answer stays the same, I was not trying to deprive her of liquidity.
BM	Just a coincidence that you decided to loan him 500000 and reduce the liquidity
KZ	I am sorry, I still had more than a million in UBS. I thought it was reasonable to lend him money on a short term basis.
BM	1542. December 8 th , list of the moneys which you paid down in dollar terms from the bank of Jackson Hole, you said basically you did this at whatever price it was – it was the sale of the liquid assets in order to pay down the mortgage.
KZ	This was part of the questionnaire put to me my J, it was the proceeds of coinbase, money from Bank of Jackson whole to repay the mortgage



BM	1621. This is April 2022, withers wrote to you [BM reading]. Hold that thought, look at 1633. This a letter from Withers on 13 September to your solicitors, in relation to the funding of legal proceedings. 'it is not reasonable for my clients ability to pursue her case' your response on 1638, is to speak to the bank of Jackson Hole, 'based on recent conversations..' bringing those threads together, you knew that Nadia did not have liquidity to fund legal proceedings and her living expenses, your response to that was to alienate the liquidity by paying down the mortgage, that was wrong wasn't it?
KZ	I was trying to protect our assets, this bank has leant me the most money in my life, now they won't talk to me.
BM	1650. Email from you to Nadia, saying how much you have spent 'to save on legal fees..I have decided to self-represent myself' one of the things you say you should be given credit for is that you saved money by being self-represented but you were receiving advice from Camilla Baldwin. From the moment Nadia took out the litigation loan a consequence of that was that she had to be represented. At 1650 you misrepresent your reason for paying the mortgage, you say here in contrast to what you have said today 'given the massive increase in interest rates and collapse of British pound...as a result I have taken steps to pay as much of the properties as possible' You then explain how has that was achieved. Reason you were doing this was to put maximum pressure on Nadia and you didn't want her to be represented.
KZ	May I answer
J	I understand your case about how hard you have tried to engage
BM	3017 please. One final thing on 1651, three paragraphs up from the bottom [BM reading]...'steady stream of cashflows, I will soon no longer be able to pay you 2000 per week' you were saying there was a risk you would reduce the amount you were paying, wasn't this you trying to put Nadia under intolerable pressure in these proceedings?
KZ	Don't understand what you are saying. I was suggesting that we had no more capital and we had the income from the property to meet our needs, the debt was repaid, we would get the same amount of money we were going to get at the time.
BM	That was the autumn of 2022. 3107 please.
KZ	I am not as witty as BM, I am happy to come back tomorrow I don't want to rush and make mistakes.
J	I understand, however the court has other cases
BM	3017. We have seen what's happened, your discussions with BOJH, paying down the mortgage for the reasons you say 'zappo funds..used most of them to reduce the mortgage' you were doing this weren't you to make it as hard as possible for Nadia to make LSPO and MPS application, that was your motivation when you found this money you didn't even know existed.
KZ	It is difficult to sustain a mortgage in US, she decided to litigate with the bank, the bank asked us to pay 100 [x] dollars a month, I don't want to be left with the bank forclosing and forced to sell our assets.
BM	Where you had indicated that it would be hard for you to continue paying maintenance, and there were live issues as to how Nadia would fund her legal fees, when you found this 'forgotten' money you decided to pay down the mortgage and reduce the liquidity
BM	2865 [BM reading] 'the assets currently frozen, insufficient assets' isn't that your solicitors acknowledging a problem that was entirely your making?



KZ	Not at all, this came after the ex parte application, this was the meeting of the 29 th of Mr Macdonald, the judgment of 6 th July, Mr sent a document to the court that had 17 errors, the third item was the Penn mutual policy. In the judgment it was stated I had ample liquidity, I should have appealed the judgement and this letter was to address exactly that point.
BM	We looked a moment ago at your letter of Autumn 2022 when you say you were self-representing, look at 3161 please. At the same time NZ was telling you she was concerned how she would meet litigation costs, you were selling marital resources to fund your own legal costs
KZ	October 2022 I was in Wyoming, I was tempering with the idea of self-representing, I was put onto Camilla Baldwin.
BM	Can I recast, 3161, 'Karim has made false representations about being self-represented...since x 2022 I have had no shadow representation' You were represented by Camilla Baldwin during that time' focus on the first bit, what is incorrect about what Nadia says there?
KZ	She says I am represented on 17 November, I have not paid Camilla Baldwin between that and the LSPO, a negative sum, its Camilla paying me back what she owes me, I was getting money back, I had overpaid her and I was not using her. There was a judgment...
BM	I can see the judge nodding, will move on
BM	Have you rectified the tax returns, there was a number of errors
KZ	2022 were done, they were fixed. 2022 was done the way Nadia wants it done. 2020/2021 was sent by Zack in august, Zack said would you like us to refile and there has been no engagement
Bm	Meant to be uncontroversial
KZ	2022 has been filed correctly
BM	Its with the IRS now
KZ	Yes, done the work, sent it to her and get nothing back. 2022 have been filed, 2020 and 2021 are in the way she says are false, the entities which fed into the personal tax return, mine is a non-personal tax return, it is not relevant from a tax perspective. 2022 has been filed the way she wants.
Bm	2022 has been filed, 2020 and 2021 haven't been filed?
KZ	Rectifying them exposed things to reinvestigation. We sent them to Jeff for approval, we have had nothing back
BM	The position is that nothing in any of these returns would be relied upon by you to thwart any order made
KZ	No, they are returns
BM	Those returns misrepresent the partnership returns
KZ	No not correct, the only legal document is between us and the back. If the tax returns we can fix them
BM	I want you to be able to reassure the wife, you will not rely on anything in those tax returns to thwart the interpretation of an order by his lordship
KZ	Yes that is not possible.
BM	875. Paragraph 65. 'emailed Karim with my view...' BM reading. She is right about that, she is right about the entirety of the paragraph
KZ	Not write, ambulanz I couldn't invest in because I was in the UK, my wife is American I offered her instead of me. I sent her the spreadsheet on May 17 th . I had invested in Blackstone



BM	Easier to look at, 1079. 15 th November. Ambulanz, you say let me know what you think, her response at 1193, she says it looks very interesting. 1472 there are emails between you and Doug, 11 th November 2016, 'Terribly sorry to report...cannot accept the documents you are based in the UK' 1387, May 2017, you say 6 months later, you include it on a spreadsheet you say this is being done by a total return swap, you did have an interest didn't you?
KZ	No it was linked to a spreadsheet on my google drive, we went through this in detail at the first appointment. Just about that investment is the 25000. I sent a link to Nadia in 2017, she said in 2022 I hadn't disclose. Mike was going to take 25000 in ambulanz, against blackstone special opportunity fund, it hasn't been disclosed, this is the difficulty in inputting between two individuals, seemed to be complex, after 6 months consideration we decided not to do it. Mike Deeg wrote to the Judge on March 13 th explaining exactly what happened, July 13 th 2020 and email I'm sure we can find later, he states the investments, it is public, he doubled his money, I did not participate I couldn't.
BM	Lifestyle, during your marriage you had a high lifestyle.
KZ	Yes it was obscene
BM	You have an ability to generate money in a way Nadia doesn't
KZ	No I am a white 50 year old male, I am not employable. Nadia is seeked after
BM	Is it really your evidence, that Nadia can get a full-time job and be entirely self-sufficient through employment
KZ	Women peers of mine in an industry have reinvented themselves, Miss Marsh...
BM	She is not Nadia, do you think she can get a full time job be self-sufficient through income. I am going to say she needs more than 50% of assets to meet her income needs, is that a fair submission?
KZ	No
BM	Why not
KZ	Nadia is...
BM	One of the things you seek an adjustment in relation to, your loss on crypto by not selling when it was higher, what is the adjustment?
KZ	It is what his lordship things
BM	What do you think this should be, Nadia had no input on the sale of this, you sold it. She didn't want you to sell it.
KZ	She didn't say anything, it tried to get engagement.
	[BM conversing with NZ]
BM	The circumstances with in which you sold them, that was without any notice to Nadia
KZ	It was without any notice
BM	You seek adjustment for wear and tear on the property, Children have been in that property for 9 years, its reasonable wear and tear
KZ	I realised the landlord was being very hard he was asking for money on an iPad which I never used, I am going to push back with him on that
BM	Can I push back on that, that's in your conduct statement is that something you will be pursuing.
KZ	Nadia was continuing to borrow money from her father, it is a gift probably, she is now saying it was a loan, it is illegal on US tax returns
BM	19950, you say she did not look after the property, you are now telling his lordship that the landlords seeking of some of these monies has been unfair, are you still seeking £19950?



KZ	12 of the 19 I am seeking, 7 were unfair
BM	The bulk of the costs in this litigation are costs for which you are responsible, you did not make ongoing updating disclosure
KZ	I do not believe so
BM	You say that Imerman was unnecessary, 25000 should be paid by Nadia, look at page 87 please. Transcript from August 2021 hearing. Halfway down talking about Imerman. 'we conduct our own assessment' the treatment of the Imerman documents was the treatment that your barrister were contending for from August 2021. To ask Nadia to pay for this is unfair, no?
KZ	I don't understand
AC	This is a legal argument, KZ shouldn't be expected to understand
BM	You were saying through your barrister that the Imerman documents should be reviewed by HFC, I am going to say that it is unfair for you to say Nadia is responsible for that, is that fair?
KZ	I don't understand
	[BM checking with NZ any other questions]
BM	You said that you would sell at the high point, she didn't engage, her response that other correspondence was talking about splitting everything in specie, she was adopting your alternative approach, that is fair, no?
KZ	No, we are talking about crypto and coinbase, I have messages from 2016 when she was saying she wanted to sell. This was the all time high, optimal time, I reached out to sell these two assets
BM	You only know it's the all time high 3 years later
KZ	There was also a big divorce going on, seemed I was the only one responsible.
BM	Imerman documents, extent of the inquiry by HFC was greater than she suggesting was carried out, she was suggesting only 1 of the 4 folders should be examined as she knew the contents and they insisted on doing all four.
KZ	HFC did what they felt they had to, she said the other day they should never look at the Ubuntu computer.
BM	I haven't been able to cover everything I wanted to cover, AC referenced that in regards to raising things in submissions.
	15:05
	Re-examination
AC	1599 – You explained just now that you had split, you made this proposal in 2021 when the discussions of the loan were being aired, thereafter that once the loans had been produced 'your client can withdraw funds of up to...on a pound for pound basis' what was her response to that offer?
KZ	Too little too late
AC	Would you have a look at 2283 please
	[FS looking through the documentation, paused taking note]
AC	Zahmoul.ka look at 3651, on this page we have identified, it says deleted, do you know what that might be?
KZ	It means that it is account that will be closed down on 24 th
AC	18 October 2014-15 January 2014, on 3652, the wallet first activated, we see the 19 th October, we can see some activity, little activity in 15, 17 and the last activity on this account is 31 st July 2017, that is the entirety of that account is it?
KZ	correct
AC	2816. 1338, Paragraph 5 you have already explained to the judge you spoke to your solicitors in April, you mentioned that your solicitors have not always



	understood the difference between coinbase and crypto, explain how that has been an issue?
KZ	Letter of July 5 th , willing to exchange information only for the crypto assets, Nadia got confused with coinbase and crypto. My solicitor may have in writing that letter, we were going to explain the information on Topanga
BM	You can say anything if you say I told my solicitor XY and Z and they just got confused
AC	I accept that. 1380. We have looked at this before, want to get the chronology in order, you are talking about the coinbase. Who is in green.
KZ	Me. I don't know what is behind it is not me
AC	Underneath, it is not right that we are not getting any information
KZ	I describe this as not being a traditional investment.
AC	1377, July 2020, writing to Rachel at Buena Vista. It is Steve Yang.
KZ	Half a million dollars of coinbase
AC	Did you get any material response?
KZ	No, it was very hush hush it was the shares of the CEO of coinbase
AC	1384 please. Again, we are on 13 July 2020, again you are in conversation with Mike Deeg, 'where she asked him if the investment was fake' what does this relate to?
KZ	coinbase
AC	That was July 2020, now look at 898 please. Mrs Zahmoul is trying to allege you were trying to hide that information, you did a search of your computers
KZ	She wanted to know every single conversation I had had, all the emails I received from Topanga canyon and myself since February 2020 to April 14 th 2020.
AC	How did we find these documents, the conversations with Mike Deeg?
KZ	I provided them to show...i wanted to show communications between me and Topanga, there was some that I missed I was in Morrocco
AC	And everything you had was that sent to Mrs Zahmoul's lawyers?
Kz	I believe so.
AC	A document given to your wife in May 2017, sometime later it came back to you.
KZ	In March 7 th 2022 said there was another asset that you haven't disclosed. Was put together in 2017, Nadia wanted to know all the investments, span of that company
AC	When the document was sent to her in 2017 was there any discussion about it?
KZ	Don't think so
AC	1389. I put these documents to Mrs Zahmoul suggesting she knew about coinbase, listing the assets, we can see investments, and coinbase is listed, what did you understand Mrs Zahmoul would do with this document?
KZ	From time to time she wanted to know what I had, this was produced to show her. I had onshore and offshore, there was another potentially big exchange, this is a similar exchange to coinbase, there was no way this could be misunderstood to be venture capital.
AC	Look at 1392, we have looked a few times over the last few days, her emoji to you was good luck to the world, what did you think it was?
KZ	She was congratulating me
AC	It has been suggested to you generally that your intention was to hide or deceive Mrs Zahmoul about the 5 million windfall in coinbase, we have seen your letter detailing the change in investment, why was that sent?



KZ	To inform her about the change, should have been sent earlier.
AC	Supplemental bundle at page 13. This is an email from you to Mr Burgess in November 2022, what was the purpose of you proposing to meet?
KZ	I wanted to meet to suggest that I was willing to answer any question
AC	Page 26, email in French to Nadia and her father. Page 29 for the English translation, third paragraph on page 29, did you get a response?
KZ	no
AC	2929 in the main bundle
KZ	CV of Monica McGregor, remind his lordship of who she is
AC	I still have 20 minutes
BM	Some of these documents I haven't even taken him to, it needs to be re-examination
J	I would like to finish today, but it does need to be by 10 to
AC	Been put to you that you wanted to put pressure on to get a deal done while Mrs Zahmoul was without representation. 2858. Can you explain where the information came from to complete the schedule?
KZ	This was a painstaking exercise, take each one of the entries on the spreadsheet.
AC	Has NZ had all the core documents?
KZ	Yes
AC	In relation to spending on your daughters
KZ	Beginning of proceedings
AC	In relation to Gemini we have an affidavit from your sister in the bundle. BMs case is that you were either parking assets with your sister or trying to hide the assets, that remains the suggestions, can you explain to his lordship the position?
KZ	My sister got married in..
J	A lot of this I am aware of and I can look at the documents myself
AC	These documents, a number of tables accompanying the letter from Portuguese advisors, 21 documents, BM asked for tables of income that were referred to in the letter
Bm	Bank accounts
KZ	Some of them are here, 2020 and 2021 bank accounts, it was always there in my form E, same account number as Mr Luis had put into tax authorities
AC	3593 please. NZ has raised a number of questions about Portuguese tax returns, this is a document provided by the Portuguese advisors
KZ	This is a document Valeria helped me to put together, response to Nadia's accusation of figure 2 of the conduct pleadings
AC	This is a line by line response, prepared by you
KZ	By me yes
AC	Detailed response to the lines in Mrs Zahmoul's table
AC	Are you hiding money?
KZ	No
Ac	Are you hiding any money or crypto?
KZ	No
J	I don't have any further questions. I propose AC to allow leading and junior counsel to put together submissions are hear them on Wednesday
	15:40





Attendance Note – Zahmoul Final Hearing Day 6 (Submissions)

Client: Zahmoul

Matter: ZAH01.1

Date: 26.02.2024

Time: 10:30

Initials:

J - MacDonald J

ACKC -Alexis Campbell KC – Counsel for Respondent

Sassa-Ann Amaouche – Counsel for Respondent

BMKC - Brent Molyneux KC – Counsel for Applicant

ZB – Zoe Bloom

	11:27
AC	It falls to me to make submissions
BM	I need some more time to clarify how things are going to progress on this side. I am doing my best to clarify how I can best represent the submissions my client would like to put before you. Can I ask one question on behalf of my client – are there any circumstances where you would all that part of the advocacy is done by me and then she continues to deal with matters that she feels she has a better grasp on?
J	No
BM	So either I do it or she does it?
J	Yes
	11:29 Break
	11:54
J	Yes
AC	If there are no applications, I will proceed. Documents I have sent to Ms Knight, I will send them to Mr Molyneux.
BM	Apologise not for the first time, my client would like to reopen the evidence in relation to the UBS. His account was that the 12 million sterling was entirely visible, used for investments, used for living expenses, and there was doubling account. Adding those figures and coming to an aggregate of withdrawals, was not correct. If you added up fees leaving and returning, it would look more than it was. NZ does not accept that. She has overnight spoken to UBS and wishes to share with you what she has been told, she says it shows that what Mr Zahmoul says is wrong. She feels so strongly that you must understand the reality of this so as to not lose 15 million pounds, she would wish to tell you about this in person and be tested on it. I make the application for the evidence to be reopened.
AC	I object in the strongest terms. Mr Zahmoul said he would provide and anything and everything, this has been made available, made in a clear and digestible format, to hear that after the close of evidence, to hear that she has been in touch with UBS, we don't know what has been said, we haven't been copied in. When evidence is given, it always leads to another round of questions.
BM	It's not the question of the underlying data, it is the methodology, the material she is receipt of explains that the methodology. All of the money added up aggregate tells the



	total outflows of the 15 million, the methodology she says is so clear and could be made transparent.
J	For reasons I will make clear in the judgement, I am not prepared to reopen the evidence.
AC	SA will make available the documents. One is an updated document, schedule of Ms Zahmoul's breaches. Been some amendments recently. I have updated the ES2, there are concessions made in this I will elaborate on. These are very full and I am hoping it will make my submissions must shorter. Will give you a record of my client's full case. SA will explain the schedule of breaches.
SA	Where there have been amendments, we have highlighted those amendments. They are grey on this document. I am not going to speak to the detail of this document. You made the first substantive directions, the order at 3397, further directions on 1 March 2023, 386, further directions on 7 th September 2023. One order I ask you to turn to, the first of November 2023. In the note we have prepared at para 55k, you will find with emphasis added excerpts from your reported judgement. In July 2023 you were warning the wife she had failed to provide the schedule of alleged non-disclosed assets. Over the page, November 2023 you warn both parties that fundamental tasks to achieve final hearing, her allegations failed to be particularised. The wife was given fair warning. What happens at the PTR? At 7am the conduct statement was provided by NZ. If I can ask you to go to PTR order at 636 please. I ask you to note 3 paragraphs, disclose at paragraph 6, paragraph 7 provision of whereabouts of watches and paragraph 14 direction for 25 statements by 30 January. Point that we make, having served the conduct statement late, we have a repeat, we have the s25 given on day 2 of the final hearing. You were required to make rulings on the content of that statement. There is a morphing of that conduct statement. Finally, having reference paragraphs 6 and 7 of the PTR order. 2 pages in the supplementary bundle, 322 and 323. This was provided on day 3 of the final hearing, this is Mr Zahmoul's solicitors copy of her updating disclosure, all of the directed documents are to follow, except for liabilities, all of those documents remain to follow. You will recall that when cross examined, her response was 'in due course'. To quote BM, this is not a dress rehearsal. Finally, in this case, it was only during cross examination that KZ learnt that the watches had been pawned, no documents evidencing that NZ did receive 50000. Finally, you have no ES2. The ES2 you have is that was created by KZ's team, that is a woeful failure on the practise direction. BM says what is the point of adding to the ES2 because of the totality of the non-disclosure. If the wife won't engage in the computation, it is a clear disregard, litigation conduct, this wife has failed to articulate her case and the findings she asks you to make.
AC	I am going to touch on a few final overarching points. I am anticipating the case BM is going to put. The wife's case of 140m pounds has not been made in any shape or form. There isn't a clear argument. The calculations don't add up, the documents don't make sense and it is very difficult to even follow. The basic premise of what the arguments are haven't been met. There isn't any way he can invent the argument; it simply hasn't got off the ground. There is 12 million, NZ's case [is as close to the 12 million he can]. BM can only do that by saying we are here through non-disclosure through 3 arguments, Topanga canyon coming late, Gemini, and the Zappo wallet. These are the only substantive claims BM can rely on. He is going to say if KZ hadn't erred in his disclosure we would not have got in this mess. Superficially that is an attractive argument. This isn't that case, no matter how persuasive the arguments may be that NZ has concerns and suspicions, that doesn't come from those 3 actions. That is NZ's character. I ask to always bear in mind that those 3 actions, these things happen in cases, they don't end



up in this mess. This case has ended up in this mess because of NZ's conduct and her behaviour which has been monstrous. Those are the overarching comments. I am not going to go through them point by point. It is NZ's comment firstly, the petition in January 2020, served in piecemeal in June 2020, that while she was encouraging KZ to buy a property jointly, she was looking on screens. She trapped KZ it was deliberate, this was an opportunity to examine his financial data. Secondly, she didn't disclose those documents until April 2021, in the spirit of the rules, you should hand them back straight away. NZ held them back to catch KZ in a lie. It didn't, there was a complicated asset schedule. BM criticised KZ for giving explanation for some assets but not Topanga, there are explanations for 3 or 4. KZ wasn't hiding the Topanga investment. NZ's overarching obsession with disclosure. The more that is given, the more NZ entrenches herself. We were at the beginning we were on Barclays, coinbase and now UBS. I understand NZ has written to UBS directly over the weekend, this kind of spurious unnecessary damaging material is being spewed out. She has a legal team, she knows she shouldn't do it. Volume doesn't mean disclosure but at some point. If your questions are very broad and overarching you cannot argue the disclosure is too much. KZ has been pushed to disclose and disclose and disclose and it will never satisfy NZ. No engagement is enough, KZ has asked numerous advisors to engage and provide assets. KZ is genuinely happy to offer any disclosure. I can say on his behalf it is sometimes unnecessary to provide the disclosure. He is an open book, one of the reasons he was drawn to crypto is because it is public. She has had full access to his tax returns, we have written to her, do you know where this document. The pursuit of litigation in the US is vexatious, it is useless to her. She applied to this jurisdiction for the divorce, we have spent thousands to try and find out the tax results of moving the assets. The natural place was the US but she chose here and then chose to continue in the US with BOJH. I genuinely hoped NZ would take notice and take a reasonable approach. The judge does have the power to move houses and debt, you heard her evidence that she will never be satisfied until the I's are dotted, it doesn't matter there is no impact to her. She is determined to pursue the vexatious litigation and hounding KZ. The breaches are unusual in number and severity. If you take yourself back to the statute, we have to ignore the noise and look at the statutes. S25(1), children, s25(2) the checklist, and s25(a) the need to consider a clean break. Principally the matters must take into account. Jade Mia is an adult at a prestigious university, this isn't a college where she is left to fend for herself. We know this, NZ hasn't moved to Massachusetts she has stayed in Wyoming. Lila Mae is full time boarding, similarly NZ must have confidence as she has set herself up in Wyoming across the Atlantic. A lump sum of 700000 from his pension, set aside for the children's tertiary education, Cheltenham is already paid for. In terms of maintenance for the children, you haven't heard anything about children. They are entitled to have a relationship with both parents. I'm sure it has been incredibly difficult for them, may not be easy for them to share the time. You should proceed on basis they will spend school and university holidays with both parents equally, each party will make their own expenditure when with the children. No question of child maintenance. Capital resources, NZ has not allowed her legal team to even comment on this. Remains the figures that KZs team have put together. Points in green are the changes, 346000 tax has been taken off as it appears in the net effect, didn't want to double count it. Other points are de minimus in relation to chattels. Although she spent 50,000 of money I will add that to add back argument. I've amended the car 10000 held by a friend. Over the page, we have given evidence, increase in legal fees to both parties. Burgess Mee are owed 265000, Taylor Wessing owed 168000, Saffrey LLP are owed 11000 and MRW consulting, tax experts



	were'n't advising on the incidence of tax which will be paid, FTI consulting, either some cyber or crypto. These are new I've added them in. I have ignored the loan from Mrs Zahmoul father, as this is yet to be evidenced. It appears on bank statements as family help. Lifetime allowance on the pensions has not gone, as long as we are able to put his lordship's order in effect. Final page, so you can navigate through this document, first column identifies the assets, second column is the exact lift from the ES2, same as net effect on the ES2. What I will be saying there needs to be some adjustments before you can come to quantifications. Not significant, Mr Zahmoul's father should not be included, Oxus KS was assisting on an advisory basis, he has some shares they are of no value. Most significant feature, under liabilities, Mrs Zahmoul says she owes her advisor 1.83 million, I say we should not count that she should not have spent that, and should not have spent more than 1 million, if we add back that 913000, the difference, you should add that back before considering, it is not a reasonable figure. If you don't add it back, KZ is picking up 50% of the bill being incurred. NZ should pay for the hill villa debt and Wyoming, she had significant maintenance and those debts shouldn't have been incurred. Malta, his non habitable status means he can draw down and by paying 10% on the drawdown of the whole it become liquid. If he can draw down over 3 years he may not have to pay any tax, I am working on the basis there is none. I deduct [x] for the coinbase tax. That can be shared between the parties, any balance will be shared equally. 70,0000 will be held in a joint account, shouldn't be any draw on the joint account without signatures. And the tax 233000. If those are drawn from the pension they will get a minimum of 553000. US pensions can be shared in America, they will get [x]. That is what I say the court should take into account. The total resources, deductions of 713000, the add back on spending. Net fund of 12,550,000. The way the figures are apportioned, KZs arguments makes, 3100 should come to him. He has taken a view, NZ is already in the property that she wants, she doesn't have to move she can stay there. He will take 31000 and 100% of the mortgage and the property with the higher CGT and mortgage. NZ will say it is preposterous that the two of them each retain a property. It is a holiday town, there are lots of elegant chalets, it is realistic for them each to have one. It is a convenient place for him to spend time with his daughters, he can ski and his daughters have skied. These are both expensive properties and it may be they can't keep them. If he is not able to have the mortgage removed from NZ's name, the property will have to be sold so NZ can be released from the property. Because she is getting the more expensive properties, he will keep all the frost street properties. That will give NZ the property where she lives, she can sell it if she wants to pay her legal fees. She can keep it and rent it, that is a good income if the expenses can be accommodate. If she wishes to sell it, 5 million of liquid cash in her hands. Joint accounts divided equally, parties retain own savings. [Private equity] divided equally, NZ keep her [x]. The money is not really there in emvrya. Chia investment in trading g company, KZ keeps that. Excluded the non-matrimonial. Range rover in the 10000 equity owned by a friend. Mr Zahmoul will keep the money owed by the friends. He has a rental refund to him, NZ has a tax refund to her. NZ has outstanding legal bills of 570,000. Property expenses in Cheltenham and property expenses in. NZ will retain 5.9 million. 54/46% SPLIT. You will want to know what that is in cash. NZ owes her advisors 1.428 million, she has 570000 above the line, taken into account. My offer does not take into account she will be left owing her lawyer 850000. She shouldn't be given credit for that on the balance sheet, you should add it back. You should add back the money she wasted on the BOJH. I have added back the 50k she spent on KZ's jewellery, she could have pawned her own jewellery, it isn't fair. I have added back the EDF liabilities, she has had the MPS, money from her own
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account, and moneys from joint account. Haven't quantified the adjustment in relation to her conduct generally. If we add back the hard figures, she would have had 6.8 million if she acted reasonably, she would have had more than half. 5.589 – 858k is fair in the circumstances, is the question for you. Can I turn to my note at page 15, I want to put to bed the arguments about undisclosed assets. We've had disclosure going back 9 years, that is unheard of in these proceedings. We only had an order to 2019, but KZ went back further, it was good, having examined everything KZ was able to prove the negative, NZ doesn't like the answers, but it is all explained by Mr Pinto and covered in his report. The Gemini account, KZ's oral account is very plausible. At his sister's wedding, at the time it was worth 220k\$. These proceedings have shown that to be the case. We can see from the Gemini statements, there was no trading, there was nothing happening to that account from 2017. KZ said this was an old wallet, I gave it to her I never touched it again. NZ knew there was an account, it was in the Imerman, it is listed in the HFC letter to Withers, it says my client does not hold a Gemini account. It should have been in the form E, but often if you consider something that was given in 2018. NZ made a big deal about the subpoenas in 2023, but in 2022 he explained to the crypto expert saying I have given it to my sister. BM will take you to when he transferred it, it is no secret he knew there would be trouble. It is not the best thing to do, but it is not uncommon and it wasn't hidden. The info was given before the subpoena was applied. The rise gave, the zappo, the account was closed in 2024 in activity, there was an internal exchange, it became a bank, you can see the internal transactions, all of the correspondence make it clear they had no contact with him, that the bitcoin were processed and paid back from him. I believe you should make a finding that the total assets are 12.69 million, take off the inherited money, the coinbase tax, I identify the 913000 to be added back. In my opening note, I refer to T v T and YZ v ZC, the court of appeal, general approach that litigation conduct would be reflective in a costs order, there are cases that one parties litigation conduct has been such that it should be considered when the court is giving its award. It can be taken into account at this stage and make a costs order. The depletion of matrimonial assets will not simply be covered by costs. What is important, and/or by making an order for costs, the outcome is a fair outcome and gives consideration to any minor children. Judge Hess did that in a case where one parties costs were disproportionate. That is here, it is nearly a million pounds, it is a phenomenal sum, it changes people's lives, it means you can't live at the standard you want. If it was a couple of thousand pounds we might not look in this way. We have 913000 over a million. Nearly two million. Paragraph 23, these are the specific reasons I say you should add it back. Ordinarily the respondent bears the financial burden, it takes time to read the answers but finding the information is a more burdensome task. We are used to seeing the earner, the asset holder bearing the financial burden. We don't have any updating disclosure from NZ, we don't have bank statements, credit cards, she still hasn't provided the F file documents in the tax returns, this morning there was a discussion, my client has been chasing the coinbase disclosure and the tax disclosure. My client has spent the best part of a day and a half putting further information together for W, we then ask for the F bar form, she simply said no. Why are her costs even as much as Mr Zahmoul? We know she has spent 230000 on third party costs, 158k due to Nick Warr, had that resulted in a consensus on the tax it may be worth it. She has spent more money than even resolved this issue. The court wants to know the bottom line. We have taken costs on the worst-case scenario as we can't get consent from NZ on how to treat it. If NZ choses to cooperate they can both save tax. Nick Warr was instructed in relation to tax, Mrs Zahmoul told her advisors 'I don't want you to talk to KZ or his team', that is destructive, not just wasteful. There were real



	concerns about cipherable that Mr pinto was concerned about. NZ has paid, he has produced two reports, I dread to think what he has been paid. No application for his report to be relied on, it was slid in. 50 important breaches, so you didn't have an ES2, KZ didn't have the S25 statement. Burgess Mee has a bill of unpaid costs of 265000. We know they have had 40000 as they got that from detach. The LSPO was paid to burgess mee, they kept 20000 of it. That is a total bill of 325000. NZ said in her evidence she had no legal help, she said they came on the record for a brief period, turns out that period was October 2022 to March 2023, somehow burgess mee have racked up a bill of 325000. How, we will never know. Very good evidence of money being burned. One can understand when you see the money disappearing like that, why KZ did what he did with the mortgage. Irony he was chastised for doing that, he didn't breach orders. Standing back had he not, imagine what would have been spent. Actually, the money has been saved. NZ came to court time and time again she was burning through assets. Complete lack of focus, she was saying KZ was dissipating the assets. He offered her half, half wasn't enough, she wanted it all. That why I say the 913 should be added back. Paragraph 25 I deal with income resources. KZ has not been a high earner since 2014, worth looking at 2228 and 2229 of the bundle. Caused some consternation for NZ but she is simply not reading the document. This was created to persuade the authorities of what was clean capital. All the money he has spent offshore would have been taxed. He stayed offshore for tax purposes saving millions. The very first column on 2228, this is all income, everything from Barclays, the shares from Barclays, the overseas relief, profit from partnership, foreign. This is everything, not just offshore and onshore, this is everything that has been earned up until 2018. NZ completely missed that. You can see all of the tax, the Barclays income. You can see this at 2010 getting really high. You can see it when it diminishes, then it goes to nothing in 2018, all we have left after that is foreign income. Those last figures are modest, look at the last 3 lines. We are talking about 22/23k, 77, this is modest. BM will tell you that KZ has a high-income capacity, this is nonsense. When he left Barclays, he earned modestly. He has capacity to work, he can earn. That will supplement his basic needs, he is 58, one might think at this age and after this kind of event, he may not work or reduce and live more modestly. I accept NZ does not have capacity to work, but she can earn to supplement her income needs. She can choose to stay in bed, go skiing, if she wants to earn more she can. She is a tenacious individual, she is focused, she is attractive, she will be attractive to many industries. She may choose not to work, they both have the ability to supplement their income. The resources: their income capacities are similar. Accommodation needs, another aspect of s25. Accommodation first, both parties entitled to a roof over their heads. They have rented since 2011, they don't need to buy unencumbered properties. What is the right figure you should alight upon? 2 million I say. You have scant evidence. NZ says she wants a home in London, Boston, Wyoming and NY on the upper east side. The 3 million she referred to in her statement is modest. She has elected to stay in Wyoming. Looking at the property she is in, it is 6 million, a decent smaller home could be acquired for 2 million. The court can take judicial knowledge of what you can buy in this country. You can buy a palace in Cheltenham for 2 million, or a decent house in most boroughs of London. Income needs, 150k per annum for life on a Duxbury calculation. Often in these courts the judge will alight on a need now and reduce by a third in retirement, I have proposed 150000 as a flat figure, might not be enough now, will be more than enough later. Question is it enough for this family, BM will say this is a family that lived on 1 million pounds per annum, if he is sensible, he might say 250k. That is not needs, needs are clothes, a home, holiday. The 1 million spent by the family is not needs, it was never a sensible
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	way of spending. At paragraph 36 are contemporaneous records, 2014,2015, to 2019 of him saying we can't afford and can you cut back. This spending is not needs, shouldn't be used to reflect the standard of living it was never affordable. From 2018 onwards it came from capital. If they stayed together they might have spent it all. You need to be sure NZ's needs are met. Don't be tempted if BM says give 5 to him because he can go out and work and give 7 to her as she has high expenses. KZ is not avoiding work; he hasn't really worked since 2020. Is there enough capital to meet her needs. Stepping back, 5 or 6 million of course there is. Is there enough to meet what she wants to spend, no. The authorities, SS v NS asks some useful questions, highlighted in bold 'the next question is how much and for how long' he then went on to quote the law commission. Mr Mostyn quotes, exactly what needs will be met will depend on what there is and usually the marital standard of living. The replication of the marital standard of living will be rare post separation. Most families will not be able to live at the standard they did during the marriage. Don't be lured by BM into giving NZ much more capital because KZ could work, that would be disproportionately unfair, he would have to catch up. The inclination to give more is attractive, but what is fair for one is fair for the other. He says in paragraph 35, final sentence. That is exactly where we are. My Lord, going back to paragraph 43.
J	I am aware of the time...
AC	I have 5 more minutes. You will want to fix a figure for NZs reasonable needs, KZ has said about 1200 a month. Resonance, she has had an MPS order. 150000 will cover all of that. It isn't necessary to cover a house in Wyoming, NY, London, Boston. This is a long marriage, parties are later middle age, they have had an unusual marriage I accept going on until 2020. NZ conduct in stealing his confidential information. She knew it wasn't right she did it secretly and she tricked him. Disabilities, there is the letter from Mr Libby, treat it with caution, no supporting evidence, letter referring to coercive and controlling behaviour which has crippled NZ. Not correct, not right to consider NZ with a [x] of any sort. An observer in these proceedings. NZ has shown to be very strong and determined. This is a woman who is strong and in control. It is certainly a woman who is not being bullied by anyone. Paragraph 55, NZ had no hesitation in bringing proceedings against Mike Deeg, BOJH. She is a strong and tenacious woman, I do not think her behaviour should mean you should give her an extra consideration. Both parties have found this difficult. She is adept at playing the audience when she wants to. She has been able to give very strong [x]. Paragraph 63, sets out the costs the court was dealing with. Here are the figures, the yellow line, costs were similar, wife was proposing to spend another 318,000, by the hearing in May costs had gone up to 393 and June to 586. By July, look at the figures. These are huge increases. In September when she revealed her third-party costs, it is not surprising that KZ went and paid off the mortgage. Paragraph N, 150000 to be retained from the pension to be a war chest to defend any proceedings NZ will bring against KZ. If there is an amount set aside, I say the litigation is vexatious, and some money should be set aside. Mr Zahmoul has given an undertaking to protect her. If she gives an undertaking then we don't need that money, the war chest.
J	Hear your submissions BM at 2:15, you have until 4:30
	13:24 hearing paused
	14:18
AC	Over lunch I had instructions that the litigation in the US is continuing, there is a hearing on 4 th March. I would like to add an amendment to my position, transfer of property at



	3100 doesn't take place until litigation has ended, will be more effective in trying to bring a resolution to that litigation
J	Yes
BM	This is it, the end of the litigation,. There is a bundle of 4300 and many pages that didn't make the cut. What is this case about, Jakob Elleson, he says 'I know it when I see it'. Hound of the Baskervilles, he knows good art when he sees it. You should know non-disclosure when you see it. It's about whether Mr Zahmoul has dishonestly failed to make proper disclosure of his resources. Looked at in its entirety, he obviously hasn't made disclosure, the real issue is has he succeeded in other things that we do not yet know about. Happened to stumble upon 800,000\$, otherwise we would be sitting here today with no visibility in relation to that asset. I do not want you to think, easy to characterise this as NZ feels passionately but rationally about this. I don't want you to characterise this as someone who is gripped by the non-disclosure to punish KZ with no regard for costs. Cassandra was condemned with nobody to believe her, she was saying he was not telling the truth and we don't have disclosure, she was making those submissions which were rejected by KZ and his team, there was a million dollars of crypto, when at the beginning of 2022 she was saying he has not made disclosure, there were assets that he has not told the court about. She was right. Everyone was saying she was wrong. Today's value 1.1 million dollars of crypto. In his name, none of which he was owning up to, he is saying they weren't in my name or I have forgotten about them. He had those crypto assets and the court didn't know about it and NZ was saying they existed and she was right. KZ's form E was grossly deficient. There was 1.1 million of crypto missing. With good reason does NZ look back and describe it as gaslighting, that he hadn't made a full frank disclosure of his obligations. Hard when someone has form for not telling the truth, as this whole exercise is based on the honesty and integrity of the parties, she seeks the entire pot on the basis that it is only the visible assets. She thinks she should not be penalised for KZ's non-disclosure. Paragraph 5 of my submissions, I set out the order that NZ seeks. I don't shy away from saying it would normally be a bold submission. She alights upon the most visible resource. I am going to canter through the law, we should look briefly at <i>Moher v Moher</i>, paragraph 83 'unless assets can be shown positively to exist an order cannot be made...inconsistence with the overriding objective, to allocate the appropriate resources [BM reading the judgment]. The court should be astute that the non-discloser should not get an outcome that is better than if they would have disclosed. My client was being encouraged to reach a deal with undisclosed crypto, and an asset that was shortly to become 7 million, if NZ had done a deal on that, on disclosed assets of 10,11,12 million sterling, instead of the much higher figure without the spending as a consequence. The spending is a result of the non-disclosure, we see NZ being criticised for the money she has had to spend on the non-disclosure, that is why she has fought so hard for fairness. <i>NG v SG</i>, my submission was unless the court was able to identify the undisclosed resources [they should be treated as not existing]...the court said that is just not possible. It would be unfair to the applicant not to try and identify, shouldn't be any injustice where the non-discloser gets more. Adverse inferences when figures had been hidden, that gets a tick here. The standard of living they have enjoyed, the standard of living that NZ says he has continued to enjoy, 'look firstly to direct debit, then business activities and lifestyle' final reference to <i>GW v RW</i>, Mr Justice Mostyn draws the courts attention to the fact that there is an obligation on someone filling in a form E to make it comprehensive and comprehensible, to put an obligation on other side to ferret through. This is a role she has had thrust upon her. Everything that has come from that, the costs incurred are down to him. If he had adopted a more honest



approach, we would not be looking at the final bill we are now. Not my client's fault. What is his disclosure? You start off with one thing and everything snowballs, if you are caught out not telling the truth, you have to put your hands up straight away and you have to make sure your disclosure is completely up to scratch from then on. We try to get to the bottom of coinbase, then zappo...who's fault is that? Mr Zahmoul. The way NZ has been treated is completely unfair. The tone of the letters from HFC, them referencing that she is pursuing some grand conspiracy, and is perhaps being ridiculed. At that time, he knew they were understated by 7 million. It is interesting to look at the costs of the private FDR, 1895. You'll find I referenced it in evidence. On 19 July, his were 163,000..when we get to the PTR, hers are 393 and his are 247k. Why have the costs grown in that way? Had she been the unreasonable character, it would have sounded in the initial costs, we would have seen that up to the FDR, there is money to be spent up to FDR, her costs were less than his. She was validated that she was being taken for a fool and the court was being taken for a fool. Important to look at Topanga and coinbase. Mr Zahmoul is not a private equity hobbyist, he was a keen and enthusiastic investor of crypto, who happened to be an early investor. He couldn't believe his good fortune. It was in the forefront of his mind. 752, his investment, type of investment, no narrative with this entry, there matters were left. Until the first appointment on 7th April 2021, counsel for wife produced an asset schedule we find it at 881, we see in small print, Topanga canyon, H 85000 shares, company business unclear, it was produced on behalf of the wife but went between the parties and in front of the judge. How easy would it have been on 7th April for KZ to say, or shortly thereafter, to say this holds equity in coinbase and it is worth an awful lot of money, not sure how much because it hasn't floated, but it will shortly. The figure should be closer to 7 million and I should tell you now. If it was beyond reasonable doubt he would be banged to rights but it is just balance of probabilities. Whether the respondent has given a full and frank, her costs were pretty proportionate, she was seeking explanations and answers, and hoping KZ would tell the truth when prodded. Mr Zahmoul tells us now that he knew of the plans for listing, he must have known that the value of Topanga was many multiples of 75000. No good saying he was taking a literalist approach, we know that he knew he was sitting on something valuable. 1343, he says in his statement, only Topanga he adopts a literalist approach. Even if that were true doesn't absolve him of the need to tell the truth and so people can decide if he is being reasonably conservative. He says in terms that he knew that there was going to be a listing of these shares and he chose not to say it. Out of his own mouth that is what he is telling the court. He might say this all sounds very damning, he might say my wife knew all along, there was no real need to iterate in my form E because she just knew and she is playing dumb now. There are a number of pointers whether that has any plausibility, she did not raise it in correspondence, what we have learnt is that had NZ had a suspicion, she would have raised it, is it really conceivable she would not have raised it in questionnaire? Is it conceivable that she would have signed off the asset schedule? She doesn't even raise it in advance of the FDR. The notion she would have kept stum, and not raised it is an absurdity. The husband might have referenced the floatation of coinbase to her, we saw that WhatsApp message she replies, emoji, I understand what it means, it conveys an excited cheeky surprise. KZ might convey that it is a rise and rise of crypto which he is engaged. It is a world away from proving that she knew he had 75000 in Topanga which would likely have lots of value. It is doing a lot of heavy lifting. It is apparent from all of their dealings that coinbase and crypto was an interchangeable term. She knew he had crypto, she didn't know he had coinbase. 1386, 1387 and 1807. 1807 document provided in advance of a mediation. There at 1807, we



see coinbase as the investment, 2.327 million dollars, that was crypto. It wasn't a reference to coinbase, coinbase hadn't floated. He was using and confusing those two terms, it is not surprise, she cannot be blamed if she didn't know that coinbase was not coinbase equity, it was crypto. The idea that these documents are being handed over should be taken by you as disclosure, has no weight at all. No reference at all to coinbase equity. I have said what I want to say about the literal approach to his form E, 754 in the bundle, aertex he says 'remained my view of current value' He was applying his mind to the current value, he did not do this Topanga canyon. Again on 24th, no specific reference to Topanga, is it reasonable if she had known that she would not have asked those questions? Almost as if he is feeling her out as to what she did and didn't know before embarking on mediation. On 24th June, no reference made to Topanga canyon, excluded entirely, confirmed, time and time again an opportunity for him to come clean. Whether she wants any more information, no explanation at all. By the time we get to 24th June, it had been floated two months earlier. He even says on 14th April to his daughters, there is no doubt at all he knew, at first appointment he was about to be in receipt of windfall. He understood his equity was increasing in value, his evidence is that he didn't follow it. We can tell that isn't right by looking at 1382 in the bundle. Exchange with Mr Deeg. Go back to 1380, Mr Zahmoul is green, 'I just met a guy who is invested in round D funding, showed me the numbers they are making' he knew this was a metaphorical goldmine, he says 'we need to get those numbers' Obviously what is really going on... 'not funny' is the response on 1381 not funny is the 100,000\$ offer, he knows this is a bit of banter between financial lads, laughing on their good fortune as to getting in early, suggestion it was worth 75000 it even gets a lol. He even joked about Deeg buying him out. They got in at FF, anyone engaged in this, the value of that changed over time. He would have seen that. It is preposterous that he didn't keep an eye on this. Absurd that he did not know about it. Also absurd that if NZ knew about it she would have asked him about it. What did he say in response, solicitors say in his statement we have no record of this conversation, he says it was my intention to tell NZ ahead of the pFDR, I wasn't going to duplicate disclosure, before the private FDR I was going to tell her. We know that is untrue, they wrote on 2nd July 'I do not propose providing updating disclosure...apart from cryptocurrency account' [BM reading the letter.] The only reasonable conclusion was KZ wanted to deceive the wife by not providing updating disclosure. If she had cottoned on, he had got through the form E, questionnaire, replies to questionnaire, almost home. He says there 'shall we just not have updating disclosure?'. Other evidence points to him taking advantage of wife's ignorance. He told the court that he unilaterally reduced the financial that he had previously been making, he had said we are burning through capital, he didn't say he was sitting on this 7 million windfall. He did something else, he encouraged NZ to attend mediation and negotiate on an entirely false premise. He sent her an asset schedule with some figures updated. He tells her that he wants to mediate, if she is taking this seriously, then don't involve her solicitors. There is really no defence to this, he is trying to procure a deal with her without her solicitors, without disclosure of a 7 million assets. He says I will buy out your investment [X] tells you all you need to know about his character, he is not someone who has behaved honestly, he is not to be trusted, he has taken the court and his wife for fools. He is a non-discloser. Not just that, of course, everyone loves a repentant sinner. Had he at that point come clean, not instructed his solicitors to write moderately harsh letters 'gone up in value 5 million' he didn't just participate in that play acting, he sat on other assets, at least 1. Paragraph 19 [BM reading] he tentatively discussed it with Pinto, but that is not the same as correspondence between solicitors. The Zappo account containing 16 bitcoin, the



zappo he said he forgot the Gemini he denied was his. The reference, footnote 5 is where they try to finesse away the Topanga canyon. What of Gemini, the timing does not look good for him. Looked at in conjunction with his other non-disclosure, March 2023, he knew he had a Gemini account, 25th May, details of any investment account, he says nothing. 'Details of which have not been disclosed' if you were looking for loopholes you might say you were not trading, is this the right approach if you are a serial non-discloser? No. What would have been easier than for him to say, 'I have 5 bitcoin in my name, they are my sisters, given what had happened, let me just be clear' but he didn't do that. 25th February 2022, original questionnaire, asked to disclose further investments which have not been disclosed. Analysis of Imerman disclosure, degree of Imerman, she only wanted 1 folder to be looked at. They made the decision, HFC to do that, the costs incurred are on him not my client. Our clients' accounts are in form E, 'client no longer holds Gemini accounts' this was a lie, he had an account in his name and it had 5 bitcoin in it, value even then of over 100,000. On 4th March, Judge cope ordered a crypto expert, he objected but seeing the writing on the wall he relented. He contacted Gemini on 12 March. He said it was prompted by move to Portugal, but he moved in 2020. He says in his statement, he says his honesty and integrity juxtaposed with NZ's, the first question I asked, he paid someone some money to pretend he lived in Cascais to avoid taxes, what a terrible way to behave. 12th March he contacts Gemini, he says he had just moved to Portugal. He could see the crypto expert was being appointed and this may lead to the uncovering of his holding at Gemini. He gave his own phone number not his sisters and there is a message from his sister but signed off from him. Who is actually involved in these holdings has never been explained. At the same time, he is trying to undermine the efforts of NZ to obtain disclosure, at 3194. Letter from withers [BM reading]. Again, this is a theme that has had real world costs consequences, subtly undermining the relationship between NZ and her lawyers, he wrote to burgess mee asking them to read a number of books, PTSD which he acknowledged that NZ has, AC asks you to give no weight to the letter of Dr Libby, but he attached it to his own statement. It has impacted my client's ability to trust what he says. When the trust is gone, it is hard to get back, in a marriage and in litigation. When you are proven right in relation to Gemini, in relation to Zappo, in relation to Topanga, someone is saying just talk to me, that you will want to understand Portuguese tax return, Illya to correct its own mistakes in a letter, all for figures that barely make sense and don't have any underlying documents in any event and she is told to believe it or she is someone who is [X]. The IRS tax return, my client states to be a fraudulent tax return, where she is being put as a UK citizen, none of this makes sense to my client, she is told she is being unreasonable. No reasonable person could accept what he is saying, because so much of it has made no sense for so long. Zappo, NZ has long contended he had bitcoin with Zappo, at 1992. Imbalance of knowledge in this sector, she is going to incur money trying to understand it. It's not like a bank account that we don't understand. She didn't know all of these things, he did. She needed Mr Siberik, it was inevitable she was going to spend money with Mr Siberik or with someone else. Even now my client is very sceptical about the second coinbase account. She can't add up why the French account is from 2014 when they only had a license in 2023. Can she fairly be criticised given how things have played out? The 1LVGS, the multibit wallet, she posed the question is it the multibit wallet? You'll recall this being the multibit wallet that he distanced himself from, my client is on the scent, she understand that the account had transferred...he is saying he hasn't had a multibit wallet for a long time. September 2022, 3863 in the bundle. Further questions were raised on behalf of the wife, what became of the funds in the multibit wallet, can I please have the



	Zappo records. She could not have done more to put him on notice that she did not believe his disclosure, what did he do? Nothing at all, until 10th March 2023. The only rational explanation for this is that he was hoping he wouldn't have to disclose it. His aspiration was that this would somehow all get lost in the wash. That was his philosophy. On 15th March, he says he would like to sell the balance, the faster the better, on 10th April he admitted it existed and he had spent it before he had told her. There are so many examples of him doing what he can to reduce liquidity in the case. It is presented as prudent finances, with one eye on NZ's expenditure. We say that it was to make it so difficult for her to litigate, his nondisclosure, the last thing he wanted was for her to have funds, he wanted to get rid of liquidity, pay down his mortgage, it doesn't make any sense, wasn't his call to make. He was able to self-represent, it's always easier for the non-discloser. She couldn't self-represent as she had already taken a litigation loan, it was a condition that detach had added to the terms of the loan, she didn't have any choice but to have representation. We see time and time again liquidity being removed, and seeing that as [x]. Unless you reduced the LSPO he would not be represented, but hey presto here is with Ms Campbell and Ms Amoush. NZ would say it's arrogant disdain, 17 May 2022 'the outcome of the costly exercise was to show I had disclosed everything' that is simply not true. I am not going to take you through the conduct statement, I am not going to take you through. I can't say to you there is 141 million of crypto that has been evidenced in these proceedings. I can say there are unknown unknowns, that you don't know if there are undisclosed crypto currency. With zappo and Gemini, the gap between being told he had and the time when he came forward with it. We are in a position that Mr Pinto says this is a sphere that if you don't want to tell the truth there is more space for that, the KYC...you have to ask who is the true owner of this wallet. If you are an early adopter it would be very very easy to hide assets. NZ's case is if you look at the way KZ has made and not made disclosure, it is more likely than not that he has not made disclosure of crypto. That the court should draw inference that he has not made full disclosure. Otherwise, the decision is that we have exhausted all the nondisclosure, that is inherently unlikely. We know about what we know about, and we don't know what we don't know about. There was a question mark over the true owner of a wallet. 3DGA, His evidence was that because of who he was with, he thought it was Miss Molina. Molina produced a clear letter saying it was her account. She couldn't have said that unless she believed it, or someone told her to say it. If someone asked you if that was your bank account you would know if it was yours. He as good as said that she said it was hers because she told her to say that. He then says an entirely different explanation, this is someone at forte securities, it smacks of dishonesty. At the very least if you were to give a benign meaning telling someone to just say it's theirs, in these proceedings, where you have previously not disclosed, you tell someone to tell the court that a wallet is there's and you are going to rely on it with an expert. It is terrible behaviour, and it shows why we are where we are with costs. It is not down to my client. I deal with the conduct. We haven't engaged with the maths because there is no maths to be dealt with. We cannot engage with figures that you honestly and reasonably believe represent a fraction of the total resources. In red is my client's responses to the allegations made against her. Certain assets which would be worth more now. AC acknowledged it is not technically a breach, not in the spirit to pay down all the mortgage. Was to prevent my client of having liquidity, it is an onion of unattractive reprehensible behaviour. I invite you to read the observations I make in red. I am not going to overegg the observations I make in relation to his behaviour. In relation the UBS, my client reasonably believes in relation to the UBS, KZ says to her they are not to be taken in aggregate, to contextualise the case, she says
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their UK expenses were met by onshore money, they spent everything that was being earned in the UK, there was 11 million sterling net. That is easily understood. He wasn't remitting money, that would have had adverse tax consequences. There is another pocket of money, the UBS. She says the UBS money did not meet their capital needs, those properties existed, those properties were rolled over 1301, roll one over for the purchase of another. Assets in America were self-contained. The spending in UK was in a bubble, living good lives in the UK, UBS 12 million in the UBS going out and nothing to show for it. There is a hole, she says in the instructions she gives, not found in the assets in America, not found in assets in UK, she does not accept KZ's explanation. It looks like a big number, but it is an aggregate figure, she says that 12 million is a free standing second balance sheet. Elsewhere on that page I invite you to read 3297. Then I make some submissions in relation to crypto. The following matters we say are going to be material as to if this is a non-disclosure case, we are not asking is it a non-disclosure case, we are asking is the non-disclosure continuing. His approach to crypto is his approach to the case – respond to what is known. It has made the proceedings so acutely painful, that he is not being fair to NZ that through the 26 year relationship she has supported him. There was a letter put to my client in her evidence, do read the entirety of that, you will see how troubled their relationship was, how easy it would be to imagine this was a couple who had their troubles, it is not a case where my client turns and wants to punish him out of spite. Its clear that there were issues of intimacy and trust. This is not out of spite. Paragraph 29, don't read NZs tenacity as to someone who can walk out and get a job, you can see why she has struggled, the idea she could walk into a high paying job is for the birds. Why would someone who is anxious about their financial future lend someone 500,000 who already owed them money? He only paid 50%, you would only do that if you were confident about your financial future or if you were trying to get rid of liquidity so when your wife wants MPS you say the cupboard is bare. Standard of living KZ enjoyed post separation, invite you to give mind to this in her statement. We haven't even got onto Ambulanz, I have put it in as a footnote. I would respectfully ask you to give note to what my client says in relation to Ambulanz, he tried to invest in 2016, it miraculously appears in a list of assets, it managed to survive as a line in an asset schedule which he uses to evidence his honestly, far more likely that he still had that investment and she has not been able to get to the bottom of. 800,000\$ to Miss Molinas. 816000\$ in today's money, this is a person who has not made full disclosure. Everything that could be found out has been found out, it has been like pulling teeth trying to get to the bottom of it. Her position in relation to needs is entirely reasonable, her needs would not be met on an equal division, would lead to an unequal future, this family were spending 900,000. She does not have an earning capacity, 50% will not meet her needs, she needs to entirety of the resource. Costs, he has applied unreasonable pressure, he has prevented her from using their money to fund her costs, 1651, he has sold the zappo coins and paid down the mortgage to stay her efforts to get liquidity, he has obligated her to take out a litigation loan, he has pressured her to take less than she should. Cardinal example, May 2021 when he was trying to procure a settlement while not telling her about coinbase. He is responsible for the costs. There is something sad about this case, the sadness is the costs that have been unnecessarily been incurred. That is an awful lot of family money spent on lawyers, but that is not my client's fault. She has done her best to resolve these things. She agreed to mediate in May 2021, if she was a hard nose litigator, she would not have contemplated mediation, but she did. Because at heart she has wanted to resolve this in cost effective way, but she reasonably could not tolerate having the wool pulled over her eyes. [Reading statement within submissions]. I can't improve on that, that is



	her case, on 21 st February, withers wrote in similar terms. 'The audacity your client displays' this is not a case about whether my client has complied with orders or whether she could have done better with certain aspects of procedures, this is about non-disclosure and what happens when one party doesn't tell the truth the another. Something for which he and he alone is responsible for. Can I pause and check I haven't missed anything.
	[BM conversing with ZB and NZ] NZ Thank you
AC	No right of reply and don't seek one. Few points to correct, first one in relation to BM having behaved fraudulently in giving the wrong address in his tax returns. 2149, NZ's tax advisor accepts it is not a problem. 1371 'that's not funny' relating to purchase, he is referring to the aspect of how they purchase the window
BM	That is a submission
J	It is
AC	My paragraph 58F made a point about legal privilege, BM says he hasn't waived privilege and can draw an adverse inference, you may not.
J	I will revisit both parties' submissions
BM	The inference is that he hasn't said what he says he had
J	Thank you very much indeed, it is my intention to reserve judgment, will endeavour to give judgment by the end of term, there is a possibility that might not be possible. Thank you.
	Hearing ended 16:00



Exhibit NZ-S

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October 17, 2025

To Whom It May Concern:

RE: Mrs. Nadia Zahmoul (D.O.B.: 04/27/1969)

I am Mrs. Zahmoul's treating physician in Wyoming, USA. She has attended several consultations with me since late September 2025, due to a significant deterioration in her mental health.

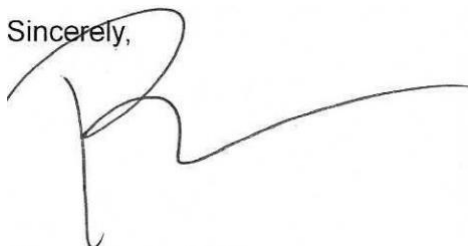
Mrs. Zahmoul has a documented history and diagnosis of Post-Traumatic Stress Disorder (PTSD) and a confirmed diagnosis of Autism Spectrum Condition (DSM-5 299.00; diagnosed June 2025 by Central London Adult Service, NHS UK)

She is presently experiencing a relapse in her mental health, characterized by heightened anxiety, emotional distress, and difficulty regulating stress-particularly in connection with ongoing UK court proceedings.

In my clinical opinion, Mrs. Zahmoul requires participation and communication support measures to ensure she can engage meaningfully and safely with the legal process. I would recommend that the Court consider appropriate reasonable adjustments consistent with her mental health and neurodevelopmental needs.

Please do not hesitate to contact me should further information be required.

Sincerely,

A handwritten signature in black ink, appearing to be 'R' followed by a long horizontal stroke.

Bruce Hayse, M.D.